

MAKERS AND ROMANCE
OF
ALABAMA HISTORY

B. F. RILEY

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ROMANCE OF ALABAMA HISTORY ***

Makers and Romance of Alabama History

Embracing Sketches of the Men Who Have
Been Largely Instrumental in Shaping the
Policies and in Molding the Conditions in the
Rapid Growth of Alabama—Together With
the Thrilling and Romantic Scenes With
Which Our History is Resplendent

By
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Alabama, As It Is;
History of the Baptists of Alabama; History
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Man's Burden; Ex-President of Howard
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and sometime Professor of English
Literature and Oratory in the University
of Georgia.*

“History is neither more nor less than
biography on a large scale.”—LAMARTINE.

“All history is but a romance, unless it is studied as an example.”—CROLY.

“Biography is the only true history.”—CARLYLE.



DEDICATED

TO THE WOMEN OF ALABAMA—

The Mothers, Wives, Daughters, and Sisters, without the fidelity, kindness, and devotion of whom this proud commonwealth could not have attained its present magnificent proportions, and on whose future loyalty must largely depend the perpetuation of the grandeur of Alabama; who though not conspicuous in the glare and tumult of the struggles which have eventuated in the erection of Alabama into a giant state, have yet made possible the successes of others by the quiet and wholesome force of our home life; to these, our worthy women of the past and present, this volume is most cordially dedicated by

THE AUTHOR.



BY WAY OF INTRODUCTION

The present volume is intended to be a substantial contribution to the history of Alabama, by giving expansion to the recorded lives of its foremost citizens—men who alike on the field and in the forum, on the bench and in the sphere of commerce, in the lecture room and in the pulpit, on the farm and in the court, in the field of development as well as in the ordinary walks of life, have shared conspicuously in the erection of one of the proudest of the American commonwealths.

The distinction achieved by these eminent citizens in various orbits are worthy of perpetual record, and their respective deeds and accomplishments deserve more than a bare reference in the current chronicles of the state. Along the successive eras through which Alabama has passed, first as a territory, then as a state, for a period exceeding a hundred years, each of these worthies made a contribution to the construction of a mighty commonwealth, and sheer justice requires that the specific task so worthily wrought by each should be a matter of permanent record. The effort is here made not to follow the beaten path of chronological biography, so much, as to seize on the salient points in the life of each eminent leader, show who and what he was, and that which he did. By means of a method like this, these distinguished men become reflectors of the period in which each lived and wrought.

In addition, is a series of romantic sketches which lie outside the channel of ordinary history, and yet they serve the function of imparting to its pages a zest and flavor that relieve it largely of commonplace. These scenes derived from the transactions of nearly four hundred years, have been carefully gleaned from every possible source, and are here embodied for the first time in convenient form.

The conditions which have attended on the evolution of a great state from the rawest of savage wildernesses, have yielded a store of material intensely romantic. The original tribes with their rude settlements and forts dotting the uncleared surface of Alabama over, skimming the waters of the streams

and bordering bays in their tiny canoes, and threading the forests along narrow paths; the invasions of the Spanish and the French, and their transactions and conflicts as they would encounter aboriginal resistance, and the later and lasting occupation of the territory by the Anglo-Saxon, who came with dominant determination to possess the land and to transform it through the agencies of a conquering civilization into an exalted government—these have yielded a harvest of romance exceptional in its rareness and fascinating in its nature. While the record of scenes like these afford diversion, at the same time, they serve as no inferior contribution to our history. Like the lives of prominent makers of history, these rare scenes are indexes of the times in which they took place.

It is proper to say that the material embodied in this volume appeared first on the pages of The Age-Herald, of Birmingham, Alabama, with no original design of the expansion which they gradually assumed, and with no purpose, in the outset, of embodying them in permanent form. As first appearing, the individual subjects were treated under the general head of Men Who Have Made Alabama, while the other sketches appeared under the subject of Romance of Alabama History. The only change which they have undergone has been in the way of the correction of certain minor errors to which the attention of the author was kindly called, and for which he now acknowledges his gratefulness.

The publication of this volume is due to numerous requests which have come from both within and without the state, attended by a generous suggestion of the historic value of the matter herein embodied. It is in compliance with these requests that the volume is published.

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MEN WHO HAVE MADE ALABAMA

WILLIAM WYATT BIBB

On the extreme eastern boundary of Washington County, on a bluff overlooking the Tombigbee River from the west, is the site of old St. Stephens, the original, or territorial, capital of Alabama. At one time it had a population of perhaps three thousand, composed largely of immigrants from Virginia. At the time of its selection as the seat of territorial government it was about the only place in the territory fitted to become a capital, though Huntsville, on the extreme north, was also a town of considerable pretension.

As early as 1817 St. Stephens was a bustling little center of culture and wealth. In their insulation the people were proud of their little capital. Their touch with the outside world was by means of sluggish flat boats which were operated to and from Mobile. The original site is now a scene of desolation. A few ruins and relics remain to tell the story of the once refined society existing there. Some of the foundation masonry of the little capital building and of the tiny treasury, an occasional column of stone or brick, beaten and battered, rows of trees still growing in regular order as they were planted nearly a century ago and a cemetery with its stained and blackened marble remain to indicate that this was once a spot inhabited by a refined community.

Here, as far back as 1814, Thomas Easton, the first public printer of the Alabama territory, issued his little paper with its scant news of flat boat tidings from Mobile, the improvements in the little town, the exploits of hunters of turkeys, deer, wolves and bears, with a slight sprinkling of personalities. St. Stephens had been a town of some pretension for years before the first territorial governor, Honorable William Wyatt Bibb, of Georgia, came across the country from the Chattahoochee to assume the executive functions to which he had been appointed by President Monroe. Bibb was amply equipped for his difficult position alike naturally and by experience.

A graduate from William and Mary College, he chose medicine as a profession and was actively engaged in his profession when he was chosen to represent Georgia in the legislature, where, though still quite a young man, he won distinction. When scarcely twenty-five years old he was sent to Congress from Georgia. Later he became one of the senators from the state, and later still was appointed by President Monroe, the territorial governor of Alabama. His was an arduous task. The territory was dotted over with straggling settlements of colonists who came from Virginia, the Carolinas and Georgia and settled here and there, but the two chief settlements were in the opposite ends of the territory at St. Stephens and Huntsville. Roads were yet uncut, and in passing from one settlement to another the colonists would follow the trails of the Indians which threaded the forests through. To weld the widely separated communities into statehood and lay the foundation of a great commonwealth required more than ordinary statesmanship.

The boundaries of the territory had just been defined by the National Congress, with the provision that the territorial legislature of the new region should be those who were members of the Mississippi legislative council and house of representatives who resided within the confines of the newly created Alabama territory. Of that number, it so happened that only one member of the legislative council, or senate, fell within the new territory. James Titus, of Madison, was the only member of the upper house, and during the first session of the legislative assembly he sat in a chamber alone as the senate of Alabama. He was president, clerk and the senate—all in one. He met, considered the measures of the lower house, adjourned and convened with ludicrous formality. In the lower house there were about a dozen members.

The initial message of the first governor showed a ready grasp of the raw conditions and an ability to grapple with formidable difficulties. A wilderness had to be shaped and molded into a commonwealth by the creation of the necessary adjuncts, all of which the young governor recommended in his first message. The promotion of education, the establishment of highways, the construction of bridges and ferries, the definition of the boundaries of counties and the creation of new ones, in order to fuse the dispersed population into oneness were among his recommendations.

Perhaps the most notable service rendered by Governor Bibb was that of thwarting the effort of the Mississippi constitutional convention, in which convention was organized that state, in seeking so to change the original boundary between the Alabama and Mississippi territories as to include into the new state of Mississippi all that part of Alabama which lies west of the Tombigbee River, or, in other words, to make the Tombigbee the boundary line between the two proposed states. This imposed on the young governor an important and arduous task, but with cool aggressiveness, coupled with influential statesmanship, he succeeded in preventing the proposed change. Had the change been made there would have been lost to Alabama that valuable portion now embraced in the counties of Sumter, Choctaw, Washington and Mobile Counties. To the active agency and energy of this original commonwealth builder is Alabama indebted for the retention of this valuable strip of territory.

Commercial and educational systems were organized by the incorporation of banks and schools, and the first location of the seat of government of the new state provided for by the selection of a site at the junction of the Cahaba and Alabama Rivers, which new town was called Cahaba. Governor Bibb was charged with the work of laying out the plans of the town and for providing for the erection of a capitol building. Meanwhile the seat of government was removed to Huntsville in order to await the completion of the capitol at Cahaba.

His term having expired as territorial governor, and Alabama having now become a state, Governor Bibb offered for election as the first governor of the new state, and was opposed by Marmaduke Williams, of Tuscaloosa. Bibb was elected, but died soon after. Two counties, one in Alabama and the other in Georgia, were named in honor of Governor William Wyatt Bibb.

SAM DALE

No more romantic character figured in the early days of Alabama history than General Sam Dale. Cool as an ocean breeze, and fearless as a lion, his natural qualifications fitted him for the rough encounters of a pioneer period. Like an ancient Norseman he sought danger rather than shunned it, and hazard furnished to him a congenial atmosphere. He was born for the perils of the frontier, and his undaunted spirit fitted him for reveling in the stormy scenes of early Indian warfare.

A native of Virginia, Dale was taken to Georgia in early childhood, and there grew to early manhood. From his earliest recollections he was familiar with the stories of the lurking savage and the perils of the scalping knife and tomahawk. He was therefore an early graduate from the border school of hunting and Indian warfare.

When Dale removed to Alabama in the budding period of manhood he had already won the reputation of being the most daring and formidable scout and Indian fighter of the time. In numerous encounters he had been a distinguished victor. Six feet two inches high, straight as a flagstaff, square shouldered, rawboned and muscular, with unusually long and muscular arms, he was a physical giant and the terror of an Indian antagonist. By his courage and intrepidity, he excited the regard even of the Indians, who called him "Sam Thlucco," or Big Sam.

The qualities possessed by Dale may be illustrated by the revelation of one or two of his daring feats. Appointed a scout at Fort Matthews on the Oconee River, in Georgia, which fort was under the command of the famous Indian fighter, Captain Jonas Fauche, Dale slid with stealthy movement through the country, and spied out the whereabouts and plans of the Indians. Once while at a great distance from the fort, he was bending over a spring of water to drink, two Muscogee warriors sprang from behind a log, and leaped on Dale with tomahawks upraised. With entire coolness of mind he pitched one of them over his head, grasped the other with his left hand, and with his right plunged his knife into his body. Quick as thought

the other recovered himself, and rushed with madness on Dale just in time to meet another thrust from his blade, and both lay dead at his feet. Bleeding from five wounds which he had received in the combat, Dale retraced the trail of the Indians for nine miles through the woods, and when he came to the edge of their encampment he found three brawny warriors sprawled on the ground asleep, while in their midst there sat a white woman, a prisoner, with her wrists tied. He deliberately killed all three as they slept, and cut the thongs of the prisoner. Just then a stalwart Indian sprang from behind a tree with a wild yell, and with a glittering knife ready to bury it into Dale's body. Dale weakened by his wounds and his exhausting march, was thrown to the ground by the Indian, who had him in such a position that within a moment more he would have made the fatal stab had not the woman quickly seized a tomahawk and buried it in the brain of the Indian. The woman was quietly escorted back to the fort and returned to her home.

Peace having been made, Dale betook himself to trading with the Indians, exchanging calicoes, gewgaws, ammunition, and liquor, for peltry and ponies. His profits would have been enormous had Dale not been the spendthrift that he was. But like many another, he never knew the value of a dollar till he was in need. His trading led him across the Chattahoochee into the Alabama territory in 1808, at which time we find him among the earliest immigrants to this region. He was most valuable as a guide in directing for years bodies of immigrants from Georgia to Alabama. He was at Tookabatchee and heard the war speech of Tecumseh which precipitated the war in Alabama, and straightway gave the alarm of approaching hostilities to the inhabitants. A long and brilliant series of daring exploits marked the years of the immediate future of Dale's eventful life.

Perhaps the most noted of his feats was that of the famous "canoe fight," on the waters of the Alabama River. This was a thrilling encounter, and is inseparable from the great achievements which adorn the state's history. It is too long to be related in detail, and only the outline facts can here be given. With two men in a canoe, Austill and Smith, and the faithful negro, Caesar, to propel the little boat, Dale sallied forth on the bosom of the river to encounter eleven Indian warriors in a larger boat. As the boat which bore the Indians glided down the river, the one containing the three whites shot out from under a bluff, and was rowed directly toward the Indians. Two of

the Indians sprang from the boat, and swam for the shore. Caesar, the negro, who paddled the canoe of the whites, was bringing his boat so as to bear on the other, that they would soon be alongside, which so soon as it was effected, the negro gripped the two and held them together while the fearful work of slaughter went on. The result of the hand to hand engagement was that the nine Indians were killed, and pitched into the river, while the whites escaped with wounds only.

In the early territorial struggles General Dale was engaged partly as an independent guerilla, and partly under the commands of Generals Jackson and Claiborne. At the close of hostilities Dale took up his residence in Monroe County from which he was sent as a representative to the legislature for eight terms. In recognition of his services the legislature granted him an appropriation amounting to the half pay of a colonel in the regular army, and at the same time gave him the rank of brigadier general, in which capacity he was to serve in case of war. Later, however, the appropriation was discontinued because of a constitutional quibble, when the legislature memorialized Congress to grant an annuity to the old veteran, but no heed was given to the request.

In order to procure some compensation for his services, General Dale was induced by his friends to go to Washington, and during his stay at the national capital, he was entertained by President Jackson. Together the two old grizzled warriors sat in the apartments of the president, and while they smoked their cob pipes, they recounted the experiences of the troublous times of the past.

General Dale served the state in a number of capacities additional to those already named. He was a member of the convention which divided the territories of Alabama and Mississippi, was on the commission to construct a highway from Tuskaloosa to Pensacola, and assisted in transferring the Choctaws to their new home in the Indian territory.

His last years were spent in Mississippi, where he served the state in the legislature. He died in Mississippi in 1841. His biographer, Honorable J. F. H. Claiborne, says that a Choctaw chief, standing over the grave of Dale the day after his burial, exclaimed: "You sleep here, Sam Thluccho, but your spirit is a chieftain and a brave in the hunting grounds of the sky."

ISRAEL PICKENS

One of the great commonwealth builders of the southwest was Governor Israel Pickens, the third governor of the state. As a state builder he came on the scene just at a time when his constructive genius was most needed. His two predecessors, the brothers, Governors William W. and Thomas Bibb, had together served the state little more than two years, the former dying while in office and the latter, as president of the senate, succeeding him and filling his unexpired term. Both these had wrought well under raw and chaotic conditions, but the utmost that could be done within so short a time was that of projecting plans for the future of the infant state. While the foundation was well begun, the superstructure still stood unbuilt.

On Governor Israel Pickens was imposed the task of the real erection of Alabama into a state. It was an organization which called alike for skill, wisdom, and executive direction of the highest order. Serious problems lay at the threshold of the young commonwealth, and these had to be met with a sense of delicate adjustment, and yet with a firm and deliberate judgment. The domestic policy of the state was yet to be molded, and such precedents established as would thereafter affect the destiny of Alabama. At this time Governor Pickens was just forty-one years old. There was a demand for extraordinary prudence in calling into conjunction with himself, by the governor, the sagest counsellors that the state then had. Executive leadership at this time must encounter a critical juncture. Fortunately for Alabama, Governor Pickens was amply qualified for the onerous task imposed. He sprang from one of the most eminent of the early families of the south. The name of Pickens lingers in Carolina history today with a flavor of distinction. Himself the son of a revolutionary sire who had rendered gallant service as a captain in the struggle for independence, Governor Pickens bore to the state the prestige of his family when he removed from North Carolina in 1817. His educational advantages had been the best that could be afforded in his native state, and the adjoining state of South Carolina, to which was added a course at Washington College, Pennsylvania, where he completed his legal education. A practitioner at the bar for a period in his native state, a legislative service of a few years and a

career of six years in Congress preceded Pickens' settlement in Alabama in 1817. Locating as an attorney at St. Stephens, he was appointed to the registership of the land office.

It is insisted, and doubtless rightly, that no executive of the state has in thoroughness of efficiency and in comprehensiveness of grasp of a situation ever excelled Israel Pickens.

He became governor in 1821, and was re-elected in 1823, serving till 1825 to the utmost limit of incumbency under the constitution. Within the brief period of four years he had constructed into compactness a state from the crude and incoherent elements within reach. The qualities which he demonstrated were firmness, deliberation, sedulous care, wisdom and administrative force, to all of which was added a zest of labor. Never hasty, but always at work, promptly recognizing any lack of deficiency in the developing structure, and with equal readiness supplying it with a sagacious eye to permanency, the interest of Governor Pickens was undiminished to the close of his term of office.

So distinguished were these traits of statemanship that they excited general comment among his distinguished contemporaries who insisted that in unsuspended fidelity, unselfish devotion, wise projection and skillful execution he has never been surpassed, if indeed equaled. That he succeeded to the fullest in the accomplishment of his difficult task is the verdict of posterity. Other executives since may have possessed more shining qualities, others still may have been more profound, while yet the deeds of others may have been more spectacular, but all who have succeeded Israel Pickens derived the benefit of that so ably done by him.

When he entered the gubernatorial office conditions were necessarily in an inchoate form. Rudeness and crudeness characterized the initial conditions on every hand. Valuable as the service of his predecessors had been, his lot was to raise into symmetrical proportions with every part perfectly adjusted a mighty commonwealth, ready to enter on its career worthily, alongside the older states. Existing conditions were incident to the emergence of a wilderness territory into the dignity of statehood. But when Governor Pickens retired from office as the state's chief executive the structure was complete in all its parts. In the recent work of twelve large volumes, "The

South in the Building of the Nation,” issued under the auspices of the Southern Historical Publication Society of Richmond, Va., Governor Pickens is alluded to as “one of the great state builders of the southwest.”

Nor did his career end with the expiration of his term of office as governor. The year following his retirement from the gubernatorial chair he was appointed a United States Senator by Governor Murphy. Almost simultaneously with this appointment came the offer of the federal judgeship of Alabama from President John Quincy Adams, but the latter offer was declined, and Governor Pickens entered the federal senate.

But Mr. Pickens was destined to enjoy senatorial honors but a short while. In the latter part of the same year of his appointment as a national senator, his lungs became seriously involved, tuberculosis was speedily developed, and he was forced to resign his exalted station and seek another and softer climate. At that time the West Indies was the favorite resort of those thus affected, and Mr. Pickens repaired to Cuba with the hope of recuperation in its balmy climate. But he survived his retirement from Washington only five months.

Senator Pickens had not reached the zenith of manhood and usefulness before he was stricken down, for at his death he was only forty-seven years old. His body was brought back to Alabama for interment, and he was buried within a few miles of Greensboro. In his death Alabama lost one of her most popular and eminent citizens, and one of her foremost statesmen. To him belongs the chief distinction of erecting Alabama into symmetrical statehood.

CLEMENT COMER CLAY

Governor Clay was among the pioneers of Alabama. He was a native of Virginia, the son of a revolutionary soldier, and was educated at Knoxville, Tenn. Law was his choice as a profession, to the practice of which he was admitted in 1809, and in 1811 he located at Huntsville, which continued to be his home till his death in 1866.

From the outset, he showed profound interest in the territory and in the promotion of its affairs, and two years after making Huntsville his home he enlisted against the Indians, and was chosen the adjutant of his command. His name is prominent among the territorial legislators in the two sessions held prior to the admission of Alabama into the Union.

When the constitutional convention was held, Mr. Clay was not alone a member, but was chosen the chairman of the committee charged with submitting the original draft of the constitution. In one especial sense he is, therefore, the father of the state of Alabama.

It was evident to the state builders of Alabama that no one was more profoundly concerned in its fundamental construction than Mr. Clay, and no one among those who had chosen the territory as a future home, was abler to serve the young state in its first totterings in seeking to get full upon its feet. The breadth and clearness of his vision, and the unusualness of his ability marked him as one who was in great need under such initial conditions. The character of his strength had been shown, and he was destined to become one of the early leaders of the new state. He was therefore chosen as a member of the supreme court, and in recognition of his legal ability, though younger than any other member of the new court, his associates chose him as chief justice, and he thus became the first to occupy that exalted station in Alabama.

The rapid increase of population and the newness of conditions in a young state were productive of increasing business, and called for men of legal ability. In response to this demand, Judge Clay retired from the supreme bench after a service of four years, and resumed his private practice. It was

shortly after this that he felt impelled in response to a mistaken demand for vindicated honor, to brook a grievance against Dr. Waddy Tate, of Limestone County, by engaging in a duel with that gentleman. The result was the infliction of a painful wound to each, and the affair was over. Happily for civilization it has outgrown this method of settling disputes among men of sense.

Continuing for a period of years in his private practice, Judge Clay was chosen in 1827 as a representative to the legislature from Madison County. Two years later he was elected to a seat in the National Congress where he served with great efficiency for three terms of six years.

Offering for the governorship in 1835 against General Enoch Parsons, of Monroe County, the election resulted in his polling almost twice as many votes as his opponent. It was during his term of office as governor that troubles arose by an outbreak on the part of the Creek Indians. Governor Clay at once ordered out the state forces, and as commander-in-chief, took the field in person, co-operating with Generals Scott and Jesup of the army of the United States in the suppression of the disturbance. For about three months the troubles continued, but the unremitting activity of Governor Clay finally eventuated in the suppression of the outbreak, and peace was restored.

While he was still governor, Mr. Clay was elected to succeed Honorable John McKinley in the National Senate. In this new orbit he was brought into contact with the giants of the nation, and the services rendered by him are a part of the national history. It was through the efforts of Senator Clay that the pre-emption laws, discriminating in favor of settlers, were enacted. Multitudes have been the recipients of the benefit of this beneficent legislation without knowing or even thinking of its source. By means of this law, thousands have been able to procure homes on the public domain without which law it would have been impossible. No man in the National Congress was more active than he in the adjustment of the conditions for the greatest happiness to the greatest number.

Mr. Clay retained his seat in the National Senate only four years, when he retired because of his financial condition, to improve which he returned to the practice of law. However, his previous service on the supreme bench

induced Governor Fitzpatrick to appoint him to a position in the court in 1843. Here he remained only a few months, a fact which it seems was contemplated in the appointment.

An additional service rendered by Governor Clay, and it was the last public service for the state, was that of the preparation of a new digest of the laws of Alabama, to which work he was appointed by the legislature. His manuscript, as he had prepared it, was accepted by the judiciary committee, submitted in unchanged form to the legislature, and has been in use as authority to this day. The closing days of Governor Clay were those of gloom. The occupation of Nashville by the federals in February, 1862, resulted in the capture of Huntsville, where numerous indignities were offered to many of the best people of the city of the mountains. Among those who shared in these indignities was the venerable Governor Clay. Because of his well-known sentiments, his home was invaded by the federal troops, claimed and regarded as national property, and Governor Clay was himself placed under arrest. He chafed under conditions like these, and at his advanced age he conceived that the doom of the country had come. Nor did the conditions of the close of the hostilities lend to his prospect any relief. Considerations like these he carried as a burden, until sinking under the weight, he died at the advanced age of 77 years, at his home in Huntsville on September 7, 1866.

ARTHUR P. BAGBY

While Alabama was yet in its territorial swaddling clothes, Honorable J. L. Martin, who afterward became governor of Alabama, met a young Virginian who had just removed to the territory, and who himself was destined to wear gubernatorial honors. This young man was afoot across the country, carrying his personal effects in a bundle very much as a peddler carries his pack. This tall and handsome youth was Arthur P. Bagby.

He was a young man of striking and even prepossessing appearance, tall, graceful, erect, with classical mold of feature and black eyes that twinkled with an unusual luster. He was among the many enterprising young spirits who quit the older states of the south and moved westward with empires in their brains.

Settling at Claiborne, in Monroe County, at that time one of the looming settlements in south Alabama, Bagby at once turned to practical advantage the excellent educational equipment with which he had been provided in his native state. Recognizing in the law an opportunity, not only to accumulate wealth, but a medium to distinction, Mr. Bagby entered a law office and began his preparation for the bar. The rapid inflow of population to the dawning state, the occupation of lands in all directions, and the inevitable growth of wealth would beget litigation and afford a harvest field for the best equipped of the legal profession. Young Bagby caught the spirit of the times and was not slow to improve the opportunity.

Highly gifted, Bagby was like many another young man with rare natural powers, and came to rely on his natural endowments rather than on studious application. His charming personality and fascinating manner made him immensely popular, and his popularity was enhanced by a vivid imagination and prolific and poetic utterance. From the time of his first appearance before the public to the close of a long and eventful public career, he was a most popular orator. His fame as an orator gradually widened, and his services were in frequent demand, not only in the courts, but on important public occasions.

He was not long in finding his way into public life, for in 1821 he was chosen to represent Monroe County in the legislature. His companionable disposition and uniform courtesy won the hearts of his fellow legislators, and when he succeeded himself in the lower house after his first term, he was easily elected to the speakership—the youngest member in the history of the state to occupy that position, being at the time but little beyond twenty-five years old. For a period of fifteen years he was kept in the legislature, sometimes in one branch and again in the other. He closed his career as an active legislator in the house as speaker in 1836.

His active interest in affairs had by this time made him one of the best known public men in the state while his popularity was undiminished. Perhaps Alabama never had a more popular public servant than Arthur P. Bagby. To the equipments already named was that of the charm of a perennial flow of natural, bright and animated conversation. Nature had lavished her richest gifts on this unassuming young Virginian.

In 1837 Mr. Bagby became a candidate for governor. Favorably known by the leading men throughout the state, the election of Bagby was in the outset conceded, though he was opposed by a very popular man, Honorable Samuel W. Oliver, of Conecuh. The popularity of Mr. Oliver was based on his conservatism, and he was universally esteemed a gentleman of great fairness. They were formidable opponents, the qualities of each commanding the highest esteem, but the popularity already attained by the younger candidate and his persuasive and exhilarating oratory made for him friends wherever he appeared, and he was elected.

Up to this time the inauguration of a governor was regarded as so tame an occasion that there was but a small attendance of the population on the ceremonies, but when Bagby was inaugurated those who had heard him during the campaign flocked to the capital to hear him on this august occasion. From remote quarters the citizen high and humble sought his way to Tuscaloosa, then the capital, to hear the inauguration speech of the new governor. In full appreciation of this fact, Mr. Bagby was on this occasion at his best. His appearance was hailed by the acclaiming thousands, and his inaugural address delivered in a well modulated voice and with splendid bearing, was wildly received by an idolizing constituency. The men of plain garb and rustic manner rushed forward to grasp the hand of the popular

young governor, and his reciprocation of a demonstration so generous and genuine was the most unaffected. Nor was his popularity impaired during his administration. Two years later he was swept into office by popular acclamation and without opposition. Though the dual administration of Governor Bagby fell on stormy times, as the issue of nullification was then dominant, he succeeded in so directing the affairs of the state as to increase rather than lessen public esteem.

Nothing was more logical than that he should be elected to the National Senate to succeed Honorable Clement C. Clay on the occasion of the resignation of the latter in 1841. But a remnant of Senator Clay's term was left when he resigned, but Mr. Bagby was easily re-elected when the fragment of time had expired. Before the term of six years for which he had been elected had closed, President Polk appointed Senator Bagby envoy extraordinary and minister plenipotentiary to the Russian Court, at St. Petersburg. For this position he was admirably fitted, but served in the capacity of minister not more than a year, and for political reasons resigned on the accession of General Taylor to the Presidency.

Returning from Russia, Mr. Bagby settled again in Alabama, retiring to private life from which he was summoned to public service by being associated with Judge Ormond and Honorable C. C. Clay in the codification of the laws of Alabama. This was the last public service rendered by Mr. Bagby.

In 1858 he died of yellow fever in Mobile at the age of sixty-two. Naturally endowed with the highest gifts and most varied talents, he gave to these substantial expression in the conspicuous ability which he displayed in the exalted stations which he occupied uninterruptedly for more than thirty-five years. Arthur Pendleton Bagby adorned with signal ability every position to which he was called, and throughout maintained with happy blend and even balance a most courtly dignity and a charming companionableness which put the plainest citizen in his presence at perfect ease. Those who knew him best found it difficult to determine which more to admire, his superior native dignity or his unaffected cordiality, so undefinable was the charm which invested this gifted gentleman. No chafe or worry of stress in public strain impaired the affableness of his intercourse with others, and while he

was honored by his fellow citizens they were amply repaid in the splendid service which he rendered the state and the nation.



WILLIAM R. KING

A native of North Carolina, William Rufus King, removed to Alabama in 1818. Lured to a region destined soon to take its place in the galaxy of states, Mr. King was no novice in public affairs when he reached Alabama. Indeed, he came crowned with unusual distinction for one so young in years when he migrated to a territory which was just budding into statehood. Though at the time only thirty-two years old, he had served with honor to himself and to his native state as a legislator, solicitor and congressman. When only twenty-four years old he had been sent to Congress from North Carolina. His entrance into Congress in 1810 was simultaneous with the beginning of the congressional careers of Henry Clay, John C. Calhoun and William Lowndes.

Mr. King served with distinction in Congress for six years when he was chosen secretary to the American Legation at St. Petersburg, under William Pinkney, who was at that time minister to the court of Russia. After spending two years in this honorable capacity, King returned to North Carolina and subsequently removed to Alabama.

Buying a plantation near Cahaba, in 1819, he had scarcely located when he was chosen a representative to the first constitutional convention of the state. Together with Honorables Henry Hitchcock of Washington County, and John M. Taylor of Madison, Mr. King drafted the first constitution of this state. His clearness of perception, soundness of judgment and ability in adjustment of matters of great moment arrested the attention of the leaders of the coming state, during the session of the first constitutional convention, and he was marked as one of the men of the hour in laying the foundation stones of a great commonwealth. In recognition of his ability, Mr. King was chosen one of the first national senators from Alabama when the first legislature met in 1819. Of this prospective distinction he must have been unaware, for at the time of his election he was on a visit to North Carolina.

Mr. King lived in an atmosphere above that of ordinary men. He was a man of solid rather than of shining qualities, and his life was redolent of purity

and of exalted conception of duty. There was a delicacy of sentiment which characterized his conduct, an affableness and quietness of demeanor, an utter absence of display or of harshness, a serenity and gentleness, with no unbecoming speech to soil his lips, no action to repel even the humblest civilian. On the floor of the Federal Senate the Honorable R. M. T. Hunter, of Virginia, said on the occasion of Mr. King's death: "He was a man whose whole soul would have sickened under a sense of personal dishonor." He was far more forward in his assertion of the claims of others than of those for himself.

No man in the public life of America ever more won by dint of intrinsic merit than William Rufus King. Such was his bearing on all occasions that men instinctively honored him. To him as a public man principle was the path of the highest expediency. He wore his honor on his sleeve, and would not scramble on a low plane for place, and would never learn the art of petty politics. He engaged in political contests, but they were in the open field and in full view of the eyes of the world.

Mr. King came to be the first citizen of the state, becoming Vice President of the United States, but it was entirely due to his worth and not to any of the arts of the struggling politician. Utterly without assumption he was as spectacular on one occasion as another. His was a quiet knightliness without dash, the stamp of a nobleman of nature, without lordly port.

So unquestioned was his ability, so unerring his judgment, so profoundly substantial his qualities as an ideal public servant, that the people of Alabama honored him with official station for a period of almost thirty-five years. In 1837 Mr. King was offered the position of minister to the court of Austria, but declined because of the fact that the ardent advocacy by him of the election of Mr. Van Buren might be construed as a motive looking to future emolument—the payment of a political debt. Men of that type were not so rare at that time as they now are.

When complications with certain foreign powers became imminent in consequence of the proposed annexation of Texas as an American state, there was the demand for the most scrupulous diplomacy and tact and for the ripest statesmanship on the part of those who should be sent abroad to represent the United States at the Courts of England and of France. A single

misstep at this juncture would mean limitless trouble. One especially qualified by social prestige as well as sage statesmanship was needed to be sent to the Court of France. It was just such an emergency like this that called for the exercise of powers such as Mr. King possessed, and he was accordingly appointed to this position and served in this capacity for a period of two years, when he resigned and returned to Alabama. The seat left vacant by Mr. King in the federal senate had meanwhile been filled by Dixon H. Lewis, who was a popular idol, but of a type entirely different from that of Mr. King. Both were models of honor, each equally worthy of public esteem; but Lewis, ponderous as he was in size, was a popular speaker and more of the bonhomme type than was King. At this time, these were recognized as the two most distinguished men in the state.

On his return home King's friends wanted him to resume his place in the United States Senate, while the friends of Lewis were equally determined that he should remain in a position which he had adorned for full two years. Political maneuvering between the friends of the two distinguished statesmen began, but negotiations seemed of no avail. It was inevitable that each must test his strength before the people. King and Lewis were personal friends, they were from adjacent counties, and both were democrats. So conspicuous had Mr. King become now as a national figure that many predicted that Lewis would not dare oppose him, but he did. The contest was joined. It was a battle of giants. King, lithe, elegant, smooth, plain and simple of diction, but clear as the shining of the sun, without the gifts of the orator, but a superb talker, went before the masses. Lewis, weighing five hundred pounds, his large full face beaming with sunshine, and though large, a most telling orator who could relate an anecdote with marvelous effect, while he possessed unquestioned ability to give frequent expression to passages of oratory, won his way rapidly to the public heart. As is well known, Lewis won, but the two friends were destined each to be gratified, for Governor Chapman was able soon to appoint Mr. King United States Senator in the stead of Senator Bagby. During the administration of President Fillmore Mr. King was chosen to act as the presiding officer of the senate, and in the summer of 1852 he was nominated for the vice presidency, elected on the national ticket with Franklin Pierce, but died the next year at his home at Cahaba, Ala.

DIXON H. LEWIS

In a number of respects the Honorable Dixon Hall Lewis was a very remarkable man. He was precocious, though, in his early years, not studious. Still, he held his own in his classes in South Carolina College, as the university of that state was then called, with decided merit. Possessed from the beginning with a popular turn, he was a great favorite in college circles, and was counted an all-round good fellow.

Lewis was a student at the South Carolina College during the time that nullification was a dominant issue, and readily imbibed the principles advocated by Mr. Calhoun, who was then the ideal of most young South Carolinians. The more mature and thoughtful among the students shared in the political issues of the time, especially when they were as exciting as nullification then was. In subsequent years the great South Carolina statesman never had a more ardent admirer and supporter than Dixon H. Lewis.

One of the most remarkable facts connected with Mr. Lewis was his unusual size. His remarkable corpulency and his enormous physique made him a spectacle among men of ordinary size. His weight was excessive even in boyhood, and it continued to increase so long as he lived. His death was doubtless due to his excessive adiposity, and he was cut down at an age when he should have been most useful.

Graduating from South Carolina College he removed to Alabama in 1822. At that time Lewis was just twenty years old. Admitted to the bar, he began the practice of law in Montgomery. His ability in the court room was at once recognized, and had he continued, would doubtless have achieved distinction at the bar; but his pronounced fondness for politics led him early into that arena in which he spent the remainder of his life. His career as a public servant began in the Alabama legislature. During the years 1825-26-27, he represented Montgomery County in the general assembly of the state. At that time he weighed about three hundred and eighty pounds.

By dint of ability Mr. Lewis took a foremost position among the Alabama legislators. When scarcely eligible by reason of age, he was chosen for Congress from his district, and continued in the lower house of the National Congress from 1829 to 1844, when he was transferred to the Federal Senate.

Mr. Lewis belongs to the states' rights school of politicians, and never had a cause a more fervid advocate. In Congress his influence was pronounced, and for years he was the acknowledged leader of the Alabama delegation in the lower branch of that body. He was unalterably opposed to a protective tariff, and never let an opportunity slip to oppose its fallacy and injustice. His principles were embodied in the platform resolutions adopted by the national democratic convention which met in Baltimore in 1840.

Ponderous as he was, Mr. Lewis was not impaired in his activity either as a state legislator or as a congressman. His interest in all matters public enabled him to overcome the hindrance encountered in his enormous weight. It was one of his controlling principles never to be absent from an important committee meeting, where he was always pronounced and firm in the expression of his convictions. When in 1844 he resigned from the House of Representatives to take his seat in the Senate, he was chairman of the committee of ways and means, and the ability shown by him in the lower branch led to his appointment to the chairmanship of the committee on finance when he entered the upper chamber.

His life was a perpetual struggle against the difficulty encountered by his weight. He could walk but little, and he could enter but few vehicles. His private carriage had to be specially constructed with respect to strength, and its entrance was of unusual width. In his home a special chair or chairs had to be manufactured adapted to his size, and his bedstead was of far more than ordinary strength. He moved from place to place with exceeding difficulty, but in the constant warfare of the spirit against the flesh the former predominated, for impelled by a gigantic will, he declined to hesitate because of his immense weight and size.

In his trips to Washington and returning, in the days before railroads became so great a convenience, Mr. Lewis had to travel in an old fashioned stage coach, and always paid for two seats. A chair of unusual size was

made for him to occupy in the House of Representatives, and when he entered the Senate it was transferred to that chamber. Yet, as has already been said, Lewis was an orator of unusual power. His freedom of utterance, pleasing manner, jovial disposition, and his ability to present with clearness and power the issues discussed, with a reliance on well arranged and thoroughly digested facts, made him formidable in debate, and quite popular before a promiscuous audience.

In this memorable contest against Mr. King for the National Senate in 1841, the labors of Lewis were herculean. Weighing at this time about five hundred pounds, he had to be helped to the platform, and on one occasion when the weather was excessively hot, two devoted country constituents, one on each side of the sweltering orator, relieved the situation by the swaying of two large palm fans, which they employed with vigor while he spoke with ardor. The contrast between Mr. Lewis and Mr. King was most striking—the one ponderous and bulky, while the other was tall, thin, lithe and sinewy.

Mr. Lewis declined to be jested about his size and was sensitive to the faintest allusion to it. But his genuine chivalry forbade his taking the slightest advantage of anyone, or of subjecting any to the least inconvenience because of his condition. On one occasion while returning from Washington, the steamer on which he was, was wrecked. The small boat was ordered out for the relief of the excited and distressed passengers, but he declined to enter it, for fear that his huge weight would imperil the safety of the others. Remaining alone in extreme peril till the others could be safely rescued, he was subsequently reached by the small boat and saved.

Elected to the Senate in 1844, Mr. Lewis died in 1848. In the interest of his health he went to New York during the latter part of 1848, was treated as was supposed successfully and, animated by the prospect of a speedy resumption of his public duties at Washington, he spent some time in visiting the objects of interest about and within the city of New York. But his special trouble returned with suddenness and he soon died. At the time of his death Mr. Lewis was forty-six years old.

So nation-wide had become the reputation of this remarkable man that his body lay in state for some time in the city hall of New York before its interment in Greenwood cemetery. The funeral procession was one that did honor to his career, for at its head, were the mayor of New York, the governor of the state, and every congressman who was able to reach the metropolis in time. He died just as he was emerging into the full exercise of his splendid powers.



BENJAMIN FITZPATRICK

The galaxy of the names of Alabama's worthy sons would be incomplete with the omission of that of Governor Benjamin Fitzpatrick. An uneducated and orphaned boy, he came to Alabama from Greene County, Georgia, in 1816, to assist in the planting interests of his elder brothers, whose lands lay along the eastern bank of the Alabama River, about six miles outside of Montgomery. He never attended school more than six months of his life, and in his early days was inured to the rough encounters of the world. Colonel Brewer states in his history of Alabama that Mr. Fitzpatrick, in subsequent years, was accustomed to point out a field near Montgomery where he tended a herd of swine for his brothers as the hogs would feed on the mast of the oak woods.

Service as a deputy sheriff in Elmore County, which position brought him into contact with the courts, aroused an ambition to become a lawyer, and he prepared himself for that profession under the tutelage of the Hon. N. E. Benson. Admitted to the practice of the law when he was barely 21, he rapidly won popularity as a lawyer by his devotion to the interests of his clients. After practicing for a period in Elmore County, he removed to Montgomery, where he entered into co-partnership with Henry Goldthwaite.

The legal development of Mr. Fitzpatrick was rapid, and he was elected to the solicitorship of the Montgomery circuit, and after serving one term was again elected to the same position. By his marriage to a daughter of General John Elmore his political fortunes were greatly enhanced. The Elmore family were one of the most distinguished families of the state, a son of the general being a national Senator from South Carolina, another a distinguished lawyer in Montgomery, still another was the attorney general of Louisiana, yet another was secretary of state of Alabama and later collector of the port of Mobile, while another was a federal judge in Kansas. By his marriage Mr. Fitzpatrick became a brother-in-law to the Hon. Dixon H. Lewis.

Driven by broken health from the seclusion of his law office, in 1827, he repaired to his plantation near Montgomery, where he maintained a princely country home in which was dispensed the hospitality for which the old-time southerner was proverbial. At no period in the history of any land was hospitality more sumptuous than in the princely homes of the South during the régime of slavery, and the home of the Fitzpatricks was a typical one of the hospitality of those days now gone. For full twelve years he lived contented and happy on his fertile plantation, unsolicitous of public office, but in 1840 he was summoned from his retreat by the state democratic convention to serve as a Van Buren elector, and succeeded in swinging the state into the column of the democratic candidate from New York. His ability was so distinguished during his campaign that he was honored with the governorship of the state at the close of the same year.

During his period of retirement Mr. Fitzpatrick had remained in vital touch with the existing issues of the time, and his powers were solidified in his rural retreat, so that on his return to public life he was far more amply equipped. This was at once manifest in his first message to the legislature, which message by the breadth of its statesmanship stamped him one of the foremost publicists of the state, and he easily succeeded himself in the governor's chair without opposition. So exceptional had been his dual administration that a joint resolution of the general assembly approved his course as governor throughout, as well as himself personally. He retired from the office of governor crowned with the laudations of his countrymen.

Repairing to his plantation, he was summoned by Governor Chapman to the assumption of the United States senatorship to fill the unexpired term of Dixon H. Lewis. He was appointed again to fill the unexpired term of the Hon. William R. King, and in 1855 was elected by the Alabama legislature to the federal senate for a period of six years. It was during this period of his career that the highest honor of the senate was conferred on Mr. Fitzpatrick, as he was chosen by that body as president pro tempore.

In 1860, the second place on the national ticket with Stephen A. Douglas, was tendered Senator Fitzpatrick, but this he declined because of his disagreement with Mr. Douglas on his "squatter sovereignty" doctrine. This indicates that Senator Fitzpatrick was not a secessionist, for he shared in the views of other eminent southern leaders that secession was not the remedy

to cure the grievances of which he insisted the South justly complained. But, like those with whom he shared in sentiment respecting secession, this did not deter him from sympathy with the cause of the South. In every way he contributed to the cause of the South when once the clash came. Yielding his convictions, he continued a southern patriot, and when the others of the South withdrew from Congress, he sundered his relation from the federal government as a senator, and ardently espoused the cause of his section.

The last public function of Senator Fitzpatrick was that of the presidency of the constitutional convention of Alabama in 1865. While always preserving a cheerful demeanor, there is little doubt that the results of the war, in the complete wreckage of the industrial system of the South greatly preyed on his spirit. He died when he was about seventy years old.

Few public men in Alabama have left a purer record than Governor Fitzpatrick. His dominant characteristic was his integrity. He would never yield to compromise of principle, holding that principle is indivisible. If sternness was required to demonstrate this, then he could be stern. To him justice was a supreme principle. He would never waver the width of a hair even for the most cherished friend or kinsman. He was most exacting of the performance of public duty by public servants, and in order that he might rigidly comply with the conditions and terms of his oath of office, he familiarized himself with every detail of the duties of his subordinates. He made no pledge which he did not fulfill and committed himself to no cause which he did not execute to the letter. To him public office was a public trust, and to this he rigidly conformed. The aggregation of the qualities which entered into the character of Mr. Fitzpatrick made him an ideal public servant, whose course in life is well worthy of emulation.

JOSHUA L. MARTIN

The year 1845 was marked by a rent in the democratic party of Alabama. Governor Fitzpatrick's term was soon to expire, and it was necessary to choose a successor. A lapse of interest had come to political affairs in the state, due largely to the defeat of the whig party the year before in failing of the election of the President. The result was that of demoralization to the whigs throughout the country, for they had been animated by the belief that they would succeed in capturing the presidency. They showed no disposition, at any rate, to enter the lists for the governorship in Alabama.

In May, 1845, a democratic convention was called to meet at Tuscaloosa, then the capital of the state, and it was sparsely attended, a fact due to the political indifference everywhere prevailing. However, the attendance on the convention on the first day would have been much larger but for the delay of the boat from Mobile, which was to bring all the delegates from the southern counties.

The friends of the Hon. Nathaniel Terry of Limestone were intent on his nomination for gubernatorial honors, and as those present were mostly from the counties north, they were anxious to proceed to the nomination of their candidate. There were others present, however, to whom Mr. Terry was not the choice, and they sought to have the convention adjourn till the next day, in order to await the arrival of the delayed steamer from Mobile. But Terry's friends, who were evidently in the majority, with the slim attendance already present, insisted on the nomination being made that day. This evoked a stern protest on the part of the others, which protest was read before the body, and afterward printed and circulated to the injury of the candidacy of Mr. Terry, but, notwithstanding this vehement protest, the nomination was made.

This was a signal for a storm. Many present were dissatisfied, and those who arrived later swelled the roar of the tempest which sprang up at once. Murmurings of dissatisfaction were heard on all hands, much to the gratification of the whigs who had so often sustained sore defeat at the

hands of the much-boasted united democracy. The whigs not only chuckled at the domestic quarrel of the democrats, but did what they could to widen the breach between the two factions. The dissatisfaction at last found vent in the naming of another democratic candidate for the governorship, in the person of Chancellor Joshua Lanier Martin of Tuscaloosa. He was an ardent democrat, was widely and favorably known, had served with great acceptance in a number of positions, such as legislator, solicitor, circuit judge and congressman, and as a voice had been denied many in the convention, they proposed to resent it by seeking to elect another democrat rather than the one nominated by the precipitate few. Judge Martin did not seek the nomination, but when chosen under the conditions, he accepted the popular nomination.

The issue between the two formidable candidates was now squarely joined, the friends of Mr. Terry urging the platitudinous plea of party nomination, and party loyalty, but this only served to augment the popular flame. This was met by the counter plea of advantage having been taken, and therefore the plea of support on account of the improper nomination was without force. Never before had a rupture come to the party in the state, and this was used as a reinforcement of the plea already named, but without much avail.

Thus the battle raged and from its apathy the state was aroused from confine to limit, and the land rang with the oratory of contending party factions. Divisions and dissensions became rampant. Neighbor strove with neighbor, and community struggled against community. Households were divided, churches were sundered by divergent sentiment, and men wrangled in anger as though the fate of the continent were seriously involved. Reasons and counter reasons flew like bullets in battle, and the stock arguments of the campaign became those of everyone, and he would use them with all the fervor and friction of sudden originality. In view of the unquestioned democracy of Judge Martin, his reputation, official and private, his personal popularity, and the precipitate action taken in the nomination of his opponent, it was clear that Mr. Terry was breasting odds from the outset of the campaign.

Besides all this, the whigs, anxious to give as great a stagger as possible to "the regular nominee" of the democratic party, lent support to Judge Martin.

Thus the campaign became suddenly stormy. Excitement ran high, passion superseded reason, and clamor filled the air. Up to the closing of the polls on election day, the question was so complicated by the interlacing vote of the state, that no one could venture a prediction of the result. But Judge Martin led his opponent by at least five hundred votes. This was the first defeat ever sustained by a nominated democrat in the state, for a state office, and, as usual under similar conditions, there were dire predictions of the utter demolition of the democratic party in the state of Alabama!

Be it said to the perpetual credit of Judge Martin that he bore himself with singular equanimity throughout the prevalence of the strenuous campaign. His was an atmosphere high above the clatter of the demagogue, and it was understood that the place was undesired by him unless it should come purely in recognition of his merit and fitness. In observing this principle in politics, Governor Martin was never defeated for a public office.

Governor Martin was by birth a Tennessean. Denied an advanced education, he turned to the best account that which he had in the common schools, which limited training he solidified by teaching during his younger years. He reached Alabama in 1819, the same year of its admission into the Union, finished his law studies, which had been begun in Tennessee, and settled at Athens to practice. The political stations held by Governor Martin have already been indicated, and by reason of these he took with him into the gubernatorial office a thorough knowledge of public affairs. It was during his administration that the Mexican war occurred, the demands growing out of which he met with official fidelity. His term of office having closed, he resumed the practice of the law, and, save when elected to the legislature in 1853, he never filled another official station. For thirty years, almost, he was in the public service, and a more faithful officer the state never had. He died at Tuscaloosa on November 2, 1866, being sixty-seven years old.

ISAAC SMITH

No man in the early annals of the state had a more varied or romantic career than the Rev. Isaac Smith, a courageous missionary of the Methodist Church. His life and labors do not find recognition on the page of secular history, but the contribution which he made to the state in its early formation wins for him a meritorious place in the state's chronicles. It is doubtful that his name and labors are familiar to the present generation of the great body of Christians of which he was an early ornament, but they are none the less worthy of becoming record.

Mr. Smith enlisted from Virginia in the army of Washington while yet a youth. Bright and alert, he was chosen an orderly by Washington, and served in that capacity under both Washington and LaFayette. When the new nation started on its independent career and when the region toward the west began to be opened, Mr. Smith migrated toward the south, became a minister of the Methodist Church, and offered his services as a missionary to the Indian tribes. Hated because of their ferocity, the prevailing idea in the initial years of the nineteenth century was that of the destruction of the red man, but Mr. Smith felt impelled to take to him the gospel of salvation.

His labors were not confined to any particular region and he trudged the country over, imperiling his life among the wild tribes, who came to love him because he was one pale face who sought to do them good. He founded an Indian school near the Chattahoochee and taught the Indians the elements of the English language. When Bishop Asbury, the most indomitable of all the Methodist bishops, came to the South, Mr. Smith was his close friend and adviser, and most valuable were his services to the bishop in planting Methodism in the lower South.

All real teachers are greater learners than instructors, for in their zeal to impart they must first come to acquire. Mr. Smith was an assiduous student and with the growth of his years was an accumulated stock of both wisdom and learning. As he passed the meridian of life he became a power in his denomination and his counsel was freely sought in the high circles of his

church. When, in 1825, General LaFayette visited Alabama in his tour of the South, he passed through the Creek Nation, in Georgia, and was escorted by a body of Georgians to the Chattahoochee River and consigned to the care of fifty painted Indian warriors, who vied with the pale faces in doing honor to the distinguished visitor. Rowing LaFayette across the river to the Alabama side, he was met by Rev. Isaac Smith. The great Frenchman instantly recognized Mr. Smith as one of his boy orderlies during the campaigns in New Jersey and Pennsylvania. There was a cordial demonstration of mutual affection between the old French veteran and the younger man, now a Methodist preacher. The painted Indian warriors looked on the exchange of greeting with evident pleasure. It so happened that LaFayette reached the Alabama side just at the point where stood the humble school building of the intrepid missionary.

The first demonstration of greeting being over, Mr. Smith eschewing all conventionality, and, in keeping alike with his Methodist zeal and the joy which he experienced in meeting his old commander, proposed that all bow in prayer. When LaFayette and Smith dropped on their knees the Indian warriors did the same, and there on the banks of the deep rolling Chattahoochee, beneath ancient oaks, in fervid and loud demonstrations of prayer, the voice of Mr. Smith rang out through the deep forests. The picture thus presented was worthy the pencil of the master—the ardent but devout preacher, the great French patriot and the half hundred warriors, each with his hands over his face, praying in the wild woods of Alabama. The prayer was an unrestrained outburst of joy at the meeting of the old commander and a devout invocation for the preservation of the life of the friend of American liberty.

Yielding to the hospitable pressure of the boy soldier of other and stormier days, LaFayette was taken to the humble cottage of the missionary in the woods, and in order partly to entertain the distinguished guest and partly to afford him an insight into aboriginal life, Mr. Smith arranged for a game of ball to be played by the Indians. The day over and LaFayette was taken into the cabin, served with the scanty fare of the pioneer missionary, and beside the primitive fireplace the two, the missionary and the great Frenchman, sat that night and fought over the battles in which both were participants during the Revolution. They parted on the following morning, LaFayette continuing his course toward Cahaba, the state capital, and Mr. Smith

resuming his treadmill round of duty as a secluded missionary to the Indians. They parted with the same demonstrations of affection with which they had met, and never again met each other in the flesh.

With cheerful alacrity Mr. Smith continued his work among the Indians, to which work he gave expansion in later years as the white population continued to multiply. He was of immense service to the government in adjusting the claims of the Indians and in pacifying them in the acceptance of the inevitable lot finally meted out to them. As a mediatorial agent Mr. Smith prevented much butchery in those early days when the extinction of the Indian was so seriously desired.

With fame unsought and undesired, the Rev. Isaac Smith continued his missionary and evangelistic labors in Alabama till forced by the weight of years and the results of the privations of pioneer life to retire from the scene of activity. He lived, however, to see the state of his adoption pass from an infantile stage to one of great population and prosperity and to witness the consummation of much of that of which he was one of the original prospectors. Retiring in his last years to Monroe County, Georgia, he died at the age of seventy-six. On the moral and spiritual side he was one of the foundation builders of the state of Alabama. His labor and sacrifice deserve recognition alongside that given of men whose stations in life gave them great conspicuousness in the public eye. He was of the class of men who labored in comparative obscurity, passed away, and in due time are forgotten, but their works do follow them in their everlasting results.

CLEMENT CLAIBORNE CLAY

Hon. Clement Claiborne Clay inherited all the strong traits of his distinguished father. His birthplace was Huntsville, where he was born in 1817. In his boyhood years he would learn much of the struggles through which the people of the state were passing in a transition from pioneer conditions to those of real life, and thus manhood unfolded contemporaneously with the development of his native state. His first knowledge of Alabama was derived at a time when conditions were rude and crude and during his career of more than three-score years he saw it expand through successive periods, his sentiments keeping pace with its development.

In most respects highly favored by fortune and condition, Mr. Clay knew how to prize these and use them as stepping-stones to success. His father was his most intimate companion, and the stations held by him were as largely shared in by the son as was possible. So soon as young Clay was prepared to do so he was sent to the state university, from which he graduated at the early age of seventeen. While his father was governor, the youth served as his private secretary and while his father was serving as senator at Washington, the son was at the same time pursuing his law course at the University of Virginia, which course he completed in 1840.

At the early age of twenty-five the junior Clay was elected to a seat in the lower house of the legislature. He attracted attention at first by the introduction of a resolution instructing the Alabama delegation in Congress to support a bill favorable to refunding to General Andrew Jackson the fine of one thousand dollars imposed on him by Judge Hall of New Orleans in 1815 for declaring martial law in that city, under which the judge was imprisoned by Jackson for discharging on habeas corpus a member of the Louisiana legislature who had been caught in the act of secretly communicating with the enemy and had been imprisoned by General Jackson. The fine was for contempt and Jackson paid it, and now, after the lapse of more than a quarter century, the sum was returned with interest, the total being at the time of the refunding about \$3,000.

The speech made by the young man in advocacy of his resolution won him his first spurs. It flashed with fervid eloquence and was pervaded throughout with the choicest diction. Many were the predictions of his future greatness because of that speech.

His service in the legislature led to his retention in that body for three successive terms, during the last of which he was elected by the legislature to the judgeship of the county court of Madison. After serving thus for two years, he resigned and resumed the practice of the law. Five years later still, he offered for congressional representative, but was defeated by the Hon. W. R. W. Cobb of Jackson County. The sting of defeat was abundantly alleviated, however, when he was chosen by the legislature a United States senator at the close of the same year. The distinction was the greater because of the handsome majority given him over his distinguished opponent, the Hon. R. W. Walker, Clay having received eighty-five votes, while Walker received thirty-seven.

The gifts, training, and acquirements of Mr. Clay eminently fitted him for this exalted forum. It was at the time when state rights doctrine was well at the front and into the thick of the fray he entered as an ardent disciple of Mr. Calhoun. His speeches on the floor of the senate chamber won for him wide attention, and gained for him national renown. Throughout the country his speeches were a subject of comment, while in Alabama his name was on every thoughtful lip.

Having served for six years in the National Senate, Mr. Clay was again chosen in 1859, and was in the senate when Alabama seceded in 1861, and with all the other southern senators resigned, which furnished occasion in harmony with the temper of that time to provoke a vote of expulsion of the southern senators. On his return to Alabama, Mr. Clay was at once chosen a senator from the state to the Confederate Congress. In Richmond he was in vital touch with the Confederate government, the confidence of which he enjoyed to an unusual degree. After a senatorial service of two years at Richmond, Mr. Clay stood for re-election before the legislature of Alabama, and was opposed by Colonel Seibels of Montgomery and the Hon. J. L. M. Curry of Talladega. After a number of unsuccessful ballots Mr. Clay withdrew in favor of R. W. Walker, whom he had previously defeated for the United States senate, and Mr. Walker was elected.

In 1864 Mr. Clay was sent on a confidential errand from the Confederate states government to the provinces of Canada. His mission was one of diplomatic secrecy, but under prevailing conditions resulted in nothing practical. While the nature of his mission was not known, it was supposed to be that of exciting Canadian interest in the affairs of the Confederacy, and to arouse such interest as would eventuate in procuring an army of invasion of sufficient force to raid with success the northern frontier of the Union. The northern press charged at the time that Mr. Clay was abetting the adventurers who attempted the destruction of New York City by fire.

During his stay in Canada, Mr. Clay was instrumental in inducing the members of the peace party in the North to prevail on President Lincoln to open negotiations with him looking to the settlement of hostilities between the North and the South. An unofficial mission was entered on, but without avail. When he learned of the capitulation of the Confederate armies, Mr. Clay started from Canada on horseback for Texas, but, seeing in the northern press that he was openly charged with complicity in the assassination of President Lincoln, he changed his course and made his way to Macon, Ga., where he might surrender with a view to a thorough investigation. In reward for this expression of honor on the part of Mr. Clay, he was seized, sent to Fortress Monroe, put in irons, where he lay a fellow prisoner of Jefferson Davis for twelve months, without being brought to trial on the false charges of treason and assassination. His health was sadly broken under these cruel and disgraceful conditions, and his release was finally procured by his devoted and gifted wife, whose pleadings with the governmental authorities at last prevailed, and it was believed, not without reason, that the government, as it then was, was glad to appear to display magnanimity in view of the atrocious course pursued concerning one who was thus being served purely on an unfounded presumption, and one, too, who had gone beyond his way seeking a trial, in face of the public charges. Mr. Clay died at Huntsville on January 3, 1882.

HOSEA HOLCOMBE

Altogether worthy of a place in the historic archives of Alabama are the spiritual heroes who added so much to the moral life of the community, converting disorder into order, and bringing calmness from confusion and chaos. Among these may be named Rev. Hosea Holcombe, a native of North Carolina, and for a period a pastor in upper South Carolina. Mr. Holcombe came to Alabama in the early stages of its statehood and settled at Jonesboro, in Jefferson County, from which point he pursued his early missionary labors, undergoing all the privations and difficulties incident to those days.

Without scholastic advantages, Mr. Holcombe turned to practical advantage the slim resources which came within his reach, and by studious application became possessed of more than an ordinary education for one living at that period. He was Alabama's first church historian, and rendered a lasting service to the state by his preserved record of the early churches of Alabama.

While statesmen and publicists were laying the foundation stones of a great political commonwealth, the pioneer missionary, especially of the Baptist and Methodist denominations, was abroad with his wholesome influence, checking vice, inculcating virtue, and seeking to bring the lives of men into practical conformity to those principles which make alike for the present, and the life which is to come.

Those old heroes, often trudging weary and footsore over mountain paths or threading their way along the Indian trails winding through the forests, visiting the primitive settlements of Alabama, and dispensing the truths which make men better, are too often neglected in recounting the elements which entered into the formation of a great state. Limitedly known while living, and soon forgotten when dead, the substantial and fundamental service rendered is not embalmed in the public records, and yet without such agents, in a rude and crude condition of society, a state could never become great. Far more valuable than is commonly supposed was the

service rendered by those pioneer preachers. In the absence of courts in those pioneer days, matters in dispute were often held in abeyance for adjudication till "the preacher" should come, and his unbiased decision was usually accepted as final.

Mr. Holcombe was a leader among those humble but heroic men who braved the terrors of the wilderness while Alabama was yet the hunting ground of the savage, and though most of them were untaught in the schools, they grappled with the gravest problems encountered on the frontier of civilization, in bringing the chaotic elements of society into subjection to the gospel, and in cool disregard of the dangers which threatened from every side, by reason of the presence of the hostile Indian, they evangelized the widely scattered settlements, preached, visited, cheered, inspired, and built houses of worship for the future promotion of Christianity.

Living and laboring with a zeal unquenched by difficulty or danger, they passed from the scene of action, but their influence abode still, and as a silent force has been transmitted through succeeding generations. Most of those old spiritual heroes lie in unmarked graves. Soon leveled to the surface, these primitive mounds left unindicated the resting places of the genuine heroes, and the tangled vine and riotous weed came to usurp the sacred though narrow places where sleep their ashes, but they, being dead, yet speak in the characters and lives of those who have come after.

To this type of spiritual frontiersmen belonged the Rev. Hosea Holcombe. His life was one of serious devotion to the cause of humanity and of God. Without reward of purse, he labored unceasingly, eking out a bare subsistence by the labor of his own hands, that he might have the privilege of laboring for the welfare of his fellows. He founded all the early Baptist churches in Jefferson County and frequent were his tours into different parts of the state. His sage counsel was sought, and such was the force of his character, that his decisions on all disputed questions were taken as well-nigh oracular.

In those early days, and for generations, disputatious contention, especially between the Baptists and Methodists, was frequent. If this had its unpleasing side, as it always does, it was not wholly without compensation,

for it stimulated sacred study and grounded the masses in the truths and principles of the gospel.

Like all others of the ministry of that remote period, Mr. Holcombe shared in the prevailing controversial spirit of the times. In the maintenance of his views he wrote a number of pamphlets, but his chief literary production was a history of the Baptists of Alabama. While the work lacks unity of arrangement, and is devoid of literary finish, it reflects the spirit of the times, and is a monument to the privations and fortitude, as well as the energy and struggles, of that period now grown dim.

As the population of the state grew, and the necessity of schools became more urgent, this unlettered man became one of the earliest exponents of education, and of all institutions which were conducive to the promotion of the good of society.

The services rendered by men like Hosea Holcombe escape the pen of the historian, because they lie apart from the spectacular and the din of political and commercial struggle, remote from the universal flow; but they are chief among the unseen forces the results of which assume shape in the transmuted lives and characters of men and women and in the visible institutions of which they were the chief founders. Their records are usually assigned to the department of unwritten history, but their lives and labors are the fundamental sources of the institutions, the beneficent influences of which are ours of today.

One who leaves his impress on a generation lives for all time, for in some form his influence works its way, though silently, and contributes to the symmetry of character in the generations that follow. Deeds of benefaction are noble, but a good man, in virtue of his life, is a benefaction, and his daily walk is a constant asset of the good of the future. This admits of application to the life of this pioneer preacher, whose life extended to near the middle of the nineteenth century.

The Rev. Hosea Holcombe died in 1841, and his humble grave is on his original farm near Jonesboro, Jefferson County. A shaft now marks the last resting place of the old hero. Till this was recently erected, a large boulder alone indicated where sleeps the pioneer preacher. Its native roughness and

solidity represented the times as well as the character of the Rev. Hosea Holcombe.



H. W. COLLIER

There was not in the life and career of Governor Henry Watkins Collier that which was apt to catch the popular eye and invite popular applause, for he was not gifted with the flash of oratory, nor did he seek the clamorous applause which passes with the day. Governor Collier was of the practical mold of men who merely did things, who patiently wrought in painstaking silence far away from the madding crowd and the host of empty babble. He won distinction, but he did it by dint of granite merit, while disdaining the acclaim which comes as the vapid breath of the hour.

A Virginian by birth, Governor Collier had the prestige which comes of distinguished lineage. In the genealogical line were the names of such men as Sir Francis Wyatt, one of the original English governors of Virginia, and Admiral Sir George Collier of the British navy. But distinction like this he relied not on, and his career throughout showed that he regarded the life of each one a distinct entity dependent entirely on individual worth.

Governor Collier came to Alabama in the flower of his youth well qualified to respond to the demands arising from the colonial conditions of a new state. He had been grounded in the solid soil of academic drill at a time when the test of pupilage lay in the thought created by the student rather than in the mere mastery of that already kneaded by others, and served to the taste. For to be a student of those early times of even tolerable tolerance one had to dig rather than to reap, as others had sown. By the few really skillful preceptors of those primitive times, the student was encouraged to create and originate his own material from the bare principles furnished. This molded men of stalwart proportions, promoted self-assertion, augmented confidence, stiffened reliance, and toughened the fiber of character by effort.

Instruction of this character was given in the famous pioneer school of Moses Waddell at Willington, S. C., where were trained for the stern life of grappling with grim, original conditions such men as George McDuffie, James L. Pettigru and Augustus B. Longstreet, and many others whose

fame, and, no less, whose example, remain as a perennial inspiration to aspiring youth, for after all every man who is made is self-made. Be one's advantages never so much or so meager, self and self-worth are at last the determinative factor.

Girt with equipments like these borne from the Waddell school, young Collier reached Alabama just as it was emerging into statehood. His first residence was at Huntsville, where as a youthful pleader he opened his little office, but soon removed to Tuscaloosa as the partner of Hon. Simon L. Perry.

The demand for competent legislators and men for the occupancy of other spheres, at a time when the population of the state was sparse, opened the door of opportunity to aspiring young men to which class Collier belonged. When only twenty-six he went as a representative from Tuscaloosa County, and so profound was the impression made by this solid young man that the legislature, at the next session, elected him to a place on the supreme bench, a distinction the more pronounced because his competitor for the place was Judge Eli Shortridge.

Four years later, on the occasion of the reorganization of the state courts, Judge Collier was displaced from the supreme bench, but was retained as a circuit judge for four years, at which time Judge Saffold retired from his seat on the supreme bench, and Governor Clay appointed Judge Collier in his stead, till the legislature should meet and elect his successor. On the convening of the general assembly, Judge Collier was met by a contestant for the honor in the person of Hon. A. Crenshaw of Butler, but the election resulted in favor of Judge Collier, who received more than twice the number of votes given his opponent.

For twelve years he continued to dispense justice in that high tribunal, and the value of the service rendered the state by him is attested by the luminous and voluminous decisions which run through thirty-five volumes of the Alabama reports, a perpetual monument of valuable labor.

By this time no man so completely filled the eyes of the people of the state as Judge Henry Watkins Collier. His high sense of justice, his impartial incision, and his solid and unvarying calmness made him, without self-effort to attain it, the dominant public figure in Alabama. Practically

without effort, he was chosen, almost by a unanimous vote of the people, to the office of governor.

This was in 1849. Judge Samuel F. Rice, one of the brightest and ablest of Alabamians, appeared against him, and the final vote stood 36,350 for Collier and 364 for Rice, with a few scattering votes. At the close of his first term for governor three competitors appeared in the field for the same distinction—B. G. Shields, Nathaniel Terry and William L. Yancey, and of a total popular vote of 43,679, Governor Collier was indorsed by 37,460 of these.

Nor was this due to an active canvass on the part of Governor Collier. While he was by no means indifferent to his retention of the gubernatorial chair, he preferred to base his claim on genuine merit illustrated in official function, rather than by clamor for recognition before the assembled multitude. He had scrupulously sought to make his work worthy as a judge and as a governor, and was entirely willing that it should shine by its own light. He could not plausibly plead for support or indorsement, had none of the arts and tricks of the vote-getter, and therefore relied on actual service and worth to give exploit to his value as an official servant. His ideal of the office was lofty, and he felt that he could not climb down into the arena of personal scramble when the people were as fully informed of his competency as they would have been had he made a heated canvass.

From the beginning to the close of his life, Governor Collier was under strain. He did not fret nor chafe under the burdens imposed, but his powers wore under the dogged strain of perpetual labor. Nothing could deflect him from public duty. To him its claim was supreme. He died in the ripeness of his manhood at Bailey Springs in 1865, being only fifty-four years old, his early death being largely due, no doubt, to the overstrain of his vigor.

JOSEPH G. BALDWIN

No more genuine compliment can be paid a book than to have the name of the author so associated with it that at the mention of the work the name of the writer is at once suggested. This is true of that once noted work, "Flush Times in Alabama and Mississippi." So widely was the book for years read, and so popular was it because of its reflection of a period of southwestern history that to mention the work is to call in immediate connection with it the name of the author—J. G. Baldwin.

On its appearance the work was greeted with popular applause and was highly prized for its genuine merit. While the production of such a work with its unique and sparkling wit, is worthy of the pen of anyone, the fame of Judge Baldwin does not repose on it alone, for he was both a statesman and jurist, and rendered valuable service to Alabama.

Beginning life under disadvantages because of meager education, Judge Baldwin fitted himself for life by individual effort and private study and became one of the most eminent citizens of the state, and later a distinguished justice on the supreme bench of California. His qualities of character were sterling, his relations to others uniformly courteous, and his disposition one of perpetual sunshine.

In politics a whig, he was ever ready to champion the cause of that party. He was a skillful tactician, and as one of the whig leaders in Alabama he often occasioned concern in the ranks of his opponents. On the floor of the legislative hall he was a formidable disputant, and while he often dealt herculean blows, he held himself in courteous readiness to receive them in return. Familiar with parliamentary principles, he held himself scrupulously within limit, but stoutly demanded that this be returned by his opponent. He was greatly admired for his manliness and uniform courtesy, but was dreaded as an opponent. He could rise to heights of greatness, but could never sink to levels of littleness. This reputation Judge Baldwin established and maintained alike in legislative hall, the court room, and in the social circle.

His was a fertile brain and his command of a chaste and varied diction was unusual. Possessing an acute discrimination and a relish for the ludicrous, he was one of the most jovial of companions. Living at an exceptional period, and amidst conditions which often occasioned merriment to himself, he was induced to embody his impressions of the scenes about him in his famous work—"Flush Times in Alabama and Mississippi." It was a time when credit was practically without limit and when speculation proceeded on a slender financial basis, and not infrequently on no basis at all.

It was a time of wild financial experiment, and ventures of divers kinds were numerous. To withhold credit for any amount was a mortal offense, and to present a bill was an act of discourtesy, as such act carried with it the question of the honesty of the debtor. Loans were freely made by the state banks to debtors. Private banking institutions sprang up like mushrooms and with about as much solidity, the stock of such institutions consisting of real estate on mortgage, upon the faith of which notes were issued for circulation, payable in gold or silver within twelve months. The prospective realization of the latter seems not to have been thought of, nor was it cared for by the masses, so long as money was plentiful. The reaction from a condition like this, entailing endless litigation and crash on crash, is easily seen.

With a business and legal acumen, for Judge Baldwin had both, he watched with sharp interest the trend of the period, and his work, "Flush Times in Alabama and Mississippi," is a clever hit, describing the scenes attendant on the time when money was flush. With an evident relish for fun he presents the hubbub in the courts, in the places of business and elsewhere when the notes fell due. The different characters portrayed with masterly skill, the questions and answers, the indignation and consternation, the rulings of country justices, the pleas of lawyers and many other elements are vividly presented, and invariably with such a smack of real humor by Judge Baldwin that the interest is unsuspended from the outset to the close.

While there is much of the creative in the work to lend freshness and humor to the many scenes, still the book is a practical history of a most remarkable period which extended from 1833 to 1840. The work is unique in the originality of its grasp of conditions, the raciness of portraiture and in the description of the various transactions. Though at bottom veritable history,

the work is throughout garbed in incomparable humor that may be read at any period with merriment.

In the same semi-serious vein in which Irving wrote his Knickerbocker History of New York, but with a much richer tang of humor, Baldwin records the doings of those rosy days which were anon merged into gloom, and it is difficult to decide in which phase of the situation one finds more real fun. He enters into no discussion, renders no opinion of his own, never moralizes, but is content to hold himself steadfastly to a description of scene and character in a manner most diverting to the reader. A work like this was not devoid of a mission, and thousands laughed while they read the record of their own stupidity and folly.

A more dignified work from the pen of Judge Baldwin was his "Party Leaders," which embraces the records, policies and conduct of such men as Jefferson, Hamilton, Adams, Randolph, Clay and others. The stamp of originality is as clear in this work as in the one already commented on, while the latter reveals the possession of a vast fund of information relative to the private lives of the distinguished characters named. More than that, it displays a power of nice discrimination of character. Sharpness of analysis and felicity of parallelism of character are wrought with the finishing touch of the verbal artist, in clean, elegant English and with a dignity free from stilt or stiffness. This, too, proved to be a popular work and was eagerly sought and read throughout the country. It bears the label of the self-made scholar, the finish of the author who works first hand, and is an embodiment of finished diction and of wide research.

There was that in the presence, bearing, and intercourse of Judge Baldwin that impressed one with his superiority, yet he was free, often even to abandon, affable, and always companionable. He made ready friends of strangers, and compelled by his bearing the highest respect of his opponents.

Living for many years in Sumter County, he yielded to the alluring reports which spread over the country in 1849 concerning the newly discovered Eldorado on the Pacific slope, and removed to California. Without trouble he fell into the rough and tumble conditions prevailing at that time in San Francisco, entered on a lucrative practice, and later was chosen by popular

vote to a judgeship on the supreme bench of that state. He died in California in 1866.

JOHNSON J. HOOPER

The three most noted humorists produced by the South were Judge A. B. Longstreet, Judge J. G. Baldwin and Johnson J. Hooper. "Georgia Scenes," the chief product of Longstreet's humor, has been read for generations, and will continue to be. "Flush Times in Alabama and Mississippi," by Baldwin, is not a work of so popular a cast as the preceding one, but has humor of a rare flavor, and "Simon Suggs," the inimitable work of Johnson J. Hooper—these represent the humorists named and their best work. Each of these occupies a distinct orbit of humor, and the merit of each has been long ago established.

When Hooper saw that he was to be remembered chiefly by his "Simon Suggs," he regretted the publication, for it had in it no index to any ambition which he cherished, but was dashed off at odd moments as a mere pastime. The author desired to be remembered by something more worthy than a ridiculous little volume detailing incidents of a grotesque character and the twaddle and gossip in the phraseology of the backwoods. But if the product be one of rareness, standing apart in its uniqueness and originality, it is great and worthy, and the author deserves to be raised on a popular pedestal to be studied as a genius.

Had Hooper not written "Simon Suggs" his name would have been obscure even unto forgetfulness, and his genius unknown to the world. That which he did was apart and above the ability of others to do. Its source is not the matter to be thought of, but the production itself. At any rate, it is the work by means of which the name of Hooper will live as Alabama's chief humorist, and as one of the prominent merry-makers of the South.

Johnson Jones Hooper was a grandnephew of William Hooper, one of the signers of the Declaration of Independence. The subject of present discussion came from North Carolina to Alabama, and his first achievement in politics was that of his election to the solicitorship of the ninth judicial circuit, after a stubborn struggle with such men as Bowie, Latham, Spyker and Pressley. But neither the law nor politics was suited to the mind and

temperament of Hooper. His being bubbled with humor, and the ridiculous was always first discerned by him, as it is by all humorists. In the quiet retreat of his humble sanctum, unannoyed by the bustle of the throng or the rasp of strident voices, was the native atmosphere of such a genius as was Hooper. It was in "The Banner" at Dadeville, then an obscure country village, that Hooper first attracted attention as a humorist. The droll scenes of the experiences of a census taker of that time, discharging his official function in the backwoods, where he encountered numerous ups and downs, were detailed in the rural paper already named, with inimitable skill.

In the retreat of the rural regions, where the first lesson learned alike by members of both sexes is that of independence and self reliance, and where is straightway resisted anyone's interference with liberty, private affairs, and "belongings," is the basis of a series of productions in his little periodical, which themselves would have given Hooper fame. The intrusion of a polite census taker into the cabin homes of the backwoods, where statistical information was sought about poultry, pigs, soap, cows and "garden truck," and where the rustic dames resented such intrusion with broomsticks and pokers, afforded to this man of genius an opportunity to hit off some rare humor, and in response to his nature he did so. The scene, the actors, involving the polite efforts of the official to explain, and the garrulous replies of the doughty dames, embracing throughout the dialogue and the dialect, are depicted with the hand of the master and the skill of the artist.

With its columns weekly laden with merriment so rare, the once obscure "Banner" became the most popular journal in the state, and far beyond, for it was sought throughout the south and the comical stories were copied far and wide. Encouraged by the popular reception given these effusions, Hooper addressed himself to a more pretentious venture by the preparation of his "Simon Suggs." He had the basis of the character to be delineated in a certain rude rustic of waggish proclivities who hung about the village of Dadeville, and was well known throughout Tallapoosa and the adjoining counties. With him as a nucleus, Hooper in the exercise of his genius, constructed his "Simon Suggs."

That which gives to the production vitality is its unquestioned fidelity to a phase of life prevailing in those early days, while it is underlaid by

principles which revealed actual conditions. The portraiture is that of an illiterate, but cunning backwoodsman, bent on getting the most out of life, no matter how, keen, foxy, double-faced and double-tongued who plied his vocation in the perpetration of fraud by cant and hypocrisy, pretended piety, and church membership.

Dynamic humor, occasioned by ludicrous dilemma, un conjectured condition, ridiculous episode and grotesque situation follow each other in rapid succession, and the effect on the reader is explosions of laughter. "Simon" appears under varied conditions, and is sometimes closely hemmed, in his artful maneuvers, but he is always provided with a loophole of escape, due to his long experience and practice. His various assumptions of different characters under shifting conditions, but remaining the true "Simon" still among them all, and using his obscure vernacular always, gives a kaleidoscopic change to the divers situations, and rescues the stories from monotony. The skilled manipulation with which the whole is wrought is the work of a remarkable genius. Nor is there break or suspension, neither lapse nor padding, but the scenes move and shift with fresh exhibition throughout, and the convulsive effect is irresistible. "Simon Suggs" was published by the Appletons of New York and for years spread with wonderful effect throughout the country, resulting in the sale of many thousands of copies. From the notoriety produced Mr. Hooper shrank with girlish sensitiveness.

In December, 1856, at a meeting of the Southern Commercial Convention, held at Savannah, Hooper was present as a delegate from Alabama. The daily press of the city announced his arrival with no little flourish as one of the distinguished members of the body, and as the well known author of "Simon Suggs." Doubtless this served to swell the crowd when the convention met at night in the Atheneum. On the assembly of the delegates, and after the usual formality of reception speeches and replies, and while a committee was out arranging for permanent organization, Judge John A. Jones, himself a humorous writer, the author of "Major Jones' Courtship," arose and moved that "Simon Suggs" be called on to give an account of himself for the last two years. The presiding officer, who had evidently never heard before of "Simon Suggs," arose with great dignity and said, "If Mr. Suggs is present we should be glad to have him comply with the expressed wish of the convention by coming to the platform." This was

attended by a craning of necks and looks of curiosity in all directions, but “Mr. Suggs” appeared not. Hooper was seated in the pit beside Gen. Albert Pike of Arkansas, wearing a green overcoat, and was overwhelmed with embarrassment by the unexpected demonstration. He had the good sense to keep quiet, for his humor could more freely exude from the nib of his pen than from the point of his tongue. While to most others this would have been flattery, to Hooper it was an occasion of painfulness. He deprecated a notoriety won at so cheap a price, and by what he regarded a means so unworthy as that of a work like “Simon Suggs.” He sincerely felt that depreciation rather than exaltation was his, as the author of such a work, but in this he underestimated the power of his undisputed genius.

Hooper had a mastery of the English unexcelled by any southern writer. Hon. Alexander Stephens pronounced his report of the Charleston convention the finest illustration of the English language that had ever come under his eye. Mr. Hooper was made the secretary of the Provisional Congress of the Confederacy and for years was classed among the foremost of American political writers. He died at Richmond, Virginia, soon after the beginning of the Civil War.

WILLIAM M. MURPHY

For solidity and strength of character, forcefulness, and impressiveness of presence especially before a jury or an audience, the Hon. William M. Murphy was hard to excel. He was remarkable for antipodal elements of character. That is to say, the active and passive virtues were so set over against each other as to give him a unique combination of elements. While morally and physically courageous, he was gentle as a tender woman, and while he was a most formidable contestant in debate, he was just as remarkable in his generosity, and spurned any suggestion or opportunity to take undue advantage. While dreaded in disputatious combat, he was respected for his uniform fairness. According this to others, he was not slow in demanding the same in return.

Mr. Murphy was a North Carolinian by birth, and was brought by his father as a lad of fifteen to Alabama two years after the state had been admitted into the union. His educational advantages were without stint, his father being amply able to furnish him with the best equipment for life. First a student at the Alabama university, he afterwards completed his course at the university of Virginia, which was at that time the most famous of the literary institutions of the continent. Adopting law as a profession, the gifts and qualifications of Mr. Murphy brought him into speedy notice.

He was for a number of years devoted to the practice of his profession before he entered public life. At the age of thirty-four he represented Greene county in the state legislature. He brought to the office of a legislator an experience seasoned by years of study and court practice, with a native courage and coolness, coupled with a force of boldness of view that gave him one of the first places in the able body which constituted the legislature of 1840. Three marked elements of strength were his—great ability in debate, remarkable oratorical strength, and the tact of leadership. These at once won the station of the headship of his party.

At that particular time, the whig party in the house stood in the need of a strong champion. The Hon. James E. Saunders, of Lawrence county, was

the leader of the democratic forces, and it never had an abler. Himself a remarkable man, he was regarded by no little degree of fear by his whig opponents, but he found in William M. Murphy a knight worthy of his steel. Mr. Murphy met the giant of the mountains in debate, was amply able to parry his well-directed blows, and was entirely equal as an advocate. His elements of oratory were noted, while he would deal his heaviest blows. It was a battle royal between the champions, the one from the hill districts and the other from the black belt. The sparring of these mighty men was a matter of interest, and became memorable for many years. They were equally matched, yet very dissimilar in a number of respects. Later, Mr. Murphy was the choice of his party for congress, but was defeated, after a remarkable campaign, by his kinsman, Hon. Samuel W. Inge.

In 1849, Mr. Murphy represented his district in the senate of the state, and three years afterwards removed to Texas, but his stay in the state of the Lone Star was brief, for he returned to Alabama, and located as a lawyer at Selma. While never recognized as a profound jurist, he was without an equal as an advocate. His elements of oratory were singularly unique. His initial approach to a cause in the court was usually attended with a rugged and somewhat incoherent method, and it seemed that he had some difficulty in getting under full way, but when he did finally reach the point where his words would begin to warm by the friction of his own thought, his was as overpowering oratory as was ever heard in an Alabama court. Roused to a pitch where the cause came to possess the man, it was like a tempest crashing through a forest. Absolutely transformed in appearance, his manner, his voice, his logic would seem to catch on fire, and all the elements of the great orator would respond to his bidding with electrical facility. A series of thunderbolts could not have been more terrible, and the cogency of logic more overwhelming than when this remarkable man was at his best. It did not in the least savor of the rant, but the combination of the terrible and overwhelming with the utmost self-possession was that which made him inimitable. Invective, sarcasm, irony, ridicule, persuasion—all lent their quota to the torrent which swept like a Niagara. Nor could it be withstood. It was as irresistible as the flow of a mighty river. Men listened to him entranced, sometimes terror-stricken, at intervals pleased even unto delight, and always with interest. His cast of oratory was peculiarly his own. He imitated no one, nor was it possible to imitate him.

Mr. Murphy was cut down by a stroke of apoplexy at a period of life when he was just fruiting into great usefulness and power. He was only forty-nine years of age when the fatal stroke came. He died at his home in Selma in 1855. Few men who have lived in the state have left a profounder impress, in some respects, than William M. Murphy. His towering courage was equalled alone by his uniform generosity of spirit. There was not a small quality that entered into his character. Open, frank, noble, brave, bold, gentle, courteous, and tender, he was all of these. His sympathy once enlisted made him one of the most loyal and devoted of friends and supporters. On the other hand, his opposition when once stirred was the invitation of a storm. But he never forgot to be generous even to the sternest of foes.

This galaxy of virtues with which his character was adorned awoke universal confidence and won him popularity not infrequently among his opponents. Set over against every stern or strong quality was a check or balance that held his character well in poise. This gave him a ponderous influence among those who knew him, as he was regarded as fair at any cost of advantage to himself.

JAMES E. SAUNDERS

For quietness of force and reservation of power, Honorable James E. Saunders was noteworthy. With a breadth of vision far above the ordinary, a remarkable insightedness, and absolutely calm in his poise, never disturbed by the clash or clamor of contest, he meted out his strength in proportion to the demand of the occasion which elicited it, and invariably left the impression that a fund of power was held in reserve for whatever emergency might arise. He enjoyed the advantage of all self-collected men. Never betrayed into warmth of feeling, he was oftener in position to disarm the opposition than he would have been under the sway of passion. There was an undertow of inherent force the seeming consciousness of the possession of which made Mr. Saunders perennially serene.

His qualities soon marked him for distinguished leadership in the legislature to the attainment of which leadership he came, not by self-seeking, but by dint of his recognized power. He had served as a legislator before 1840, but at that time, he rose to the first place in the ranks of his party.

There was necessarily inseparable from his bearing the consciousness of that which would have affected any man, with the sway of a strong political organization of which he was the recognized leader. Self-assertion becomes easy when there is little to be apprehended from opposition. The dominant democracy in the lower house of the Alabama legislature might have occasioned tranquility in the leader, even though it had not been natural. Mr. Saunders not only held the whigs at bay, but in awe. Nor was this the result of a hectoring spirit from which none was freer, but because of his quiet ability to dispose of obstruction which lay in his way.

This condition continued till there appeared on the scene William M. Murphy of Greene. A trained lawyer accustomed to the rough and tumble of the court room, naturally endowed with many strong points needed in an emergency like that which confronted his party in the legislature, as fully conscious of power as the leader of the opposition, and more disposed to

yearn for a gladiatorial combat than to spurn it, Mr. Murphy was full panoplied as a leader of the whig party.

Unknown at first as to his qualifications, even to those of his own party affiliation, he was hailed with delight after that the first issue was joined. The two leaders were entirely dissimilar save in one particular—in courtesy and fairness. In these they were at par. But when met in combat Mr. Saunders was deliberate, plain, matter of fact, clear, cool, divesting a proposition of every seeming objection, and investing it with an atmosphere of transparency that seemed to place it quite beyond the pale of doubt.

Altogether different it was when Mr. Murphy arose to combat it. With a rugged sort of oratory he would seem to struggle with himself for the gain of a substantial footing, which when once obtained, an avalanche was turned loose, and under the thunder of its descent, gathered momentum as it proceeded, the old hall seemed fairly to quake. Meanwhile his opponent sat as stolid as a Stoic. By interruptions blows were given in the calmness of his power, but they were parried with the roar of a stentor. Thus surged the battle along partisan lines, the democrats possessing themselves in complacent consciousness of strength, while the whigs would catch inspiration under the demonstration of a leadership so splendid.

In all this never was Mr. Saunders in the least daunted nor was his masked power the least exposed. His coolness was equalled only by the vigor of his opponent. In nothing passive but always forceful and brave, he lent mightiness of strength by a serenity that challenged the admiration of the sturdiest opponent. In the gage and stress of conflict his thought flowed without the least break in its coherency and without the slightest disconcertedness. His equable temper never forsook him. To each contest he would bring the same tranquil poise and it was maintained throughout. Without hesitation he would face unblinking the severe ordeals to which he was subjected in the stormy legislative days when he moved a giant among the giants of Alabama. To be a legislator in those days meant much, for the people filled the seats of legislation with their choicest spirits.

Mr. Saunders was not of a bantering mien, but he relied on the strength of his logic into which he quietly injected a personal conviction so overpowering that it would seem that no position could be more

impregnable, and thus it would look till it came to fall under the iconoclastic manipulation of his formidable opponent. To be able to have those days of partisan tempest reproduced in type would be to thrill thousands at this late time.

As chairman of the judiciary committee in the house, the service rendered by Mr. Saunders was fundamental to the interests of the state. Nor was any one more profoundly interested in the educational affairs of the state as was shown by his share in the establishment of the state university on a solid basis, of the board of trustees of which institution he was a prominent member. Mr. Saunders would have graced a higher station in the affairs of statecraft than that which he held, and in a wider orbit would have afforded an easier play of his strength. Dropping out of politics for a short while, he became a commission merchant in Mobile, but in 1845 he was appointed to the post of the port of Mobile, by President Polk, and after an expiration of his term of office he was on the electoral ticket in the campaign which resulted in the election of Pierce and King. Wealthy and hospitable, his was a typical southern home of the long ago.

A devout Christian philosopher and a sedate statesman to which were added the qualities of a superior man of business, the usefulness of Honorable James E. Saunders was incalculable.

W. P. CHILTON

For numerous reasons the name of Judge William P. Chilton is worthy of a conspicuous place in the annals of the great men who have made Alabama. He was a learned and incorruptible public servant, a patriot of the highest mold, a patient and manly gentleman in all his relations, and a typical Christian. He moved among his peers with universal esteem, and amidst the temptations of public life preserved a reputation untarnished even by a breath of suspicion.

Of a pleasing temperament, he was jocular as a companion, always agreeable in intercourse, mingling in true democratic style among all classes, and yet he never depressed an exalted standard of manhood even an iota. In his rigid fidelity to duty he represented the best type of the publicist, and alike in private and in public, exemplified a genuine manhood. Even under the laxest conditions and in the abandon of free intercourse with others, he never soiled his lips with unseemly speech or with questionable joke. There was nothing that escaped him which a lady might not hear—nothing that he could not utter in a public speech.

He was a man of vast and commanding influence which proceeded from the loftiest summit—that of a pure and exalted life. He was active in the stirring scenes which affected the period in which he lived; never shied a duty imposed, and always met his obligations in such way as to win the highest meed of public praise. Men came to know him so thoroughly that no pressure of a questionable matter was ever made, because his integrity was proverbial. From his well known standard of life, men knew where to place him on all questions which involved the moral sides of right and wrong. Such was the life, such the career of William Parish Chilton.

The time may have produced men his equals in the qualities already named, but it produced none superior to Judge Chilton. His was not an ostentatious display of virtue in order to elicit attention, for none were meeker, more placid and tranquil, but his was a silent influence which impressed wherever it touched. His condemnation of wrong was not of the

demonstrative kind, but his disapproval was a silent expression which was always powerful. As one of the ancient philosophers said of one of his brother philosophers, "He always says the same thing about the same thing," so it was in the uniform bearing and conduct of Judge Chilton.

In such an orbit he moved, in such an orbit he died, leaving in the memories of those who knew him and in the records of the state, a life of distinguished purity. He was in no sense a recluse, nor in the least offish; on the other hand, he was most cordial, and his piquant humor was relished as a season to pleasant conversation; but he would never sanction by even a smile an unseemly joke or expression.

His was an active life. Indeed his increasing labor was a subject of frequent comment. This necessarily brought him into connection with all classes of men, but he moved amidst all scenes without the smell of taint on his character. His habits of life were as regular as the movement of the hand on the dial face. By this means he was gifted with a physical manhood capable of severe strains of labor.

Beginning life as a young attorney in Talladega County, in co-partnership with George R. Brown, Mr. Chilton was subsequently associated in the practice of the law with his brother-in-law, the late senator, John H. Morgan, the strong firm including two other distinguished gentlemen, George W. Stone and Frank W. Bowdon. Chosen once to represent Talladega County in the legislature, Mr. Chilton was afterward elected to a seat on the supreme bench of the state, succeeding Judge Ormond. Later still, in 1852, Judge Chilton became the chief justice of the supreme court of Alabama, which position he held with great distinction for four years. Retiring from this judicial position, he became associated, in 1860, with William L. Yancey in the practice of the law in Montgomery.

When the Confederacy was created Judge Chilton was elected a member of the provisional congress of the young government and throughout its brief and fateful history retained his seat in that body. Speaking of his interest and activity, Honorable J. L. M. Curry, who was his congressional colleague, said: "It was a common remark that he was the most laborious member of the body." He loved labor equally from an instinctive energy and from a sense of duty. On the floor of the Confederate Congress the

opinion of no member was esteemed of greater worth than that of Judge Chilton.

In the rough and tumble of debate, which he enjoyed, whether on the hustings or on the floor of congress, he displayed rare humor, reveling in original epigram and in rollicking anecdote at the expense of his opponent. Fluent and eloquent, he was at home before a promiscuous gathering. His innocent, sparkling wit afforded him vast power in discussion. Among the ludicrous sallies used in opposition to another in a speech, and one long quoted in referring to the remarkable conservation of his opponent, he accused him of "reaching an extreme medium." Before a popular assemblage he was irresistible in his joviality and power to produce merriment. Yet this was always done in such way as never to occasion offense. Nor did he ever yield to buffoonery. His contagious twinkle of eye, his sunlit face and his ready husbandry of dictum suited to the occasion, were so remarkable that he would sweep an audience as a breeze a field of grain. Yet his thrusts were so tempered by good nature that they left no sting nor pang of regret to the speaker.

Buttressed on a character such as he possessed, this variety of gifts gave to Judge Chilton immense advantage. It was known to be impossible for him knowingly to misrepresent or to take the slightest advantage and consequently the spell of his influence was overwhelming.

Among his numerous traits may be named that of his intense interest in young men. His counsel was frequently sought by a struggling youth because of his transparent frankness, readiness and responsiveness. He manifested a keen interest in his young brother-in-law, John T. Morgan, who was perhaps more indebted to Judge Chilton than to any other for the substantial basis with which he began his brilliant and eventful career. It was not uncommon for him to seek an interview with a young man in whom he discovered gifts, and aid him to gain a solid footing.

When sixty-one years old, Judge Chilton was still active and alert, his natural force still unabated, and his spirit undimmed by years of activity, and, when it seemed that many years of usefulness were still his, he suffered from a serious fall, from which he never recovered. His death in Montgomery in January, 1871, was an occasion of state-wide sorrow. The

legislature was in session at the time, and Governor Lindsay announced the sad fact of his death in the following communication to the general assembly:

“State of Alabama,
“Executive Department,
“Montgomery, Jan. 21, 1871.

“Gentlemen of the Senate and House of Representatives:

“It is with feelings of sorrow and regret that I inform you of the death of the Honorable W. P. Chilton of the city of Montgomery. This event occurred last night about the hour of 11. Judge Chilton was one of our best beloved citizens, eminent as a jurist, and the people of Alabama had often honored him with their public esteem and confidence. As a member of the legislature, as a member of congress, and as chief justice of our supreme court, he discharged his duties with devotion and zeal. In the halls of legislation he was a statesman, and he adorned the bench by his integrity and learning. The loss of such a man is a public calamity, and it is fit that the departments of the government of a state he loved so well should pay a tribute to his memory.”

The occasion of his funeral was a sad ovation of public esteem. The legislature, the bar, the fraternity of Masons, of which he was an honored member, together with multitudes of friends, sought on the occasion of his funeral to accord to Judge Chilton the merits of his just deserts.

JOHN FORSYTH

For generations the name of Forsyth has been associated with distinction in the records of southern history. The original member of the family, Robert Forsyth, came from England to America before the revolution, and was a member of the military family of Washington. His son, John Forsyth, was at various times attorney general and governor of Georgia, a member of congress for a period of fifteen years from that state, minister to Spain, and was instrumental in procuring the cession of Florida. For six and a half years he served as secretary of state, during the administrations of Jackson and Van Buren. Robert Forsyth was the grandfather of John Forsyth, late of Mobile, while John Forsyth, Sr., was his father.

Enjoying unusual advantages, socially and scholastically, the subject of the present sketch turned them to great practical benefit. Among the advantages which he enjoyed was that of a residence of two years at the Spanish court during the administration of his distinguished father as minister to Spain. He was a graduate from Princeton University, from which he bore away the first honors of his class and delivered the valedictory address.

Entering on the practice of law at Columbus, Ga., he continued there but one year, when he located in Mobile, in the year 1835. He soon received the appointment of United States attorney for the southern district of Alabama, but the death of his father occurring in Georgia, necessitated his return to that state, where he remained for twelve years, having taken charge of his father's estate and devoting his time to planting, the practice of law and the editorial management of the Columbus Times. It was during that period that he enlisted to serve in the Mexican war as the adjutant of the First Georgia Regiment.

He returned to Mobile in 1853, entered the lumber business, was burnt out, and entered again the field of journalism by purchasing the Mobile Register. In 1856 he was appointed by President Pierce minister to Mexico, in which capacity he served for two years.

Colonel Forsyth's mission to Mexico was attended by much labor and perplexity, as the duty was imposed on him of adjusting varied and numerous claims against the Mexican government, which claims originated in the nature of the war waged by the Mexicans. There were claims for imprisonments, murders, confiscation, and others, and while Colonel Forsyth labored without abatement, he had but timorous support from the Buchanan administration.

As a matter of fact, President Buchanan was gravely absorbed in the rush of events which tended toward the approaching Civil War, which broke like a storm over the country in 1861, and his foreign policy was one of conciliation. The reason of this presidential policy concerning Mexico is now obvious. In view of the pending conflict in the American states, the hostility of Mexico, for any reason, would be serious.

As an earnest advocate of the rights of the citizens of the American states at the Mexican capital, Colonel Forsyth was gravely embarrassed by the feeble support lent by his government, and this led to the severance of his relations with the diplomatic service. Having resigned, he returned to Mobile and resumed his editorial work.

With qualifications so varied, he was frequently called into active service by the people. While his pen was actively employed, he was summoned to such important posts as that of mayor of Mobile, legislator, alderman in his adopted city, and other stations of public interest.

In March, 1861, Colonel Forsyth was sent, together with Messrs. Crawford of Georgia, and Roman of Louisiana, on a peace commission to Washington. There was but slight hope of accomplishing anything, and it is doubtful if there was any more serious intention involved in the mission than that of gaining time for a more efficient equipment of the South for the pending struggle. It was a time for tactics, and a play for advantage. The mission was a bootless one, and in due time the war burst on the country.

During the Civil War, Colonel Forsyth served for a time on the staff of General Braxton Bragg, meanwhile retaining his connection with his paper, for, after all, the pen was the most potent instrument in the hand of Colonel Forsyth. After the close of the war he proved to be one of the most masterly spirits in steering the state through the storm of reconstruction. The pen of

no one in the South was more powerful during that chaotic period. Statesman, jurist and journalist, he was equipped for guidance in an emergency like this, and with the zeal of a patriot he responded to every occasion that arose. His excessive labor made sad inroads on his constitution, his health was broken, but despite this he was persistent in labor. He was of that type of public servants who sought not applause for its own sake, but was impelled by an unquestioned patriotism which yielded to demands of whatever kind, high or low, in order that he might serve the public.

Much as Colonel Forsyth did in the exercise of his superior versatility, all else was incidental to the wield of his prolific pen. He became the South's most brilliant journalist. The compass of his vision was that of a statesman, and during the troublous times which followed the Civil War, the counsel of one like him was needed, and that counsel found most profitable expression through the nib of his powerful pen.

Day after day, for a long period of years, the columns of the Mobile Register glittered with thought that moved on the highest level and that found expression in polished and incisive diction. It was brightened by the loftiest tone of rhetoric, sustained throughout by the best strain of scholarship, never lapsing, either in tone or expression, into the commonplace. There was a fastidious touch in his style, a classical mold to his thought, which, while they pleased the most scholarly of readers, equally charmed the common people.

Under the sway of his forceful and trenchant pen the Mobile Register became one of the most dominant factors in southern thought. That journal found readers in all the states, and more than any other in the South at that time, it won the attention of the metropolitan press. In no editorial sanctum has he been surpassed in rareness of diction, nor in power of expression.

GEORGE GOLDTHWAITE

There was a possibility at one time of Judge George Goldthwaite becoming a military man. After spending his younger years in Boston, where he had as school fellows such men as Charles Sumner and R. C. Winthrop, Goldthwaite became a cadet at the military academy at West Point. Among his classmates at the academy was General (Bishop) Polk, while in more advanced classes were R. E. Lee, Joseph E. Johnston and Jefferson Davis. Goldthwaite was within one year of the completion of his course when he became involved in a hazing fracas and quietly left the institution, as he knew what the consequences would be. At that time, 1826, Alabama was in the infancy of statehood, and he a youth of seventeen. His brother was at that time a rising young lawyer at Montgomery and the younger brother entered on the study of law under his elder brother.

The thoroughness of mental drill to which he had been subjected in the Boston schools, as well as at the military academy, made his headway in law comparatively easy, and at the end of the year, when he was but eighteen, he was admitted to practice and opened an independent office at Monticello, Pike County. The youthful lawyer did not lack for clients and he remained in this rural village for a period of several years, after which he returned to Montgomery, where his ability became widely recognized.

In 1843 he offered for the judgeship of the circuit court against the incumbent of the bench, Judge Abraham Martin, and was elected. In 1850 he was opposed by Jefferson Jackson, a gentleman of prominence at the bar, and was again elected. In 1852 Judge Goldthwaite was chosen a justice on the supreme bench, and four years later, when Judge Chilton resigned, Judge Goldthwaite became chief justice, but after serving in this capacity just thirteen days he suddenly resigned and resumed the practice of the law.

For three years after the beginning of the Civil War Judge Goldthwaite served as adjutant general of the state under the appointment of Governor Moore. Just after the close of the war he was elected again to the position of

circuit judge, but in 1866, under the reconstruction acts of congress, he was removed.

In 1870 he was elected to the United States senate from Alabama. This brief and cursory survey of an eventful life affords but a bare hint of the marvelous activity and usefulness with which the career of Judge Goldthwaite was crowned.

Like most men of deeply studious habits, there was wanting in the bearing of Judge Goldthwaite a spirit of cordiality. His peculiar sphere was the court room or the law office. He had a fondness for the discussion of the profound principles of law and reveled in its study. An indefatigable student of the law, he was one of the ablest attorneys and jurists the state ever had. The statement of a proposition by him was as clear as a Syrian atmosphere and in its elucidation before a jury his diction was terse, crisp and simple, so that the veriest rustic could understand it. Quiet in manner and with unadorned English he would unravel a knotty proposition so that every thread was straightened, and everyone who knew the meaning of the simplest diction could readily grasp his meaning. He was a master of simple diction.

On the bench, Judge Goldthwaite was profound, but always clear and simple. Every word seemed to fall into its appropriate place, and not a flaw was left in the statement of a fact or principle. In the social circle his conversation partook of the same lucid diction, revealing a fund of information and a versatility of learning quite exceptional.

Of a stocky build, he was not prepossessing in personal appearance, but when he began to speak his diction glowed with the heat of a quiet earnestness, and all else was forgotten but the charm of his incomparable speech.

Judge Goldthwaite achieved but slight distinction as a national senator, because it was a time when the voice of a senator from the South booted but little. The wounds of the Civil War were still fresh and smarting, and the calmness of his temperament and the aversion to hostile excitement forbade his flaring in empty speech, as would have been true of many another. As a matter of fact, his sphere was not the forum, and he had no taste for the dull routine of congressional proceeding.

Judge Goldthwaite's mind was distinctively judicial. He served in the senate as a matter of patriotic duty, and not as a matter of choice. There was a peculiar condition which required his continued presence there, and to this demand he responded. It was a time that called for calmness and conservatism, and no one was better prepared to illustrate these virtues than Judge Goldthwaite.

His deportment in the National Senate challenged the admiration of all. A former classmate of Charles Sumner, as has already been said, he was the poles asunder from the New England statesman in the views entertained by Mr. Sumner, and often hotly expressed by him on the floor of the senate.

Judge Goldthwaite preserved a long and honorable career in Alabama, and left behind him a record of fame. He was far above the petty affairs of life, and lived and thought on an elevated plane high above most men. He was a student, a statesman, a jurist and a philosopher—all. He was an ornament to the state and easily one of its foremost citizens in all that pertained to its weal. He was without foil either in conduct or in character. His example was stimulating, and his influence elevating and inspiring. Any state would have been honored by the possession of a citizen so eminent.

ALEXANDER TRAVIS

The name of Travis is immortally linked with the tragedy of the Alamo, where the gallant Colonel William Travis was massacred with his devoted band in that historic fortress at San Antonio. The Rev. Alexander Travis was an uncle of the hero of the Alamo. Colonel William Travis was a resident of Alabama before he removed to Texas, and practiced law in Clarke County. Thence he removed to Texas, where he became one of the most prominent sharers in the struggle for independence.

One of the dominant traits of the Travis stock was that of cool courage. This was illustrated as much in the life of the heroic missionary in the woods of southern Alabama as it was shown by his nephew in the ill-fated fortress of the Alamo. Alexander Travis removed to Conecuh County in 1817, and was one of the pioneer settlers of that region. He was a man of peace, but this did not obscure the heroic impulses of his nature, for in grappling with the stern conditions of pioneer life, in seeking to bring them into due subordination to organized social conditions, unusual pluck was needed, not alone, but wisdom and prudence, as well.

While sharing fully in the hardships of the early colonizers of south Alabama, Mr. Travis, as a minister of the gospel, led in all movements in the emergence of that region from chaotic conditions to the higher plane of advanced society. Himself denied the advantages of an education, he was the foremost in all movements to provide for general instruction. He was the founder of the town of Evergreen, now a bustling little center on the Louisville and Nashville Railway, between Montgomery and Mobile. He founded the academy at that point, which school has given place in later years to one of the state agricultural schools.

There was a pathetic touch in the life of a man who would labor on his little farm, cleared by his own hands, in the wilds of south Alabama, and who, at night, when the labor of the day was over, would sprawl himself in his little yard before his blazing pine-knot fire, and study his plain English Bible—the only book in his library. Leaving his hut in the woods, each week, in

time to reach distant settlements to preach on Sunday, he would throw his little wallet of cotton cloth across his shoulders, and set out on foot to trudge the distance, sometimes of forty miles, for the privilege of preaching to some distant community. He came to know every foot of the wide Indian trails that wound through the forests over a vast area, and knew every log on which he could cross the large streams in those bridgeless days of the long ago. Nothing foiled him in the excursions of good, for when the rains would swell the streams, he would strip himself, cram his apparel within his wallet, and, being an expert swimmer, he would hold his bag above his head with one hand, while with the other he would swim to the opposite side, redress, and onward plod his way.

Among the elements of abounding romance in our history, nothing exceeds in interest the intrepidity of this pioneer hero in contributing to the moral and spiritual side of the early days of our history. His punctuality in meeting his appointments, and his devotion to the gospel and to the people, won for him a confidence supreme. In those days when courts were not, and yet where conflicting litigants were, cases for final adjudication would be held in abeyance "till the preacher comes." Causes were submitted, but he would never consent to a consideration of them till the contending parties would agree to abide amicably his decision. Such was the clearness and saneness of his judgment, the fairness of his spirit, and his profound sense of right, that every litigant would promptly accept this condition. He was jury, advocate, and judge, all in one, and for many years, in that interior pioneer region, he acted in this threefold capacity, while he rendered unrequited service as a missionary. His was a strange, strong, romantic life, spent for the good of others to the neglect of his own personal comfort. That class has dwindled to a list so small and rare that today, when similar devotion is shown, the world knows no higher designation for such a man than that of "crank," yet it is the crank that turns things.

In later years and under better conditions, Mr. Travis came to ride the wide regions through on horseback, with his leathern saddle-bags beneath him. Under the tall pines which then grew in those southern parts, he would frequently stretch himself at night, on the green grass, tired and sleepy, with his head pillowed on his saddle-bags, and beneath the stars, he would be wooed to sleep by the moaning pines above him. His faithful horse was tethered close by to browse the wire grass and the native peavines, while

the missionary would sleep and await the coming of the dawn. Without a cent of compensation, Alexander Travis labored through many eventful years, creating the means with his own hands with which to sustain his work, and uncheered by aught else than the consciousness of duty to humanity and to God.

With the expansion of population, and with the growth of prosperity, Mr. Travis came in the second half of his life to possess a measurable degree of wealth, but from a steady purpose of doing good, he never wavered. He was a man of commanding appearance, of natural dignity of port, and possessed of the natural assertion which these give; yet he was modest, and commanded esteem by his unquestioned qualities of leadership. There was no element of flabbiness in his character, no cant and drivel in his utterances, but in all that pertained to him he was a nobleman by nature. His judgment was incisive and discriminative, his poise collected, and while without the least exhibition of violence, he was courageous in his entertainment of views, and pronounced in their expression. In nothing did his courage so manifest itself as in his stoutness of spirit in the face of difficulty. Nothing that he regarded as possible baffled him, and while never stern, he was immovable from that which he conceived to be right, whether reinforced by others or not. He was a benediction to the state while living, and, being dead, he yet speaks.

JOHN A. WINSTON

John A. Winston enjoyed the distinction of being the first native born governor of the state. He was a native of Madison County, where he was born in 1812, and received his collegiate training at LaGrange College and the University of Nashville. His grandfather was an officer in the army of the Revolution from Virginia. The family name of Anthony was preserved in that given the governor.

Governor John Anthony Winston first devoted his attention to planting. He removed from the mountain region to west Alabama in 1834, and bought a fine plantation in Sumter County, one of the counties of the famous black belt. Six years after his settlement in Sumter County he was chosen its representative to the legislature. To this office he was re-elected and then chosen for the state senate, which position he continued to hold for ten consecutive years, becoming the presiding officer of that body in 1847.

The ability of Governor Winston became more generally recognized in 1848, when he went to Baltimore as a delegate to the national convention which nominated General Cass for the presidency. Mr. Winston made a speech before that body in the vindication of the national Democracy, which attracted widespread attention and brought him into prominence before the entire country.

During his senatorial career he entered into the cotton commission business in Mobile, which commercial relation he continued till the close of his life. While not engaged in official duty his attention was divided between his planting interest and his business in Mobile, where he spent much of his time. The sterling worth of Mr. Winston, his clearness of judgment, range of comprehension, force of character and exact practicalness, together with his undoubted leadership of men and statesmanship, served to win for him an augmented public confidence, and in 1853 he became the candidate for governor of the state, and was elected without opposition. Two years later, at the expiration of his first gubernatorial term, he was opposed by Honorable George D. Shortridge. The campaign was one of unusual energy

and even of bitterness. The state was agitated throughout, both candidates appearing before large and excited audiences in every part. Governor Winston was the democratic candidate, while Mr. Shortridge espoused the cause of the Know-Nothing or American party. Mr. Winston defeated his opponent by a majority of about twelve thousand.

Conditions had now conspired to make the farmer-governor the great leader of the Democratic hosts in the state. No man who has lived in Alabama ever had a completer grasp on a party organization than that had by Governor Winston at this time. Happily for the state, it was a power wisely used with disinterested patriotism. The direction of affairs was as devoid of the alloy of personal aggrandizement as was possible, and this was duly recognized by the public. Governor Winston went as a delegate-at-large to the Charleston convention in 1860, and after the nomination of Mr. Douglas he led the electoral ticket in the state. On the outbreak of the war he became the colonel of the Eighth Alabama Regiment, and as such served for twelve months, when he was forced to retire from the service by an attack of rheumatism which physically disabled him. His career as a soldier in the army of Virginia was in harmony with his general reputation as a civilian. His regiment was fiercely engaged at Seven Pines, because, being at the front, it was brought into sharp contact with the enemy. The fight was hand to hand, with odds in numbers against the gallant Eighth Alabama. Colonel Winston was at the head of his regiment, and, placing his bridle reins in his teeth, he led his force with a large pistol in each hand. When commanded to surrender his reply was that he had not joined the army to surrender and that was not his business. On his return home he devoted his attention to planting, and with unabated patriotism aided in every way possible the fortunes of the Confederacy.

In 1865 Governor Winston was sent as a delegate from Sumter County to the constitutional convention of Alabama, and was afterward chosen for a seat in the National Senate, but his seat was denied him, and he was afterward disfranchised by the radical forces then in control of the government. This closed his career of public service. He never recovered from the rheumatism contracted while in the service in Virginia, and died in Mobile on December 21, 1871, at the age of fifty-nine.

The combination of qualities entering into the character of Governor Winston was more than ordinary, all of which characteristics were based on a clear, solid foundation of remarkably good sense in all that he did and said, privately and officially. He was altogether devoid of pretense or of assumption. He moved on a straight line of impartiality and of unbiased thought. He did his own thinking and reached his own conclusions. When a conclusion was reached it was evident that he had gone over all the ground, had weighed and measured every possible consideration, after which was done it was futile to seek to dislodge him. His scrupulous firmness sometimes bore the aspect of sternness, and in the absence of a diplomacy to soften it a decision would sometimes offend the sensitive; but in view of duty, none of these things moved him. He was not without the element of gentleness and of profound sympathy, but above these rose his conscience, the dictates of which he would not disregard.

While governor he was not in accord with much of the legislation enacted, especially with respect to appropriations of the public funds, and there was now and then friction between the executive and legislative branches of government, but he did not hesitate to invoke the power of the veto when he deemed it necessary. Because of this he won the sobriquet of “the veto governor,” but to him principle overtopped popularity, and the protection of the common interest was a matter of graver concern than the good will of the general assembly. While not possessed of oratorical power on the stump or on the legislative floor, having a strident, rasping voice and the mannerism of a man of business rather than that of a trained speaker, he nevertheless won the populace by his directness and sincerity. He retired from public life without the slightest tarnish on his conduct or reflection on his career. An indication of his solid popularity is found in the fact that the name of the county of Hancock was changed in honor of Governor Winston to that of his own.

DANIEL P. BESTOR

In its phases Dr. Bestor's character was many-sided. He was at once a planter, statesman, philosopher, educator and minister of the gospel. Richly favored by nature, his gifts had the polish of the classical lapidary and the expansion which comes of research, thought and experience. He towered immensely above the ordinary man and the babble of the multitude. Like Goldsmith's ideal preacher, Dr. Bestor rose—

“As some tall cliff that lifts its awful form,
Swells from the vale, and midway leaves the storm,
Though round its breast the rolling clouds are spread,
Eternal sunshine settles on its head.”

There was nothing of the maudlin or mediocre type in his character. Every movement and utterance, his face and bearing, all bespoke the man that he was. Dr. Bestor was a native of Connecticut, where he was born in 1797. Removing to Alabama by way of Kentucky when he was twenty-four, he began at once a career of usefulness which extended practically through a half century, a period which embraced all the great revolutions through which the state has passed. In none of these was he an idle spectator nor uninterested agent.

His educational advantages were the best the period could afford, and these afforded him the buttress of an ever widening sphere of knowledge. Possessing an intellect at once readily receptive and retentive, he was a diligent student in a number of fields of research. From surface facts he probed toward the bottom of principles and reached conclusions at first hand. If occasion arose for a modification of opinion on any matter, he yielded to new evidence, though it bore him to a position diametrically opposite to that originally held. It is the small man who never changes a viewpoint. The two classes represent respectively obstinacy and consistency. Obstinacy is the inflexibility of pride; consistency, the inflexibility of principle.

On reaching Alabama Dr. Bestor was impressed more by the lack of educational facilities than by anything else. In the valley of the Tennessee there were multitudes of young folk growing rapidly toward manhood and womanhood with scarcely any facilities of instruction. He at once became the pioneer champion of general and public education in the state, and was the first to agitate the question in a comprehensive way. He sought to supply the deficiency in the northern part of the state by founding the once famous school in those parts known as the LaFayette Female Academy. The school was patronized by the wealthy planters of that region, and became the initial means of contributing to the womanly culture of which the section was remarkable. Dr. Bestor was the principal of the school and devoted the culture of his young manhood to its promotion. Founded about the time of the last visit of General LaFayette to America, Dr. Bestor derived its name from that of the famous Frenchman, while to the cultured village which sprang up on the plateau on which the school was located the name of LaGrange was given, in honor of LaFayette's chateau in France.

This was the first school incorporated in Alabama. To the school the legislature of Alabama in 1824 deeded a half section of land. Though called an academy, the grade of the school was high and did advanced work. At that time Dr. Bestor was everywhere alluded to as the great educator, and his fame was spread throughout the state. Later, in 1830, the Methodist Conference of North Alabama, Middle Tennessee, and North Mississippi founded a school for young men in the village of LaGrange, which also became a famous institution. Three years later Dr. Bestor removed to Greensboro, taking with him as far as practicable all that pertained to LaFayette Academy, and in that chief town of the canebrake established another school and remained at its head for a number of years. Still later he removed to Sumter County, where for ten years he divided his time between preaching and planting.

It was while serving as a legislator from Greene County in 1837 that Dr. Bestor revealed the first vision of a comprehensive public school system for the state. His study and investigation of the subject led him to see that with prevailing conditions unchanged, Alabama could never emerge from its gloom of illiteracy. The scant facilities afforded by local or denominational interests were altogether inadequate to existing demands. Schools dotted the

state over at favored points, but the ignorance in large areas of the state was little short of the dismal.

Stirred by conditions like these, Dr. Bestor sought to go to the legislature that he might acquaint the representatives of the people with the results of his disinterested investigation. His plan was that which actually came to prevail many years later, but after he had passed away.

In the legislature he threw his cultured being into the single cause of education, procuring for it a special committee, of which he was made the chairman. He prepared with great pains and labor an elaborate report and a bill to be offered, and in due time it was submitted. The measure met with stout opposition, especially at the hands of B. G. Shields, of Marengo, the chairman of the general committee on education, who resented the policy of a special committee as a reflection on himself and his committee. In the opposition Mr. Shields was supported by Judge Smith, of Madison. But general committees had never done anything, and for that reason Dr. Bestor asked for a special committee.

The occasion was made a memorable one on the floor of the house by the contest which it provoked. Dr. Bestor husbanded all his resources and skill in the conduct of the contest and proved himself a giant in debate, and, though met by much passion, he preserved his coolness and dignity throughout the debate. He failed in his effort at that time, though his labor was not in vain, for the array of facts presented respecting the illiteracy of the state awoke wide interest which gave an impulse to the educational spirit of the state which has not ceased to this time.

Coupled with all his immense work was that of an active pulpit ministry. He was a great leader in the Baptist denomination and rendered signal service in the thorough organization of the Baptist forces. With the exception of a few years spent in Mississippi, Dr. Bestor's career was confined to Alabama. He died at Mobile in 1869.

F. W. BOWDON

There is much more in unwritten history that affects the destiny of the race than there is in that which is recorded. Gray's "gem" in his Elegy, and his "flower" "born to blush unseen," illustrate the fundamentals of the history of the race, wherein the bulk of worth is frequently unmentioned, and, if so, often scarcely. While Franklin Welsh Bowdon was by no means unknown, and while his worth was not altogether unrecognized, who that knows him in retrospect today as one of the most matchless orators of southern history? Who knows of his clearness of demonstration in presenting the most tangled and abstruse of problems? Who today knows not alone of the power already alluded to, but who that knows that his ability before a jury has never been surpassed in the state, or that he was peerless as a popular speaker before a promiscuous audience? Who that has learned of his subtle force of illumination of difficult problems or of knotty questions, in speech that glittered in its own chaste delicacy and beauty of phraseology after having passed through the crucible of his brain?

The history of others is perhaps more iridescent, because the drift of the currents into which they auspiciously fell bore them into fuller and more applaudive view before the public eye, in which event it is the condition, and not the man who happens to be its representative, that deserves consideration. The force inherent in Frank Bowdon, and his superior ability to wield the elements already named, really make him a prodigy among the men who have made famous the history of the state. He was not ambitious to be showy, nor sought he special occasion to flash his powerful gifts, but when occasion did logically and legitimately come, he was prodigious.

Many men fall just short of accorded greatness because of the needed stride across the boundary over which others bound and catch the loud plaudit of the crowd and are borne to the crest of eminence. Many another receives undue applause because he boldly thrusts himself on public attention and forces recognition, while others, far superior perhaps, stand in manly disdain of bald tawdriness and the impudence of ignorance of which certain competitors are the innocent victims. Gifted men are usually, though not

always, men of delicate taste, which is itself an element of real greatness. It is the ripest and heaviest ear of corn that hangs lowest. Mr. Bowdon, with the consciousness of his own power, which every strong man has, eschewed the cheap clatter of the flatterer, and always appeared in public to advantage because he was summoned thither. This, at least in part, affords an explanation of the absence of the fame which was justly his because of the possession of the vast powers already named.

Frank W. Bowdon was a native of Chester district, South Carolina, and was brought by his father to Shelby County, Alabama, while his gifted son was still a child of only three years. On the farm of a thrifty planter and in a home of piety and of hospitality the youth was reared. It was one of those old-time southern homes where ease and elegance, culture and refinement were, and where children were reared free from over-exaction and with just sufficient freedom to develop real manliness.

Mr. Bowdon was educationally prepared for entrance on the State University, which he in due time entered and from which he was graduated, and entered at once on the profession of the law. He was admitted to practice and settled at Talledega. His ability as a speaker was equally suited to the court room and the forum. During the years of 1844-5 he served as a representative in the legislature from Talledega County. His ability in debate and his power of oratory brought him promptly to the front. Nor was he ungifted in the manipulation of conditions by skillful management in the execution of his chosen purposes. He was easily the peer of the foremost of a legislative body graced by such choice spirits as Thomas H. Watts, John Gill Shorter, Thomas A. Walker, James A. Stallworth, W. O. Winston, Joseph W. Taylor, William S. Mudd, Thomas J. Judge, and others. His reigning trait was decisiveness of conviction, which when once possessed did not lack the underpropping courage of expression, and in turn this expression was not wanting in the most radiant demonstration and persuasion. No haughty spirit nor arrogant port entered into his forensics, but, on the other hand, there was a refreshing repose that lit up the whole with a confidence that was serene and assuring.

Two legislative sessions terminated his career in the general assembly of Alabama, and on the occasion of the untimely death of General McConnell, as the representative in congress from the seventh district, a special election

was ordered, with Thomas A. Walker and Franklin W. Bowdon as the candidates for the vacancy. The result was the election of Mr. Bowdon. This was followed by his re-election over Honorable Samuel F. Rice for the term next succeeding, and over General Bradford for the next following term.

For five years he held his seat in congress, a giant among giants. In a wider sphere there was ampler scope for the play of his power, and it was duly exercised. Brewer states that an English peer was present on one of the occasions when Bowdon spoke, and the Englishman pronounced the effort the ablest to which he had ever listened, and he had heard the greatest of both English and American orators.

Nor was Mr. Bowdon's power confined to his oratory. It was abundantly illustrated in his law practice, and in the preparation of his briefs. Here were met, as elsewhere, the same logical incisiveness and clearness that distinguished his utterances while on his feet.

In his person he was most commanding. He was fully six feet high, of symmetrical build, and his handsome features, especially in the sweep of oratorical passion and fervor, were a study for the artist. Zealous in temperament, and confident of his footing in advance of any deliverance, he shrank not to meet in mental combat anyone who might desire to brook his views. He retired from congress voluntarily in 1851, and after a few years removed to Tyler, Texas, where he soon after died. Bowdon College, in Georgia, derived its name from this distinguished Alabamian.

ALEXANDER B. MEEK

For versatility, brilliancy, and general usefulness, few Alabamians have surpassed Judge Alexander B. Meek. His was an unusual combination of powers. He was a poet, author, orator, editor and jurist, and was inconspicuous in none. One of the earliest graduates from the University of Alabama, where he received the master's degree, he found full exercise for his varied gifts during a career which extended through thirty-two years.

Choosing the bar as a profession, Judge Meek entered on the practice of the law in 1835. During the following year, 1836, he enlisted along with others to serve against the Creek Indians in Florida, Mr. Meek going in the capacity of a non-commissioned officer.

On his return from the Florida campaign, Mr. Meek was appointed by Governor Clay attorney general for the state. At the expiration of his term of office as attorney general, Mr. Meek sought gratification of his literary tastes by creating a new local journal at Tuscaloosa, which he called "The Flag of the Union." Later he edited in the same town a literary journal called "The Southron."

The limited resources at his command compelled him to deflect his course into channels other than those purely literary, and in 1842 he was appointed county judge of Tuscaloosa, and during the same year published a supplement to the Digest of Alabama.

Being appointed law clerk to the solicitor of the treasury at Washington, he gained an insight into the life of the national capital, and perhaps his residence there had some connection with his being made United States attorney for the southern district of Alabama, which position he held for four years, living meanwhile in Mobile. From this position he went to the associate editorship of the Mobile Daily Register.

In 1853 we find Judge Meek representing Mobile County in the legislature, where, as chairman of the committee on education, he reported the bill to "establish and maintain a system of free public schools in the state of

Alabama.” The bill providing for the scheme, together with a voluminous and exhaustive report on education, excited profound interest in the legislature, and the documents were so appreciated that five thousand copies of the bill and ten thousand copies of the report were ordered to be printed.

This was the dawn of a new era in education in this state. Various attempts had before been made to gain the attention of the legislature and the people of the state on this transcendent matter, but they had proved of but slight avail till the work undertaken by Judge Meek. The astounding prevalence of illiteracy in the state as exhibited by his report did more than to arouse interest; it created astonishment, with not a slight degree of apprehension. The work done by Judge Meek in this connection gave a strong propulsion to educational work in the state and the interest deepened and grew in intensity till checked by the Civil War.

Being elected judge of the city court of Mobile, Judge Meek found sufficient time, amidst the exactions of his official duty on the bench, to gratify, to some degree, his taste for literary pursuits. It was during this period that he found time to write the three rare works which established his literary fame. These are “The Red Eagle,” “Romantic Passages in Southwestern History,” and “Songs and Poems of the South.” Some of these were a collection of fugitive contributions which he had previously made to magazines and newspapers, and some of them were prepared at the time specially for embodied publication.

Of the literary merit of his productions there is no doubt. They are intensely southern in their flavor and represent the spirit which animated what has come to be called “The Old South.” An agricultural people, we of the South gave but little attention, prior to the Civil War, to literary pursuits. There were those like Judge Meek who wrote and wrote well, and thousands of others could have done so, but there was but slight encouragement, so that the literary culture of the South was largely unknown and unrecognized by others. The genuine spirit of the people and of the times is embalmed in the rare literary products such as we have from the pen of this Alabamian.

That which has already been said affords a slight view of the stirring scenes through which Judge Meek passed the major part of his life. Possessing

varied gifts, he sought to give vent in some measure to each, but it is in his literary productions that his real fame abides. That literature was his passion is shown by the fact that, whatever else he did, he could not abandon the pen. But the market for his literary wares was so limited that without ample means he was unable to prosecute that alone. The two indispensable requisites of literary success—time and leisure—were not his to command, and he was compelled to scuffle for the expression of his charming thought as best he could.

The literary productions of Judge A. B. Meek have been more eagerly sought by the later generations than by his contemporaries. The edition of each was limited, his books have therefore become rare, highly prized by all lovers of literature, but difficult to find. Certainly as much as any other southern writer Judge Meek has immortalized the spirit and genius of the South of a former period, which is now only a pleasing recollection. More than any other, perhaps, he has embodied in enduring form the peculiar elements which entered into our southern life. The mocking bird, the magnolia, the long trailing moss of our southern swamps, the honeysuckle, the traits and remnants of the vanished tribes of the Red Men, and other elements peculiarly southern are embodied and embalmed in the prose and poetry of A. B. Meek.

Without the weirdness of Poe, Meek surpassed him in deftness of touch and daintiness of expression. There is an indefinable delicacy and a subtleness of force and suggestiveness in many of Meek's passages which have never been surpassed. Nothing can excel the beauty and color of some of his verse. In one instance, while describing an Indian maiden, he says:

“And her eyes flashing wildly when with gladness they shine,
Have the dark liquid flow of the ripe muscadine.”

His responsive spirit absorbed the soft, bland atmosphere of his own sunny region.

BASIL MANLY, SR.

Dr. Basil Manly was equally a patriot, an educator, and a preacher. He had the prescience and sagacity of a statesman, and devoted much thought to all matters that affected the state or nation, and as occasion would require he would not hesitate to express his views. With him the question was one of principle and not one of reserved silence because of his position as an educator and minister. Though exceedingly reserved and modest, there were reserved powers of aggressiveness in his nature which were withheld, subject to the demand of principle. He was not of the maudlin type who sought refuge in his ministry as a means of escape from duty as a citizen and patriot. His views were always stated with such calmness, wisdom and moderation as to carry force.

There were the balance and poise of elements in his constitution that made him the successful college president that he was. His judgment was never obscured by the mist of sudden passion, nor was he betrayed into warmth of feeling that occasioned subsequent regret. A man of like passions with others, his sterner expressions were held in restraint under the mastery of a granite will, and were brought into action only as occasion required. Firm as a mountain on its base, he was unmoved by suddenness of impulse or storm of passion. His equable temper made him accessible to all, but in his conduct he was swayed alone by principle. This left clear his sense of discrimination and unobscured his judgment, which was never hastily expended, and not till he was convinced of a cause.

Those superior traits gave to Dr. Manly a power with men, young and old, and his influence was as wide as he was known. A knowledge of these facts led to his being called, in 1837, to the presidency of the University of Alabama. At the time of his election he was the pastor of an important church in Charleston, S. C.

Dr. Manly was one of a distinguished family in North Carolina. Two brothers of his were men of eminence, one of whom was Judge Mathias E. Manly, of the old North state, while the other, Governor Charles Manly, was

the chief executive of North Carolina. The family has been distinguished in the annals of the South for a number of generations.

Without demonstration, Dr. Manly took charge of the University of Alabama, and with the beginning of his official incumbency began a new era of prosperity in the history of the institution. For eighteen years he presided over the institution, which never had eighteen brighter years in its history. He was quietly identified with all the interests of the state, and soon came to be known and prized as one of its foremost citizens.

When Dr. Manly assumed control, the institution was still young, and was in great need of increased equipment, but under his wise management the needed facilities came, and within a few years he brought it to a pitch of prominence that gave it wide reputation throughout the country. Indeed no state institution in the South had a wider reputation, from 1837 till the outbreak of the Civil War, than the University of Alabama. Young men from other states, attracted by its standard of scholarship, sought its classical halls for superior instruction. During the presidency of Dr. Manly thousands of young men throughout the state were fitted for life's rough encounters.

Dr. Manly not only possessed the high qualities already named, but he had the power of impressing them on the rising youth that came under his direction and discipline. His undoubted sincerity, as transparent as it appeared, his genuine manliness, the quiet balance of genuine qualities of worth, all of which were sobered and tempered by a piety which no one questioned, and all admired, gave him an opportunity for the wield of an influence which was used to the greatest advantage.

While the superiority of his intellectuality excited admiration, the gentleness of his religious spirit begot the most respectful reverence. A superior preacher, he was in constant demand in this and in other states, to occupy pulpits on extraordinary occasions, all of which served to reflect the distinguished institution of which he was the head.

One remarkable fact about Dr. Manly was that of his extensiveness and variety of scholarship. His learning was varied, rather than profound. Not that he was a mere smatterer, for no one despised more the pedantic and superficial than he, but his research in different and distant fields of thought was remarkable. He had devoted unusual attention on all subjects then

taught in the most advanced schools of learning, and was thereby enabled to assist students in the various departments by timely advice, not only, but was able to assist intelligently the direction of the several departments in the great institution over which he presided. His fame as a college president widened to the utmost limits of the states of the South, and even beyond.

Wherever young men touched Dr. Manly, no matter how, whether in the classroom, by social contact, by discipline, or by hearing him preach or lecture, there was resultant benefit. His vast range of information imparted in simplicity and yet always with dignity; his unusual method of reaching young men, not by any fixed standard, but by means suggested at the particular time, and his ability without effort to impart the influence needed to guide and direct, never failed of impressing those under his care.

The uniformity of his bearing was among the first impressions made on the youth under his guidance. His manner was always the same. This was true even of his manner of address. He was chaste without being gaudy; clear without the slightest effort; earnest and zealous without exuberance, and pathetic and sympathetic without cant. These gave him a grip on young men.

No one caught him off his guard. There was always the possession of a self collection that produced ease in his presence and that left an impression for good.

The influence of a spirit like that at the head of an institution of learning in a great state is incalculable. The permanent good wrought by a man like this through successive generations is beyond calculation.

ALEXANDER BOWIE

The Bowie family is of Scotch origin. In a large volume devoted to the family history, the genealogists of the name have traced the lineage backward even to the days of the old Vikings. Certain traits of worth and of distinction have characterized the stock through the centuries. Solidity of character, firmness, robust conviction, courage, and fidelity of purpose are among the traits most conspicuous.

A notable instance of these traits is given here because of the familiarity of the public with the subject named. The heroism of Col. James Bowie on the occasion of the fall of the Alamo is familiar to every boy and girl who is conversant of American history. Prostrated by typhoid fever in the ill-starred fortress at San Antonio, he was one of the devoted 185 who withstood the siege of Santa Anna at the head of an army variously estimated to have numbered from 2,000 to 4,000. When the commander, Colonel Travis, saw the inevitable fate of the brave little garrison he called his men about him, plainly presented the coming doom, and, after saying he was determined to die at his post, he drew a line across the floor and asked that all who would remain with him should come within the boundary thus marked. If others desired to cut their way through or otherwise seek to escape, they were at liberty to do so.

With emaciated frame, Colonel Bowie, now rapidly approaching death, which came a few hours before the fall, unable to stand, ordered his men to bear his sick couch within the mark drawn by the commander. This is indicative of the sturdy Scotch pluck and the firmness of character of those bearing the name.

It will be seen from the present sketch that Chancellor Alexander Bowie possessed to an eminent degree these conspicuous traits. He was a distinguished citizen of Alabama for a period of thirty-one years. His native place was Abbeville, S. C., where he was born December 14, 1789. His father was a major in Washington's army, and his mother, a Miss Reid, from

which family, on the maternal side, came Honorable Whitelaw Reid, of New York.

Choosing the bar as a profession, Mr. Bowie was a successful barrister at Abbeville, S. C., for a period of years. His relations with John C. Calhoun were the most intimate, and letters received by Mr. Bowie from Mr. Calhoun are still preserved among the heirlooms of the family. They illustrate the cordiality and freedom of the relations between these two eminent men.

During the war of 1812 Mr. Bowie was the colonel of the eighth regiment of South Carolina militia, and was later commander of the Abbeville nullifiers. For a number of terms he served as a legislator in his native state, and removed to Talladega, Ala., in 1835. Four years later, he was elected by the Alabama legislature to the chancellorship of the northern division, which position he held with great distinction for a period of six years.

In response to the interest shown by him in the general affairs of the state of his adoption, and in recognition of his ability, he was summoned to a number of important stations, among which may be mentioned that of the choice of himself as the first president of the state historical society. In further recognition of his scholarship and profound interest in education, he was chosen one of the trustees of the state university, and was one of the foremost friends of that institution in the days when it was among the leading colleges of the South.

Politically, Chancellor Bowie was a Democrat of the democrats, a firm adherent to the Calhoun school, and therefore a staunch believer in the principle of states' rights. His voice, pen, and influence were lent to that cause in all the struggles through which Alabama passed from the time of his removal to the state till his death. Never vehement or passionate of utterance, he always wrote and spoke with a calmness and deliberation that bore conviction. He took to his public functions the same solidity of influential force and the self-mastery which won him quiet distinction in the ordinary walks of life. The impression made by him was invariable, whether as a neighbor, a private Christian, a political advocate, or a representative of the judiciary, that of stable conviction, calm determination, and withal a gentleness of spirit that instinctively shrank from producing the

slightest pain to any one. His silent life reinforced his public acts and declarations, and gave to him an unusual power with men of every grade and degree. That which he did and said was of a character that took hold on the deeper conviction of men, rather than on surface sentiment. A strong and vigorous speaker, he was frequently before the public, and his utterances gained additional weight from the fact that men knew that every word that fell from his lips sprang from a source of profound sincerity and from a conviction as deep as his soul. His scrupulosity of conscience was proverbial, and men listened to Chancellor Bowie not merely for entertainment, for he was an attractive speaker, but they listened believing. Back of his utterances lay a life of unvarying integrity derived from a spirit of piety, which none dared gainsay, and the lineaments of his classic face bore a conviction which was itself convincing. When the life of a man is so pitched that the most obstinate opponent is made to respect his views, such a man is an engine of power in public life. This fairly represents Chancellor Bowie in his multitudinous relations, private and public, and such a model of manhood was he to the young men of his time. This reputation he steadfastly maintained through more than three decades in Alabama, for a good that transcends the pale of estimation not only to his contemporaries, but which projects itself into the years of the future.

One principle alone dominated him in all his conduct and that was the settlement of each question or cause on the basis of right. This was so clearly demonstrated throughout his life and career that any decision or opinion from the bench was unquestioned, and so profoundly did he impress the public with this fact that he came to be called “the great chancellor.” All his wealth of learning, his garnered wisdom, and his rich experience were laid on the altar of Right. Thus lived Chancellor Bowie and thus he died, leaving a heritage of illustrious integrity to those who were to come after him. The career of an eminent citizen like this is an abiding benediction to any state. Chancellor Bowie passed to his reward on December 30, 1866, at the advanced age of seventy-seven years.

JOHN J. ORMOND

The name of Judge John J. Ormond is inseparable from the judicial history of Alabama. He was recognized on all hands as a jurist of superior ability. The mold of his mind was singularly judicial, and his career as a public servant shines through his jurisprudential service.

A native of England, Judge Ormond was brought by his father to America while yet an infant, his parents making their home first at Charlottesville, Va. Left an orphan in early youth, Judge Ormond's future course was dependent on the kindness of others, but he was liberally provided for, and means were found for enabling the youth to obtain more than an ordinary education.

After his removal to Alabama, we find him first as a state senator, to which position he was chosen in the early part of his professional career. In 1837 he was chosen as one of the justices of the supreme bench. Here he found a most congenial orbit, for his tastes were aversive to the rough and tumble of political strife. In the seclusion of a law library among the musty tomes of legal lore, or a seat on the bench of the court, met the gratification of this giant jurist.

His studious habits served to impart a reservation of disposition, though he was free from coldness and was not wanting in the elements of companionship. His was the thoughtfulness of the student and the quietness of the scholar. A voracious reader, he reveled in the masterpieces of literature, the results of his close study of which showing themselves in the beauty and charm of his style, both of which found expression in his decision and opinions. Without apparent effort, his sentences have a limpid flow in well-balanced form, while the purity and elegance of his diction fascinates. The dignity of his diction is an inspiration, while his thought, like the sun, shines, by its own light.

For twelve years Judge Ormond occupied a seat on the supreme bench, an honor and an ornament. His decisions were the profoundest, though they were garbed in the striking simplicity of our tongue. His long retention on

the bench is an evidence of the general confidence in his integrity of character. This fact becomes more pronounced when it is recalled that Judge Ormond was a whig in politics, yet such was the appreciation of his worth both as a man and as a jurist, that he failed not to command the esteem and votes of the dominant democratic party. By dint of merit alone he compelled not only its recognition but its appreciation. No one ever suspected Judge Ormond of taking an unfair advantage as a judicial officer or as a man. The sincerity of his political convictions were conceded, and all who knew him never thought of him as a partisan. With him political creed was one thing, and judicial scrupulosity another.

Writing of Judge Ormond's death, a contemporary says: "He occupies a page in the Alabama law reports that will pass down to future times, and be cited as authority in the adjudication of human rights as long as the common law maintains a footing among civilized nations." Though small and thin with a visage somewhat drawn, his bearing was characterized by a perpetual dignity which elicited the esteem of all.

There was a democratic simplicity in his intercourse with others which was perennially refreshing. An utter absence of self-consciousness marked his bearing, though he was universally recognized as one unsurpassed in his judgment of the law, as well as a ripe and finished scholar. So far from being ostentatious, Judge Ormond was disposed to shyness and taciturnity. His conversation was marked by the finished diction of which he was a complete master. Besides all this, he was self-contained and collected, never allowing himself to be betrayed into undue warmth of expression, no matter what the provocation was. He equalled the conception of the proverb, a soft answer turneth away wrath. The combination of qualities so rare, was the occasion of much comment among the lawyers of the time. His opinions did not escape challenge, nor did his position always go without criticism.

The character of the man as well as the clearness of his judicial judgment may be seen from a single extract from a decision written by himself in a celebrated case which came before the court during his incumbency of the supreme bench. In that learned decision he says: "We have been admonished by the plaintiff in error, that, notwithstanding the state is the party interested as defendant, on this record, the true interest of the people will be promoted by declaring the contract void. It required no admonition

to impress us with the conviction that the high trust reposed in us by the people imperiously demanded of us to preserve pure the fountains of justice. Nor will we profess an insensibility which we do not feel to the approbation of the enlightened and virtuous; although all experience shows that such is not always the meed of upright conduct. Our station imposes on us the necessity of deciding the cases brought before us according to our opinion of the law; it is a duty which we cannot avoid. If left to our choice, it is not probable we would have selected this question for adjudication; and as, in our judgment, the law is for the state, such must be our decision, be the consequences to us what they may, and although the judgment may subject us to the imputation of the bias which the argument of the counsel supposes.”

This extract affords a fair index to the character of the man, while it equally furnishes a specimen of the lucidity of his expression. There was never the absence of dignity from his expression, no matter what the occasion. He was not without sensitiveness, but it was not the sensitiveness of inflammation. When necessary, he could wither with an overmastering diction, but it was always with the preservation of a dignity which could not fail of success. The last service rendered by Judge Ormond was that of his association with Messrs. Clay and Bagby in the codification of the statutes of the state of Alabama.

ALBERT J. PICKETT

Alabama's historian, Albert J. Pickett, was a native of North Carolina, and removed to Alabama about one year before it was made a state. In his early years he mingled much with the Indians, learned their character and disposition, and became profoundly interested in their destiny.

The first purpose in life of Mr. Pickett was to fit himself for the bar, and he entered the office of an elder brother, William D. Pickett, to fit himself for that profession, but on discovering that he had no aptitude for the law he gave it up and entered on planting, to which he devoted his life.

His interest in the Indians led him into an investigation of their history, and this, in turn, to the events which had occurred in connection with the invasion of their primitive domains by the whites. The investigation proved a fascination and led to his preparation of the "History of Alabama and incidentally of Georgia and Mississippi from the earliest period."

Considering the paucity of material and the difficulty of obtaining it, the undertaking was a colossal one, but Mr. Pickett gave himself to it with a zeal worthy the enterprise, traveled much, wrote many letters, and spent a large sum of money in the interest of the preparation of the history. For years together, he was patiently and assiduously engaged in the accumulation of data, the sifting of facts, and the preparation of the two volumes. The most painstaking care was exercised with respect to accuracy of statement, and this made the undertaking a most plodding one. But in 1851 the author was enabled to issue the two volumes in neat and attractive form.

So comprehensive was the work, so minute in detail, and so careful were the citations that on its appearance it was greeted with great favor not alone in Alabama, but elsewhere. Had the conditions of authorship been as favorable as they now are, the work would doubtless have been more happily arranged, but as it is, it is a monument of labor, skill, industry and fidelity. It was an unusual occurrence that the history should have been

favorably mentioned in a message to the legislature by Governor Collier and with such favor.

The style of the book is simple and easy, the statement of fact clear and devoid of ornament or speculation, and throughout it is entirely free of bias. The obvious intention of the author was to state fact as he saw it, nor was a statement made by him that was not supported by undisputed fact. No book was ever more scrupulously written as is shown by the care with which each statement is made.

While in the light of subsequent events the unity of the work is somewhat impaired and disjointed, still taken altogether, and the conditions attending its preparation, it is a marvelous accomplishment. Pickett provided a mine of fact into which all future historians of Alabama can dig, certainly with respect to the history antedating the occupation of Alabama by the whites.

The history extends no further than to the period of the attainment of statehood of Alabama, and yet the author was able to bring it up to the close of the middle of the nineteenth century. It is unfortunate that this was not done, but he was averse to deal with the political aspects presented by the different periods of the state's history. But in doing that which he accomplished he has furnished a basis for all future historians. That Mr. Pickett should have done so much, and done it so well, makes him worthy of the perpetual gratitude of the people of Alabama.

A gentleman of wide and varied information, his mind was a compendium of valuable stores of knowledge. He was an animated converser, fluent and entertaining, and a most exemplary citizen. His popularity, greatly enhanced by his valuable history, his universally recognized integrity of character, and his unquestioned ability, led to the mention of his name in 1853 for the governorship of Alabama.

But when the matter was brought with some degree of seriousness to his attention, he frankly declined to be considered for this exalted station, saying that he was engaged in the preparation of another work of greater comprehensiveness than that of the History of Alabama, which he indicated as the History of the Southwest. Unfortunately he died before the completion of the proposed work and it was never published. Alabama sustained a great loss when Colonel Pickett died at the early age of forty-

eight. Besides his history, he wrote much for the press and always with entertainment and profit.

In 1859 General C. M. Jackson wrote a biographical sketch of Colonel Albert J. Pickett, which sketch was embodied in pamphlet form. In one place General Jackson says of him: "He outlived his entire family—father, mother, brother and sister—and his offspring now constitutes a new generation, without a single living link to connect it with a former one. He left a devoted wife, several affectionate children, and many friends to deplore his untimely death; besides the proper appreciation by the public of what may be deemed a great calamity—that of the loss of one who had so largely contributed to the general welfare. His remains were followed by a large concourse of relatives and friends and interred in the burial ground at the old family residence in Autauga County, which Colonel Pickett had inherited—where are also the graves of father, mother and other members of this family."

Unselfishly he lived and labored, and peacefully he died—one of the most useful and distinguished citizens of the state.

HENRY TUTWILER

Of an entirely different mold from any of those already noted in these sketches was Henry Tutwiler, LL.D., Alabama's first great and distinguished educator. Reared in Virginia, Dr. Tutwiler was among the first great graduates of the famous university of that state, bearing away the highest degree which could be conferred by that eminent institution, that of Master of Arts. Possessing a readily receptive and capacious mind, Dr. Tutwiler was the peer in point of scholarship of any man in the South when he issued from the university of Virginia. He was the first to receive the degree of Master of Arts from that eminent school.

His equipment of scholarship would have fitted him for any chair in any American school of learning, but he conceived the idea of founding a model school of his own where he might put into execution his ideas of education. This was not done at once on graduation, but toward this he was moving in the consummation of his plans.

Dr. Tutwiler became to Alabama that which Dr. Arnold of the famous Rugby school was to England. He was not only a typical gentleman of the old school of the South, but a ripe scholar, a teacher of rare ability, and a model of manhood to youth. Simple and unpretentious in manner and in life, he was a pattern in character to the young men who came under his instruction. His culture was unsurpassed, his scholarship profound and comprehensive, and his character throughout life vastly above reproach. Few men have left a profounder impression on his students than Dr. Henry Tutwiler. There was in his bearing the utter absence of the consciousness of his greatness, while there was always the demonstration of the gentleman of a pure democracy. Simple and easy of manner, affable, gentle and readily communicative, he was easily adjustable to all circles without the slightest hint of constraint, and by a contagious touch, indefinable but effectual, he made all others at ease in his presence.

After his graduation from the University of Virginia he remained for two years at the institution in the pursuit of special studies, after which he

established a high school in the neighborhood of Charlottesville, where he taught for a time. He was induced to remove to Alabama by being offered the chair of ancient languages in the university of the state on the establishment of that institution in 1831. This position he occupied for six years. He was induced from this position to accept the chair of mathematics and philosophy in Marion college in Perry County, and two years later went to the chair of mathematics and chemistry in LaGrange college, where he taught for eight years more.

But a subordinate position was ill suited to one of capabilities so varied, and in 1847 he left LaGrange and founded a private school at Green Springs in this state, where he could put into execution a long cherished desire to fit young men for the rough encounters of the world, not only by training the mind, but by molding and directing the character.

No one was better fitted for a position like this than Dr. Tutwiler. Himself a ripe scholar and a gentleman of superior culture, backed by a natural impressiveness, his sway of influence was both salutary and elevating. In a quiet retreat, far from the madding crowd and the din and tumult of a busy world, with nothing to detract and all to concentrate and stimulate, he was a character-builder as well as a developer of the brain.

The experience of former years as a teacher brought to his work on this independent scale served Dr. Tutwiler admirably. He had learned the defectiveness of a system in which the raw youth with total unpreparedness would often stride over much that was fundamental and leave behind him breaches never to be filled, possibly, in his eager outreach for a diploma which when gotten could not be read by the possessor. Every observant educator is impressed by the divers irregularities with which most young men enter college. Symmetry and uniformity are lacking, and often the defects in fundamental work are too far passed to be overcome and corrected in the higher departments for which the youth has been unwisely persuaded that he is prepared. Happily for these later times, this has been corrected by an admirable public school system with its trained instructors, but this was not true in the early days when Dr. Tutwiler opened his school at Green Springs.

To establish a school of logical graduation with every department under his direct supervision, in which school the student would be thoroughly grounded from the elementary upward, so as to have a more solid basis for building, and an idea of correctness and symmetry in all affairs, was the aim of this skilled educator. Schools of this particular character had dotted the South ever since the years of recuperation following the Revolution, and fortunately for the country that this was so.

In 1850 there were in eleven of the southern states at least 2,000 academies of varying grades, with more than 3,200 instructors, and more than 70,000 pupils. On the highest level of these valuable schools of learning were the Concord academy and the Hanover academy in Virginia; Caldwell's and Bingham's schools in North Carolina; Mount Zion and Waddell's school in South Carolina; the academy of Richmond County and Sunbury academy in Georgia; Green Springs school in Alabama, and Elizabeth academy in Mississippi. All these had become noted in the educational system of the South by the middle of the nineteenth century. Among them none was more famous than the one presided over by Dr. Tutwiler.

A certificate from a school like this and from so skilled an expert, meant much to a youth as he entered a school of more advanced learning to prosecute his final studies. The assurance of a firm footing and familiarity with subjects which led logically to more advanced studies, gave to a student the thoroughness of equipment which would save him from the haphazard to which he would be otherwise exposed.

From the walls of the Green Springs school went forth young men by the hundreds with initial equipment which not only made the mastery of a college course more easy and pleasant, but which served to lift them into future prominence. Passing from under the tutelage of Dr. Tutwiler and bearing a certificate with his name on it, was a guarantee worth the having by any young man. From this rural retreat this skilled man of letters sent into the swelling ranks of usefulness in this and adjoining states, hundreds of young men who have helped to make their commonwealths resplendent. It was not a demonstrative work, in the sense of showiness, but it was demonstrative as it found expression in richness of result and in exalted citizenship. Thus labored for many years this sage teacher and mellow

scholar, and far more than can be computed is Alabama indebted to Henry Tutwiler.

DANIEL PRATT

Genuine worth is frequently overlooked because it does not appear in the glare and rush of demonstration, and because it may modestly shrink from the spectacular. The solid distinction reached by many is due to conditions which lie out of sight and without which many who reach positions of prominence would not have been heard of beyond their native horizons.

Impelled by ambition, many see and seize the opportune moment presented, fall into the current created by others, and are borne to eminence. Lying back of that which the world esteems greatness are causes created of which many avail themselves to ride to popular spectacularity, and yet these may be only the superficial and surface effects.

In what are usually esteemed the humbler walks of life are oftentimes giants who set in motion the tides of influence which make great communities and even states, and yet whose worthy claims are never heralded to the world as are the deeds of those who reach the popular heights toward which the eyes of the public are accustomed to turn.

To this worthy class in the quieter walks of life belong numbers of the best men of every generation whose vocations are such as to hide them from the popular view, and yet without whom the greatness and the prosperity of a commonwealth could not be.

Belonging to this class was Daniel Pratt, a native of New Hampshire, a carpenter by trade, and a man in whose capacious brain were great enterprises. Utterly without pretention, he was at first a common laborer, working at his trade in different cities in Georgia for a period of about fifteen years, in the early part of the century.

At that time the question of cotton as a staple had assumed new proportions in view of the invention of the cotton gin by Eli Whitney about fifty years previously, and in view of the capabilities of the soils of the South to produce the staple. The struggles of Whitney to maintain his rights as the inventor of the gin had been prolonged through a protracted period of years,

leaving him barren honor alone, but his suggestion had found its way to the inventive genius and mechanical aptitude of others, among whom was Daniel Pratt. He removed to Montgomery in 1833, for the purpose of establishing a gin factory in that town. At that time the manufacture of cotton gins was quite limited, but the sagacious carpenter saw in the future the possibility of a means of vast commerce in the manufacture of machines that would reduce the indispensable staple to marketable conditions, and while conditions in Alabama were at that time still new, Pratt discerned an opportunity both for the gin and the production of cotton.

Lands were of fabulous fertility; population was pouring southward; the advocacy of slavery had been hushed by the prospective productiveness of southern lands, and Alabama was destined to become the center of an expansive region for the production of cotton.

At that time capital was not so abundant, cotton was not so pregnant a factor in commerce, and the manufacture of gins was rather a novelty among the industries. But this sturdy, quiet man of business was controlled by the conditions then prevailing as he was by the possibilities of the future. Being a pioneer in an important branch of industry meant much, and he had the pluck and faith to venture. Pratt believed in himself and no man succeeds who does not; he believed in the future of the country, and was resolved to begin the manufacture of gins. He was not encouraged to locate at Montgomery, as he would have been glad to do, and most fortunate for that city would it have been, could he have done so. Mr. Pratt went to Autauga County, and on the plantation of General Elmore manufactured a few gins. This was only a tentative venture and one preparatory for greater things toward which he was gradually moving.

On Autauga Creek, near McNeil's mill, there was abundant water power with which to operate his primitive machinery, and leasing the use of this power for a nominal sum, he was enabled finally to begin the manufacture of gins. Both faith and grit were needed to meet the demand of the occasion, but these Mr. Pratt had. Guided by the same sagacity which had led him thus far, he was finally in condition to purchase land farther up on Autauga Creek, where he built his first factory and founded a town which he named Prattville.

The manufacture of gins in the South and the production of cotton acted and reacted on each other with wonderful effect. Mr. Pratt was compelled to enlarge his facilities for the manufacture of gins, so that by 1860 he was building not less than 1,500 each year. The Pratt gin became famous throughout the South, and to the beginning of the Civil War the sales continued to grow. From that little industrial center in the woods of Autauga were going forth the means of energy and stimulation which were gradually transforming the agricultural conditions of the entire South.

Through the years this quiet but enterprising genius was prosecuting his work unseen and largely unknown for a long time, save by means of his gin, and yet his quiet retreat was a center from which there was emanating motive power for the promotion of prosperity.

Mr. Pratt was Alabama's first great captain of industry. He was not a dreamer, but a seer. He projected his plans into the future, wisely measured their scope, and carefully moved to their execution. He had a mission and wisely fulfilled it. He probed the future with the eye of an industrial prophet, and his interests expanding with the growth of demand, he himself was being made while he was making. Action always reacts. While the man makes the fortune, the fortune makes the man. While through more than a generation others through the flare of publicity enjoyed the plaudits of the multitude and of the press, Daniel Pratt pursued the even tenor of his way, building substantially, lastingly. While others were in the current he was on the outer edge creating a current of his own.

On Autauga Creek he has built his own monument in a mighty industry and in a little city which is now sought by the world's current of commerce.

MICHAEL TUOMEY

Alabama's original state geologist was Professor Michael Tuomey, whose service was invaluable, and therefore deserves permanent recognition. Professor Tuomey was a native of Cork, Ireland, where he was born on St. Michael's day, 1805.

His scholastic training in youth seems to have been largely private, though it is certain that he did attend one school outside his home. To his grandmother was this distinguished man indebted for the first scientific taste inculcated, for this remarkable woman led the promising grandson to study with diligence and with accuracy the science of botany, with which study it seems there was ever afterward associated, on the part of Mr. Tuomey, a cherished memory by a grateful grandson for timely inspiration given in his boyhood days on the Emerald Isle. Along with this was borne the sacred recollection of a fond mother for the careful cultivation of the beautiful as displayed in the dreamy regions of his native isle, and in the magnificent landscapes which there abound. Throughout his life Professor Tuomey bore the impress of the culture imbibed in those early days, and the earnestness of the instruction given by loved ones was a perpetual propelling force in all his subsequent studies and investigations.

His precocity was evidently taken advantage of by these affectionate instructors, for at the early age of seventeen we find him associated with a friend in teaching at Yorkshire, England. The young genius, for such he was, girded by the panoply of a sacred association and thorough drill of mind, marked out for himself a course of scientific study into which his natural bent bore him, and his early training, as well.

We are left largely to conjecture as to the time of his emigration to America, but it must have been in the early twenties. A youthful immigrant, he appears in Philadelphia, a stranger among strangers, scarcely knowing whither to turn, till he buys a piece of ground to till, then ventures in connection with a partner on the purchase of an estate, finds agriculture ill-suited to his taste and ill-productive of results, disposes of his interest, and

wends his way southward, often trudging weary and footsore for days together. He reaches the eastern shore of Virginia, and with a knack of friend-making and possessing a charming cultured manner, he procures a rural school, rallies about him a host of friends, later becomes a private tutor in the home of John H. Dennis, of Maryland, studying while he taught, but always winning the hearts of others, and supremely that of Miss Sarah E. Handy, a kinswoman of his private patron, which gifted young woman became Mrs. Tuomey.

His innate craving for scientific knowledge and his love of nature found slight chance for cultivation at a time when institutions of science in America were scarce, but he sought the best within reach by a course in the Rennselaer Institute at Troy, N. Y., whence he was graduated and became a civil engineer in the construction of one of the early railroads in North Carolina. The financial crash of '37 imposed a cessation on the railroad project, and with ready resourcefulness Mr. Tuomey betook himself again to teaching, by occupying a chair of mathematics and the natural sciences in a school presided over by Miss Mercer, in Loudoun County, Virginia.

Responding to an opportunity afforded at Petersburg, Va., to establish a seminary of his own, he and his gifted wife entered on an enterprise there. This opened a wide vista to the pent-up zeal of Professor Tuomey for the cultivation and enlargement of his scientific gifts. In Petersburg was abundantly vindicated the principle in the person of this indomitable young Hibernian, that success finally rewards the patient, plucky, and resourceful. It became his honor at Petersburg to entertain that eminent English geologist, Sir Charles Lyell, on the occasion of both his visits to America, and by correspondence and otherwise he came into touch of more or less intimacy with the learned scientists of the American continent, as well as with those abroad. Among those with whom he was brought by reason of scientific congeniality into touch were Agassiz, James Hall, state geologist of New York, Professor Bache, Professor Dana, Dr. Gibbs, Edmund Ruffin, and Professor Holmes. It was a glorious company of savants in those early days of scientific militancy when men of eminence had to confront an inertia of stout popular opposition.

Impelled by a consuming zeal for scientific research and guided by his own keen judgment, while availing himself of all possible authoritative sources

of information, Professor Tuomey was meanwhile assiduous in study and diligent in the collection of rare specimens of geology, mineralogy and paleontology. His labors anon took permanent and valuable shape in scientific publications, and after years of labor in other states which cannot be mentioned here in detail, he was called in the heyday of his career, in 1847, to the professorship of geology, mineralogy, and agricultural chemistry in the Alabama university. Lest in a comprehensive sphere like this, large enough for several men, his leisure time might run to waste, he had imposed additionally the onerous task of state geologist of Alabama, in 1848, and lest his extravagance in the use of a narrow stipend might betray him into undue lengths he was given no compensation for this additional labor. For six years he labored for the state under conditions like these, when the legislature came to his rescue and appropriated \$10,000 for a geological survey. This led him to relinquish his chair temporarily in the university in order to devote his energies to the field of survey, which he continued till the exhaustion of the fund, when he returned to his chair in the university.

It was Professor Tuomey who first awoke interest in geological science in Alabama, and he it was who first disclosed the mineral wealth of the state. In his pioneer work he fixed the boundaries of the different formations in Alabama, embodying his charts, maps and reports in permanent shape, so that after the lapse of more than half a century and in the blaze of the scientific investigations of later years, his work remains as a standard of authority.

It would be an occasion of much delight to speak at length of Professor Tuomey, the man, but the censorship of brevity must in this connection be respected. His dignity, his modesty, as an adjunct to his superior culture, his width of information, his charming power of conversation, his gift of instruction, illumined by the brilliancy of his native wit, his courtesy toward the humblest—all these and more he had to a degree the most fascinating. The life and labor of a giant like this would be worthy of the worthiest pen, and in a sketch such as this is, one gleans but an inkling of the man that Professor Michael Tuomey was. It was an honor to Alabama to have his name numbered in the chronicles of her worthiest sons. The contribution made by him to the state is inestimable. Professor Tuomey died on March 30, 1857.

In the ripeness of full-orbed manhood and at a time when men usually reach the point of greatest usefulness, at the age of fifty-two, Professor Tuomey was struck down by the hand of death.

“No man is lord of anything,
Though in and of him there is much consisting,
Till he communicate his part to others;
Nor doth he of himself know them for aught,
Till he behold them formed in the applause
Where they’re extended, which like an arch, reverberates
The voice again; or, like a gate of steel,
Fronting the sun, receives and renders back
His figure and his heat.”

To have rescued from comparative forgetfulness the career of one so great—a career obscured by the smoke of war which interposed to check the results of labors so valuably and eminently rendered, is a task for the privilege of which any might feel profoundly grateful.

CHARLES C. LANGDON

Coming from New England to Alabama in the bud of manhood, Mr. Langdon gradually rose from a clerkship in a country store to a rank of distinction in his adopted state. The conditions of his early life forbade the acquisition of a thorough education, as on his father's Connecticut farm he had to perform the duties of a common laborer, and avail himself of what advantages were afforded in a winter school in his native New England. These conditions did not prevent, however, an early ambition to attain to something in life worth while, and though twice defeated for the legislature in Alabama, he was undaunted, but the rather encouraged, because in each instance he was defeated by a scratch. In his first defeat he lost the object of his aspiration by just eleven votes, and in the second race he was defeated by fourteen.

Mr. Langdon's early life was characterized by a series of misfortunes, but the grit with which he would each time face afresh the future, indicated the texture of his character. By means of rigid economy he succeeded in the accumulation of some capital, with which he entered into the cotton commission business in Mobile, in connection with the Honorable Martin A. Lee, of Perry County, but his business was engulfed in the financial disaster of 1836-7.

In the first whig convention ever held in Alabama he became the nominee of that party for the legislature, and while again sustaining defeat he had conducted the campaign with ability so signal that his party purchased The Mobile Advertiser as its organ, and placed in control of it Mr. Langdon. His facile pen won him fresh distinction, and in two successive terms he was chosen for the legislature from Mobile County, first in 1839 and again in 1846.

For a period of eight years he devoted himself to editorial work, and in 1848 was elected mayor of Mobile, to which position he was annually elected for a period of seven years, save one. Meanwhile he continued the

chief exponent of the whig party for the state, and for the success attained by that party indebtedness was due Mr. Langdon.

He was the pioneer of scientific horticulture and agriculture in the state. Defeated for Congress in 1851, Mr. Langdon soon afterward sold his journal and retired to a farm in the western part of Mobile County to demonstrate his method of scientific farming, which, at that time, was a subject of ridicule. He was called from his seclusion by the stirring political scenes of 1860, and appeared on the hustings as an ardent advocate of Bell and Everett. Though a stout opponent of secession, when it came and brought with it its consequences he was just as ardent in his espousal of the cause of the South as was any. Both by pen and by word of mouth he supported the cause throughout, and came to be one of the most popular citizens of Mobile and one of the most conspicuous public men in the state.

He was chosen to represent the county of Mobile in the legislature in 1861, and in a trying period rendered most valuable service. In 1865 he was chosen to represent the Mobile district in Congress, but he was denied his seat by the party in power, and was shortly afterward disfranchised. Under these conditions he retired to his country seat near Citronelle, where he continued to demonstrate in a scientific way the results of horticulture and agriculture. In a period of rehabilitation in the South Mr. Langdon made frequent exhibition of the results of his efforts, and with patriotic zeal inspired the public with confidence in the capabilities and productiveness of the soils in a climate so bland, and insisted that if properly tilled, the fields of the South would make her more independent than she had ever been. In 1877 Colonel Langdon became a candidate for the governorship against Honorable Rufus W. Cobb, the latter of whom was chosen. It was remarkable the difference between the appearances of the two candidates before the state convention of nomination. Mr. Cobb wore a cheap colored suit of clothes, in illustration of his ardent democracy, while Colonel Langdon was arrayed in a beautiful suit of black cloth, with a Prince Albert coat, all fresh and costly from the tailor's hands. The one immediately following the other in speeches before the body, presented a contrast of appearance at once striking and remarkable. The scene thus presented became a subject of general comment among the members of the convention.

The frequent contributions of Colonel Langdon to the press relative to horticultural and agricultural processes and results had much to do, after the close of the war, with the reawakening of the spirit which has eventuated in the abandonment of old and worn methods of cultivation, and in the adoption of new ones, which have brought untold wealth to the state.

The wreck of our industrial system and the necessity of economy by contracting the old time plantation into a modern farm under intensive processes, led Colonel Langdon among the first to recognize the situation toward which we were tending, and he advocated a shift of accommodation to meet the inevitable. Though laughed at at first as a mere dreamer, the states of the South have gradually come to the methods advocated by him, and have emphasized them by the establishment of schools of agriculture to do just that which was once a matter of ridicule.

During a period of agricultural transition from the old methods to those of the new, Colonel Langdon was a popular contributor to the columns of the Mobile Register, and in a period when men were groping for a more substantial footing in things agricultural, Colonel Langdon was among the foremost to inspire confidence and hopefulness for the future. With the incisive penetration of a seer he forecast the return of a great prosperity, when there should come a readjustment to prevailing conditions. His was the vision of the genuine optimist, and the service then rendered, though not on the whole demonstrative, was conducive to the welfare of the state.

The quiet courage of Colonel Langdon in facing difficulties was never impaired by temporary defeat, nor was his ardor diminished by momentary failure. He supported his convictions with manly pluck, and invariably preserved a calmness of demeanor and an unchanged attitude of respect for his opponents. His career throughout was one of sobriety and usefulness. Men might differ with Colonel Langdon, but he compelled respect by his sincerity of purpose and uprightness of life, private and public, even on the part of his most vehement opponents. He was a practical patriot, a fact which was demonstrated by a long life of usefulness.

CHARLES T. POLLARD

One of the first to be touched by the new industrial energy of railroads in Alabama was Colonel Charles T. Pollard. He came to Alabama about 1840, and located at Montgomery, where he exhibited high qualities as a commercial genius and by his uniform courtesy came to impress the people of the capital city not only, but leading men elsewhere in the great world of business. He established a wide compass of business relations and the integrity of his character was such that he commanded financial confidence in the highest circles. Railroading was a new feature and the management of enterprises necessarily colossal, both with respect to executive ability and financial provision, and it therefore required the highest qualities of skill and sagacity. Few men of that type were to be found in those early days, and enterprises so vast, had by their very nature, to develop them. Men frequently expand under demanding conditions, and when qualified with latent endowments rise with the constant pressure of demand to the utmost limit of capability.

There can be little doubt that the decline in the statesmanship of the South is largely due to the drain which has been made on men of great capability to occupy positions in the expanding world of commerce. Broad-brained, wide-visioned and many-sided men used to find their way into politics and command the heights of statesmanship, but in demand to existing conditions they are now found in the offices of presidents and managers of immense interests. As the industrial world has widened, inventive genius has found fuller play and stupendous enterprises have come to demand extraordinary headship. These men had to be developed by conditions, as enterprises grew and vast plans ripened.

For reasons already partly assigned, railroads were in their initial stages bunglingly managed as compared with the gigantic grasp with which they are now manipulated. Only occasionally was one found in those early days who was capable of responding to the demands of stupendous enterprises. Colonel Pollard was one of the few. A manager of large interests and a successful conductor of enterprises through financial storms, while others

went down under a terrible strain, he was logically called into requisition in the infant days of railroad enterprise. He had faced financial hurricanes when merchants and business men generally, bankers and managers of great interests, as they were then accounted, had been drawn into the maelstrom of ruin, and Colonel Pollard had safely piloted his affairs through.

Naturally enough, when the West Point and Montgomery railway was threatened with disaster, he was summoned from his private affairs to the rescue. It was he who revived this important public utility, infused into it new life, and placed it first on a basis safe, sound and solid. The excellent skill here displayed resulting in his being called into connection with Alabama's chief artery of commerce, the Louisville and Nashville railroad, and by means of his ability to command American and European capital, he was enabled to plant it on a permanent basis.

To know this giant king of finance was to confide in him. His judgment was as clear as amber, his power of adjustment in the management of vast concerns phenomenal, his skill in execution rare, his bearing that of one conscious of power; his courtesy toward his peers and subordinates always respectful, and his integrity unquestioned.

Facing a great undertaking he measured up to it. Thus rarely equipped he was a public benefactor at a time when such men were scarcely to be found. With a penetrative sagacity he could see clearly at once the merits and demerits of a given proposal or undertaking, and to its utmost limit he could measure it and speak with accuracy of the possibility of its success or failure. Laden with weighty responsibility which grew commensurately with the expansion of the railway interests with which he was connected, it is extraordinary that he was able to preserve so remarkable a poise. A man of less ability would have chafed and worn under conditions like these, but with his head raised above the clouds of fret and commotion, he was invariably serene. It is with pleasure that his former subordinates today refer to his kindly courtesy and ever polite bearing, even to the humblest man. Under the heaviest depression no cloud was on his brow, no tang of tartness in his speech. Of untiring energy and an activity which would have overwhelmed most men, Colonel Pollard moved along the even tenor of his way, commanding the respect of all alike from the highest to the humblest.

Without precedents to guide, for railroads were new, Colonel Pollard had to rely on his own inherent qualifications in the manipulation of mighty interests. The most substantial qualities were needed to master conditions of vastness, and a creative genius was necessary to find methods of accomplishment. In Colonel Pollard these were inherent and needed only the occasion for their evolution.

Few are able to appreciate the pressure of the burden borne by one under conditions like these. With agencies moving in divers and remote directions, and yet moving toward a common end and purpose, one in Colonel Pollard's position had to dispatch business with electrical facility. A sudden juncture reached had to be promptly met. The busy brain of one in such circumstances had to be ubiquitous, directing, managing, suggesting, dictating, hour after hour, over a vast area of diversified interests. To lose one's poise under such conditions meant jar and jostle to the enterprises fostered, but to be able to grapple with problems which came trooping in every day, meant generalship of the highest order. These forces were happily combined in Colonel Pollard. He could turn from one interest to another with ease and facility, and his constructive genius would readily grapple with a grave situation, attended by a flash of suggestiveness that was phenomenal. To him official labors came easy, for he was built for a station like this.

For many years Colonel Pollard lived in Montgomery an honored citizen, and most fortunate for the young employes who came within the circle of his influence, he proved how one laden with grave matters could still be polite and courteous, and thus preserve universal respect, however unfavorable the environment.

SAMUEL F. RICE

Worthily in the muster roll of the prominent men who have contributed to the greatness of Alabama, must appear the name of Judge Samuel Farrow Rice. For many years he was conspicuous in the public affairs of the state and was in some respects a remarkable man. A native of South Carolina, Mr. Rice was trained for the bar in the law office of the distinguished William C. Preston. He came to Alabama in 1838, and from that time till his death, was identified with the history of the state. His first service was that of an editor of a paper in Talladega, from which county he was twice sent to the lower house of the legislature. After this, for a period, he abandoned politics and was devoted to the practice of law, being at one time a partner to John T. Morgan.

Mr. Rice was not without congressional aspiration, which he sought to gratify several times, but was always defeated. Four different times did he sustain defeat in congressional races. General McConnell defeated him in 1845, Mr. Bowdon in '47, Alexander White in '51 and Hilary A. Herbert in '78. But he was never soured by defeat, and always accepted it in a jocular way. No one enjoyed a joke more at his own expense than Judge Rice. This was illustrated by the good nature with which he learned that an old rustic in the cow country of southeast Alabama declined to support him at one time because, as he said, "Rice ain't got no stubbility."

Removing to Montgomery in 1852, Mr. Rice became a partner in the law firm of Belser & Rice, but two years later he was elected one of the justices of the supreme court of the state. He was on the bench in that exalted tribunal for four years, during the last three of which he was chief justice. In the early part of 1859 he resigned from the supreme bench and was chosen to represent Montgomery County in the legislature. During the following four years he served as senator from Montgomery and Autauga counties. After the close of the war Judge Rice never held office, though, as has been said, he ran against Mr. Herbert for Congress.

Possessed of an unusually brilliant intellect and of a wit as keen as a rapier, as well as a diction of remarkable smoothness, and a port of serene dignity, he was a formidable contestant on the stump and in the rough and tumble of the court room. Tall, and as straight as a flag staff, with a face of classic mold, over which there was ever an expression of playful humor, he was always listened to with delight, especially since there were frequent flashes of merriment from his gifted tongue. A Democrat till the last years of his life, he became a Republican.

It is related of him that during the days of the reconstruction regime, he was at one time arguing with great earnestness some proposition before one of the incompetent judges of that period, for which judge he shared in the contempt experienced by the able members of the bar, when he was suddenly interrupted by the court and was told that the court had ruled on that point only the day before. Pretending not to hear the court, he continued until again interrupted in the same way by the court. Disdaining to notice him, Rice continued. He was then ordered by the court to take his seat, but still he proceeded as though he did not hear him. Addressing the proper official, the court ordered a fine of fifty dollars to be affixed, whereupon Judge Rice quietly sat down. The next day a case came before the court the nature of which was such that the presiding judge was ineligible to serve. Because of the prominence of Judge Rice, the court called on him to preside during the trial of the case. With characteristic dignity Judge Rice took the bench, looked quietly over the docket, and, straightening up, called to the official who had complied with the order of the judge the day before, and asked:

“Was there not a fine of fifty dollars affixed against one S. F. Rice here on yesterday?” Being told there was, he simply remarked:

“Well, the court will remit that fine today.”

This was done in the most imperturbable manner and then he proceeded with the case in hand. The incident produced a sudden burst of laughter, which was hardly suppressed when, with stern dignity, he commanded: “The sheriff will preserve order in court!”

After he became a Republican he was frequently joked by those who had known him in the days of his most ardent Democracy, but he was never

without a jolly parry to every thrust made, and always in the most felicitous way. Talking to one who had long known him, he was asked at one time what his political principles then were. With playful banter he said: "I am a Republican with Democratic variations." His reason for becoming a Republican was assigned by himself as a belief that a state should have two parties, and he was willing to show his magnanimity by joining the Republicans. However, he had but little to do with politics till he was nominated in opposition to Colonel Herbert. They canvassed the district together, and in strict truth Colonel Herbert was favored by larger crowds because he was accompanied by Judge Rice. Staid and serious, Colonel Herbert possessed none of the striking elements of a popular speaker. On the other hand, Rice had them all and he found delight in giving to them full expression, often at the expense of his practical opponent.

Intellectually, Judge Rice was a prince among men. He was justly ranked among the ablest lawyers of the state, and as a converser he was rarely excelled. In his lighter moods his conversation was almost boyish in its vivacity. Nor did anything seem to quench its freshness and piquancy. He seemed to know something about everything and everything about some things. However men differed from him, he was so luminous and cheery that he became the center of a group of ready listeners in any circle in which he appeared.

In debate he was one of the greatest of strategists. With quick and incisive discrimination he could detect the weak points of his opponent and would marshal his forces on these so as to lead one to forget other points of strength. If interrupted, his repartee was usually so crushing that he stayed in dumbness any disposition to interfere, no matter how unfair his opponent might have at the time thought him to be. This repartee was rarely ever offensive, but, on the other hand, was so couched in ironical politeness and assumed suavity as to make it tenfold stronger. While his career was not devoid of much of the zigzag, yet his life was one of long usefulness to the commonwealth.

GEORGE W. STONE

For many years Judge George W. Stone was a familiar figure in the public circles of Alabama. He was among the distinguished self-made men of the state. His early scholastic advantages were limited, extending not beyond the confines of a village school, yet he came to take high rank as a jurist, being regarded in the height of his power as one of the really great lawyers of the state. He was favored in being able to prosecute his studies privately, and the judgment exercised by him in his self-selected course of reading, gave evidence of that solidity of character and acuteness of discrimination which distinguished him throughout his professional and public career.

Before removing from his native state, Tennessee, to Alabama, he was admitted to the bar. He settled first in Coosa County, and later removed to Syllacauga, and later still to the town of Talladega, where he entered into co-partnership with the Honorable W. P. Chilton. It was in the office of this firm that Senator John T. Morgan was fitted for the bar. The picture of this eminent jurist riding a scrawny pony, with his huge saddle-bags of leather well filled with books of law, along rough roads to attend rural courts, in the early stages of his practice, is still the occasion of laudable pride of allusion among the older citizens of central and eastern Alabama counties. The first official position held by Mr. Stone was that of circuit judge, to which position he was appointed by Governor Fitzpatrick in the place of Judge Shortridge on the occasion of the death of the latter. The service of Judge Stone on the bench was so satisfactory that he was subsequently elected over formidable candidates for the same position for a period of six years. He declined to offer for re-election after the expiration of his term, and removed to Hayneville, Lowndes County, where he engaged in the practice of the law for a period of years. In 1849 his name was prominently mentioned in connection with the governorship of the state. In 1856 Judge Stone was again summoned from his private practice by being elected to the supreme bench of the state, which position he continued to hold throughout the period of the Civil War. In 1865 the legislature engaged his services jointly with those of John W. Sheppard, Esq., to prepare a revised penal code of Alabama, one adapted to the conditions occasioned by the war.

The habits of study acquired by Judge Stone in his boyhood days in meeting the demands occasioned by the deficiency of his education were never abandoned. He was doggedly persistent in mastering every detail of a subject, and seems to have acquired a passion for routine fractional work. He took nothing for granted, never assuming that it was true, till he had satisfied himself from the authorities. This gave a critical cast to his mind which, in turn, resolved itself into the utmost exactness with respect to each minute particular on any subject which would absorb his attention. With painstaking exactness he would con over a minute point for hours, in order to bring it into exact adjustment. His arguments were perfectly mortised, no matter how much time was necessary to effect this end. His labors in his office were assiduous, and a case entrusted to his care never suffered the slightest negligence or inattention. Others might find time for the chase or on the stream, but Judge Stone was usually found in his office, at his desk, hammering out his cases. His studies were varied, as he would now and then unbend from his law books to delve into choice literature, of which he was quite fond. His literary taste was the highest, and occasionally he would give rein to his Pegasus and dash off a bit of fugitive poetry. This was done by way of diversion, as he never sought publication for such productions. His concentration was remarkable, and he could husband his resources with great readiness, ease, and skill.

The devotion of Judge Stone to his library prevented his attention to social intercourse, and, like most students, he was somewhat austere in his bearing. The glitter and clatter of the social circle had no charms for the man whose thoughts moved on serious and solid lines. His companionship was largely his books, of which he had a choice selection.

In life, he was prized as an attorney for his rigid attention to cases entrusted to his care; as a judge, for the accuracy and minuteness of his opinions, as well as for his unquestioned fairness, and as a private citizen, for his solid and substantial worth. No condition could swerve him from a course of conscientious judgment, and no temptation was sufficient to betray him into a course the least doubtful. Behind all this was a manly courage and conviction to sustain the serenity of his judgment.

Thus lived and died this distinguished Alabamian, as much admired for his private virtues as for his official service. In most respects a model man and

citizen, he was a typical official of the other days when men loved honor more than gain, and prized integrity above the price of rubies.

To all this was added Judge Stone's devotion to the cause of religion. He was a devout Presbyterian of the old school, and never suffered his religious convictions to be trenched on by the plausible pretexts of worldly maxim. In this he was as firm and stern as he was in all other relations in life. No juggling of politics for temporary advantage, no suggestion from the high plane of right could deflect him from a course of rigid scruple. His standard was honor, not applause; integrity, not gain; uprightness in all things, not momentary success.

This was the life lived by this eminent jurist, and this the bequest given as an example to those who should come after him. The passing of a man like this was the occasion of profound sorrow throughout the state that he had so long served with distinction.

JOEL EARLY MATTHEWS

To present the merited claims of a typical southern planter of the olden days is the purpose of this sketch. Than these princely planters of the old South in the golden age of cotton, no more honorable, cultured, dignified, or hospitable class ever existed. None is more worthy to represent the great planting class of the South, and especially of Alabama, than Joel Early Matthews, who died at Selma, May 11, 1874.

Mr. Matthews sprang from Revolutionary sires. His grandfather, General George Matthews, was a distinguished soldier in Washington's army. After the close of the Revolution, General Matthews removed from Virginia to Georgia, and became one of the three representatives sent by the state of Georgia to congress. In addition to this honor, he was made governor of Georgia for two terms. The father of the subject of the present sketch was Colonel C. L. Matthews, who found great pride in the education of his son in the leading colleges of the South, he having taken a course at the University of Georgia, supplemented by another at the University of Virginia. His first ambition was the bar, but he eventually abandoned that and adopted planting. In those early days planting and the bar were regarded the two most eminent vocations in the South.

Purchasing a plantation in the heart of the black belt, near Cahaba, on the Alabama River, Mr. Matthews spent his life there. His broad acres of fabulous fertility were his constant pride and care, and his palatial home was one of the most splendid in the South. Nothing like the sumptuous hospitality of the old-time southern planter was ever before equaled, and the conditions which entered into these superb abodes of elegance, ease and courtliness will never be again. Immensely wealthy, the elegant mansion of Mr. Matthews rivaled in all its appointments the palace of an English lord. There was nothing lacking to contribute to ease, comfort, pleasure, and culture.

Like others of his great class in the South, Mr. Matthews did not content himself with the mere enjoyment of that afforded by the wealth of his vast

estate.

He was an exceedingly busy man, not only in the successful direction of his own interests and in dispensing rare hospitality, but he directed his energies as well to the promotion of the well-being of society, and the enhancement and development of the resources of the state. To him the advancement of education and religion were matters of as serious concern as were his own private affairs. His plethoric purse was always available to the demands of needs, and nothing was of light esteem to this generous patriot and planter.

The leisure afforded by his wealth was devoted to reading and study. His library was stocked with the choicest standard works of ancient and modern learning, and his library table was always laden with the leading periodicals of the time. In these rural mansions of the old South were often met some of the most profound and thoughtful of men, of whom Mr. Matthews was a type. He had a passion for the study of the science of government, but his studies were not confined to that particular branch of thought. His fund of information was comprehensive, and his learning versatile. He found peculiar delight in the study of Shakespeare, the histories of Gibbon and Hume, the works of Bacon, Addison, Macaulay, and others. With the study of these came a passion for the study of the Scriptures, and the science of government as expounded by Jefferson and Calhoun, the interpretations of the limitations and powers of the federal constitution of whom he accepted.

Mr. Matthews had crossed the boundary of a half century of his life when hostilities between the North and the South began. Though deeply interested in the principle of secession and thrilled by the patriotism which swayed the country during the exciting days of the early sixties, he felt that he was too old to share in the actual fray, but pledged his fealty and fortune to Alabama in the pending crisis. In token of this he sent his check for fifteen thousand dollars in gold to Governor Moore, to be used by him at his discretion for the defense of the state, which was acknowledged in the following letter:

“Executive Department,
“Montgomery, Ala.,
“January 28, 1861.

“Mr. Joel E. Matthews, Cahaba, Ala.

“Dear Sir:—Your munificence for the protection of the state is accepted and the evidence of it placed upon record in this office. The praise of one man, although he speaks as one having authority, is but a small part of the reward which your patriotism deserves and will receive. When the present time shall have become historic, this donation will be an heirloom to your posterity and the example which you have set will be a source of power to your state compared to both of which the liberal sum of money which you have given will be as nothing. As chief executive of the state, and acting under a deep sense of responsibility, I have been compelled to do all in my power to strengthen the sense of resistance in the southern mind and to deepen the current flowing toward the independence of the state in defense of her constitutional rights. What I have been compelled to do by conviction of duty, you have done voluntarily, and to that extent deserve more freely of the gratitude of your fellow citizens. Trusting that an approving conscience and the gratitude of your state may be your ample reward, and commending you and the state to the protecting goodness of Providence, I remain, very respectfully your obedient servant,

“A. B. MOORE,
“Governor of Alabama.”

The patriotic sentiments of Mr. Matthews did not cease with this donation, for he uniformed and equipped several military companies at his own expense and was generous in the relief of the widows and orphans of those killed in battle. Sharing in the gloom occasioned by the result of the war, he was tempted to remove to Brazil in order to produce cotton in that empire. On visiting the country he was cordially greeted by the emperor and urged to become a subject, but he gave up the idea. When Emperor Dom Pedro visited America in 1876 he made diligent inquiry of Mr. Matthews, with whom he was greatly impressed.

The life and career of Joel Early Matthews was a distinct contribution to the weal of Alabama. Though wealthy, he was modest and devoid of arrogance; though unusually well informed, he had respect unto the lowliest. He was

an ornament to the citizenship of the state, and when he passed away his loss was universally mourned.

E. S. DARGAN

No one of more marked individuality ever appeared among the public men of Alabama than Judge Edmund S. Dargan. He had peculiar characteristics which, so far from concealing, he seemed to cherish them. These peculiarities were quite out of the ordinary, and not infrequently excited much merriment. Still Judge Dargan was a man of distinguished ability.

Springing from an Irish ancestry in North Carolina, where Judge Dargan was born in 1805, he was gifted with those sinewy physical qualities which had been borne by his forbears across the seas from the bogs and fens of the Emerald Isle. Left an orphan boy by the death of his father, who was a Baptist minister, when the son was but a boy, he showed genuine pluck by joining in the rough encounters of the world in an effort to procure an education. In his younger years no ambition above that of a plodding country farmer seems to have possessed him, for he was a common laborer till he was twenty-three years old, though his mental activity led him to a diligent study of the classics, to which he devoted every spare hour.

He seemed suddenly to have been inspired by a rare vision of life, for he abruptly left his farm work and entered on the study of the law in the neighboring village of Wadesboro, N. C. A year later, he removed to the young state of Alabama, which was in 1829, just ten years after the state had been admitted into the Union. Locating in Autauga County, he taught a private school for a period of three months.

On making application for admission to practice law it was found that Mr. Dargan was duly qualified by past study, and he entered at once on the practice in the courts, after settling at Washington, in Autauga County. His settlement in this rural village was a brief one, for he soon removed to Montgomery. His quiet and studious habits and his habituation to hard work served him well in his new environments, for naturally such a young man would excite attention and win confidence. His practice steadily grew and his reputation for close and rigid attention to business and ability to transact it, rapidly raised him above the man of plodding mediocrity and won for

him a place of public esteem. Yielding to the solicitations of friends, he offered for the legislature from Montgomery County, but was defeated. A year later, however, when he was thirty-six years old, he was elected by the legislature to the circuit of the Montgomery district. He retained the office but one year, when he resigned and removed to Mobile and entered on the practice of the law.

In 1844 Judge Dargan was elected to the state senate from Mobile, which position he held just a year, when he resigned to enter into a congressional race against Honorable William D. Dunn, one of the most popular and polished men of the district. In their combats on the stump the difference between the two candidates was most novel. Dunn was neat and tidy of dress, polished in manner, and elegant of diction, while Dargan was indifferent alike to all these, and rather prided himself on their absence from his being. The advantage lay on the side of Dargan from the fact that in spite of his rough and uncouth exterior he was a forceful speaker, and commanded the attention and confidence of the most thoughtful, while his disregard for dress and apparent contempt for polish won the plaudits of the rustic population. In debate he was Dunn's equal, if not his superior, while the difference between them otherwise made him the successful competitor.

One session in the National Congress seemed to gratify his ambition, for at its expiration he declined a renomination. Soon after his retirement from congress he was elected by the legislature to the supreme bench of the state, and two years later, on the retirement of Judge Collier from the chief justiceship, Judge Dargan was elected to succeed him. After serving three years in this function he resigned and resumed private practice of the law in Mobile.

Here Judge Dargan was profitably engaged in the practice of the law when the war began, and in 1861 he was chosen to represent Mobile in the constitutional convention. No sphere could have been better suited to his taste and qualifications, and he was ranked one of the foremost members of that body.

Judge Dargan's career in the public service closed with his membership in the Confederate Congress, where he served for two years only, and declined further service in that capacity. It was while he was a member of the

Congress of the Confederacy that Governor Foote of Tennessee, a member of the same body, took occasion to reflect seriously on Judge Dargan in the course of some remarks on the floor, when Dargan promptly sprang to his feet, seized Foote in the collar, with his right hand upraised, as though he would strike him. But before violence was demonstrated, the matter was adjusted and the incident closed. This led to an animadversion on the part of E. A. Pollard, in one of his works on the Civil War, on Judge Dargan, whom Pollard accused of raising a bowie knife with the view of stabbing Governor Foote. This reckless writer was descanting at length on the inferior type of manhood in the Confederate Congress, and made the statement just given in substantiation of his charge. The truth is that Judge Dargan was at his desk writing when Governor Foote assailed him in the speech, and when he arose he still held the pen in his fingers.

Numerous anecdotes are still related of Judge Dargan, especially with respect to his garb. His shoes were sometimes of the cheapest styles, and he preferred leather strings to any others. Members of the bar used to relate how careful he was sometimes to mar his appearance before appearing before a jury in an important case, how careful he was to untie his shoes before leaving his office, so that they might gape the wider, and how often his hair was unbrushed and his shirt collar was thrown open.

When unengaged, the position of Judge Dargan was that of drowsiness. Under this condition he wore an expression of indifference and unconcern. But when he would arise to speak he was suddenly transformed. His eyes would dilate and glitter, his nostrils grow thin under the intensity of animation, and the dullness of his face would give way to a radiance that would inspire. In the sweep and current of discussion he was a giant, and in the clearness and forcefulness of presentation he had but few superiors.

PETER BRYCE

In 1849 a woman philanthropist, Miss D. L. Dix, of New York, a sister of General John A. Dix of that city, visited Alabama with the end in view of establishing a hospital for the insane of this state. She was actuated to undertake the task of visiting all the states in which there were not such institutions, by a singular experience which had come into her life. A cherished friend of hers had become insane, and it had fallen to her lot to nurse that friend till death. It was no ordinary task which she assumed, particularly at that time, when the country was ringing with the heated politics growing out of the discussion of abolitionism, and when there was a special antipathy for northern people in the states of the South. But she so impressed everyone with the intensity of her spirit and her loyalty to the distressed, that nothing was thought of but the angel of mercy that she was, moving quietly over the land and pleading for the sufferers from idiocy, epilepsy and insanity, defraying her own expenses, for she was amply able to do this, and quietly giving her life for others, and they who were afflicted with the malady of insanity. Nor were her labors confined exclusively to this class, but she inspected the prisons of the country, the jails and penitentiaries, and sought to mitigate the sufferings of the prisoners. Before taking formal action with the authorities of the state, Miss Dix traveled over the state and acquainted herself with the conditions especially of the insane. She found at least seven hundred sufferers from idiocy, epilepsy, and insanity. Equipped with these facts, she was prepared to make her appeal.

For thirty years Alabama had been a state, but her people were so engrossed with the affairs personal and public, wrestling with the giant difficulties incidental to a new state, that institutions of mercy had been largely if not altogether neglected. For the unfortunate lunatics no provision had ever been made. Miss Dix found them confined as criminals in prison, with environments to distract and make incurable rather than otherwise, or else they were confined in friendly homes and closely guarded, while a fraction of the number was sent to insane hospitals in other states.

Arriving finally at Montgomery, this gifted woman presented the claims of her mission to the governor and most influential members of the legislature, and by means of a memorial addressed to the legislature, she aroused action which culminated in the appropriation of two hundred and fifty thousand dollars for the erection and equipment of a hospital for the insane of the state. The law was not enacted, however, till 1852, and the institution was not built and ready for inmates till July, 1861. It was of supreme importance in the inception of an enterprise of this character that a thoroughly equipped physician, qualified for this special work, be procured. Ample time was taken to find this man, and when found he proved to be Dr. Peter Bryce, of South Carolina.

At the time of his election to this important post Dr. Bryce was only twenty-six years old, but his previous training and experience had given him the amplest equipment for a position so responsible, and time proved that a more fortunate selection could not have been made. Trained in the medical department of New York, after quitting which he had become assistant physician in the South Carolina Hospital for the Insane, none could have been better qualified for the superintendency of the new insane hospital of Alabama.

Dr. Bryce at once impressed everyone with his fitness on his arrival and on his assumption of his important station. Quiet and unassuming in manner, gentle and persuasive, and withal sympathetic and tender, his natural gifts were supplemented by a thorough knowledge of the most advanced scientific treatment of the insane. He entered on his important mission and held it to the close of his life.

His task was herculean from the outset. Besides superior qualifications for the station to which he had been called, he must have administrative force. Thorough organization was necessary before the work proper could even be begun. The adjustment of means to an end in all the minute ramifications of the hospital must be secured. The institution must not only be set agoing, but when once begun, must be without relaxation or cessation. More than all that, there must be prospective provision made for an increased and increasing dependency of the unfortunate, for the population of the state was rapidly growing, and of course there would be an increasing demand for occupants yet to come. The responsibility was onerous, the duty

exacting, the supervision minute, and skillful treatment in each case absolutely necessary.

His service gave universal satisfaction. The praises of the young superintendent resounded throughout the state, and even beyond. Hundreds who came and were restored whole, left with blessings on the head of the young and lovable superintendent. In his retreat of benevolence he labored on year by year, was rarely before the public, and his tremendous work was known only to a limited few. Confidence in him grew to be supreme, and his fame went abroad to other states, and the hospital for the insane in Alabama was noted among similar institutions throughout the country.

Dr. Bryce took a position in the most advanced of the medical fraternity of Alabama. The learned papers presented by him before the medical convention of Alabama, from time to time, with special reference to the disorders of the mind, were regarded as being those of the highest value. He was a devotee to his profession, and his fame grew with the expansion of the institution committed to his care.

In addition to all this, Dr. Bryce was a great favorite in the social circles of cultured Tuscaloosa. His quite dignity, pleasing demeanor, and his learning and culture, won for him a place in the most elevated circle, while his perennial sunshine of heart made him an idol to the unfortunate inmates of the hospital. He became one of the first citizens of the state, and by dint of sheer merit, he held this position to the close of his useful life.

JOHN GILL SHORTER

No man of more exalted personal character ever entered public life in Alabama than Governor John Gill Shorter. He had all the virtues of a Christian statesman. Gentle, refined, highly cultured, modest, he was yet a firm and faithful official. His presence produced an atmosphere of purity and awoke the profoundest respect.

A graduate from the University of Georgia in the class of '37, for Georgia was his native state, he removed with his father, General Reuben C. Shorter, to Eufaula, then called Irwinton, and after a course of study entered on the practice of the law. Six years afterward he was appointed by Governor Fitzpatrick solicitor of the judicial district in which he resided. In 1845 Mr. Shorter was elected senator from Barbour County, the first from that county after it was formed from Russell County. His bearing and service at once attracted attention, his ability was promptly recognized, and when Honorable George Goldthwaite was promoted to the supreme bench, Mr. Shorter succeeded him as the judge of the judicial circuit, in which capacity he served for nine years, being elected from time to time without opposition.

When the question of withdrawal from the Union was before the secession convention of Georgia, Judge Shorter was sent as one of the commissioners from Alabama. He later became a member of the provisional congress of the Confederacy, and soon became a candidate for governor of the state in response to a popular demand. In 1861 he was elected governor.

The storm of war breaking over the country, there was imposed on the governor an unprecedented burden, attended with unique embarrassment of an appalling nature. Questions of a complicated nature arose in consequence of the haste necessary to meet the tide of hostilities bearing southward, and in the excitement of the hour and the extremity of the period, the people were divided on numerous important issues, and from the outset, the administration of Governor Shorter was beset behind and before with most perplexing entanglements. The strenuousness of the times

imposed burdens on him never before borne by a governor. The difficulty was enhanced by the fact that on the governor reposed the settlement of all questions on which public sentiment was divided. The most conflicting demands arose from the turbulence of the times and the passion of the period, but the serene man at the capitol sought tranquilly to do his duty, unswayed by aught else than a supreme sense of public responsibility. His patriotic and philanthropic disposition led him to seek to provide for the families of soldiers on the field, but this produced adverse sentiment on the part of many. With zeal and interest, he sought to protect by every possible means the exposed borders of the state against a hostile army, and gave special attention to the fortification of Mobile by garrisoning the outposts of that city as strongly as possible.

As the war progressed and the demand for additional troops grew, it became necessary to conscribe many who had failed to volunteer, and this became the occasion of fresh difficulty, as it always does. In the execution of the law enacted by the Confederate Congress relative to the tax in kind for the support of the army, Governor Shorter had to stem a current of popular opposition, and was held responsible by the masses for that which he did in compliance with the laws of congress. Added to all this was the necessity of the imposition of increased taxation for the support of the state government, and for the redemption of its bonds. In the prosecution of necessary tasks like these he became the victim of much popular wrath and unjust abuse. But duty was clear, and without wavering the breadth of a hair, or without chafing under the conditions, Governor Shorter met his obligations with steadiness and firmness. To have done less than he did would have made him recreant to his obligation, and everyone who did his duty at that time, and under conditions so stressful, fell under the same unreasonable public condemnation. A man of less nerve and less granite in his soul would have been swept off his feet in a public ordeal like this.

On the expiration of his term, in 1863, he was a candidate for re-election, opposed by Thomas H. Watts, then attorney general of the Confederacy, and an opponent of Governor Shorter at the previous election.

Public sentiment had grown so morbid during the tempestuous times of the former administration, that Governor Shorter failed of re-election. There was a burst of ungrateful expression of popular feeling, but the result was

not unexpected. Governor Shorter had borne immense burdens in the face of popular clamor, and naturally and logically he preferred the indorsement of a people for whom he had done so much, while, on the other hand, it was a relief to be unburdened at the end of two years.

After facing the odds, formidable and imposing, during the first two years of the struggle, and after resisting the inertia of popular discontent at every step, he retired from office with a stainless reputation, and, viewed at this distance, his course during the trying period of his administration is thoroughly vindicated, and in the galaxy of Alabama governors none has ever been more patriotic, none more firm in the prosecution of public duty, none calmer in a storm than John Gill Shorter. With the same serene temper with which he had deported himself in office, he retired to private life and resumed the practice of the law in the city of Eufaula.

With this distinguished statesman the claims of religious obligation rose supreme. His life was a living sermon. His honor was never questioned, nor was his religious character impeached, nor his personal piety ever challenged. In his character was the happiest blend of childlike gentleness and robust manhood. In a period of doubt and storm he publicly insisted that “there is a truth in religion; it is all true; and there is a power in the atonement of Christ. It is a glorious reality. The atonement of Christ will stand firm as the everlasting hills.”

Governor Shorter died in the prime of manhood, being only fifty-four when he passed away. At the time of his death there was no more popular man in the state. An account of his triumphant death was broadly published throughout the country and created a profound impression.

With faith unnerved by the presence of death, he closed his earthly career with words quoted from an old and familiar hymn:

“To Canaan’s fair and happy land,
Where my possessions lie.”

Having quoted this couplet, he said, “I want to be off”—and died.

N. H. COBBS

Of a meek and unpretentious mold, Bishop N. H. Cobbs never failed to impress the public with his deep piety and exalted character. Rising from an humble station in life, and ascending by dint of merit to the highest place within the gift of his church, there was nothing in his bearing to indicate his consciousness of the honor attaching to his position. There was a total absence from his manner of that self-assertion and sense of self-importance so often attaching to those as highly honored as was Bishop Cobbs.

Conjoined to this was a cordiality of spirit which loosened all restraint and made everyone whom he met, feel that he had met a friend. A placid smile as natural as sunshine mantled his face and lent an additional charm to his personality.

The individual merit of Bishop Cobbs was shown by the fact that, with the scantiest educational advantages in early life, he turned his stock of information to the greatest use by teaching school in the rural districts of Virginia. With him, to teach was to learn, for in order to give effective instruction he had to prepare the way in advance by assiduous nightly study. After all, this is the most effective way of procuring a solid education, provided one knows how and what to study. Mr. Cobbs always brought to his rustic classes the enthusiasm derived from knowledge newly found, and the enthusiasm was contagious, as it always is under conditions like these.

By such methods as these the young man came to widen and deepen his capacity, and thus became qualified to grapple with the profounder studies which still lay ahead. He was neither superficial nor artificial, but always solidly practical, because he had already learned to be sure of his footing by reason of the conditions attendant on his early struggles. Naturally modest, he won self-confidence by closeness of application, and from this happy blend came that rotundity of character which made him the man he was.

His heart was already fixed on the ministry, and up to the age of twenty-eight, during his career as a country school teacher, he was prosecuting his theological studies. At the time already indicated, when he had arrived at

the age of twenty-eight, he was ordained deacon in Trinity Church, Staunton, Va., and a year later, was made priest in Richmond. He became pastor in Bedford County, Virginia, and in conjunction with his pastoral work he officiated as chaplain in the University of Virginia, being the first minister to serve within the walls of that famous institution. From 1826 to 1841 he served in the general convention of his church as one of the clerical deputies from the diocese of Virginia.

In 1841 Rev. Cobbs was nominated bishop of Texas by the house of bishops, but the clerical and lay deputies declined, from motives of policy, to sanction the action. The honorary title of doctor of divinity was given him by Hobart College in 1843 and during the same year he became the rector of St. Paul's Church, in Cincinnati. Another step was taken to raise him to the bishopric by the clergy of Indiana, but the laity, assuming, for some reason, that if elected he would not accept, did not ratify the action. However, in 1844 the clergy and laity of Alabama invited him to the episcopate and late during that year he entered on his new sphere and for seventeen years, the ripest period of his life, he served in Alabama.

On the assumption of the charge of his diocese he found but few Episcopalians in Alabama, the number scarcely reaching as many as five hundred. He set himself at work without delay to effect a thorough organization of the scattered few, and before the close of his life had multiplied the numbers many times over. In grappling with the difficulties of a new field, the resourcefulness acquired in his early life stood him well in hand. He brought to his difficult task not only an administrative equipment gained by hard experience, but an economical ability which he had acquired in his earlier years. He was just the man temperamentally and otherwise fitted for a pioneer work such as he undertook in Alabama.

One possessing the gifts which Bishop Cobbs had, might have shone more resplendently, but he was shrinkingly modest, and by this was much kept from public recognition. He was an indefatigable worker and was as quiet as he was effective in the execution of his plans. Without effort he won popularity, and to his quiet demeanor and humility is his church in Alabama most indebted. Under his auspices a diocesan school was founded, an orphanage established, and a system of missions maintained, and through these agencies vast good was effected.

Bishop Cobbs had none of the striking elements of the popular pulpit orator. He was terse and condensed in statement, and yet projectile in force. Behind his utterances lay a dynamic conviction which was imparted and impressed. His preaching was more to the heart than to the mind. He believed, therefore he spoke.

He shared deeply in the sentiment awakened by the issues that shook the country in the early sixties, and predicted a bloody fratricidal war, but he was spared a participation in its horrors. On January 11, 1861, while the secession convention was assembled in Montgomery, and while the pulse of excitement beat strong, and just prior to the adoption of the ordinance of secession, Bishop Nicholas Hamner Cobbs passed to his reward.

LEROY P. WALKER

Of one of the earliest families to remove to the state, and one of the most distinguished, Honorable Leroy P. Walker was among the most eminent of her citizens. His father, Honorable John Williams Walker, was a distinguished citizen, having been one of Alabama's primitive statesman, in recognition of which one of the counties of Alabama was named for him. But the son, Honorable Leroy P. Walker, attained to national eminence. A profound scholar, a great lawyer, a distinguished statesman, he is justly ranked among the first of Alabamians.

In early manhood he was made a brigadier general of militia, but his first appearance as a public servant was in 1843, when he represented Lawrence County in the state legislature. He was modest and retiring during his first term, being of a calm and studious disposition, but in 1844 he was drawn into more active life and took a deep interest in legislative matters.

Subsequently removing from Lawrence to Lauderdale County, he appeared, in 1847, as a representative from that county. In 1849 he was honored with the speakership of the house, and in the approaching session was again given that distinction. This repeated election carried with it great significance, as the legislature at that particular period was adorned by a number of the most distinguished citizens of the state. He won much esteem from the membership of the house by his dignity, impartiality and ability.

The distinction thus won, coupled with his recognized ability as a jurist, led to his election to the judgeship of the fourth judicial circuit in 1850. Three years later he resigned his position on the bench and was induced to return to the legislature. Ripened by years of experience in public life, he at once became recognized as one of the leading men of the body, and was conspicuous in the absorbing question then before the country, that of internal development. In the light of the present, the sagacity of Judge Walker may be seen in the following resolution submitted by himself to the legislature of Alabama:

“Resolved, That the committee on internal improvement be instructed to inquire into the expediency of affording state aid to a railroad company connecting the navigable waters of the Mobile Bay and the Tennessee River, and report, should it be deemed expedient, some plan, by bill or otherwise, having this object in view; but in no event is the community to designate the termini of the road.”

This initial measure, at that early day, coupled with the notable speech which he delivered in support of the resolution, indicates a sagacity which makes Judge Walker a pioneer of the development of the marvelous resources of the state. Among the participants in the discussion of that initial question were such men as Percy Walker, Thomas J. Judge, John Cochran, J. L. M. Curry, Joshua L. Martin, and A. B. Meek.

After this notable session of the legislature, Judge Walker retired to private life, resuming the practice of the law, and did not reappear till called out by the stirring scenes of 1860. An intense adherent of what was called the southern movement, Judge Walker supported Breckinridge and Lane. He was an ardent secessionist, and was one of the commissioners to Tennessee to confer with the state authorities concerning the best policy to be adopted by the slave-holding states.

On the occasion of the creation of the Confederate government, Judge Walker was named for the secretaryship of war in the Davis cabinet. While Fort Sumter was being bombarded Judge Walker and General Beauregard were in constant communication by wire concerning the progress of the attack. When the news was flashed to Montgomery that Fort Sumter had fallen, Montgomery, the new capital of the Confederacy, became a scene of intoxicated joy. The city was filled with excited crowds, torch-light processions, and speaking was galore. Among others, Judge Walker was called on to speak, and, sharing in the exuberance of joy, declared that the Confederate flag would float over the dome of the capitol at Washington, over Independence Hall, and even over Faneuil Hall, Boston, before our armies would retire from the field.

This enthusiastic outburst was regarded as ill-timed and unwise, as its logical effect would be to weld northern sentiment against the new-fledged Confederacy, whereas up to this time this sentiment in the North was

divided. Emanating from so high a source, it was construed as representing the sentiment of the people of the South, and then began the solid South against the solid North. Edward Everett and Stephen A. Douglas, both of whom had held in check the popular passions of the North with the hope of some amicable adjustment, now advised the people to take up arms in self-preservation since their homes were threatened by a determined invasion. For an utterance which was pronounced untimely, Judge Walker was blamed by Union men, both North and South, and was charged with the responsibility of precipitating the war and of making more compact the sections one against the other.

But it was idle to conjure thus with words. Judge Walker bespoke the regnant sentiment of the South. The war was inevitable and honest as were the sentiments and efforts on the part of some to avert it, the people thirsted for blood, and nothing short of war would satisfy. The sentiment cherished by the South was reciprocated by the North and the expression of Judge Walker, while it might not have been fastidiously diplomatic, was sheer honesty. To have used a single expression of a man as an occasion for concentration of northern sentiment, was the convenience of a pretext. In due time the result would have been that which came, whether Judge Walker had ever used the expression or not. Men often toy with words and use them, as Talleyrand suggests, to conceal ideas.

For more than a year Judge Walker remained in the Confederate cabinet, when he retired and was commissioned as a brigadier general in the active service. He had organized and equipped the armies of the Confederacy, and had supervised the original movements on the field. Assigned to an inactive command at Mobile, he requested more active service on the field, and for some reason this was denied him, when he resigned from the army, was appointed a military judge, and held that position throughout the war.

During the dark period of reconstruction Judge Walker was as conspicuous as any in assisting in guiding the state through this perilous time, and closed his life as one of the most distinguished of Alabama citizens.

WILLIAM L. YANCEY

The name of William L. Yancey is generally associated with two chief facts, namely, that of secession and that of his brilliant oratory. The beginning of Mr. Yancey's life was clouded by an unfortunate circumstance, that of killing Dr. Earle, of Greenville, S. C., for which he was sentenced to a year's imprisonment and a fine, but was pardoned by Governor Noble, after about three months. In the light of subsequent events and after all passion had subsided, this unfortunate occurrence was popularly adjudged a deed of self-defense.

There was something remarkable in the career of Mr. Yancey in that his friends neither in the opening period of his life, nor for some years afterwards, ever suspected him of the qualities either of leadership or of oratory which he developed, and until conditions prevailed by means of which these elements were called into exercise, did Mr. Yancey himself come to discover himself.

First, he was a planter near Greenville, S. C., and later in Dallas County, Ala. This was followed by the editorship of the Cahaba Democrat, and later of the Argus, a democratic paper published at Wetumpka. He had previously studied law at Sparta, Ga., and Greenville, S. C., but had never applied for license to practice.

His advent into public life was when he represented Coosa County in the legislature, which was during the early stages of his professional career. Later he became a state senator from the district composed of the two counties of Coosa and Autauga.

Mr. Yancey's entrance into national politics was in 1844 when he was elected to Congress to succeed Dickson H. Lewis, who had been promoted to a seat in the National Senate. In his maiden speech on the floor of Congress, Mr. Yancey became the recipient of a great distinction. Though the youngest member of the party, he was chosen to defend the Southern democrats against a furious assault made on them by Mr. Clingman, a whig member from North Carolina. John C. Calhoun, then secretary of state, sent

for Mr. Yancey the evening before he was to speak, and advised him not to do his best in his first encounter.

This first effort in Congress gave Yancey national fame. It awoke comment throughout the country. The Baltimore Sun, speaking of the effort, said, among other things: "He is comparable to no predecessor, because no one ever united so many qualities of the orator." Mr. Clingham's speech was too well answered at every point for the reply of Mr. Yancey to be satisfactory to him. While himself severe, he was offended at the severity of Mr. Yancey's arraignment, and according to the custom of that time, challenged the Alabamian to a duel. Both Clingman and Yancey repaired to Baltimore to settle the difficulty on what was then esteemed "the field of honor," Clingham being the aggressor throughout, but they were interrupted by a civil process, and both returned to Washington, satisfied with the result.

In 1846 Mr. Yancey, having served two years in Congress, resigned his seat from the necessity of repairing his fortune, and entered successfully on the practice of law in Montgomery. Without losing interest in public affairs, he continued rigidly devoted to his profession for about ten years.

In 1848 Mr. Yancey's relations to the democratic party became impaired because of his withdrawal from the national convention at Baltimore, which convention nominated General Cass for the presidency. His action was based on the refusal of the Baltimore convention to incorporate into the national platform certain resolutions adopted by the Alabama convention, in the event of the rejection by the national convention of which, the Alabama delegation was instructed to withdraw. Only one other and himself withdrew from the convention at Baltimore, and during the succeeding campaign he remained quiet. For all this he was subjected to much censure.

With a period of ebbs and flows which come now and then to a political party, the elements had calmed by 1858, when, at the head of the electoral ticket of Alabama, Mr. Yancey carried the state for Buchanan. Being of decided and pronounced views, and one who did not believe that principle was divisible, Mr. Yancey won the unenviable distinction of being a "fire eater," but he followed duty as he saw it, and encountered the penalty always accorded to one of stern and fixed adherence to principle.

Meanwhile the drift of the country was toward conflict. A states' rights democrat, Mr. Yancey insisted on the maintenance of this principle as the only hope of safeguarding the constitution. Accordingly in the Alabama convention held in 1859, to select delegates to the national convention to be held at Charleston, Mr. Yancey procured the adoption of a platform suited to his views. At the head of the Alabama delegation he attended the Charleston convention which declined to adopt the views presented in the platform of the Alabama convention, and as is well known, a disruption of the party followed. The subsequent results of that event are too well known to be repeated here.

The election of Mr. Lincoln in the quadrangular presidential contest, precipitated the crisis. Secession followed with William L. Yancey as its chief apostle. His vast powers now at their zenith, were brought into full exercise, and the country rang throughout with his fearless declaration of states' rights. In the creation of the new Confederacy, Mr. Yancey bore a conspicuous part, and President Davis left to his choice any position which he might accept, and he chose the mission to Great Britain.

In England he employed every honorable means to induce the recognition of the Southern Confederacy, as an independent power, but his efforts were unavailing. At the end of a year he returned to America and announced that if the South should win her independence it would be the result of her own effort. During his absence abroad Mr. Yancey was chosen as senator to the Confederate congress, but his leadership in that body was obscured by the diversion of public thought to the armies on the field.

Mr. Yancey died near Montgomery in July, 1863. Had the Southern Confederacy succeeded, and had Yancey lived, his popularity would have been boundless, but with the "lost cause" was linked in the minds of many, the diminution of the fame of the splendid and brilliant leader of the cause of secession in the states of the South.

HENRY W. HILLIARD

Among others who have contributed to the greatness of the commonwealth of Alabama should be named Gen. Henry W. Hilliard, whose career was both eventful and remarkable. His early life was distinguished by a precocity which showed itself in his graduation with distinction from South Carolina College, in its palmyest period, at the early age of eighteen.

At twenty-three Mr. Hilliard was chosen a professor in the University of Alabama, in which position he not only sustained his earlier reputation as a scholar, but was quite a favorite in the best circles of Tuscaloosa society because of his rare social qualities. At twenty-four he was selected by the legislature of Alabama to deliver an address on the occasion of the death of Charles Carroll, the last of the signers of the Declaration of Independence. Though notified of his choice for this function but a few days before the oration was to be delivered, Hilliard acquitted himself with merit, and at once established his fame for scholarship and oratory in Alabama. The address was published by the legislature of the state and popularly read.

Having been admitted to the bar at Athens, Ga., where he practiced two years before removing to Alabama, he resigned his professorship after three years, removed to Montgomery, and resumed his law practice. Being a licensed minister of the Methodist Episcopal Church, he would now and then preach. He soon entered on a good practice in Montgomery, and became a favorite in the most intelligent social circles of the capital city, where his graces were much admired.

In 1838 Mr. Hilliard entered on public life as a representative in the legislature from Montgomery County, was a delegate to the Whig convention in 1840, for he belonged to the state's rights wing of that party, and assisted in the nomination of Harrison and Tyler, he being responsible for the nomination of Mr. Tyler for the Vice Presidency. Placed on the electoral ticket in Alabama, he canvassed the state in the interest of Harrison and Tyler. In 1841 he was elected to Congress, declining a foreign mission that year, but later accepting the mission to Belgium, which was

tendered him by Mr. Tyler, who after becoming President recognized the service rendered by Mr. Hilliard in his behalf in procuring for him the Vice Presidency.

Resigning after two years of service at Brussels, Hilliard returned to Alabama, and was successively elected to congress for a period of years, defeating, at different times, such men as John Cochran and James L. Pugh, both of Barbour. So creditable was the first speech made by Mr. Hilliard on the floor of congress, that ex-President John Quincy Adams, then a member of the House, went across the hall to congratulate him.

In congress, as ever elsewhere, Mr. Hilliard impressed all, not only by his ability as an orator, but as a scholar, and a resourceful one. The recognition of this latter fact led to his appointment as one of the original regents of the Smithsonian Institution. His varied ability resulted in unusual demands being made on him, for he was diligent, active, and resourceful, and measured up to every obligation imposed.

Mr. Hilliard was on the electoral tickets of Fillmore in 1856, and of Bell and Everett in 1860. In the formation of the Southern Confederacy he was one of the commissioners appointed by President Davis to assist in the adjustment of Tennessee matters preparatory to the admittance of that state into the new confederation. During the Civil War he raised a body of troops which was known as Hillard's Legion, and was given a commission as brigadier general. After the close of hostilities General Hilliard located at Augusta, Ga., where for a while he engaged in the practice of the law, and later removed to Atlanta.

He was appointed by President Hayes minister to Brazil, which position he filled during the years 1877-81, and the mission to Germany was tendered him when that of the Brazilian should close. Among the brilliant events which entered into his life was that of a participation in the emancipation of the slaves in Brazil during his incumbency of the diplomatic ministry to that country. It was during that time that the question became a paramount one in that country, and his views were sought concerning the results in the North American states, in reply to which solicitations he wrote a long letter, which was a turning point in the colossal movement, and assured the success of the proposed reform. In appreciation of this service a great

banquet was given in his honor in Rio Janeiro, on the occasion of which he delivered an address which was as remarkable as the letter which he had previously written. Both the letter and the address were embodied by Lord Granville, secretary of state for foreign affairs, in the Gladstone ministry, in the official blue book of Great Britain.

In a brief sketch like this, so imperfectly drawn, one gains but an imperfect idea of the manysidedness of the character and usefulness of General Hilliard. As orator, statesman, diplomat, author and soldier, General Hilliard led a long public career of unusual distinction, marked by utility and crowned with intellectual luster.

He had not the consummate skill and gifts of oratory possessed by his gigantic rival, Yancey, whom he encountered at different times in debate. Hilliard was an elocutionist rather than an orator, and brought to the stump and forum all the culture and niceties of that art. He was to Yancey that which Edward Everett was to Webster. Webster and Yancey were like mountain torrents, bearing all before them with resistless force. Everett and Hilliard were like the summer brook, winding with graceful curve amidst green meadows, flashing in splendor, but fructifying in their onward course. The ability to speak effectively was derived by Hilliard more from culture; that of Yancey more from nature. Hilliard could speak on almost any occasion with effectiveness; Yancey needed the afflatus of the hour derived from a sea of upturned faces, an expectant multitude, a subject of consuming interest. Gifted with a voice of music, the diction of Hilliard was classic, facile and fervid.

Like a few others of our public men, Hilliard found diversion in the employment of his fertile pen, from which came such productions as "Roman Nights" and "De Vane." Throughout his life he illustrated the character of the Christian statesman.

JEREMIAH CLEMENS

Jeremiah Clemens was a favored son of fortune. His career fell on the palmiest period of southern history. Possessed of varied talents, his life was correspondingly varied. He had power, and when exercised, the result was tremendous. His intellectual strength was of a high order, his literary taste delicate, his ability to command unquestioned, and his oratory brilliant and potent. His varied gifts led him into the four departments of law, politics, war, and literature. In none of these was he deficient, for he was an able advocate, a statesman of undeniable ability, a commander of no mean qualities, and a writer whose skill and deftness of touch made him popular.

The scholastic advantages of Colonel Clemens were superior. First a student at LaGrange College, at that time a school of high class, he completed his course at the University of Alabama. He afterwards took a law course at Transylvania University, Kentucky, and entered on the practice of law in 1834. His first public service was as United States District Attorney, and for a period of years he was a member of the legislature of Alabama.

The spirit of the warrior and patriot was stirred within him by the struggle of the Texans for independence, and he raised a voluntary force to join in that contest. Of this regiment thus voluntarily raised, he became the lieutenant-colonel. The command marched westward, shared in the battles of that land of plains, and returned when the struggle was ended. Again entering politics, he represented his county in the legislature of Alabama, where he won distinction as a debater and statesman, and later he became a Democratic elector in a presidential contest. In all these stations Colonel Clemens showed more than ordinary ability and won a degree of distinction.

Having gotten a taste of war in the struggle in Texas, he was again induced to employ his sword in the Mexican War. Becoming lieutenant-colonel of the Ninth Infantry, his command participated in a number of battles in Mexico. In 1849 he was appointed governor of the civil and military department of purchase in Mexico. In this connection he served till the

close of the war with Mexico, after which time the army was reduced and Colonel Clemens returned to Alabama and resumed the practice of law.

Vast opportunity had thus been afforded this gifted man for the enlargement of his vision of affairs, and it had not been slighted. His military career had served to bring him into increased conspicuousness and to enhance his popularity. When Hon. Dixon H. Lewis died in New York, Colonel Clemens was elected to fill his unexpired term.

All this had been achieved by Colonel Clemens by the time he was thirty-five years old, a period when most men begin the accomplishments of life. In a wide and commanding orbit such as was afforded in the United States Senate, Colonel Clemens came to be one of its most popular members. He was an orator of the Ciceronian type, and his utterances flashed with the radiance occasioned by the friction of intense thought. His combined qualities and varied experience in different spheres of life served him admirably when on his feet in the Senate chamber. He could husband his resources with skill and with remarkable readiness, and his sentences fell from his lips like minted coin fresh from the stamp—bright, beautiful, and warm. Independence and self-assertion he had in abundance, nor was he lacking in genuine courage, but his temperamental disposition lent to these qualities a degree of dash which sometimes betrayed him into rashness which often induced men to hesitate to follow his leading. The spirit of the warrior in battle was often his in the rough and tumble of debate, but he found that the dash of the field in the leadership of man would not prevail in the cool, staid thoughtfulness of the forum. He was the dash of the mountain stream rather than the buoying and staying power of the deep lake. A rapid thinker and a man of brilliant action, he was more the subject of impulse than of calm and judicial poise. This neutralizing element alone prevented Colonel Clemens from becoming a great leader. That he had the qualities of leadership none denied, but he lacked the poise that made his position a stable one. Still this did not prevent his attainment to national distinction as a United States senator.

In the indulgence of his literary tastes Colonel Clemens published, in 1856, his first book, "Bernard Lile," a romance fascinating alike for its rosy diction, its rapid movement, and its shifting episode. At the time of its appearance, the work created a considerable sensation. This was followed

two years later by his second work, "Mustang Gray," which was born of his observations and experiences in the Mexican War. The first work prepared the way for a wider circulation of the second, the popularity of which was derived in part from its proximity, in point of appearance, to the scenes and events of the recent war with Mexico. For a season "Mustang Gray" was the reigning novel. Within little more than a year from the time of the appearance of "Mustang Gray" there came from the prolific pen of Colonel Clemens "The Rivals," based on the stirring scenes grouped about the period of Aaron Burr and Alexander Hamilton. The cast of the novel as a work of art has changed since the time of the appearance of these stories, but they aptly represent the romance of that period, and are not wanting in genuine merit.

Politically Colonel Clemens was a Unionist. He belonged to the school of politics of which Benjamin H. Hill was a conspicuous representative. From his antecedents and his cavalier dash, the inference would logically be that Jeremiah Clemens would be an ardent secessionist, but he was opposed to immediate secession, and preferred the adoption of a co-operative policy, after a thorough consultation of the states, which was aggrieved by the election of Mr. Lincoln. While opposed to the ordinance of secession, Colonel Clemens voted for it by a surrender of his conviction, because, such was the condition of the time, that not to support it would have placed him in opposition to his native state. In an emergency like this Colonel Clemens yielded his convictions and went with the state. He was appointed a major general, commanding the state troops of Alabama, a precautionary step taken by the state, provided it should be thrown back on itself as a result of its voluntary withdrawal from the Union. The union proclivities of Colonel Clemens never forsook him, and during the latter part of the Civil War he went to Philadelphia, where he wrote an unfortunate pamphlet, ill-timed and unwise, which gave great offense. He died near the close of the war.

THOMAS H. WATTS

The name of Thomas Hill Watts in the records of the state is inseparable from a high standard of professional, public, and moral greatness. Gigantic in person, he was equally so in all things else. He was long in the public eye, and bore himself with so signal greatness that he is remembered as one of the most conspicuous public figures that ever graced the annals of Alabama. Distinguished by unusual parts even in his boyhood days, his father, who resided near Butler Springs, in Butler County, gave to the promising son the best advantages then afforded in scholastic training by sending him to the University of Virginia. At that time that institution was pre-eminently the greatest in the Union. Following the popular trend of those days, pursued by almost every young man of promise, Mr. Watts chose law as a profession, and began practicing at Greenville. He soon distinguished himself at the bar, and while still a young man was chosen to represent Butler County in the legislature. For three successive sessions he was the choice of his county for this position, and maintained himself with meritorious merit, as is shown by the repetition of his election so long as he would serve.

Locating in Montgomery, he entered on a successful practice of his profession, and for a long period of years preserved the reputation of being one of the leading members of the Montgomery bar. In 1855 he was again summoned from private life to represent his party, the Whig, in a contest for congress against Col. James F. Dowdell. Mr. Watts was defeated after an exciting canvass, but the campaign resulted in his acknowledged leadership of his party in the state. In the memorable presidential campaign of 1860, Mr. Watts was the leader of the electoral ticket in Alabama for Bell and Everett. Being a union man and opposed to secession, his patriotism rose superior to his party fealty, and after the election of Mr. Lincoln, Mr. Watts was as pronounced a secessionist as any. Under existing conditions he recognized the fact that not to go with his state was treachery, his position and sentiments being precisely those of Gen. Robert E. Lee. Men of this school of thought deplored the necessity of war and would gladly have averted it if possible, but when it became inevitable there was but one

course left open. Consequently in the constitutional convention of 1861 Mr. Watts was as ardent in the expression of southern rights as was Mr. Yancey himself. The country was in the ferment of agitation and hostility. The south was threatened with invasion, and every patriot was stirred. Thomas H. Watts was among the first to raise a regiment and offer his services to the Confederacy. Becoming the colonel of the Seventeenth Alabama regiment, his command saw its first service at Pensacola, which at that time seemed to be destined one of the strategic positions of the approaching conflict, but the regiment was soon ordered to join the army of Gen. Albert Sidney Johnson, in Tennessee. In the battle of Shiloh Colonel Watts displayed the qualities of a soldier equal to those shown by him in other spheres which he had occupied. He was cool, courageous, and daring under fire, to so marked a degree that he won the attention of his superior officers, and his conduct in that battle became a subject of popular comment throughout the country.

Much to his surprise, while in camp at Corinth, Miss., he was summoned to Richmond by President Davis, who offered him the portfolio of the attorney general in his cabinet, a place made vacant by the appointment of Hon. Judah P. Benjamin as secretary of war. Responding to the call, Colonel Watts resigned the command of his regiment and went immediately to the seat of the Confederate government. Here he remained in the cabinet of Mr. Davis till October, 1863, when he resigned to offer for the governorship of Alabama.

The struggling Confederacy had now reached its crisis. The position to which Colonel Watts was elected, as governor of Alabama, was one of the most trying possible. The administration of his predecessor had been attended by storm and tumult. A dire extremity confronted the new and struggling republic, as in its efforts it was seeking to gain a solid footing. Disaster had followed disaster, relieved only by the brilliant achievements of the southern soldiery against formidable odds. Thenceforth it was a fight for life.

From the outset, his position as war governor of Alabama was beset by gigantic perplexities, but bringing to the task his resources and skill, he was enabled to effect as much as any one could under prevailing conditions. He turned to practical advantage the limited means within reach, and won distinction by his mastery of a difficult situation. The geographical situation

of Alabama, as the center of the Confederacy, with one of the stormiest seats of war in the adjoining state on the north, and with a seaboard exposed on the south, it was inevitable that the state would share in the invasions to which were subjected the states adjoining.

In April, 1865, Montgomery fell into the hands of the enemy. Besides much patriotic sacrifice as a public official, Governor Watts suffered immensely in his private fortune, as one of the consequences of the invasion. The enemy seemed to find special pleasure in wreaking his vengeance on a man who had been so conspicuous since the beginning of the struggle. The federal troops burned two hundred and fifty bales of cotton on his plantation, besides three thousand bushels of corn, much of which was sacked ready for distribution among the suffering people of his native county, Butler. His meat supplies were also destroyed, and his plantation depleted of stock, among which were forty valuable mules. In a single day he was reduced from wealth to poverty, in consequence of his loyalty to his native state and section.

But sustained by an unusually happy temperament and an optimism which was inspired by hope, he at once opened his law office, after the cessation of hostilities, and devoted himself again to the practice of the law in the city of Montgomery, to which he devoted the remainder of his life. His last years were characterized by an ability which comes of a pre-eminent native intellect, reinforced by long experience and years of garnered wisdom. To have heard him in the courts would sometimes remind one of a Titan sweeping a continent of thought. Besides, he was a good man. It is to his credit, as a public servant, that amidst the most stirring periods through which the state passed, he was not only abstemious of all intoxicants, but enjoyed the distinction of never having offered to another a drink. A devoted Christian gentleman, he lived and died.

J. L. M. CURRY

Jabez L. M. Curry was one of the most noted and brilliant sons of Alabama. His was a long, stirring and useful life. Filling divers stations of trust, he proved to be the equal of any. Statesman, soldier, minister of the gospel, educator, publicist, reformer, diplomat—all these spheres were held by him with distinction. His versatility of gifts was wonderful, his accomplishments striking. Polished, scholarly, wise, eloquent, genial, he was easy of adjustment to all stations and relations, and bore himself throughout life without the slightest whisper of disparagement to his character or career.

A native of Georgia and a graduate from the university of that state, he took a law course at Harvard in 1845. He became a resident of Alabama in 1837, and after the completion of his scholastic and professional courses he entered on the practice of law. His talents veered more in the direction of public affairs than toward the law office or the court room, and in 1847 he was in the legislature, a representative from Talladega County. In this capacity he served till 1856, when he became a Buchanan elector.

The popularity thus obtained by Mr. Curry enabled him to go to congress for two consecutive terms, and in 1861 he entered the Confederate congress, where he served for two terms. Entering the army he was lieutenant colonel of the Fifth Alabama Cavalry regiment, in which he served till the close of the war. He became an active participant in the struggles which attended on the period of reconstruction, and in the seventies entered the Baptist ministry, preaching with the same acceptance with which he had served in other stations. He was never a pastor, and eventually gave up preaching, but preserved a blamelessness of life that has made his memory one to be revered by all who knew him.

From 1866 to 1868, he was the president of Howard College, then at Marion.

For a period of years Dr. Curry was a member of the faculty of Richmond College, Virginia, where he found opportunity for the indulgence of his literary tastes which were superior to those of most public men. While in

the early part of his career he was reserved and silent, for the most part, in the deliberative and legislative bodies of which he was so often a member, he became in the meridian of his splendid powers one of the most attractive speakers in the country. His elements of strength as an orator were forcefulness, impressiveness and projectility of power which carried earnestness and elegance of diction. Welling from intensity of conviction and profound conscientiousness, men saw and felt that he was absolutely sincere, believed that which he advocated, and this gave him immense force before a public assemblage.

Becoming the general agent of the Peabody Educational Fund, in 1881, and later of the Peabody and Slater Funds, he did much for the promotion of the education of both races in the south. In this capacity Dr. Curry was frequently brought before the legislatures of the different states of the south in the urgency of appropriations for educational purposes, and was a vigorous contributor to the cause of general education for a long period of years.

In 1885 he was sent as United States minister to the court of Spain, and was a warm personal friend of King Alfonso XII, who died before the birth of his son, the present monarch of that country. On the occasion of the coronation of Alfonso XIII, the present king of Spain, Dr. Curry was sent as special ambassador of the United States to Madrid, where he was greeted with the same cordiality as was accorded to him in former years, during his service as minister to that country.

Highly favored with fortune throughout his life, Dr. Curry found time and leisure to gratify his taste for literary pursuits, which enabled him to enter the field of authorship and to produce a number of valuable works. Besides many small works, usually of a religious character, Dr. Curry wrote "Constitutional Government in Spain," a "Life of Gladstone," "The Southern States of the American Union," and "The Civil History of the Confederate Government."

On the occasion of his death a few years ago at Richmond, Va., the recall of his long and varied life and services was a subject of much favorable comment in the press throughout the nation. For almost sixty years he had been uninterruptedly before the public, in a variety of capacities, rarely

equalled in number by any one. The ability with which he was able to adjust himself to the demands of these varied stations occasioned much astonishment and favor of comment.

In the quieter walks of life, Dr. Curry acquitted himself as he did while in the public gaze. A polished and accomplished gentleman, with a striking personality, he was equally accessible to the learned and the humble. Absolutely free from austerity or the semblance of arrogance, preserving throughout a gentle dignity, his demeanor was alike to all. It is not a matter of wonder therefore that he was universally popular.

Typically southern in thought and sentiment, and representing that which was highest in the life of the social South, no one of either section ever excelled Dr. Curry in the interest which he entertained for the negro race. Some of the most striking and eloquent passages in his addresses before the legislatures of the states of the South were earnest pleas in behalf of the education of the negro. Both North and South he fairly represented the black race, and regarded the whites of the South providentially entrusted with a trusteeship of these people, which obligation they should not deny nor avoid. He was in thorough accord with Bishops Haygood and Galloway of the Methodist Episcopal Church, South, in his advocacy of the claims of the negro to justice and protection, and for equipment for the greatest possible usefulness.

There was a rotundity and symmetry of character and of career in Dr. J. L. M. Curry that made him a very remarkable man. His relations of friendship extended from men in the loftiest stations of American life to that in the lower social rounds.

With a long life of distinguished ability in so many directions spanning a period of three score years, it is not to be wondered at that when the most typical American was sought to be represented in Statuary Hall, at Washington, the popular eye was directed at once to Dr. Jabez LaFayette Monroe Curry.

ROBERT E. RODES

Of the many chieftains developed from the Alabama soldiery during the Civil War, none eclipsed in dash, efficiency, and brilliance of leadership, Gen. Robert Emmet Rodes. A native of Virginia, and the son of Gen. David Rodes, the subject of this sketch was trained for war by a thorough military course at the Virginia Military Institute at Lexington, from which institution he was graduated on July 4, 1848. So distinguished had been his career as a student, that he was retained for two years as assistant professor, and when a commandant was to be chosen, the name of Rodes was mentioned in close connection with that of Thomas J. Jackson, afterward "Stonewall," for that position.

Entering on the career of a civil engineer, Rodes was first employed in that capacity in his native state, in the construction of a railroad, but he was later induced to go to Texas as an engineer. In 1855 he became assistant engineer of the Alabama and Chattanooga Railroad, where after two years' service he was made chief engineer, during which time he was located at Tuscaloosa, where he was married.

He was a resident of Tuscaloosa when the war began. Even in advance of a declaration of hostilities he raised a company of cadets and went to Fort Morgan. In the spring of 1861 he became the colonel of the Fifth Alabama regiment, which command saw its first service at Pensacola. It was here that he gave evidence first of his superior soldiery qualities on the drill ground and the camp. Superb and exacting as a drill officer, and a martinet in discipline, he did not at first impress a citizen soldiery, and to the proud southern youth, unused to control, the young colonel was not at first popular. In disregard of all this, he pitched his code of discipline on a high plane, and enforced with rigid hand the strictest army regulations.

While the raw volunteer troops were lying inactive at Pensacola, the authorities watching the drift of the initial events of the war, Colonel Rodes was daily drilling his troops, and gave them a pretty thorough taste of war, even in the camps. When later in the spring of 1861 his command was

ordered to Virginia, it was believed by many competent officers that Colonel Rodes had the best drilled regiment in the army. So distinguished did the regiment become in army circles, that officers of other commands would attend on the drill of the Fifth Alabama regiment to witness the accuracy of its evolutions and to note the perfection of the condition of the accoutrements of each soldier. When the young troops had become inured to actual army life, and the habits of the soldier had become fixed by reason of time, the rigid and exacting commander was transformed into an object of admiration, and that which at first excited opposition was transmuted into popularity.

The regiment of which he was the colonel barely missed becoming engaged in the first battle of Manassas. The regiment, belonging to the command of Gen. Joseph E. Johnson, came upon the scene just after McDowell's lines broke, and the flight to Washington began.

In October, 1861, Rodes was made a brigadier general. He was under fire at Williamsburg, but the battle of Seven Pines was the first in which the command was actually engaged. Here the estimation of the troops of their brilliant young commander was greatly heightened, as they were led by him in this series of bloody contests. In this battle, Rodes received a wound in his arm, but was able to lead his troops into the battles of Boonsboro and Sharpsburg. At Chancellorsville, one of the bloodiest of the war, Rodes was entrusted for the first time, with the command of a division, one of the three of Jackson's corps.

The division of which he had command led the army in the assault on the enemy, and thrilling his troops with the cry, "Forward, men, over friend and foe!" they fought with unwonted valor. With an impetuosity rarely witnessed, the division commanded by Rodes swept like a wave on a stormy sea to the utter dismay of the enemy.

As is well known, both Generals Jackson and A. P. Hill were wounded during the night, and on the young commander was imposed the movement so auspiciously begun, which movement was checked only by the darkness of the night. General Rodes was preparing to renew the daring movement with the break of day, and would have done so, had not Gen. J. E. B. Stuart

arrived to take command, in response to a message from Colonel Pendleton of the artillery.

On the arrival of Stuart, Rodes quietly yielded the command, under the impression that the superior officer could inspire more confidence in the troops. That General Rodes would have more successfully executed the original plans had he retained command, was the belief of not a few army officers. In view of his brilliant movements on the preceding day, confidence in him was well nigh supreme. As a result of his skill and courage on the field at Chancellorsville, Rodes was made a major general. Appearing before his old regiment, he made the fact known, and said: "The Fifth Alabama did it." It proved as easy for him to command a division as it had previously been that of a regiment, as was shown in the battles of Gettysburg, the Wilderness, Spottsylvania and the second battle of Cold Harbor.

By this time, Rodes had become the idol of his troops, and his skill and fighting qualities were subjects of general comment throughout the army. So impressed was General Lee by his splendid charge at Gettysburg that he sent an officer to General Rodes to thank him and his gallant command for their conduct in that bloodiest battle of the Civil War.

On the retirement of Early's corps from Maryland, Rodes was in position to inflict severe blows on the enemy at Castleman's Ferry and Kernstown. At Winchester, he fought his last battle. His death was a calamity to the army. As General Early testifies in his history, "In the very moment of triumph and while conducting the attack with great gallantry and skill," General Rodes was killed by the fragment of a shell striking near his ear. He survived the wound but a few hours.

On the night following the day in which he fell, many of the wounded of his command were huddled in a large warehouse near the scene of conflict. The groans of the suffering men filled the air, none of whom had heard of the fate of their loved commander. The wareroom was densely dark, to which was imparted additional horror by the piercing moans of the suffering. During the reign of terror, another ambulance train brought in a fresh supply of wounded from the field. Some one overheard the remark that General Rodes had been shot through the head on the battlefield and was dead. For

an instant every voice was silent, and in another, men began to weep like babes, over the fall of their great and gallant general.

Rigid as General Rodes was, even sometimes to sternness, his troops almost worshipped him, and a sight of him invariably evoked cheers which were rarely given to any excepting to Lee and Jackson. In his work on the war, General Early says of Rodes, "He was a most accomplished, skillful and gallant officer upon whom I placed great reliance."

As a soldier, he acted in thorough response to duty, and as a commander he demanded the same respect for duty which he himself exemplified.

JOSEPH WHEELER

If ever one honorably won a sobriquet it was “Fighting Joe Wheeler.” He was a born fighter, a bold and brave commander, and an efficient officer. The beginning of the Civil War found him in the regular army as a lieutenant of cavalry, located in New Mexico, having graduated from West Point just two years before. When he resigned his commission in the army of the United States and offered his sword and service to the Confederate states, he was just twenty-five years old.

His ascent in promotion in the army of the Confederacy was rapid. First becoming a lieutenant of artillery, he was promoted to a colonelcy of infantry, then he became a brigadier general, later a major general, and the close of the war found him a lieutenant general of cavalry.

So early as 1862, little more than a year after the war began, he commanded the cavalry corps of the western army, and was made senior cavalry general of the Confederate armies on May 11, 1864. He had been in the army scarcely a year before he received the thanks of the Confederate Congress for his magnificent service, and of the legislature of South Carolina for his defense of Aiken.

Always active, his course through the turbulent years of the Civil War was marked by a series of splendid achievements, scarcely equaled in number by that of any other officer in the army. Without the dash and daring of Forrest, Wheeler was just as effective a fighter. Forrest’s method was that of Indian warfare, keeping an eye always on the slightest advantage afforded, and at great risk oftentimes going to a reckless extent in order to win. He would often win all by risking all. In his case this proved effectual, and so signal became his success, and so often, that the enemy came to regard him as a sort of wizard of battle.

As a West Pointer, Wheeler was far more scientific in his methods and movements, and more cautious, but dashing as any when occasion required. His were the tactics of the schools; the tactics of Forrest found apt

expression from him on one occasion when he said that his plan was “to get thar first with the biggest crowd.”

It was Wheeler who captured General Prentiss’ division in the battle of Shiloh, and later with his division of cavalry covered the retreats from Shiloh, Corinth and Perryville, and accomplishing this with such skill as to win the commendations of the Confederate generals.

At Murfreesboro he was again conspicuous, turning Rosecrans’ flank, capturing many prisoners and wagons, and destroying gunboats and supplies. He distinguished himself at Chickamauga, and after the battle had been fought made his famous raid around Rosecrans’ rear, destroying one thousand two hundred loaded wagons. Wheeler’s feats of valor in east Tennessee and in the retreat from Missionary Ridge and during the eventful struggle from Chattanooga to Atlanta were marvelous. In his active strategic movements he captured many wagon trains, thousands of beef cattle and thwarted Cook’s great raid.

Wheeler saved Macon and Augusta during Sherman’s march to the sea, and by hanging on the flanks and rear of Sherman, harassed and embarrassed him during his invasion of the Carolinas. For the services rendered in Georgia in the protection of two of its chief cities, he received the personal commendation of President Davis.

Wheeler’s personal presence in the lead of his command was always an inspiration to his troops. None was braver, and oftentimes he was exposed. In consequence, he was three times wounded, had sixteen horses shot under him during the war, seven of his staff officers were killed, and thirty-two wounded. This brief and rapid summary of his achievements affords but a bare idea of the strenuousness of his career during the stormy days of the Civil War. Becoming a planter after the war closed, in the northern part of this state, he was chosen for many successive years to represent the eighth district in congress. His activity in congressional life was as distinguished as it had been on the field. An indefatigable student of affairs, he rested not till he had probed to the bottom of all important questions. His statistical information was wonderful, and when accuracy on all great issues was needed, it became a proverbial suggestion about the capitol at Washington

to “ask Wheeler.” Frequently he could give offhand a long series of statistics, and was resorted to as an encyclopedia.

When the Spanish-American War began, President McKinley made Wheeler a major general and sent him to Cuba, where he was placed in command of the cavalry. His fighting qualities had not become diminished, nor was his force abated. In the two chief battles, Santiago and El Caney, he was the most conspicuous figure. Smitten by the Cuban fever, he quit his sick bed and went on horseback to the front of the line all day at San Juan, and, though burning with fever, after twelve hours of fierce battle and exposure, interposed before discouraged officers who were suggesting retirement from positions already won, and that could be held only by unflinching bravery, and in the face of every officer indignantly declined to hear of retreating one foot. General Shafter was in command, and Wheeler warned him against the proposal to retreat, and by his splendid and fearless courage of heart and determination, turned the disheartened ones the other way by infusing into them his own tenacity of purpose. The victim of a raging fever, he appeared before his troops at one stage during the hardest fighting at San Juan, and, forgetting, for the moment, his whereabouts, he said in a brief address to his men: “Now, at them, boys, and wipe those Yankees off the face of the earth.” This was the occasion of much merriment, but indicated the spirit of the little man of one hundred and ten pounds who stood ready to lead the charge. Wheeler was the occasion of the success of the two great battles.

At his own request, he was sent to the Philippines, but there he was hampered by the authorities in his operations, while opportunities were given to others. He returned to the United States, was retained with his commission in the service and assigned to duty near New York, where, after a few years, he died.

RAPHAEL SEMMES

No more picturesque figure was there during the war between the states than Admiral Raphael Semmes. As far as one could, he supplied the sad deficiency of the navy to a young and struggling government such as the southern Confederacy was. Daring in the extreme, Semmes was just the man to turn to practical advantage the slim facilities at the command of the infant government of the Confederate States. His was a sort of guerrilla warfare on the high seas.

For a long period of years, Semmes had been a rover of the deep, but, after seeing much service, he had retired to private life. As early as 1826 he was appointed a midshipman by President John Quincy Adams. Later he studied law under his brother at Cumberland, Md., and received his license to practice in 1834. The first duty assigned him in the navy after he had undergone an examination, was that of second master of a frigate, but he was soon promoted to a lieutenancy in the national navy. For several years he cruised the seas of the globe, and in 1842 removed to a home on the Perdido River, and seven years later took up his residence in the city of Mobile.

When the Mexican War began Semmes served under Commodore Conner at Vera Cruz, where he was in command of a battery of breaching guns. Throughout the war with Mexico, he served in the American fleet. After the declaration of peace, he was made inspector of lighthouses on the Gulf of Mexico, and in 1858 he rose to the position of a commander in the fleet, and was made secretary of the lighthouse board, with headquarters at Washington.

Resigning his position when Alabama seceded from the Union, he repaired to Montgomery, the first capital of the Confederacy, where he was made commander of the Confederate navy. With the "Sumter," which Secretary Mallory had named in honor of the first victory of the war, Semmes began his "services afloat." The "Sumter" was a slender vessel and one of small capacity, but it was all that could be practically called the Confederate navy.

But with this light cruiser, Semmes scoured the seas, and within a few months captured seventeen merchant vessels, after which the small vessel was disposed of, and Semmes having the “Alabama,” a real gunboat for that time, built in England, and secretly sent to the Azores Islands, he assumed command of it and began in real earnest an offensive warfare on the high seas. He wrought rapid havoc with his little gunboat, burning fifty-seven of the enemy’s ships and releasing many others on ransom bond. There being no ports open for condemning, Semmes burned his captures as permitted by international law.

Dashing here and there over the deep, the operations of the “Alabama” were a series of brilliant exploits which attracted the attention of the world. Now at the Azores, again within two hundred miles of New York, then appearing unheralded in the regions of the West Indies, he suddenly appears in the waters of the Gulf off Galveston, Texas, sinks the federal steamer “Hatteras,” capturing and paroling the crew, then dashing away to the coast of South America, he crosses the Cape of Good Hope, sweeps over the Indian Ocean, and in his work goes half way round the globe. That which was being done by the most daring and dashing commanders on land, was being done by Semmes on the high seas. Swift and tactical, he would appear at the most unsuspected time and in the most unconjectured quarter, and spread terror and destruction.

For three years, Semmes roamed the seas of the world uninspired by the press and people of the South, for his deeds of daring were unknown, by reason of the blockaded ports of the Confederacy, and yet single-handed the little gunboat accomplished results that were wonderful. The story of a phantom ship ploughing the seas and accomplishing amazing feats, could scarcely be more romantic than was that which was actually done by Semmes and his little gunboat.

The enemy, discovering what havoc the gunboat under Semmes might eventually work, had built a better and stronger vessel of more improved pattern to pit against her. The “Kearsarge” was ready for action early in 1864, and sought the “Alabama” in French waters. Semmes was blockaded at Cherbourg, where he remained as long as he could in a neutral port, and on June 19, 1864, he steamed out of that port, aware of the fact that he was going against a vessel every way his superior. It was known that an

encounter would take place, and the people of Cherbourg sought every elevated place to witness the naval duel. After some slight maneuvering the battle began. A hundred-pound shell was fired from the “Alabama” and was buried in the rudderpost of the “Kearsarge,” which rudderpost was unarmored, and the shell failed to explode. It was well directed, and it is believed that had it exploded the “Kearsarge” would have been sunk. Unharmd by the guns of Semmes, the new vessel did speedy and effective work, and the “Alabama” began to sink. Together with Semmes stood Kell, his second in command, on the deck of the ill-fated vessel, till it was ready to sink, when they cast their swords into the sea and leaped overboard. They, together with the rest of the crew, were taken from the water by the “Deerhound,” an English vessel, and taken to England.

Returning to the South, where he was made rear admiral, Semmes was placed in command of the James River fleet, which suffered destruction on the fall of Richmond. Escaping with his command to North Carolina, Semmes joined the army of General Johnston and his men were formed into a brigade of artillery. The war was now practically over, and Semmes was paroled at the capitulation along with all others, but was afterward imprisoned for several months, and finally pardoned.

After serving as a professor in the Louisiana Military Institute, Admiral Semmes returned to Mobile and began the practice of law, giving his attention, for the most part, to constitutional and international law. He died in Mobile, which city honors his memory, as is attested by a monument which adorns the most conspicuous spot in the city.

The deeds and valor of Semmes have not yet been recognized. Had the independence of the South been achieved, he would have been one of her most honored heroes, but he belonged to a lost cause, and that fact will serve to dim for a period of years his history, but one day it will be known in its fullness, and then will it shine among the most resplendent of the daring heroes of the deep. His career was as brilliant as it was daring.

JOHN PELHAM

The heroism of Alabama manhood was never more essentially embodied than it was in the career and character of the gallant young soldier, John Pelham. His name was repeatedly mentioned on the lips of the Confederate chieftains as “the gallant Pelham.” By no other name was he so generally known in the great galaxy of heroes in the Army of Northern Virginia. Pelham was especially admired by Generals Robert E. Lee, Stonewall Jackson and J. E. B. Stuart. A prodigy of valor, he enjoyed the admiration of the entire army.

The Civil War found Pelham a cadet at West Point. He was then about twenty-two years old. He was not specially gifted in his textbooks, but his work as a student was solid and substantial. Just before he would have received his diploma he quit the military academy, early in 1861, and started southward. The country throughout was feverish with excitement, and everyone going toward the South was eyed with suspicion, which made it difficult to get through the lines. By the employment of stratagem, Pelham was enabled to slip through the lines at Louisville, professing to be a secret scout of General Scott.

Making his way to Montgomery in April, 1861, that city then being the capital of the new Confederacy, Pelham tendered his services to Honorable Leroy Pope Walker, secretary of war, and was at once given a commission as first lieutenant of artillery in the regular army, and promptly assigned to duty at Lynchburg, Va. His efficiency was at once recognized, and he was transferred to Imboden’s battery, at Winchester, where he was assigned to duty as drillmaster.

Pelham’s first taste of war was at the first battle of Manassas, where his skill was so conspicuous and his courage was so daring as to attract the attention and admiration of the commanders of the army. This was followed by a commission to raise a battery of six pieces of horse artillery, which he proceeded to do during the months immediately following the July in which

the first great battle of the war was fought. His battery was rapidly gotten into admirable shape, and he was soon ready for effective service.

The battle of Williamsburg afforded him the first opportunity of engaging the men of his new command. Pelham was so cool and skillful in the fiercest parts of the battle that he excited the wonder of his superiors. With a steadiness unshaken by the thunders of battle, he directed his guns with unerring skill, and no insignificant share of the glory was his as he steadfastly held the enemy at bay. Again at Cold Harbor he displayed so much tactical force combined with accuracy and effectiveness that General Stonewall Jackson grasped the youthful commander by the hand and told him of his high appreciation of the service rendered. At Cold Harbor he engaged three batteries of the enemy with a single Napoleon, and throughout the entire day stubbornly held his position, dealing destruction and death to the enemy. Shortly after the battle of Cold Harbor Pelham's battery engaged a gunboat at the "White House" and compelled it to withdraw.

By this time, Pelham had gained the reputation of a famous boy fighter, and his steadiness in battle would have done credit to a seasoned veteran. His battery became famous, was the subject of general comment in army circles, and the commanders came to lean on the young officer as one of the indispensable adjuncts to the entire command. In a crisis, or at a difficult juncture, young Pelham was thought of as one to meet it.

When the second battle of Manassas opened, Pelham appeared on the field with his guns, rode to the front as though no danger was imminent, coolly placed his battery astonishingly near the lines of the enemy, and while the enemy rained destruction in that quarter, he took time to get well into position, and at once began with fatal effect on the lines of the foe. Here he won new laurels, and in the accounts of the battle his name was mentioned among those of the general commanders. A second time, Pelham was congratulated by General Stonewall Jackson, who in person thanked him for his skill and bravery.

At the battle of Sharpsburg Pelham was stationed on the left of the Confederate forces, where most of the artillery fell under his immediate command, and the havoc wrought by his guns was fearful. Again at

Shepherdstown there was a repetition of the same spirit which he had exhibited on all other occasions. Accompanying Stuart on this memorable march from Aldie to Markham's, Pelham was compelled to fight against formidable odds along the line of march, and at one point he kept up his firing till the enemy was within a few paces of his piece, when he doggedly withdrew only a short distance, secured a better position for his guns, and resumed his firing in a cool, businesslike way.

It was at Fredricksburg that Pelham was more conspicuous than in any other battle. With a single gun he went to the base of the heights and opened the fight with the same indifference with which he would have gone on the drill ground for a parade. His astonishing intrepidity won the attention of both armies, and Pelham at once became a common target to the batteries of the enemy. He was fearfully exposed, and every moment was filled with extreme hazard, but with an indifference which was sublime he kept up his firing and made fearful inroads on the enemy. It was here that there was evoked from General Lee the expression which has become historic. Observing the brave youth from an eminence, as he kept steadily at his destructive work while shells were bursting about him, General Lee said: "It is glorious to see such courage in one so young." Without wavering, Pelham held his position at the base of the ridge till his ammunition was gone and he was forced to retire by a peremptory order. Assigned to the command of the artillery on the right, he was throughout the day in the thickest of the fray, and won from General Lee the designation: "The gallant Pelham." For his gallantry on this occasion Pelham was promoted from a majorship to a lieutenant colonelcy, but was killed before his commission was confirmed by the Confederate Senate.

On March 17, 1863, he was visiting some friends at night, in Culpeper County, when the booming of guns at Kelly's Ford fell on his ear. Excusing himself, he mounted his horse and rode rapidly to the scene of action. His own command had not yet arrived, but he found a regiment wavering in confusion. Spurring his horse quickly to the front of the confused mass, his cool ringing voice restored order, and, placing himself at their head to lead them to battle, a fragment of shell struck the brave youth in the head, and he was instantly killed. The news of the death of Pelham occasioned as much mourning in the army and throughout the Confederacy as there would have been had one of the great general chieftains fallen. Boy as he was, his fame

had become proverbial. His body was sent home for burial, and his ashes repose today at Jacksonville, in his native county, Calhoun.

CULLEN A. BATTLE

While known chiefly as a soldier because of his brilliant record in the late war, General Cullen A. Battle was distinguished as a lawyer, orator, and statesman, as well. The Battles were among the leading families of the state, and were conspicuous in medicine, in law, in education, in theology, in authorship, and in war. The family record is a brilliant one, but our attention is now directed to a single member.

Graduating from the University of Alabama in the bud of manhood, General Battle entered on the practice of law at the age of twenty-two, after having read law in the office of the Honorable John Gill Shorter. Soon after the completion of his studies preparatory to his profession, he removed to Tuskegee and was diligently devoted to his profession for almost ten years. His first appearance in public life was when he canvassed the state in 1856 for Buchanan, being at the time a presidential elector.

An ardent Democrat, he was on the electoral ticket of Breckinridge and Lane in 1860, at which time he spoke throughout the state in company with Honorable William L. Yancey. As an orator, he was gifted with a freedom of utterance and a poetic imagination, while his delivery was one of gracefulness and magnetism. No one more admired the witchery of his oratory than Mr. Yancey himself, whom General Battle accompanied on his tour to the North, and spoke with the South's peerless orator from the same platform in Boston, New York, Philadelphia, Chicago, St. Louis and Cincinnati.

At the outbreak of hostilities, in 1861, General Battle raised a company of volunteers at Tuskegee, which company became a part of the Third Alabama Regiment, of which Tennent Lomax became the colonel and Cullen A. Battle the lieutenant colonel. This regiment represented in part the pick and flower of the young chivalry of the South.

The Third Alabama Regiment was under fire at Drewry's Bluff, but engaged first fiercely in battle at Seven Pines, where the brave Lomax fell, and Battle led the regiment through the fight. In the series of battles below

Richmond he was at the head of the gallant Third Alabama, having been promoted meanwhile to the colonelcy of the regiment. He received a slight wound at Boonsboro, and at Fredricksburg was seriously injured by his horse falling on him. Later we find him serving on the staff of General Rodes in the battle of Chancellorsville. At Gettysburg the whole brigade was quickly repulsed with great loss, all giving way but the Third Alabama Regiment, but rallying later and fighting with renewed power. Under conditions like these Colonel Battle attached his regiment to General Ramseur's command and rendered conspicuous service in checking the tide of temporary defeat.

So pleased was General Ewell with the timely gallantry of Colonel Battle that he promoted him to a brigadiership on the field, which act was soon after confirmed. To him were assigned, as the component parts of a brigade, the Third, Fifth, Sixth, Twelfth, and Sixty-first Alabama regiments. This brigade was the first to encounter General Grant in the Wilderness, and in his report on the battle of Spottsylvania General Ewell says: "Battle's brigade was thrown across Hancock's front and there occurred the hottest fighting of the war." The contest was hand-to-hand fighting, the opposing forces using the bayonet. At Winchester, Battle's brigade entered the action just in time to allow Evans' brigade to rally, while driving the enemy before him. By this time "Battle's brigade" had become so conspicuous a factor in the Army of Northern Virginia as to be signally named for its gallantry. At the battle of Cedar Creek, General Battle led his brigade with singular coolness and courage against the formidable front of the Eighth Army Corps of the federal forces, which corps was commanded by General Crook. In this action, General Battle was struck in the knee, which permanently disabled him so that he could not resume active duty on the field, but he was rewarded with a commission of major general, the commission bearing date of his wound, October 19, 1864.

It was in January, 1864, while Lee's army was in winter quarters south of the Rapidan, that one of those momentous incidents occurred which sometimes profoundly affect large bodies of men. Three Alabamians of the Monroe Guards went at night to the headquarters of Captain T. M. Riley, who was in command of the Fifth Alabama Regiment, and proposed to enlist for the war. These were Sergeant William A. Dudley, a native of Lowndes County, and Privates Daniel C. Rankin and his brother, Duncan A.

Rankin, who now resides at Bynum, Texas. This fact was communicated by Captain Riley on the following day to General Battle, who commanded the brigade, who promptly appeared in person before each regiment of his brigade and appealed for the proposed step to be taken. This was the first brigade or command to re-enlist unconditionally for the war. This act made General Battle historically conspicuous in the annals of the Civil War, and elicited from General Robert E. Rodes the following communication:

“Conduct like this in the midst of the hardships we are enduring, and on the part of men who have fought so many bloody battles, is in the highest degree creditable to the men and officers of your command. I was always proud, and now still more so, that I once belonged to your brigade. As their division commander, and as a citizen of Alabama, I wish to express my joy and pride, and as a citizen of the Confederacy my gratitude at their conduct. To have been the leader of this movement in this glorious army throws a halo of glory around your brigade which your associates in arms will recognize to envy and which time will never dim.”

This communication from Major General Rodes was reinforced by a joint resolution of thanks by the Confederate Congress, in which resolution the name of General Battle is conspicuous as the moving and ruling spirit of this conduct on the part of his brigade.

Resuming the practice of law, at Tuskegee, after the close of hostilities, General Battle was elected to congress from his district, but the Republicans denied to him and to others their seats, and he, and others like him, were disfranchised. He never again appeared in any official capacity, but lived a life of retirement to the close.

His death occurred at the age of seventy-six at Greensboro, N. C., and he was buried at Petersburg, Va. The closing utterance of this hero of many battles was: “All is bright, there’s not a cloud in the sky.”

PHILIP D. RODDY

There is the flavor of the romantic in the life and career of General Philip Dale Roddy. That he should have become the conspicuous figure that he was in the Confederate struggle, was due solely to inherent merit. Born in the town of Moulton, Lawrence County, in conditions humble if not obscure, he was an ordinary tailor in that country town, growing to manhood without an education, and enjoying none, save as he was able to pick up the scraps of advantage afforded in a community noted for its intelligence and educational facilities. There was that about him, however, which won him friends, and when he was twenty-six years old he was elected the sheriff of Lawrence County. Later he was engaged in steamboating on the neighboring Tennessee, in which employment the conflict of 1861 found him.

Raising a company of cavalry for the Confederate service, Roddy became its captain, and was assigned to duty in connection with the western army. He rapidly developed into an excellent scout in Tennessee, was daring, shrewd and tactical, and in the battle of Shiloh, his company was made the escort of General Bragg. His soldierly qualities and genuine military leadership and gallantry were so displayed at the battle of Shiloh, that he received special mention for his bravery. With honors still fresh on him, he returned to north Alabama and easily raised a regiment of horse, in prospect of the threatened invasion of that quarter.

He had a theater of operation all his own in the valley of the Tennessee, and with dexterity he would fall on the enemy here and there, harassing him at every point and checking and foiling his movements. In the latter part of the second year of the war Colonel Roddy succeeded in swelling his small command into a brigade of horse, with which he met an invasion from Corinth under General Sweeney. He met the enemy at Little Bear Creek, outwitted Sweeney, and forced him back to Corinth.

Alert to the movements of the federals, who were intent on gaining a solid footing in north Alabama, Roddy encountered still another raid at Barton's,

and a second time saved that quarter of the state from invasion. The enemy was forced back, Roddy capturing a part of his artillery and inflicting on him severe loss in killed and wounded.

He was now master of the Tennessee valley, and as opportunity would afford, he would cross the river in a rapid raid, make valuable captures, and replenish his stores. At one time he dashed into the federal camp at Athens, taking the enemy completely by surprise, burned a quantity of stores and was off again, the enemy knew not where. Still later, Roddy fell suddenly on Corinth and secured as a trophy of victory six hundred horses and mules, and when pursued by Colonel Cornyn to Iuka, he turned on the enemy and forced him back.

General Roddy became “the swamp fox” of the Tennessee Valley and from un conjectured quarters would pounce on the enemy, inflict severe blows and reap trophies. When Colonel Streight entered on his daring raid through north Alabama, with a force picked for that perilous undertaking and splendidly equipped, and while he was being pursued by General Forrest with a force much inferior, the federal General Dodge entered the valley to cover the movements of General Streight. Acting in conjunction with Forrest, who was in hot pursuit of Streight, and whose command he eventually captured, Roddy, with an inferior force, checked Dodge and contested every inch of advance through Colbert County, thus enabling Forrest to overtake and bag Streight. By this indirect agency General Roddy was a sharer in the brilliant victory of Forrest.

The splendid qualities of General Roddy now attracted the attention of the Confederate government, and, though the theater of his exploits was contracted, he was thought of in connection with John H. Morgan and Mosby. General Forrest had great confidence in his ability as a commander, as was shown on more than one occasion.

For two years Roddy had so stubbornly resisted the movements of the enemy in the effort to broaden the basis of his occupancy in North Alabama, that the skillful commander had restricted him to the two points of Huntsville on the north and Corinth on the south. But Roddy was needed at Dalton for a season, in connection with the general movements of the army, and thence with his command he was ordered. This left the Tennessee

Valley open to the enemy, and he entered it and strongly fortified himself at Decatur. When, later, General Roddy returned to the former scene of his operations he was unable to dislodge the federals from Decatur, but the rest of the territory he steadfastly held. When General Hood succeeded General Johnston in command of the western army, one of his chief reliances was Roddy, to keep open his communications.

Later in the war, Roddy came into more intimate and vital touch with Forrest, who was very fond of him, and co-operated with the great commander in many of his movements, and shared with him in some of his most brilliant victories. A brief sketch like this affords but an inkling of the power of generalship developed by General Roddy. He was a military genius. He was born to command. He was ever alert and active, and had a fondness for the dash of the field. He loved hard service, and rarely failed in an enterprise, for, with all his dash and daring, he was invariably cautious.

No commander in the Confederate army enjoyed more completely the confidence and devotion of his men. After the close of the war he removed to New York, embarked in the commission business, and there died.

W. H. FORNEY

The heroic services and patriotic devotion of General William Henry Forney entitle him to recognition on the roster of Alabama worthies. The contribution of service made by General Forney to the erection of the greatness of the commonwealth of Alabama is deserving of perpetual recognition.

General Forney descended from a family eminent in North Carolina, his grandfather being General Peter Forney of that state, and a granduncle being a distinguished member of congress from the same state. Himself a native of North Carolina, General William H. Forney came to Alabama with his father's family in 1835, when he was a mere boy of twelve years. Reared in Calhoun County, he was educated at the state university, from which he was graduated in 1844, after which he entered on the study of the law.

When the Mexican War broke out, young Forney enlisted in the First Regiment of Alabama Volunteers, commanded by Colonel Coffey, in which command he became a lieutenant, serving as such at the siege of Vera Cruz. Returning home after the expiration of the term for which he enlisted, which was one year, he entered again on the study of his law books. Licensed to practice in 1848, he was the next year chosen a representative from Calhoun County to the legislature. With this single interruption he was devoted to his profession till the declaration of hostilities between the northern and southern states. He entered the army as a captain in the Tenth Alabama Regiment which was destined to suffer from unusual casualties from the first conflict in which it was engaged to the close of the war. The regiment of which he was a member was doing some detached duty at Drainville, Va., when it became engaged with the enemy, and among the seriously wounded was Captain Forney, who was shot in the leg, but within sixty days he was again in command of his company at the front. Meanwhile he had become the major of his regiment, with which he was engaged in the battle of Yorktown. At Williamsburg he was again shot, receiving a very serious wound in the shoulder which disabled his right

arm. Removed to the buildings of William and Mary College, which were temporarily improvised as a hospital, Major Forney fell into the hands of the enemy and was detained as a prisoner for four months.

On his return to his command after his imprisonment, he found himself at the head of his regiment by reason of logical promotion. He had the misfortune to receive another wound at the battle of Salem Church, though the injury was not of a serious nature. While leading his regiment at Gettysburg, he was again most seriously wounded, the arm wounded at Williamsburg, and even disabled, being now shattered. He fell on the field from the terrible shock, and while prostrate, he received another wound by a ball carrying away part of his heel bone. In this precarious condition, he fell into the hands of the enemy, and was retained a prisoner of war more than a year. While confined as a prisoner at Fort Delaware, he was among the fifty officers chosen to be exposed to the Confederate guns on Morris Island, and was taken near the scene ready for such exposure as a matter of retaliation, but humane and timely intervention checked the atrocious design, and in due time Colonel Forney was exchanged. Still a cripple and hobbling on crutches, he returned to his command in 1864, and was commissioned a brigadier general. Though seriously hampered by his maimed condition, he stolidly and heroically bore his misfortune, and led his brigade in the battles of Hatcher's Run, High Bridge, and Farmville. He steadfastly and doggedly clung to his command, rendering valiant and efficient service throughout the entire struggle, and was with his tattered veterans at Appomattox when General Lee surrendered.

Broken in health and disfigured as the result of the casualties of the war, he turned his face homeward, and in his permanently disabled condition reopened his law office for such business as could be found under the widespread demoralization incident to the close of the Civil War. The people honored him with a seat in the state senate, but under the military rule of the period it was denied him. He closed his career at Jacksonville, Ala.

The state has never had a more loyal citizen, as was illustrated by his unselfish devotion to its interest, and the army of the Confederacy no braver soldier. To General Forney patriotism was a passion, as was abundantly shown by the philosophic fortitude with which he bore his misfortunes and

sufferings. Others may have been more brilliant and dashing than he, but he was an illustration of the hero who did what he could, and by dint of actual merit, he rose to prominence in the army and to equal prominence as a civilian.



EDMUND W. PETTUS

Long and notable was the career of Edmund Winston Pettus. Born two years after the admission of Alabama into the Union, he was practically identified with all the great periods which came into the history of the state. Entering life early, he shared in all the epochs from the early stages of statehood till his death at an advanced age.

In many respects, the career of General Pettus was a remarkable one. Left an orphan by the death of his father while yet an infant, General Pettus was reared by a careful and devoted mother. The best possible scholastic advantages then extant were given him, and he was able to lay the basis of a long and eventful career. His scholastic course was taken at Clinton College, Tennessee.

General Pettus was a man of solid qualities, both mentally and physically. He was six feet high, well proportioned, with broad, massive shoulders, a large head and a commanding presence. He began the practice of the law at twenty-eight, and, excepting the interregnum of his career as a soldier of the Confederacy, continued in the profession until he was elected to the National Senate from Alabama. In that capacity he was serving when he died, at the advanced age of eighty-four.

His career as a lawyer began at Gainesville, Sumter County, where he was first associated with Honorable Turner Reavis. His ability was promptly recognized, and soon after beginning to practice, he was elected district solicitor, and re-elected after the expiration of his term, but resigned in 1851, and removed to Carrollton, Pickens County, where he resumed private practice.

In 1853 Mr. Pettus was appointed by Governor Collier to fill a vacancy in the district solicitorship. Characteristically fair and just, he won great favor and popularity throughout west Alabama, so that when he offered for the judgeship of the circuit, in 1855, he was easily elected. This position he surrendered in 1858, in order to remove to Cahaba, then a thriving center of wealth and intelligence, where he practiced law till the opening of the war.

During the early part of the year 1861, troops were rapidly raised and organized into regiments, and as rapidly as possible, sent to the front. In co-operation with Colonel Garratt of Perry County, Pettus raised a regiment of infantry, which became the Twentieth Alabama, of which regiment he became the major, and somewhat later was made the lieutenant colonel of the command.

Assigned to duty in the western army, the regiment did not long remain inactive. Colonel Pettus won laurels by leading the army of General E. Kirby Smith in driving the enemy into Covington and Cincinnati. His regiment was afterward ordered to Mississippi and Colonel Pettus was engaged in the battles of Port Gibson and Baker's Creek. He was captured at Port Gibson, but succeeded in effecting his escape and in rejoining his command. On the occasion of the promotion of Colonel Garratt at Vicksburg Pettus became the colonel of the regiment.

A notable incident in connection with the siege of Vicksburg gave to Colonel Pettus fame for leadership, and for unquestioned courage throughout the army. At an important point in the works the enemy had captured a valuable redoubt, and General Stephen D. Lee was anxious to have it retaken. The undertaking was full of peril, and the success of the undertaking was doubtful. To perform the perilous undertaking, Colonel Pettus volunteered to the commanding officer his services. Neither his own regiment nor any of the others were willing to be led into so perilous an undertaking, but Waul's Texas Legion volunteered in a body to make the hazardous attack. So formidable was the redoubt that the enemy supposed himself secure from attack. Taking advantage of this condition, Colonel Pettus, at the head of the brave Texans, dashed unawares on the enemy, threw the forces into utter confusion, and retook the redoubt, together with one hundred prisoners and three flags. Thirty big guns were at once trained on the point, but Colonel Pettus bore away his spoils without the loss of a man.

At Vicksburg he was again conspicuous throughout the siege, was captured when the city fell, but soon exchanged, after which he was made a brigadier general. His command was engaged in the battle of Missionary Ridge, and was with Johnston in the series of conflicts which extended from Dalton to Atlanta and Jonesboro. When Hood was appointed to succeed Johnston, the

brigade of General Pettus was with the army throughout that disastrous campaign, and no command of the army was more hotly engaged than was his brigade. It was he who forced the passage of Duck River, forming his men in squads in the face of a galling fire from the rifle pits of the enemy, and succeeded in driving him from his entrenchments with the bayonet.

On the retreat of Hood from Nashville the duty of protecting the rear of the army was imposed on the brigade of General Pettus. With intrepid and dogged courage, he held the enemy in check at many points, and perhaps more than any other, saved the army of Hood from utter destruction. His last service was in North Carolina, where his command was engaged in the battles of Kingston and Bentonville, General Pettus being severely wounded in the latter.

The war being over, General Pettus entered again into the practice of law in Selma. He shared in the struggles incident to the era of reconstruction, during the entire period of which he rendered the most faithful service at great personal sacrifice, declining meanwhile any public recognition of his services by official position. His long experience and native skill placed him in the first rank of practice in the Alabama courts, and often his patience was taxed in the courts presided over by the incompetent judges who occupied the bench during the dark period of reconstruction. Among the judges of that time was the notorious J. Q. Smith, as conspicuous for his lack of knowledge of the law as he was for his impudence and presumption. On one occasion there was a ruling of this incompetent official which was so foreign and far-fetched as to evoke from General Pettus the daring remark that in a practice of many years, and as a presiding judge himself at one time, he had never heard of such a ruling. With a complacent and self-satisfactory air the ignorant man on the bench moved himself with greatly assumed composure and replied: "Ah! General Pettus, you have a great many things to learn yet!"

Sharing in all the momentous movements in the political history of the state in the period of rehabilitation following the reconstruction, General Pettus would not consent to accept public office till 1897, when he was chosen a United States senator from Alabama. In this capacity he served till his death, in 1905, he and Senator Morgan dying within a few months of each

other, leaving vacant senatorial representation for Alabama in the highest branch of congress.



ALPHEUS BAKER

The mention of the name of General Alpheus Baker to those who knew him, revives the memory of flashing wit, inimitable mimicry of which he was a master, fascinating conversation, captivating manners and a cavalier bearing, all of which were characteristic of this gallant soldier. The educational advantages of General Baker, while not scant, were those afforded only beneath the parental roof. The father of General Baker was a native of Massachusetts, removed to the South in the early years of the nineteenth century and settled in South Carolina. The father was eminent for his ripeness of scholarship, and his proficiency as a teacher of youth was of the first order. Schooled under the tutelage of a parent like this, young Baker was himself fitted to teach by the time he was sixteen years old. His teaching served to make more compact his education, for, after all, with the real teacher, the question is which learns the more, the teacher or pupil?

While still a young man Alpheus Baker had won distinction as an instructor in the cultured circles of Abbeville Court House, then one of the most elegant little centers in the South. He enjoyed a similar distinction at Lumpkin, Ga., whence he came as a teacher across the Chattahoochee River to Eufaula, in 1848. He was connected with the military school at Glennville, in Barbour County, then one of the most noted military schools of that grade in the entire South. Meanwhile he was engaged in the private study of the law, for the practice of which he applied for license at Eufaula in 1849, when he had just attained his majority. He brought to his profession a fund of ripened wisdom supported by a thorough education and, for one so young, a seasoned experience in the ways of the world. Young in years, he was in experience old. Bright, vivacious and exceedingly genial in disposition and bearing, he was not lacking in a sense of self-assertion and manliness, an indispensable adjunct to success. His manner was popular and he soon became a favorite in the cultured circles of the little city of his adoption.

Long given to close and exacting study and the mastery of principles, Mr. Baker made rapid strides in the profession of his choice. His habits of

promptness, diligence of application, and painstaking care in the management of cases entrusted to him, won him much general and favorable comment not only, but procured for him multitudes of clients and a lucrative practice. In the sixth year of his professional life at the bar, he returned at one term of the circuit court as many as one hundred and five cases.

In the year 1836, when the question of slavery had become a fierce one, and when Kansas, struggling to statehood, became a battle-ground between the pro-slavery and the anti-slavery forces of the country, Major Buford of Eufaula, insisted that by swelling the forces in favor of slavery in the territory now aspiring to statehood, thus making Kansas a slave state, would avert bloodshed. Acting on this suggestion, Major Buford removed to Kansas, and Mr. Baker accompanied him. As is well known, the effort failed, and the Eufaulians returned to await the consummation of "the irrepressible conflict." In 1861 Mr. Baker was chosen one of the Barbour County delegates to the state constitutional convention, in which capacity he was serving when Governor Moore accepted the Eufaula Rifles as a part of the quota of volunteers called for to resist the encroachments of the enemy on Pensacola.

Baker was chosen the captain of this company, and, resigning his seat in the convention, he proceeded with his command to Pensacola, which at that time promised to be the opening scene of the war. The dashing young officer had as privates in the ranks of his company such men as James L. Pugh, E. C. Bullock, S. H. Dent, Sr., Thomas J. Judge, Prof. William Parker of the University of Alabama, and Prof. Thornton of Howard College, at Marion.

In the following fall of 1861, Captain Baker became the colonel of a regiment composed of Alabamians, Mississippians and Tennesseans, and was ordered to Fort Pillow, which was destined later to become a scene of one of the tragedies of the Civil War. Early in 1862 the regiment was captured at Island Number Ten. He remained in prison for a period of five months, when, on being exchanged, he was made the colonel of the Fifty-fourth Regiment of Alabama Volunteers and shared in a number of battles, among which was that at Fort Pemberton and Baker's Creek, in which last named conflict Colonel Baker received a severe wound. In March, 1864, he

was made a brigadier general, and participated in the series of battles extending from the northern part of Georgia to Atlanta. His brigade rendered splendid service in the Carolinas during the declining days of the war. The war being over, General Baker returned to Eufaula, where he resided till his death.

He was a man of rare parts. Jovial in disposition, he was a universal social favorite. A scholar, he found congenial companionship among the learned. A painter and musician, he was at home with the lovers of art. But he is chiefly remembered as an orator. On the stump before a popular audience, in the court room, and on commencement occasions, General Baker was perfectly at home. Diversified, as we have seen, in his gifts, he was equally diversified in his oratory. By the witchery of his oratory he could entertain, amuse, arouse and charm an assemblage. His gift of elocution was superb, and the play of his imagination in speaking, rhapsodical. He was a master of assemblies. He would sway the multitude as does the wind a field of grain. The flash of wit, the power of captivating imagery, the rouse of passion—all these were his to a pre-eminent degree. Back of these lay a pleasing presence and charming manner. The people heard him gladly.

GEORGE P. HARRISON

In a recent work, the title of which, "Social Life of Virginia in the Seventeenth Century," is presented the history of the original families of repute which emigrated from England to the Old Dominion, among the names of which appears that of Harrison. From this family have come two Presidents of the United States, as well as other distinguished citizens in different states of the Union. General George Paul Harrison of Opelika is a descendant of that original Virginia stock which was so conspicuous in laying the foundation stones of the state on the shores of which landed the first English colony. The name of Harrison is found mentioned in many of the southern and western states.

General George Paul Harrison, the subject of the present sketch, was born on the "Montieth Plantation," near Savannah, Ga., March 19, 1841, and bears his father's name in full. The father was for many years prominent in Georgia politics, serving many sessions in the legislature of that state from Chatham County, and during the late war between the states, commanding a brigade of state troops. After the war, the elder Harrison was chosen a member of the constitutional convention of Georgia, aiding materially in framing a constitution adjusted to the new order incident to the close of the war.

Our present distinguished citizen, General George P. Harrison, was classically trained in the famous academies for which Savannah was noted before the period of hostilities, the chief of which schools were the Monteith and Effingham academies. From those advanced studies in his native city, he went to the Georgia Military Institute at Marietta, from which he was graduated in 1861 with the degrees of A.B. and C. E. as the first honor man of his class. He was scarcely twenty at the outbreak of the war, and in January, 1861, he shared in the seizure by the state of Georgia, of Fort Pulaski, which was taken possession of on January 3, 1861. With his course at Marietta still uncompleted, Mr. Harrison enrolled in the service of the state and was commissioned a second lieutenant in the First Regiment of Georgia Regulars. In the spring of that eventful year, while yet war was

undeclared, he was detailed by Governor Joseph E. Brown, Georgia's "war governor," as commandant of the Marietta Military Institute, where he was enabled to prosecute his course to completion.

Rejoining the First Georgia Regulars, he became its adjutant and went with the command to Virginia. He participated in the earliest fighting of the war, was with his regiment at the affair at Langley's farm, and in other brushes with the enemy. In the winter of '61 and '62 he was commissioned the colonel of the Fifth Georgia Regiment of State Troops and was assigned to the protection of the coast of the state for six months, when the regiment was reorganized for regular service in the Confederate army, with the retention of Colonel Harrison as its commander, his command now becoming the Thirty-second Regiment of Georgia Infantry. The regiment was assigned to service at Charleston, where it remained until near the close of the struggle. Though still ranking as colonel, Harrison was in command of a brigade about fifteen months during the years '63-'64. The three brigade commanders, Generals Hagood, Colquitt and Colonel Harrison, commanded, by turn, on Morris Island, during the large part of the siege of Charleston. When the assault was made on Fort Wagner on July 22, 1863, Colonel Harrison was speedily sent to reinforce the garrison, and arrived in the nick of time, saved the fort and put to flight the assailants. In a contest of several days on John's Island he was in complete command of the Confederate forces, and here he won distinction by his coolness, courage, and strategic ability. After the final fall of Wagner, Colonel Harrison was assigned to a separate command, with headquarters at Mount Pleasant, a part of his command still garrisoning Fort Sumter, over which the Confederate colors floated till February, 1865.

During a period of 1864, Colonel Harrison was in command at Florence, S. C., where he built a stockade for twenty-five thousand federal prisoners, who were so humanely cared for by the young commander, as to excite the attention of General Sherman, who, when he captured Savannah, ascertained where the Harrison home was, as the family was now residing in that city, and issued a general order to his troops respecting its special protection.

In 1864 the brigade which Colonel Harrison commanded was sent, together with that of General Colquitt's, to turn back the invasion of the federal

General Seymour, in Florida, the object of Seymour being to isolate Florida from the rest of the Confederacy. Colonel Harrison shared in the honors won by General Colquitt in the decisive battle at Olustee, and was at once commissioned a brigadier, being, it is said, the youngest general in the army. He was not quite twenty-three years old when he received his commission as a brigadier general. His brigade became a part of Walthall's division, Stewart's corps.

On the retirement of the Confederates before Sherman into the Carolinas, the task was assigned to General Harrison of covering the retreat of Hardee. General Harrison shared in the closing scenes of the drama in the Carolinas, was twice wounded, and once had a horse killed under him. He had just passed his twenty-fourth birthday when his command surrendered at Greensboro, N. C.

While in camp General Harrison applied himself to the study of the law as his prospective profession, to the practice of which he was admitted soon after the close of hostilities. Removing to Alabama, he located first at Auburn, and later removed to Opelika, where he has since resided. Elected commandant at the Alabama University, he accepted, after first declining the position, after retiring from which he was made commandant at the state agricultural college, as it was then called, at Auburn. After a year of service there he abandoned all else and devoted himself to his practice.

His service for the public was soon in demand, and in 1875 he was chosen a member of the constitutional convention of Alabama, serving in the same capacity, in his adopted state, in which his honored father was serving at the same time in Georgia. Then followed his election to the state senate, in 1880, he becoming the president of that body in '82, serving two years. In '92 he was chosen a delegate to the national Democratic convention, and in '94 was chosen to fill the unexpired term in congress of the Honorable W. C. Oates, who had become governor, the district indicating at the same time his choice to succeed himself two years later.

As a distinguished Mason, General Harrison is the chairman of the committee on Masonic jurisprudence of the grand lodge of Alabama. The United Confederate Veterans have shown their appreciation of General Harrison by choosing him in twelve successive elections as major general

of the Alabama division. In 1912 he was chosen, at Macon, Ga., lieutenant general of the army of Tennessee department, which position he now holds. A man now of seventy-two, he resides at Opelika, as the chief counsel of the Western of Alabama Railroad.

CHARLES M. SHELLEY

For solid worth, substantial and enduring results, and patriotic service, no Alabamian enrolled among the worthies of the state excelled General Charles Miller Shelley. He was built for service, and was endowed with an energy practically boundless and unconquerable. Denied the boon of an education, excepting to a limited degree, he appropriated readily examples and suggestions, built them into practical force, which he wielded with apt execution as a soldier, citizen, and patriot. The statement of these qualities furnishes an outline of the character of this worthy citizen and brave soldier.

Seized by the enthusiasm which possessed so many of the Alabama youth when first the cloud of war flecked the national horizon, Mr. Shelley joined himself to a military company which went of its own will to Fort Morgan before the war had actually begun. The forts and ports along the seaboard of the South were supposed, at that time, to afford the first theater of the coming conflict. These volunteers eventually returned home, a more thorough organization was effected, and in the company formed at Talladega, Shelley became the captain. This company was one of the original Fifth Alabama Regiment, of which the brilliant Rodes was the first colonel.

For a period Captain Shelley served at Pensacola, till the regiment was ordered to Virginia. As a part of Ewell's brigade the regiment was in close proximity to Manassas Junction, and had a sharp brush with the enemy at Farr's Cross Road, but did not share in the first battle of Manassas.

At the close of the first term of service of enlistment, Captain Shelley resigned as captain, returned to Alabama and raised another regiment, of which he became the colonel. This was the Thirtieth Regiment of Alabama Volunteers, which regiment was assigned to duty in the western army, where it won great distinction for its fighting qualities. In the memorable campaign of 1862, in Tennessee and Kentucky, Colonel Shelley's regiment shared throughout. Subsequently the regiment was transferred to Mississippi and attached to Tracey's brigade, which saw hard service at Port

Gibson. The first hard fight on the field in which the Thirtieth Alabama Regiment shared was at Baker's Creek, or Champion Hills, where Colonel Shelley received special mention at the hands of General Stephen D. Lee, the hero of that battle. Later still, the regiment was at Vicksburg and shared in the result of that ill-fated city.

In the series of conflicts in northern Georgia and in all the fighting between that region and Atlanta, and on to Jonesboro, the Thirtieth Alabama Regiment was conspicuous. At Jonesboro, Ga., Colonel Shelley was placed in command of a brigade, which position he held for a few weeks, when he was placed at the head of Cantey's brigade and given a commission as a brigadier. He was with Hood on the return march into Tennessee, and in the ill-starred battle of Franklin his brigade was a heavy sufferer, having lost six hundred and seventy men out of a total of eleven hundred whom he led into the fight. By an adroit movement at Franklin, General Shelley saved from capture the entire corps of General Stewart, for which skill and gallantry he received special mention at the hands of General Hood. It is a matter of record that but for the generalship shown by Shelley at Franklin, that battle would have been far more disastrous in its results. He came out of the fight with little more than four hundred men in his brigade, half of which number was captured at Nashville.

After these convulsions in Tennessee, contemporaneous with the onward march of Sherman to the sea, thence into North Carolina, where General Joseph E. Johnston was restored to his command, now a fragment of its former self, General Shelley was assigned to duty there. All the twelve Alabama regiments belonging to the army were thrown together into one brigade in North Carolina, and placed under the command of General Shelley. The surrender of Johnston's army resulted in the return of General Shelley to Selma as a paroled soldier.

In the resistance against the encroachments of a dominant force during the direful days of reconstruction, no man in Alabama rendered more patriotic service than Charles M. Shelley. At different times, during the succeeding years, General Shelley was made the campaign manager of the Democratic party in the state, contending often against subtle odds, and to his resourcefulness of leadership was the party largely indebted in its gradual emergence from the throes with which it was afflicted for years. During the

closing years of his life General Shelley became one of the most noted leaders of the Democratic party in Alabama. During the first administration of Mr. Cleveland, he served by presidential appointment as the third auditor of the United States treasury. He was a candidate for the governorship in the campaign which resulted in the election of Hon. William J. Samford. General Shelley died in Birmingham on January 20, 1907.

In a brief review like this, scant justice to the worth of so eminent a man as General Shelley was, both as a soldier and a citizen, is given. Much of his service is hastily passed over, and if at all alluded to, it is in a most generalized manner. The salient facts of his eventful life are barely more than touched, but even from so short a recital of his services, certain unquestioned facts fix his fame.

General Shelley was an intrepid soldier whose pluck in the face of danger was unusual. So far as opportunity was afforded for the exercise of independent action in the tactics of war, he displayed rare qualities of skill as a commander. He met all exigencies without shrinking, and invariably bore his part with the heroism of the genuine soldier that he was. Nor was he less inclined to assume the obligations imposed in later struggles for Democratic supremacy in Alabama. Not a few who rose to political distinction in the state were indebted to the means afforded by the diligent work of General Shelley. The service rendered by him is a part of the state's history during the last half century. In certain instances where junctures arose, it is doubtful that any other could have met them with equal efficiency. No strained eulogism is needed to tell the story of his valiant service—the unvarnished facts are sufficient. Energy, diligence, resourcefulness, courage and a perennial optimism were the qualities displayed by General Shelley in the long service rendered by him to the state of Alabama.

HENRY D. CLAYTON

General Clayton served the state in a variety of capacities. In the legislature, he was one of its most alert and active members as chairman of one of the important committees; as a Confederate commander, he was courageous and skillful; as a circuit judge, he was ranked among the ablest in the state, and as president of the state university he rendered his last service with signal satisfaction.

He was educated at Emory and Henry College, from which institution he was graduated in 1848, and for distinguished scholarship bore away from the college the Robertson Prize Medal. He lost no time after the completion of his collegiate course, for a year later he was admitted to the bar, and entered at once on a successful and lucrative practice. The first eight years of his life were rigidly devoted to the law, and though recognized as one of the ablest of the young lawyers of the state, and one of the most popular, he could not be persuaded to enter on public life.

In 1857, however, he was chosen without opposition to be a representative to the legislature from Barbour County, and again in 1859 he was elected. Mr. Clayton was chairman of the committee on the military in 1861, when Governor Moore called for twelve months' volunteers to go to Pensacola, which was considered to be to the enemy a vulnerable point. At that time, Mr. Clayton was the colonel of the Third regiment of the Alabama volunteer corps, and in response to the appeal of Governor Moore, the services of this regiment were tendered. But as only two regiments were called for, Governor Moore's desire was that they should come from different parts of the state. However, two companies of Colonel Clayton's regiment were accepted and mustered into service.

Pressure was brought to bear on Colonel Clayton to remain in the legislature, but he positively declined to remain, and declared his purpose to enter the prospective army of the Confederacy. Finding that the governor would not accept the entire regiment of which he was the commander, he resigned his seat in the legislature and took his place in the ranks of one of

the companies as a private. Thereupon the governor gave him a commission as aide-de-camp and sent him to Pensacola to receive the Alabama companies as they should arrive, and organize them into regiments. Colonel Clayton had the distinction of organizing the first regiment that was organized for the Confederate service. Of this regiment he was chosen the colonel. The regiment was composed of the pick of young Alabamians, not a few of whom, though already distinguished citizens, were serving in the ranks as privates. Among these may be named Hons. John Cochran, James L. Pugh and E. C. Bullock. Hailing from the same city were Colonel Clayton and these eminent citizens serving in the ranks as privates. It reflected as great honor on these privates, as it did on the young colonel, that while representing the same circle of society at home, in their respective relations as soldiers, the one a colonel and the others privates, there was exercised, on the other hand, the rigid discipline of the officer, and on the other, the prompt obedience of the soldier in the ranks.

Indeed, these prominent citizens were models of obedience to discipline, and sought to render such prompt service as would be exemplary to the men of lesser note in the ranks. They shared the fate of the commonest soldier in the ranks, whether it was with respect to guard duty, throwing up fortifications, or mounting cannon.

Months went past, and the theatre of war shifted to Virginia and Kentucky. While the brave Alabamians remained inactive at Pensacola, decisive battles were being fought in the regions already named. They chafed under enforced retirement, and on the expiration of the term of service of the regiment, Colonel Clayton was urged to reorganize it, but preferring the active service of the field to coast duty, he returned home, organized the Thirty-ninth Alabama regiment, and offered it to the Confederacy. Assigned to duty in the army under General Bragg, Colonel Clayton led his troops into the battle of Murfreesboro, where he received a wound. After a leave of thirty days, he returned to his command, though his wound was yet unhealed, and was surprised by the receipt of his commission as a brigadier general.

His command became noted in the western army for its fighting qualities, and "Clayton's Brigade" was the synonym of dash and courage in all the active campaigns of the western army, and in its long series of conflicts, this

intrepid brigade was engaged. After the battle of New Hope Church, in which engagement General Clayton was again wounded, he was made a major general, which commission he held till the surrender of Johnston in North Carolina. In addition to the wound received at Murfreesboro, he was knocked from his horse by a grapeshot at Chickamauga, and at Jonesboro he had three horses either killed or disabled under him.

After his return home at the close of hostilities, General Clayton was elected judge of the eighth judicial circuit, in which position he served till his removal under the reconstruction regime. After that time, he devoted himself to law and to planting, in both of which he was successful.

After an unsuccessful candidacy for the governorship, General Clayton later became the president of the State University, in which capacity he served to the close of his life.

General Clayton was an excellent type of the old-time Southern gentleman. Free and cordial in intercourse with friends, hospitable, and jovial, he was deservedly one of the most popular citizens of the state, as well as one of the most prominent. He left a record cherished alike by the soldiers of his old command, by the students of the university, and by the people of a great state.

JAMES F. DOWDELL

During his career, Col. James F. Dowdell occupied a number of important and responsible positions. He became a citizen of Alabama at the age of twenty-eight, when he removed from Georgia to East Alabama and entered on the practice of law. His parents were Virginians, his mother being a remote relative of Henry Clay.

Colonel Dowdell was favored by superior conditions in the outset of life, being a graduate from Randolph-Macon College, which has long ranked as one of the best in the South. He was also favored by superior legal training, having studied law under Gen. Hugh Haralson, of LaGrange, Ga.

The gifts and acquirements of Colonel Dowdell were rather unusual. While thoroughly independent in thought, he was modest in his disposition. Unobtrusive, he was yet firm in moral steadiness. Drawn within the circle of enticement by reason of a varied public life, he maintained a character unsmirched, and was honored for his uncompromising preservation of virtue. In this respect, the tenor of his life was uniform. In public and in private, always, he was the same. Nothing fell from his lips that the most refined lady might not hear. Yet in intellectual combat on the hustings, or on the floor of congress, where mind clashed again mind, he was always an antagonist to be accounted with. While in the rush and onset of debate, he never failed to stop at the boundary of propriety. There was an instinctive halt and shrinkage in the presence of wrong. Nothing could betray him beyond.

On the entrance of Colonel Dowdell into public life, which was but a few years after his removal to the state, he was brought into sharp contact with several of the intellectual giants for which that period of the state's history was noted. Five years after becoming a citizen of Alabama, he offered for the legislature, and though defeated in his first canvass, he succeeded in so impressing the people with his forcefulness, that the following year he was chosen as an elector on the Pierce ticket. This afforded an opportunity for the deepening of the impression on the public, and a year later he was

rewarded by his adopted district with a seat in the national congress. By a political move some time later, however, he was placed at a disadvantage. The congressional districts of the state having been reorganized in 1853, he was thrown into the district in which Montgomery was. But reliant on the public for a due recognition of his record, he did not hesitate to offer for re-election in opposition to Hon. Thomas H. Watts, a competitor of gigantic power, skilled in debate, and perfectly familiar with current questions. This was the period when know-nothingism was rampant, and as a political fad, novel and striking, gave to its adherents the advantage of the excitement which it produced. The contest with Mr. Watts was a notable one, the district was agitated as never before by the contesting aspirants, and Mr. Dowdell won by a narrow majority. He regarded this as one of the most decisive victories of his life.

Returning to congress for a second term in 1855, he was again opposed at the end of the next two years, in 1857, by Col. Thomas J. Judge, then in the prime of his intellectual vigor. Again, the greatest forces of Colonel Dowdell were summoned into exercise, again was conducted a notable campaign, and again Colonel Dowdell won. Never violent, and yet never shrinking from an onset in a contest, he had a manner of meeting it, which while it showed he was unafraid, he was thoroughly intent on doing right in each instance, and disdained to seize the slightest advantage, unless it was compatible with the code of right. This did not fail to challenge the attention of the crowds, and elicited not a little popular acclaim.

The reputation gained in two campaigns, the conditions of both of which made them unusually noteworthy, served to increase the grip of Colonel Dowdell at Washington, and profuse were the congratulations of his peers, when fresh from the combat, he returned to resume his duties at the national capital. At home he came to be regarded as invincible, in which opinion some of the lions of the state capital shared. These two contests fixed for all time his reputation in Alabama. The peculiar cast of his ability came to be recognized, he was honored for his sense of absolute fairness, and trusted for his integrity. He had opened the door of opportunity which no man could shut.

After having served in congress for three consecutive terms, Colonel Dowdell voluntarily withdrew, and retired to private life for somewhat more

than a year. The rumblings of approaching war were already in the air, the result of which no thoughtful man of the time could for a moment doubt. War was inevitable. It was a time which called for all the ablest.

From his retirement, Colonel Dowdell was summoned to become a delegate to the secession convention of Alabama. The war followed, and Colonel Dowdell raised a regiment of volunteers, the Thirty-seventh Alabama, which regiment was assigned to duty in the west, under Gen. Albert Sidney Johnson. At Corinth, Colonel Dowdell was distinguished by coolness and courage at the head of his command. Some time later, his frail constitution gave way under the exposure and hardship of the camp and march, and he was forced to retire. Nor was this step voluntarily taken, because he declined to withdraw because of the detriment of the example, and for other reasons, and did so only under orders from a medical board. He was unable to re-enter the army, and addressed himself to his private affairs, aiding in every way possible in the promotion of the cause.

After the war, Colonel Dowdell became the president of the East Alabama College, at Auburn, then a school under the auspices of the Methodist Episcopal Church, South. This school subsequently became the Alabama Polytechnic Institute, which it now is. In this new position, Colonel Dowdell served for a number of years with signal ability. While never a pastor, he was a preacher, and frequently served in the pulpit as a minister of the Methodist Episcopal Church, South. Distinguished in all things that he assumed, or in all positions to which he was called, Colonel Dowdell was most distinguished for his incorruptible character and piety of life. He died in 1871, died as he had lived—a man of piety, an ornament to public life, in private life a fearless citizen, an honor to his church, and one of the first citizens of the state.

LAFAYETTE GUILD

Of the medical profession of Alabama, the man who attained the greatest distinction during the Civil War, was Dr. LaFayette Guild, of Tuscaloosa. He was of a family distinguished in medicine, his father, Dr. James Guild, being one of the most skillful physicians in the country. His operations in surgery ranked with those of Dr. Valentine Mott, of New York.

Dr. LaFayette Guild graduated with the highest degree conferred by the University of Alabama, at the age of twenty. His mental, social and scholastic equipments were of the highest quality, for at that period, none were more highly favored than he. The advantages of a cultured Christian home, the station of which was in the best Southern society, and the stimulus of a literary center, were his, to all of which advantages were added his own energy, application, and diligence.

At the period of his graduation from the University of Alabama, the one great school of medicine was recognized to be the Jefferson Medical College, of Philadelphia. After a three years' course he was graduated from that famous institution. He was a great favorite at the medical college, admired as much for his culture and gentleness of disposition, as for the scholastic rank that he held. The tenderness of his sympathy was shown by the fact that the first time he witnessed the dissection of a human cadaver, he fainted, while another side of his character was shown, when at one time he saved the life of a fellow student by sucking the poison from an accidental wound inflicted while operating. These sufficiently reveal the type of the man that he was.

There was not wanting a strain of the chivalrous dash in Dr. Guild, who, while he loved his profession, was not content to follow the usual humdrum of the physician's life, and consequently chose to adopt the military phase of the profession. He was accordingly appointed an assistant surgeon in the regular army at the age of twenty-four, and assigned to duty, in 1849, at Key West, Florida.

In this semi-tropical region, he was as enthusiastic in his scientific research as he had ever been. From Florida he was transferred to Governor's Island, off Boston, where he was able to bring into requisition the results of his researches in Southern Florida. His valuable service was shown in the prevention of yellow fever from infected ships from the tropics. While stationed at Governor's Island, Dr. Guild wrote a treatise on yellow fever, which was published by the government. He was the first to insist stoutly that yellow fever is infectious, though not contagious, a theory then new, but now accepted.

Nothing relative to the health of the army escaped his trained eye. About the time about which we are now writing, a meat biscuit which was issued to the army, became quite popular, but he condemned it as unhealthful, and was instrumental in inducing its discontinuance.

From Boston, Dr. Guild was assigned to duty on the Pacific Coast, where Gen. Albert Sidney Johnston commanded the Pacific Coast division of the regular army. Dr. Guild's official duties were such as to enable him to witness many scenes of Indian warfare in the Far West. It was while he was serving on the Pacific Coast that the rupture came between the North and the South. Promptly sacrificing his accumulated means, and the popular and lucrative position which he had gained in the army, he resigned, turned his face southward, visited his old home in Tuscaloosa, and repaired to Richmond, where in July, 1861, he was appointed a surgeon in the Confederate army. The following month, he was sent by the Confederate government on a tour of inspection of the hospitals throughout the South.

On his return to Richmond, Dr. Guild was assigned to duty at the front, where his relations with Gen. Joseph E. Johnston became the most intimate, and the families of both constituted a charming circle of army society. Dr. Guild was among many others who insisted that General Johnston was among the greatest strategists of either army.

When General Johnston was wounded at Seven Pines, and General Lee took command, one of the first inquiries of General Lee was: "Where is Dr. Guild? Tell him to report to me at once." It was on the battle field of Seven Pines that Dr. Guild was made medical director and chief surgeon of the army of Northern Virginia, which position he held to the close of the war.

This position placed him on General Lee's staff, and from that time till the close of the long and bloody tragedy, Dr. Guild sustained the closest personal relationship with the greatest southern chieftain.

When General Lee invaded Pennsylvania, he was one day riding through a town at the head of his troops, the people of which town gave every demonstration of hostility to the Confederates. From the windows and balconies of the homes, the women waved flags and accompanied their demonstrations with hissing and jeering. From all this the delicate and sensitive nature of Lee shrank, and, turning to one of his aides, he said: "Bring Drs. Guild and Breckenridge to the front." Two more graceful and commanding personages were not in the army, and when they came galloping up, General Lee quietly placed himself between them, and the three rode abreast. With characteristic modesty, General Lee later explained his reason for summoning the two physicians to the front, by saying he felt sure "the ladies would not ridicule two such handsome men and splendid horsemen as the two distinguished physicians."

The war being over, Dr. Guild went to Mobile, and though still practically a young man, he was wrecked in health by the strain and exposure incident to the long war. His energetic spirit strove with his disabled body, and he entertained the hope that by carefully husbanding his remaining strength he might be able to recuperate. His plan was to begin life over again by entering on private practice in the Gulf city. But his valuable services were soon summoned to another sphere, for he was made quarantine inspector of Mobile during a scourge of yellow fever, and by his skill and diligence stayed its ravages. In 1869, Dr. Guild removed to San Francisco with the hope of resuscitation in an equable climate, but he did not long survive his removal, for on July 4, 1870, he died of rheumatism of the heart in the little town of Marysville, California.

M. W. ABERNETHY

One act is sufficient to distinguish a man if it be of sufficient merit and dimension. It is not only those who are eminent leaders in the field or forum that deserve recognition and encomium at the hands of a grateful people, but others as well, provided that their lives justify it.

Quite out of the current of distinction as that element is recognized, even in the eddies of life, are wrought deeds and lived lives as worthy of applause as that provoked by the flashing sword or the eloquent lip. Nor is it necessary that one be classed among the humble, because of that done aside of the pre-eminent side of life.

In this connection, the name of Major Miles W. Abernethy deserves to be presented among those who wrought in contribution to the erection of our commonwealth. A citizen of Calhoun County, he was a native of North Carolina, where he was born on July 22, 1807. He was thirty-two years old when he came from Lincoln County, that of his birth in the Old North State, and settled in Alabama. Choosing as his home Jacksonville, where he located as a merchant in 1839, he at once became an interested sharer in the stirring times of that period. Alabama had now come to giant statehood through the throes of initial struggle, and had, through her distinguished sons, won an enviable place in the councils of the nation. Besides, the internal improvement and vastness of the resources of the state had given it a place among the commercial factors of the nation.

The reputation of the state reaching Major Abernethy, served to lure him thither in the maturity of his years, and he quietly and yet actively entered on his career as a merchant at Jacksonville. Fixed in character, matured in judgment, affable of manner, cultured, and possessed of a breadth of vision much above the ordinary, he was not long in winning his way to the confidence and esteem of the people among whom he settled. Three years after reaching the state, he was chosen from the county, then called Benton, to represent his constituency in the lower branch of the state legislature, where he served with quiet and efficient ability for a period of years.

The monotonous routine of legislative work did not at first impress him, and he retired after the expiration of a term or two, and resumed merchandising and planting. However, one of his type of intelligence and of general interest, could not be indifferent to the current affairs of a state forging forward in development, and now a genuine factor in affairs national.

In 1885 he was again summoned to public life by being chosen to represent his district in the state senate. His previous experience and intervening and undiminished interest in public matters, had afforded him an increased stock of qualification, and he returned to the functions of publicity with greater force than before. Cautious, prudent, conservative and regarding the public good with a disinterestedness wholly devoid of future consideration of self, the counsel of Major Abernethy was in constant demand concerning the issues pending before the general assembly.

An ardent Democrat, and a disciple of the Calhoun school, Major Abernethy was intent on the change of the name of the county of his residence from that of Benton, to that of Calhoun, which name it now bears. He was one of the committee of three appointed by the legislature to receive the new capitol building at Montgomery, when the location was changed from Tuscaloosa.

But the crowning act in the life and career of Major Abernethy, and one that gives to him a permanent place on the roster of the great and useful among Alabamians, was his creation of the idea of founding the deaf and dumb asylum at Talladega. Having conceived the plan of this institution for the unfortunate, Major Abernethy put behind it his force and skill, and rested not till it was crowned with consummation.

Had Major Abernethy never done anything more, even though he had emerged from obscurity, and had succeeded as he did in this undertaking of humanitarian achievement, his name would be worthy of immortal embalmment in the historic records of Alabama. With clearness of business judgment, coupled with a heart of interest and of sympathy for the unfortunate, this man, who was as gentle in sentiment as he was vigorous in great execution, grappled with a large undertaking, and halted not till it wore the capstone of completion. That institution stands, as it has stood for

a half century or more, not alone as a relief of one of the most unfortunate classes of humanity, but as a monument to Major Miles W. Abernethy.

But his record does not end here. He was fifty-five years old when the war between the states began, and because of a crippled hand, he could not enter the ranks of the regular service, yet he offered his service to the Confederate government, to render what aid he might in a struggling cause. He was commissioned a major, and assigned to duty in the town of his residence. His capacious and splendid home in Jacksonville became a noted resort of rest and of recuperation to the sick and wounded of the southern armies, every man of which classes, no matter what his condition, whether cultured or ignorant, met a greeting of cordiality at the thresh-hold of the Abernethy mansion. If he wore a gray uniform, he bore the credentials of worth to the inmates of that hospitable home. Here he was tenderly cared for till able to resume his place in the ranks, and with a blessing from the princely proprietor, he would take his leave. Beyond this still his beneficence extended. The families of the absent veterans were sought out, far and near, and cared for by this prince of benefactors. All this was done with an affableness and a tenderness so unostentatious, that frequently only the recipients of his bounties and the inmates of his home were aware of it.

Thus lived and wrought this noble citizen of Alabama, and this is the imperfect tribute to his worthy life and noble deeds.

GEORGE S. HOUSTON

No series of sketches of Alabama's great men would be complete with the omission of the name of Gov. George Smith Houston. His services were distinguished, and were rendered at a time when they could not have been more prized. This applies with special force to his services as governor. Endowed with peculiar powers which fitted him for a crisis, these powers were brought into active requisition during his incumbency of the gubernatorial chair of the state.

Alabama was confronted by a dire crisis, and a man of many-sidedness and unique force was needed to meet it. The state had been gutted of its means and facilities of operation; the treasury was empty; the people demoralized, and the credit of the state sadly impaired. To fail under conditions like these, would have been fatal, and yet the lowest point of depression had been reached. The situation called for exalted and peculiar virtues. Robust manliness, rugged pluck which stood not on the order of its going, ability not only to compass a situation, but to grapple with it, a force of statesmanlike constructiveness, and a spirit which would not quail before colossal difficulties—all these were needed to revive a suspended interest, which is the most difficult of all tasks.

To enumerate these is to describe Gov. George S. Houston. He was gifted with a power to sway men, had an eye to details the most minute, business acumen, familiarity with public affairs, patience to labor and to wait, and not least of all, physical endurance. He was an extraordinary man, and no governor has had more odds to encounter, nor has one ever met his obligation with more fidelity. With the state palsied in every pulse by misrule and wanton waste, he seized the reins, and from the outset guided the affairs of the commonwealth with the skill of a trained statesman.

The slogan of the time was retrenchment and reform. This alliterative legend was the watchword of the incoming administration. He met the issue like a combatant in the arena. He came not with empty demonstrations. No profuse promises filled the air. It was not promise that was needed, but

performance. The tremendous task was assumed, and its execution has made the name of Houston forever famous in the chronicles of Alabama. Whatever others may have done, none have done more for Alabama than George S. Houston. Pre-eminent as his greatness was, Mr. Houston was not unschooled in the affairs of the public when he was called to the chair of the governorship, in 1874. He had seen much of public life. Beginning life as a lawyer in 1831, he was made a legislator the next year, then came a career as a solicitor in his district, and within ten years after entering on public life he was sent to congress. His career in congress was a prolonged and notable one. With one slight intermission he was retained in congress for eighteen years, extending from 1841 to 1859. It was generally conceded in his district that he was an invincible candidate, for one after another of some of the most prominent men of the district were defeated by him, and some of them more than once.

His congressional career was distinguished by his positions as chairman of military affairs, chairman of the ways and means committee, and chairman of the judiciary. If this distinction has been exceeded by any one, the instance is not recalled. Certainly up to that time it had never been true of any other, and was a matter of comment at the time.

Politically, Mr. Houston was a Unionist and, therefore, opposed to the war. In this he was not unlike many others. But Unionist as he was, he suffered along with the others from the disastrous invasion to which North Alabama was subjected, declining with characteristic firmness to take the oath of allegiance to the United States government. Though honored by the people of Alabama with an election to the senate in 1865, his seat was denied him at Washington and he practiced law in Athens till 1874, when he was triumphantly elected governor of the state, under the conditions already described. He made a heroic canvass of the state, and greatly impressed the people everywhere with his peculiar fitness for the position for which he had been nominated.

It is related that on one occasion, when Mr. Houston was to speak in a new town in the interior, the people of the town and of the region round about were all agog over the disposal of the great candidate on his arrival. There was but one painted dwelling in the town, and that belonged to a well-to-do widow, who took it in a complimentary way that her home should be

selected for the entertainment of the distinguished visitor. The day of the speaking arrived, and so did the speaker. The town was filled with country folk, drawn together to see and hear the man about which so much was being said. On his arrival, Mr. Houston was taken to “the white house,” where a sumptuous dinner awaited him. He was assigned to one end of the table, while the hostess occupied the other, no others being present except the waiters. Mr. Houston was invited with genuine country hospitality by the good woman, “Now, just help yourself, you see what’s before you.” Mr. Houston was an excellent converser and while keeping up a fusillade of conversation, he nibbled at the food, but really ate but little. Though hungry, and not without ample gastronomical powers, Mr. Houston ate quite moderately. He soon finished the meal, and in wonder that her guest should prize her elaborate spread so lightly, the hospitable hostess rather chided him with, “Why, you don’t eat anything. I got you the best dinner I could, and here it is, you don’t eat.” With characteristic courtliness, Mr. Houston said, “Madame, should I follow the dictates of my inclination, I should eat everything you have on your table. I have never tasted food that was better, and it requires restraint for me not to indulge to the fullest. But do you see that big crowd out yonder. I have to speak at once, and be away to another appointment for tonight. Should I eat as I am tempted, I should be too full for utterance.” “Well, now,” said the good woman, “that’s what I’ve often heard ’em say, an empty barrel sounds the loudest.” Governor Houston used to relate this incident with great gusto.

Many were the anecdotes related of him as the retrenchment and reform governor of the state. One of these illustrates the rigid management of affairs, under Governor Houston. It was reported to him that the wells for the supply of water on the capitol grounds were in an unsavory condition and needed to be rid of their unwholesome water, each of which contained a great deal. He caused it to be known that he was seeking one who would do the work at the lowest figure of clearing out the wells. The cheapest offer made was \$7. The economic genius cudgelled his brain a bit, and the happy thought occurred to him of inviting the fire companies of the city to enter a contest on the capitol grounds, and so the invitation was extended to them to come to the capitol, and in the presence of the governor test their rival ability in seeking to throw the water highest on the dome.

The day was appointed, due notice of the contest given, and a crowd assembled to witness the proceedings. The full wells were placed at their disposal, and streams and jets of water played toward the summit of the dome. When it was over the governor, as an interested spectator, appeared before the successful contestant, made a speech on the value of fire companies, lauded the merits of the company that threw the water highest, and amid yells, the crowd dispersed. The wells were cleansed, the fire companies pleased, and \$7 saved to the treasury of Alabama in vindication of a policy of retrenchment and reform. His policy arrested ruin in Alabama, restored confidence, re-established the credit of the state, and started it on a fresh career of prosperity.

Governor Houston was honored by an election to the United States senate, but died before he could enter on his duties, his death occurring at Athens on January 17, 1879.

JOHN T. MORGAN

Among the many distinguished sons of Alabama, none is held in higher or more deserving esteem, than the late Senator John Tyler Morgan. He was a man eminent of gifts, of the highest culture, and of reigning ability. Patriot, statesman, jurist, orator, he was all of these in a pre-eminent sense, the recognition of which was shown in many instances, and through a long succession of years. The record of no man produced by the state is more interwoven into Alabama history than is that of this distinguished citizen. Nor is his fame based on other than on superior merit.

Not less distinguished is he in the annals of the nation. For a long period of years, Mr. Morgan was retained in the National Senate, a tower of strength, the acknowledged leader of southern statesmanship, the equal of any in the country. A great constitutional lawyer, he stood the chief exponent and champion of the constitution in the senate of the United States.

An arduous and industrious worker, his labors in behalf of Alabama were unremitting during a long term of years. The sturdy Welsh blood in his veins gave to him a steadfastness of poise, together with an immensity of reserve force which was meted out only in response to demand. Never spasmodic or impulsive, but steady and ready, he responded always with gigantic ability, and with a power exercised in such way as to be most effective. Possessed of a wide compass of valuable information, which sought expression in facility and fluency of diction, Morgan came to be a source of authority in the senate. When he spoke, all men listened with profound respect.

The name of Morgan descends from Revolutionary times, during which period it was represented by the famous General Daniel Morgan, who was among the distinguished officers of the first American army. Along the years of the history of America the name appears in different connections and always with credit. General John H. Morgan, the daring Confederate cavalry leader, was a kinsman of Senator John T. Morgan. The family was

noted for its longevity, the father of Senator Morgan dying at the advanced age of ninety-four.

Mr. Morgan pursued his legal studies under his brother-in-law, William P. Chilton. With the same assiduity with which he did all that he undertook, he addressed himself to the acquisition of the profound principles of the law. From the beginning, he was a most diligent student, a skillful pleader, and a successful advocate. His first appearance in public life was on the occasion of the Alabama convention which chose delegates to the famous Charleston convention in 1860. The state convention of that particular date was composed of the giants of the state. Morgan was then just thirty-six years old, and his ability was unknown save in the local courts in which he practiced.

Sent as a delegate from Dallas County to the convention already named, he had just entered the hall when he heard his name called by the secretary as the chairman of the committee on credentials. He had heard much in the corridors of the hotels where the air was vibrant with the discussion of contesting delegations, in which discussions many of the most prominent men of the state shared. Devoted to his profession, he had never taken any active share in public questions, but was interested in the informal discussions.

On hearing the announcement of his name on entering the hall, he mounted a chair, addressed the presiding officer, and was about to decline the honor of the chairmanship, when Judge George W. Stone pulled his coat and begged him not to finish his sentence as he had begun it, but to change it and call his committee together. Yielding to the judgment of his senior friend, he did as he was bidden.

The work of the committee was both laborious and irksome, and many delicate and sensitive features were involved in the task committed to Mr. Morgan. There was no avoidance of a storm on its presentation. The storm followed its submission. The young advocate, all unknown to the body, mingled in the forensic fray in a manly defense of his report, and so ably was it sustained by his power of presentation of the reasons for its adoption, and so tactfully did he parry the blows of the giants who came against him in the contest, that the question was heard all around—"Who is Morgan?"

The brilliancy of his oratory, and the skill which he exhibited in debate, caught the attention of the public on that occasion, and he never again sank from view till his remains were deposited in the tomb.

His ability established on that occasion led to his becoming an elector in the approaching presidential contest in behalf of Breckenridge and Lane. An elector for the state at large, he canvassed Alabama throughout, and came to be known first, as an orator of great resource and power. This, in turn, led to his choice as a member of the secession convention of Alabama.

When the war began, he became major of the Fifth Alabama Regiment, and on the reorganization of the regiment, was chosen lieutenant colonel of that command. Authorized by the war department to raise a cavalry regiment, he returned to Alabama and did so. Going with his new regiment to the western army, he was later assigned to the headship of the conscript bureau in Alabama, according to the request of the Alabama delegation in congress. Later still, he was notified by General R. E. Lee that he had been made a brigadier general and assigned to the command of Rode's old brigade. While on his way to the Virginia front, he learned in Richmond of the death of Colonel Webb, who had been associated with him in raising the cavalry regiment, and that he (Morgan) had been elected again to the colonelcy of the regiment. On learning this, he declined the offered promotion in the Army of Northern Virginia, and returned. He was again made a brigadier general, and toward the close of the war was in the command of a division in the Tennessee army.

During the period of the reconstruction, General Morgan became the most sturdy and famous champion of the people of Alabama, and greatly endeared himself to them by his incessant labor in resisting the encroachments on their rights. When, at last the power of reconstruction was broken, he was, in 1876, elected to the national senate to succeed the notorious George E. Spencer. From that time till his death, he was the political idol of the Democratic party in the state of Alabama. For full thirty years he served with distinguished ability in the senate, and died in the harness of a statesman.

One of the chief characteristics of Senator Morgan was his ability to think with unerring accuracy on his feet. His ability to husband rapidly his

resources was remarkable. Nor in presenting these resources was there ever a lack of classic diction. His chaste elegance commanded the attention of every listener, especially since it was voiced in musical tones. His power of application and his tenacity came to be known as dominant factors of his life. Once enlisted in a cause, he espoused it with undiminished zeal to the end. For many years he bent all his energy toward the construction of the Nicaraguan Canal, and resisted the change to that of the Panama Canal, and was fearless in his denunciation of the measures adopted to bring about the change, but was forced to yield to the numerical strength of partisanship. Another remarkable power which he possessed was that of physical endurance. During the contest in the senate over the Force bill he held the floor all night, speaking so as to consume the time, and thereby prevent the passage of that measure.

Not Alabama alone, but the entire South owes to General Morgan a debt of gratitude for the fearlessness of his defense of the South when an able defender was most needed.

With a versatility which seemed without limit, Senator Morgan was always prepared for any great junctures that might arise. He was equally at home upon a great constitutional question, an issue of broad policy, or a tangled principle of international law. His career marks an era of greatness in the history of the state.

JAMES L. PUGH

For solid and substantial worth without ornament or frippery, no son of Alabama has surpassed the Hon. James L. Pugh. His presence and bearing and his conversation and speeches conveyed the same idea. Utterly without ostentation, he acted and spoke with an evident absence of self-consciousness.

Mr. Pugh was a man of stable rather than of brilliant qualities, hence he was an intensely practical man. He was indifferent to nothing of interest, was never superficial, and regarded everything from the viewpoint of the practical. He was studious, judicial in his cast of mind, of conservative temperament, and deliberate of speech. Often animated in public address, he was never excitable or explosive. His every utterance indicated deliberation.

The year of his birth was identical with that of the admission of Alabama into the Union—1819. He came from hardy North Carolina stock, and was brought by his father to Alabama when he was only four years old. At eleven he was an orphan boy, a most precarious condition for one so young in a frontier state. A bare-footed boy, left largely to shift for himself, he afforded an index of his future worth and greatness, by engaging to ride the country mail on Saturdays in order to provide means for the payment of his tuition during the remainder of the week. Later, while yet a youth, he became a clerk in a dry goods establishment in Eufaula, where he obtained frugally hoarded means with which to prosecute his studies, meanwhile looking forward to the law as a profession. After a severe taxation of strength during the day as a clerk, he would study late at night, and by such studious application, qualified himself for entrance on his legal studies. He studied law in the office of John Gill Shorter, who afterward became governor of Alabama.

After the entrance of Mr. Pugh on the practice of law for a number of years, he was chosen an elector on the Taylor ticket, and later still, was a Buchanan elector. Thus, before the people, his way to congress was opened,

and as a member of the house of representatives he was chosen in 1858. The outbreak of the war occurring two years later, like all other southern members, he withdrew from congress, shared in the secession sentiment of the state, and was among the first to enlist as a volunteer from Alabama in the service of the Confederacy. He was enrolled as a private soldier in the first Alabama regiment of infantry.

He shouldered his musket and went with his command to Pensacola, where he underwent all the fortunes of a soldier in the ranks, declining any consideration because of the position which he had held as a member of the national congress. Numerous were the offers made him by his comrades to assume his duties, and thus relieve him of hardship, but all this he politely declined, and met the exactions of military duty with cheerful alacrity. His position was one that tested his mettle, for often beneath the blazing sun he was engaged in common with his comrades in throwing up earthworks. The regiment of which he was a member, was ordered to Paducah, Kentucky, where he served for a year, when his constituents recalled him by electing him a member of the Confederate congress. In his first race he had no opposition, but in the second campaign, in 1863, he had three opponents, but was a second time elected, and served the state in the congress of the Confederacy till the downfall of the government. No one was more loyal to the young government than Mr. Pugh, for there was not a month, of the four years of its career, that he was not engaged in its service. After the capitulation of the armies, he returned to Eufaula, and resumed the practice of law.

An ardent southerner and patriot, he naturally shared in the resistance against carpetbag rule, and as occasion would demand he would lend assistance to his struggling people, though he sought no office, but was rigid in his devotion to his profession. In the memorable contest of 1876, he was a Tilden elector, and made an active canvass in this and other states. In 1875, when the backbone of reconstruction was broken, he was chosen a member of the state constitutional convention, and rendered valuable service as one of the most prominent members of that body.

In appreciation of worth and service, Mr. Pugh was chosen a National Senator from Alabama in 1880, and was a yoke-fellow of John T. Morgan in the senate for the space of eighteen years. It was universally conceded that

no state had a stronger brace of senators than Alabama during that period of southern rehabilitation. He was not conspicuous as a speechmaker in the senate chamber, though he was not silent, for as occasion demanded he was heard, and always effectively. When he did arise to speak, he commanded universal attention, partly because of the high esteem in which he was held, and partly because it was understood that when Senator Pugh spoke it was with well-digested views on measures of great importance. He retired from the senate in 1897, being at that time seventy-seven years old, and returned to his home at Eufaula, where he resided till his death.

A review of the career of Mr. Pugh will reveal the fact that in all his emergencies from private life it was in response to recognized duty. He was not spectacular, and never relied on his oratory for popular acclaim. His power before the people lay in his impressiveness as a solid speaker, for no one could listen to him without the impression of the intensity of his conviction. Whether always right or not, he believed it, and therefore spoke. Only when he felt that he could be of service was that service tendered. No more convincing expression of his patriotism could be afforded than when as a returned congressman he quietly enlisted as a private in the ranks of the army, at a time when men vastly inferior to him were solicitous for commissions. This affords an index of the sturdiness of the character of Senator Pugh. No position ever held by him was characterized by other than by the most substantial efficiency. No man who ever represented Alabama in any sphere was more practically and patriotically loyal than James Lawrence Pugh.

ANSON WEST

The Rev. Anson West, D.D., was the chief Methodist historian of the state. While the work of which he is the author properly relates itself to the history of Methodism in Alabama, there is much collateral history necessarily embraced within its compass which makes it a valuable contribution to the archives of the state. In its scope, his history extends from the earliest settlement of Alabama by the whites, to a period well within the last decade of the nineteenth century—a span of well nigh a hundred years.

The history of a people such as the Methodists are, and have been from the fountain source of statehood, and even before, is not without immense value. Methodists have been a mighty force in Alabama, and still are, and the record of their achievements affecting all the orbits of life is a mighty stimulus, as is all history, for, as Goethe puts it, “The best thing which we derive from history is the enthusiasm that it raises in us.”

But the service rendered the state by Dr. Anson West is not to be restricted to his history of Methodism. He was a tower of strength in his generation, a man of commanding pulpit ability, a scholar of decided literary taste, and a character possessed of originality of thought and boldness of expression which challenged admiration, even though it did not always carry conviction. Not unlike most preachers, especially of the Methodist and Baptist ranks, of the period when his life dawned into manhood. Dr. West was a typical polemicist. In those early days of ecclesiastical controversy, the man who could wield the most trenchant blade, and deal the heaviest blows, elicited the most popular applause. Dr. West was a born debater, and every antagonist found him full panoplied and never averse to vindicate lustily any cause which he might espouse. Still he was a cultured gentleman, and numbered many friends among those with whom he denominationally differed. Nor were his disputations directed alone against those of an opposite school of theology, but within the pale of his own people his sword was often brandished in the espousal of a view which he cherished. It was in the field of controversy that Dr. West was at his best.

Happily, those days of controversy, often not conducted in the gentlest spirit, are well behind us, but the time was when the clash of ecclesiastical combat resounded the country through. They had the redeeming value of stimulating thought, producing much literature of a sort, and creating schools which else would not have been. Not to be a combatant in those early days, was to be a man of inertness and of narrow influence.

As has already been said, there was an independence of character in Dr. West that awoke admiration in all capable of appreciating force and worth. As firmly rooted as a mountain on its base, he was incapable of a plausibility which veers toward unstableness. No matter in what relation, there was no misunderstanding any position which was taken by Dr. West. His countenance was an index to his firmness. He was sometimes firm even to sternness, an inherent quality of his character which was doubtless strengthened by the controversial period through which much of his early life was passed. But to have known him with any degree of intimacy, was to find that beneath a somewhat rugged exterior beat the heart of a genuine man. Advancing age softened and mellowed much of that which often led to a misunderstanding of his real nature.

Among the productions from his pen was a work entitled "The State of the Dead," which work reveals much research and profound study on a much-mooted question. In the presentation of his views on divers subjects Dr. West was not unaware of encountering opposition, sometimes on the part of those with whom he was denominationally connected, but his convictions were never bridled in the expression of the independence of thought.

Nor was the life and career of Dr. West confined to his pulpit ministrations, with an occasional excursion into the field of authorship. He was a stalwart citizen and patriot, and with the courage of an Ajax he was ever ready to pronounce his views, and to wield his battle-ax, if necessary, in the advocacy of any question for the public weal. He was a man, and whatever interested men interested Dr. West. He was a citizen as well as a minister.

Dr. West was an ardent advocate of education, and often his tongue and pen were brought into requisition in the advocacy of this great cause. He had his own views of this public interest, and to have them was to express and to defend them.

Dr. West was a devout Methodist, and from his native temperament he could be none other than an intense one, but the compass of his being was too great to circumscribe him to the boundaries of his own denomination in his relations to others. Numerous were his friends and associations beyond the pale of his own people. With the intensity and tenacity with which he clung to his church, there was not sufficient power embodied within the church to restrain him from a criticism of its policies or methods, if they happened to run counter to his own convictions. With the uniqueness of his individuality he impressed all with his earnestness and sincerity, and, much as one might oppose him, he could not withhold regard for his convictions. The sincerity of his convictions did not fail to find vent through his powerful tongue and the sharp point of his pen.

There was a wonderful blend of heroic manhood and unquestioned spirituality in the life and character of Dr. West. This served to make him impressive, and oftentimes powerful. Back of his often stern declarations lay an unquestioned spiritual force, and the combination of the two gave to Dr. West an assertiveness always to be reckoned with. His gifts and acquirements fitted him for a high sphere in the councils of his own communion, and while others differed with him, often widely, his sincerity was never a question, nor was his integrity ever challenged.

He passed through many testing periods during his eventful career, and went from the earth leaving behind him a trail of influence for good, and a vast contribution to the good of the public. He rests from his labors and his works do follow him.

EUGENE A. SMITH

The name of Eugene Allen Smith belongs to the roll of distinguished Alabama scholars. Autauga is his native county, where he was born October 27, 1841. Academic training was given him at Prattville, in his native county, till 1855, after which he went to Philadelphia to school, for a period of four years. On his return to Alabama, in 1859, he entered the junior class of the University of Alabama. The emergency of the times led to the adoption of a military system of government for the university, and Mr. Smith was a member of the first corps of cadets.

The war interfered with his course, and in 1862, he, together with other cadets, was detailed to go to Greenville to drill recruits at a camp of instruction. He did not return to the university to graduate, but received his degree of bachelor of arts from the university authorities, as the course leading to that degree had practically been taken by him. Commissioned as first lieutenant in one of the companies drilled at the camp of instruction, Mr. Smith saw service on the field, both in Tennessee and in Kentucky, sharing in the capture of Mumfordsville, and in the battle of Perryville.

In recognition of his proficiency as a drill officer, Mr. Smith was detailed to the University of Alabama as instructor in tactics, at which post he continued till the end of hostilities between the states. Then he began in earnest his scholastic career, for in 1865 he went to Europe, and for three years studied in the Universities of Berlin, Goettingen, and Heidelberg, devoting his time exclusively to the study of the sciences, with special reference to chemistry, physics, botany, mineralogy, and geology.

Dr. Smith's course abroad was completed early in 1868, when he passed with the highest grade, *summa cum laude*, an examination for the degree of doctor of philosophy, having for his main subjects, mineralogy and geology, and for minor subjects, chemistry and botany. After reaping his degree, he remained still another semester at Heidelberg in attendance on lectures.

Possessed of an inquisitive and retentive mind, Dr. Smith, while in Europe, spent much of his time on tours of observation and scientific investigation

in Russia, the Netherlands, the German states, Switzerland, the region of the Tyrol, Austria, France, and Italy, and when he started on his homeward trip he was engaged for a time in geological investigations both in England and in Scotland.

On his return to America, late in 1868, Dr. Smith went immediately to the University of Mississippi, serving as assistant on a geological survey. For three years he was devoted to the work of making chemical analyses of soils for the survey, varying his investigations by an occasional excursion into the cretaceous and tertiary formations of Mississippi, and in 1871, he published his first paper, "On the Geology of the Mississippi Bottom."

During the following summer, Dr. Smith was elected to the chair of geology and mineralogy of the University of Alabama. Two years later, in 1873, he was appointed state geologist of Alabama, and for ten years his work on the survey was gratuitously rendered to the state. In 1880 he rendered valuable service in connection with the tenth census, furnishing reports on Alabama and Florida for the cotton culture volumes of that census.

While visiting Florida in connection with this mission, Dr. Smith discovered that the greater part of the peninsula of Florida was underlaid by a substratum of the Vicksburg or Eocene limestone, which comes to the surface at intervals down the peninsula through the overlying Miocene and later formations. The results of this tour were published in the American Journal of Science for April, 1881. A more comprehensive paper was written for the fourth report of the United States Entomological Commission, which embodied a general description of the climate, geological and agricultural features of the cotton-producing states.

In connection with all this labor, Dr. Smith had charge of the departments of chemistry and geology at the State University of Alabama for many years. In 1888 a new chemical laboratory was erected at the university, which addition, under the special direction of Dr. Smith, was thoroughly equipped with all needed chemical apparatus, and is one of the best chemical departments among those of the institutions of the South.

In the meantime worthy honors came to Dr. Smith from different quarters. He was appointed honorary commissioner to the Paris Exposition, from Alabama, in 1878. He became a member of the American Association for

the Advancement of Science, serving as secretary and vice president of the geological section, and serving also as a member of the committee appointed by that body on the International Geological Congress and on the Geological Congress Auxiliary of the Columbian Exposition. He is a charter member of the Geological Society of America—of which he has been Vice President, member of the council and President in 1913. He was appointed to prepare the report of the American subcommittee on the Marine Cenozoic for the International Geological Congress.

Dr. Smith has long ranked the leading scientist of Alabama, and his investigations in the field of geology have been of immense value to the state and country. His connection with the state university has been one of its chief elements of popularity. Modest and shrinking in disposition, without the least obtrusiveness or assertion, he has not been estimated at his real worth to the public, and only those who have been thrown into immediate connection with him know of the enormity of his labor and of its value to the state. The young men under his instruction, and the learned faculty of the university prize his worth, and are unstinted in the expression of their estimation of his services. No son of Alabama has been more distinguished throughout America and among the savants abroad than Dr. Eugene Allen Smith.

JAMES T. MURFEE

The real educator does more than to impart knowledge and acquaint with principles with which to translate this knowledge into practical use—he imparts himself. No youth falls under the influence of a great teacher without taking with himself thereafter somewhat of that instructor. He is not the great and successful educator who merely knows, but one who does, as well.

This was pre-eminently the dominant power of James Thomas Murfee, LL.D., whose station in life and whose labors within the realm of education made him distinguished throughout the South, and beyond. To him education was a passion, not of the spasmodic sort which spends its force at theoretical random, but which he built into constructive character in such way as wisely to direct the instruction obtained. His idea was to build knowledge into character, making the one a component of the other, and thus construct manhood, not alone for usefulness in the ordinary humdrum of life, but in order to invest the entire man with an atmosphere conducive to making life radiant, delightful and useful—to teach one not alone to do, but to be. This was the conception which Dr. Murfee had of a thorough education.

Swayed by this purpose, Dr. Murfee for a long period of years, taught in several states, but the bulk of his lifework was done in Alabama. One never met him without finding him buoyant with enthusiasm concerning education. Nor did he expend his theories in mere phrasing, but reduced them to actual practice. His was the enthusiasm of patience. His passion was to make men, and to turn to practical account every advantage afforded in the drill of the classroom to this end. He sought to excite assertion of a salutary sort, and then to impart the power for its execution. There are hundreds of men adorning the different vocations in this state and in others, including the preacher in the pulpit, who gratefully trace the inception of their success to this great teacher of youth.

Indeed, the rule is well nigh universal that a genuinely successful man is able to date the turning point of his life to the vital touch with some superior character, from which thrill has been derived, and as life broadens into stern practicalness, additional ingredients from the same source are appropriated which continue to tincture and temper for good throughout. While the recipients of these advantages may not be always conscious of the derivation of these augmenting and contributory forces, yet the fact remains that without the abiding presence of this once dominant force, life might have been vastly different.

There would come under the sway of this master of men, at the different institutions in which he served, raw lads from obscure rural retreats, unskilled, gawky, and awkward, yet within whom were powerful possibilities, which the student of character and the incisive teacher would detect, and, like the opaque diamond in the hand of the lapidary, the crude youth would yield results often the most astonishing.

Thus through multitudes who sat at his feet Dr. Murfee has been instrumental in changing the faces of many communities, as his students have taken their places in life. This expression is attributed to Alexander the Great: "I am indebted to my father for living, but to my teacher for living well."

All this is suggested by the life and career of the great teacher now under review. A life so long and so useful was necessarily varied. Born in Southampton County, Virginia, on September 13, 1833, Dr. Murfee lived through a number of the most stirring periods of our national history. His collegiate career was at the Virginia Military Institute, from which he was graduated with the rare distinction of never having received a demerit in a school, the most rigid and exacting in scholastic work and discipline. It is not surprising that the result was that he bore away the highest honors of his class, which occurred in 1853.

Dr. Murfee's gifts and disposition led him to the adoption of the vocation of teaching, and he was called first to Lynchburg, Va., in that capacity; then, later, to the chair of physical science in Madison College, Pennsylvania. In 1860 he came to Alabama as professor of mathematics and commandant of cadets at our state university. During the war that followed, soon after his

advent into the state, he became the lieutenant colonel of the Forty-first Alabama Regiment, but resigned to resume his duties at the University of Alabama. Near the close of the war, when the state was overrun by the federals, he commanded the cadets in an engagement at Tuscaloosa.

After the close of the war Dr. Murfee was engaged as architect to design and erect new buildings for the university, in place of the magnificent edifices destroyed by the enemy, to which stupendous task he set his hand and mind, recommending at the same time a new scheme of university organization, all of which was accepted by the board of trustees, but he was thwarted in his efforts by the reconstruction régime.

Called in 1871 to the presidency of Howard College, then at Marion, which institution had writhed in the throes incident to those troublous times, he brought it to the front as one of the best institutions of its grade then in the South. On the removal of Howard to Birmingham, in 1887, Dr. Murfee was tendered the presidency of the college in its new location, but preferred to remain at Marion, where he founded, in the original college buildings, the Marion Institute, of which he was the superintendent until 1906, when he retired from active service on an annuity from the Carnegie Foundation for the Advancement of Teaching. This annuity was granted on the basis of "long and distinguished service to the cause of education in Alabama."

In 1882, Dr. Murfee was appointed by President Harrison, a member of the board of visitors to the West Point Military Academy. After his retirement from active service, Dr. Murfee devoted his time leisurely to the development of the educational foundation at Marion, that it might become a source of perpetual strength to the state and to the South. On April 23, 1912, Dr. Murfee died at Miami, Fla., at the advanced age of seventy-nine years.

ABRAM J. RYAN

“Father Ryan,” as he is familiarly called, was Alabama’s sweet singer. He was a born poet, and sang because he could not help it. Emanating from the heart, his plaintive strains go straight to the head. Yet he wrote only at intervals. Moved by the afflatus which only a poet feels, he would now and then take up his poetic pen and give voice to the minstrelsy of his soul. His verse is merely fugitive snatches of song springing from an imagination essentially poetic, and a heart subdued by religious emotion. In no sense was poetry a profession with this charming lyrist, for he himself tells us that his verses “were written at random—off and on, here, there, anywhere—just when the mood came, with little of study and less of art, and always in a hurry.”

Leaping warm from the heart and taking the wings of poesy, his thought throbs with virility, and makes an appeal to the heart of another with a force that is irresistible; visions of matchless beauty rose continually before his imperial imagination and sought vent in song.

Had Father Ryan subjected his thought to the lapidary finish of the professional poet, it is doubtful if it would now be so popular. He wrote as he was moved, the fervid thought seizing the first words within reach as a vehicle, and thus they fall on the ear of the world.

Simple songs his poems are, generally melancholy, meditative, pensive, the chief virtue of them being that they touch the heart. His thoughts seem to move in popular orbits in search of objects invested with the plaintive. It is not the weirdness so often met with in Poe that one encounters in the poetry of Ryan, but the touch of moaning, the sadness of a burdened heart yearning and burning for that which it has not, but hopes for and looks for in other realms yet unrevealed. Resounding corridors of gloom, dimly lighted vestibules, processions of mourners moving till lost in darkness, the chimes of melancholy airs heard by mystic ears, the muffled footfall in mysterious darkness, the touch of vanished hands, the outreach of timorous arms

through the gloom for a kindred touch, the sighing of a soul for its inheritance—these are the elements which resound his verses through.

Much of his poetry savors of his theologic thought and environment, and, naturally enough, the object frequently pertains to that dear to the devout Catholic; but it is not about the substance of his thought that we here speak, but of his undoubted genius as a poet. Equal objection might prevail against much that is written by other poets, as, for instance, the substance of some of Poe's productions, whose "Annabel Lee" is heathen throughout, but it is poetic in its every syllable.

The symbols and paraphernalia of his church, its worship, and all that pertains to it may be encountered in one way or another in the poetry of Ryan, but the undoubted genius with which it is wrought and molded into verse is that which fascinates the lover of poetry.

That Father Ryan would have been pre-eminent in poetry had he exercised his powers, seems clear. The vividness of expression, the subtle beauty inherent in his strains, and the deft touch given his thought are those of the genuine poet. He dwells apart from the ordinary drift of thought. The coloring of his thought was derived from numerous sources, and, emitted from the furnace of his heart, it was ever in transformed shape. The rattle and clatter of the rushing world fell on the ear of his soul with the element of melody. His emotions were pent up, and when they leaped their barriers, they gave to a responsive soul-world that which we call Father Ryan's poems. His own soul, subdued to softness and gentleness by his inner reflection, sang itself in musical cadence.

His verse, always graceful and often brilliant, flowing melodious and limpid with the lilt of a landscape rill, borrowing delicate tints of beauty from the greensward and varied bloom which fringe its banks, and flashing back the light derived from heaven, makes an instinctive appeal to the soul of the reader, and has a sobering effect on his thought. From the source to the sea there is the same gentle flow with its occasional puddle and its subdued sound of ripple.

That which our poet does is more indicative of possibility than of final actuality. His strains are merely soft touches of the fingers of the musician on the keys of the soul, and yet they evoke such melody that one wishes the

reserved force of the soul, whence they come, might have fuller and freer expression, that the slight thrill experienced might rise to rhapsody.

Most rare are many of the pithy passages to be met with in his productions. Did space permit, it would be a delight to enumerate many of these gems which glitter along his pages, but only one or two may here be indicated. On the occasion of a visit to Rome, he penned a fragment on "After Seeing Pius IX." The first four lines are here quoted to illustrate the power of the poet derived from a mere glance of a man's face, and in the last two of the lines quoted resides a power in metaphor rarely met with. Says the poet:

"I saw his face today; he looks a chief
Who fears not human rage, nor human guile;
Upon his cheeks the twilight of a grief,
But in that grief the starlight of a smile."

The transference of the idea of the twilight and the gentle star meekly peeping through, to the struggle discerned in the features of one, is a picture that would occur to none other than a poet.

Equally striking is the beauty of the figure contained in his "A Land Without Ruins," where he says:

"Yes, give me the land where the battle's red blast
Has flashed to the future the fame of the past."

Numerous are the striking pictures which he brings before the eye by one single stroke of the pen. Nor does Father Ryan conjure with the emotions merely to quicken and to stir for the moment. Indeed, he does not seem conscious of that which he has done and so greatly done; he merely sings out his soul in low refrain and leaves his melody lingering in the air.

Ryan was patriotic to the core. In the thunderous years of the great Civil War his pen was busy with the ink of patriotic fire, but the aftermath of the war was more aptly suited to his nature. When in her night of sorrow, the South was a land of mounded graves, within which slept a generation of young heroes, while blackened chimneys stood sentinel over them, and while the monuments of the South were only heaps of charred ruins, and her once fair fields were littered with wreck and disaster, these appealed to our lyrist with unwonted force. The spirit of his Hibernian blood was

invincible, and when embodied in a stream of poetic fire it illuminated scenes which else were dreary and desolate. From out the environment of darkness and ruin, his spirit sought the solace which the future must bring in recognition of principle, and thus he sang. Thousands who differed with Father Ryan religiously, honored him as a gifted singer. He has but scant recognition in the literary history of the country, but this is to be expected. He was largely a poet of locality, both geographically and religiously, and wrote not so much for others as for his own pastime, but Alabama owes him much as her greatest poet. Because of the genuine merit inhering in his verse, and because of the unquestioned worth attaching to his productions, he is easily the file leader of the literary spirits of Alabama.

JAMES R. POWELL

The presentation of the name of Colonel Powell suggests a turning point in the history of the state. A new era had dawned of which Colonel Powell was an exponent. The long agitation with which the country was rocked for decades, had culminated in bloody conflict which was waged to exhaustion. The turbulence of rehabilitation represented in the struggles of reconstruction had followed, and now the eyes of the people were once more turned to the ways of peace and re-established prosperity. Resources practically immeasurable were untouched in the soils and mountains of a great state, and public thought began to peer into the future with a longing for tranquil prosperity. A class of men represented by the subject of this sketch was in demand, and, as is always true, when the demand exists for men they are to be found. Thus appeared this pioneer at the threshold of a new era.

A native of Brunswick County, Virginia, Mr. Powell, while yet a beardless youth, had ridden the distance from Virginia to Alabama on horseback. This was before Alabama had emerged into statehood. On his faithful horse he reached the straggling village of Montgomery with less than twenty dollars in his pockets. Entering on life in the new region to which he had come, as a mail contractor, he gradually rose to the direction of a line of stage coaches for the transportation of mail and passengers, and with a widening horizon of business tact and comprehensiveness of enterprise for which he was remarkable, he adjusted his stage coach enterprise to a chain of hotels, the most noted of which were located at Montgomery, Lowndesboro and Wetumpka. These interests flourished as the people continued to pour into the new state. As the forests were transmuted into smiling fields, villages, and towns began to emerge into populous centers, and institutions began to flourish. While Powell was instrumental in making new conditions, the conditions were making Powell. A man grows by the means which he creates. While he makes a fortune the fortune makes him. Gifted with an enterprising and constructive mind, Mr. Powell was gradually coming to that stage for which his life was fitting him. The combination of conditions which followed in the wake of the turbulence of years, was one which

would arrest the enterprising eye of a man of executive skill, and breadth of vision, which James R. Powell had. Two unfinished lines of railway penetrated the state, in part, one reaching from the Gulf northward, but checked by mountain barriers, the other stretching from the fertile West southward, but halting before the mountains, beyond which was the line with which it was destined to be linked in the creation of one of the greatest arteries of commerce in the South. Between the two, lay a wide barrier of mountain region, in which were embosomed untouched treasures which were destined in their development to excite the interest of the world.

With these resources was associated in the fertile brain of James R. Powell, the picture of a mineral metropolis in the mountains of north Alabama, and in a region where men least dreamed of such a possible creation. He had engineered primitive mail routes, first on horseback, and later by the rumbling coach, and widening the expansion of interest and effort by the establishment of timely hostelries, but here he was destined to crown his unusual career as the builder of a mighty city. Hence, Birmingham.

In the rush and rattle of a great mart, such as Birmingham has become, those of a later generation, who throng its streets of architectural magnificence, and gaze on its piles of splendor, are apt to forget those who laid the foundation stones of the great municipality, and made possible a mighty urban center, destined to eclipse all others of the South in compass and in the number of its people. Men are apt to tread with careless feet over the unmarked graves of the harbingers of that bequeathed to a later generation, forgetful of the brain which contrived and the hand which executed.

It is not the phrase of empty eulogium to speak of James R. Powell as one of the greatest of Alabamians. Unlettered in the schools, he followed the unerring finger of a transparent judgment, and unawed by formidableness of difficulty or vastness of scheme, he planned and wrought, both wisely, and, propelled by a pluck born of the enthusiasm of patience, he succeeded. The career of a man like this in a generation, or even in a century, is a vital inspiration, and far worthier of record more elaborate, than a brief and humble sketch like this.

Incidents in his career illustrative of his native and inherent greatness, are worthy of at least a casual notice not only, but of permanent embalmment in the memories of those who reaped where he sowed. Men like the subject of the present sketch are apt to be thought of as sordid and selfish, while with intensity of spirit and strenuousness of brow, they drive impetuously over obstruction, forgetful of the gentler amenities of life. Oftener, however, than is supposed, there is beneath the intense exterior, hearts of corresponding compass with the sweep of executive activity. There were many instances of gentle and substantial worth woven into the career of Colonel Powell, only one of which is here given.

The record of the severity of the winter of 1863 is phenomenal in meteorological chronicles. The lakes and ponds were covered with a thick stratum of ice. An object of wonder to many, the phenomenon addressed itself to the practical side of the mind of Colonel Powell, who cut large quantities of the ice and carefully stored it away. The manufacture of ice was then practically unknown as a commodity for market, and it was in great demand in the hospitals of the Confederacy. He declined an offer of forty thousand dollars for his store of ice, and presented it to the Confederate army hospital department, for use in Alabama and Georgia. Many acts of generous spirit were his, but they belong to the chronicles of unwritten history.

In 1871, James R. Powell, at the head of the famous Elyton Land Company, was scouring the territory of Jefferson County with the plan in view of founding here a large city, the logical result of the immense resources embedded in the hills and mountains of this favored region. The Louisville & Nashville Railroad had supplied the missing link between the North and South, and Colonel Powell was among the first to see the possibility of a great city in this region. While the local and adjacent resources were then only imperfectly known, they were sufficiently known to justify the colossal proposal of a mighty emporium. The task was herculean, but the projector was a man of wide experience in grappling with odds, and in subordinating to the mastery of his will the disputing difficulties. Small minds quarrel and quibble over points of inconsequence, while giants stride over them with serene non-recognition.

Without tiring, Colonel Powell gave the world accounts of the fabulous resources of the district of the prospective city. The facts first published throughout the United States and Europe, were first regarded as speculative rose-water, but they in truth represented only a stiver of that which subsequently came to be known.

Birmingham was first a straggling, struggling village, penetrated here and there at irregular distances, by rugged highways, the terror of the driver in a rainy season. Diminutive houses dotted the scene over, without respect to order or system. One small brick structure stood where now stands the Brown-Marx Building, then the most substantial expression of confidence yet given. Highways of deep red clay ran past the building on either side, and among the shanties and small houses was an occasional dingy tent.

Under such conditions, Colonel Powell, with his usual daring, ventured to invite the session of the Alabama Press Association to hold its session in "the city of Birmingham," in 1873. He succeeded, but, not content with this, he appeared before the body and again pleaded that the following session be held here also. He encountered stout opposition for two reasons, namely, Birmingham was a most uninviting place, without accommodation, and other places of the state wanted the next session. But, combining diplomacy with suavity, Powell prevailed a second time. Having succeeded in this, he urged that the New York Press Association, which would be meeting at the same time, be invited to join their brethren of the quill in Alabama. Such temerity staggered the body. Besides the ragged and rugged conditions existing, the New York press was hostile to that of the South, because of its opposition to President Grant in his southern policy. Insuperable seemed the barriers in the way of such an accomplishment as Colonel Powell sought, but he overbore all obstruction, and succeeded.

The result of such movement, coupled with the geological investigations going steadily on meanwhile, made Birmingham secure. The voice of the northern press resounded throughout all the states, and went beyond the Atlantic. Honorable Abram S. Hewitt, of New York, sounded the prophetic expression: "The fact is plain—Alabama is to become the iron manufacturing center of the habitable globe." A wave of awakening light spread throughout the financial world, and Birmingham was secure.

But a new disaster arose. A scourge of Asiatic cholera smote the young city now struggling to the birth. The dead were numerous, and a funeral pall hung over the town. Colonel Powell remained with Roman courage on the ground, caring for the suffering, burying the dead, and preserving order. Pestilence stalked along the rugged streets and wasted at noonday, but the faith of this man of iron nerve was unshaken. His courage stiffened that of others—his faith was contagious. No wonder that he came to be called “The Duke of Birmingham.” No special shaft marks the recognition of this mighty builder of a great city, but the city attests his power. In the dim light in St. Paul’s, in London, the tourist reads a tablet, “Christopher Wren, builder. Would you seek his monument? Look around.” Not otherwise is the relation of Greater Birmingham to James R. Powell. Its towering turrets and lofty buildings, its residence palaces and shaded streets, its smoking stacks and hives of mineral mines, and its numerous railway lines with their cargoes of daily traffic—these are his monument.

That one so great and noble should come to a death so novel and untimely is a mystery. He fell a victim to a pistol fired by a beardless youth in a Mississippi tavern, in 1883. For all the future his monument will stand, Alabama’s greatest city.

H. F. DeBARDELEBEN

In the year 1851 there might have been seen working in a grocery store, in Montgomery, a sprightly lad of ten, whose father had just died, and whose mother had removed to the Capital City. This boy was Henry DeBardeleben, destined to become prominent not alone in the development of the resources of the state of Alabama, but a picturesque figure in the coal and iron industry of the South.

Friendships of other days had united the Pratts and the DeBardelebens, which led to the guardianship of the lad by Alabama's pioneer manufacturer, Daniel Pratt, under whom Mr. DeBardeleben was directly and fortunately fitted for life. His academic course over, the young man was placed as superintendent over the famous gin factory at Prattville. Mr. DeBardeleben found in business a more congenial air than he found in books. The harness of work in the supervision of a manufactory was more easily adjusted to the young man than was that of the schoolroom, and the young man shed the one and gladly donned the other, for, from the outset, he cared but little for books, only as they could be used as tools to bring something to pass.

In the new sphere in which he now was, young DeBardeleben was of just the cast of temperament to seize the principles of business, work them into habit, and translate them into life. He learned those under the tutelage of Daniel Pratt, and in later years often alluded to them by the power of association with conditions encountered in future life. For instance, Mr. Pratt would never allow a piece of timber the least defective to be used in the manufacture of gins. It must be thoroughly seasoned, and be sound in every respect. Then, too, no defect must be sought to be concealed by an oversmear of paint, but solid merit must be in every splinter, screw and nail. Besides, no promise must be made that was not to be literally kept, if possible, and all bills must be promptly met to the day. In addition still, there must be no lounging or lolling during working hours, for idleness was akin to criminality in the mind of Daniel Pratt, and things must move while they were working.

Easily susceptible, the young man grasped these as cardinal principles of life, and they became to him abiding oracles for which he cherished the highest regard. Becoming the son-in-law of Mr. Pratt, marrying his only daughter, and, indeed, his only child, Mr. DeBardeleben necessarily became the more intimate with the proprietor and father-in-law.

One of the first interests enlisting the attention of Mr. DeBardeleben was that of a central system of railway through the heart of Alabama. A railroad from the Gulf reached the base of the mountains of north Alabama, but there it stopped. From the opposite direction another descended from Nashville into Alabama, and likewise stopped on the opposite side of the mountains. To see this missing link supplied by the knitting together of the two ends was a matter of deep concern to Mr. DeBardeleben, and he rested not till it was done. That accomplished, the opening of the resources embedded in the mountains and hills of north Alabama enlisted him. As he came to learn more of these abounding deposits his enthusiasm was enlisted as never before, and visions of accomplishment rose before him to lure him to fresher endeavor. It is not possible within the narrow compass of a slight sketch even to name the enterprises to which he set his hand, and only the barest outline of the man and of his achievements is possible.

The combination of elements in his character was exceedingly rare. He was a great and perpetual dreamer, but his dreaming was of the solid and constructive sort. No day dreams nor woven rainbows were his, merely for entertainment of lazy hours. He pictured possibilities, not visionary vacuities. He had poetry in his being, but it was the poetry that was practical. He was a great poet and a great business prince combined. He was not unmindful of the formidableness of difficulty, but it inspired rather than deterred him. Underneath the ardor of the man was a solid substratum of calculation, and a calculation that took into account herculean effort. His penetration was sharp, quick and decisive.

In this sweeping delineation the fact is not overlooked that Mr. DeBardeleben was forced to succumb to the inevitable when Birmingham fell a victim to the cholera scourge, and equally to the prostration occasioned by the memorable Black Friday in Wall street, the effects of which event fell with crashing weight on every interest throughout the Union. Furnaces grew cold, the pick in the mine lay idle, eager laborers sat

holding their hands in idleness, and a nightmare fell on the nation throughout. To have known Birmingham in those days would have been to know a forlorn town, straggling and gloomy, while the environing districts were silent and smokeless.

But the darkness gradually wore back to light.

With the return of dawn, men were open-eyed for advantage in the great mineral domains of Alabama. Mr. DeBardeleben returned to Birmingham in 1877 with an immense fortune at his command, for he was the successor of Daniel Pratt. Now he became united with Colonel Sloss and Mr. T. H. Aldrich, names forever inseparable from the history of the mineral development of north Alabama, and an invincible trio it was.

In the immense enterprises now entered on by the three, there was sufficient in the colossal proportions of the undertakings for the adjustment and adaptation of the peculiar gifts of all. Mr. DeBardeleben was the chief planner and sagacious seer of the group, and daring he was in all the enterprises proposed, but he was willing not alone to see, but to do. The expansive fields of ore constantly challenged his highest forces of enthusiasm and energy, and he chafed under his own limitations, as a man, to meet the challenge forthwith. Dreaming in the solid way already indicated, planning by day and night, and meanwhile always doing, Mr. DeBardeleben was a prodigious factor of development in this marvelous district.

It was the dawn of a great era in the history of the Birmingham district when Henry Fairchild DeBardeleben combined his immense energy and equally immense fortune in its development. He took the reflux tide of prosperity at its fountain, and, directing it into new channels, rehabilitated the district, and in the transformation made others forgetful of the preceding gloom. Indifferent to fame, he was intent on gratifying his unceasing enterprise and energy by seeing the strides of development made.

WILLIAM C. OATES

Altogether worthy of enrollment among the great men of Alabama, is the name of Governor William C. Oates. His service to the state for many years was varied and loyal. He was crowned with honors by his countrymen and was altogether worthy. Reared to manhood with only ordinary educational advantages, he was for many years recognized as one of the foremost citizens of the state. He was a man of solid qualities without the glint of the picturesque or the foil of the superficial. Honesty was his purpose in life, and in view of this quality, his faults were as transparent as were his merits. In no cause or issue was there a misapprehension of his position. If in some respects he was rugged, it was due to the fact that he did not propose to pose for that which he was not. He had his enemies, but they were no more cordial in their opposition than were his numerous and strong friends in their attachment and loyalty.

In the dawn of manhood he gave but little promise of success. Leaving home at the age of sixteen, he roved the far Southwest for a period of years, struck the hard sides of life, and returned to his home more matured in wisdom by his bitter experience, and came to realize the necessity of stability of plan and purpose in order to succeed. In the raw region of Henry County, as it then was, Oates taught a rural school for a period of months, later readdressed himself to study, and finished his course at a high school at Lawrenceville. At that time the bar opened the widest and most inviting gateway to eminence, and Oates aspired to be a lawyer.

In the office of Pugh, Bullock & Buford, at Eufaula, the rustic aspirant learned the principles of his chosen profession, and was admitted to the bar in 1858. Locating in the rural village of Abbeville, the seat of justice of Henry County, he rose to be the leading lawyer of southeast Alabama, and gradually came to be recognized as one of the best lawyers of the state. His matter-of-fact manner and sturdy honesty won him a wide circle of confidence, and men would ride on horseback long distances to engage his professional service.

The rural press was not so abundant at that early day as it has since become, and because of a lack of representation in that then inaccessible region, he edited a newspaper at Abbeville. He was engaged in the combined functions of editing a country journal and practicing law, when the storm of war broke over the land in 1861. Raising a company of volunteers, he became the captain, and was attached to the Fifteenth Alabama Regiment of Infantry. He led his command into twenty-seven battles and became conspicuous for his courage on the field. He received his commission as colonel in 1863, and received a wound at Brown's Ferry, on the Tennessee River, near the close of that year. At Fussell's Mills, near Petersburg, Va., he sustained the loss of his right arm, but after recovering from the wound, he resumed the command of his regiment, which command he retained until the close of the war.

Returning to Abbeville after his capitulation, Colonel Oates again took up his practice, and came to be esteemed one of the leading citizens of the state. With all important movements in the state he was connected, and his practice meanwhile became immense, so that Colonel Oates came to be regarded not only as one of the most successful and leading lawyers of the state, but one of the most prosperous. In many ways his name was prominently known throughout the state, and a number of times mentioned in connection with gubernatorial honors. This was notably true in the two conventions for the nomination of a governor in the years 1870 and 1872.

In 1870 he represented Henry County in the state legislature, where he became a distinguished leader. His service as a legislator brought him still more prominently before the public. He was a member of the constitutional convention in 1875, and from 1881 to 1894 he served his district, the third Alabama, in the National Congress. His long and useful career in congress gave him an influence second to that of none other of the Alabama delegation. He was serving in congress when he was chosen governor of the state in 1895.

Shortly after this came the monetary slogan of the free coinage of silver at the sixteen-to-one ratio, of which William Jennings Bryan was the apostle, and Governor Oates was with the minority of eminent Alabamians who resisted the doctrine, in consequence of which he paid the penalty of defeat at the polls for the national senatorship in a subsequent election.

When the Spanish-American War began in 1898 Governor Oates was commissioned a brigadier general and served throughout the ninety-three days of that sharp and decisive contest.

He was again chosen a member of the convention which revised the state constitution, in which body his services were of immense value to Alabama. His closing years were spent in the city of Montgomery, where he continued to practice law till compelled by failure of vision to surrender it. He died at an advanced age.

Reviewing a sketch so brief and imperfect, and one altogether unworthy of his long career of usefulness, we are enabled to glean sufficient to learn that for a full half century Governor Oates was engaged in contributing to the growth and development of the state. The stations filled by him with ability so signal, and extending through so many years, attest his usefulness as a valuable citizen of Alabama. As a lawyer of distinction, a soldier as courageous as any son of Alabama, a delegate in molding the fundamental law of the commonwealth, a statesman whose qualities were signally demonstrated in the halls of congress, and in the gubernatorial chair, there is due him the worthiest praise. Solid rather than brilliant, rugged rather than polished, useful rather than ornate, and substantial without the alloy of artificiality, there were embodied in Governor Oates elements of genuine greatness. In nothing mediocre, he rendered a permanent service to Alabama and went to his grave as one of the state's most distinguished public servants.

JONATHAN HARALSON

Judge Jonathan Haralson was an eminent type of that generation of southern gentlemen who were a connecting link between the old and the new South. He had just reached the threshold of cultured manhood when the crash of war came. He was of the finished mold of the young southerners of that period. He descended from a noble stock that was pre-eminent in southern society and in the affairs of his native section. His father belonged to that wealthy class of typical planters that gave prestige to the South on two continents. His uncle, General Hugh A. Haralson, was one of the most distinguished congressmen from Georgia, and for many years together was one of the most learned jurists of that state.

Graduating from the University of Alabama in 1851, Judge Jonathan Haralson studied law and was admitted to the bar a year later, but in order to equip himself thoroughly he went to the law school of the University of Louisiana, where he spent a year and obtained his degree of LL.B. He immediately entered on the practice in Selma, where he became eminent as a citizen, barrister, and an active Christian.

When, in 1876, the legislature of Alabama organized the city court of Selma, a court of common law with civil, criminal and equity jurisdiction, the bar of Dallas County recommended Judge Haralson to Governor Houston for the judgeship of this court. For sixteen years he presided over the court with signal ability. At the end of that time he was elected to the supreme bench of the state, where he served for twelve years.

One of the distinctions conspicuous among others possessed by Judge Haralson is worthy of special mention. His unusual culture, affableness of disposition, cheerfulness, varied ability, and prominence in Christian work found for him unsought niches of high honor in Christian work. Purely in recognition of his worth, he was chosen the president of the Baptist State Convention of Alabama in 1874, which position he held for eighteen years, and was the most distinguished layman in the denomination of the state during that time. In 1888 he was chosen the president of the Southern

Baptist Convention, which embraces the largest Baptist constituency in the world, and for ten successive years presided over that great body. He was a model parliamentarian, and came to rank as one of the foremost laymen of his denomination in the union. His retirement from that position was voluntary, for no one ever enjoyed more universal confidence and popularity than he.

Other honors still were his. He was for many years a member of the board of trustees of the Polytechnic Institute at Auburn, chairman of the board of trustees of Howard College, and a member of the American Baptist Education Society. An index to the character of Judge Haralson is afforded in the remark which he has been heard to make that he suffered nothing to interfere with his religious obligations. His conception of life throughout was ideal. Himself a model of genuine manliness, he sought to stimulate it in others. In all things his method was that of exactness. There was a scrupulous care in his bearing, his speech, his conduct toward others, and to the close of his life, the little amenities that make up so much of life, were not lacking in his character. While his high sense of manliness begot firmness, it was of that type which always bore the stamp of gentleness.

His suavity won him friends by the multitude, and his character and ability gained for him unlimited confidence. Presiding over bodies sometimes rent by agitation, where skill and firmness were put to the severest test, such was his personal influence, and such the confidence reposed in him, that no appeals from his decision as a parliamentary officer were ever taken.

Judge Haralson has but recently passed away, leaving behind him a record of public life of more than fifty years, with not a dent in his shield or a tarnish on his armor. He labored as long as he was able, and under the weight of years voluntarily retired from public life. His death occurred in his eighty-second year. In the quietude of his own home circle in Montgomery, after his retirement from the supreme bench, he serenely awaited the call of death.

Among the public men produced by Alabama, none ever excelled Judge Jonathan Haralson in loftiness of character, incorruptibleness of life, gentleness of disposition, and fidelity to duty. He was never the least ostentatious. His manner was quiet and cordial, and never the least

reserved. While his conclusions were always positive and firm, they were so tempered by gentleness as to leave never a shadow behind. He was as cautious of the feelings of others as he was for those of his own.

No man was freer of self-seeking. It was purely in recognition of his worth that he was called forth by others to the varied functions which he performed. His companionableness bound to him the best of men who loved him because of the loftiness of his life.

He lived throughout, the life of a typical southern gentleman—easy and quiet of manner, pleasing always in his address, unstilted, yet possessed of all the graces of the highest expression of culture. He was never profuse of praise or of compliment, but indulged in a sort of pleasing raillery and jest in which was couched an estimate which he entertained, and which meant immensely more from him than would the extravagance of many another. In a circle of friends he was invariably charming. His appreciation of a joke was delightful, and in this he indulged to the close. Jocular without yielding to unseemly levity, easy without undue freedom or familiarity, sometimes slightly stinging in his jovial criticisms of those for whom he had the highest regard, he always recognized the boundary of propriety, and never suffered himself to be betrayed beyond. There was no assumption either in his speech or manner. He was simple, while at the same time great in very many respects, invariably respectful, and dutiful to every trust, as a friend and as an official—these were the dominant traits in the character and life of Judge Jonathan Haralson.

W. J. SAMFORD

Readers of that sterling Democratic journal, the New York Daybook, published in the metropolis in the years before the war, recall the articles of a spicy correspondent from "The Oaks," in Alabama. That writer was the father of Gov. William James Samford. As one might judge from the conversation and from the speeches of Governor Samford, he was reared in an atmosphere of literature. To him, like to thousands of other southern youth, the war was untimely, as it interposed to cut short all prospects of a finished education, for as a stripling of seventeen he entered the service of the Confederacy. He had previously enjoyed all the facilities afforded in a country school near Auburn, and was in the sophomore class at the University of Georgia, when the call to arms reached him. Youthful as the boy soldier was, he soon became a lieutenant in the Forty-sixth Alabama Infantry, which distinction he won by gallantry on the field. Conditions were such that he was oftenest in command of the company.

Captured at Baker's Creek, he was taken to Johnson's Island. When his command was surrounded at Baker's Creek, with no chance of escape, he drew his sword and behind a log drove it into the ground to the hilt to prevent its falling into the hands of the enemy. After his exchange, Governor Samford rejoined his command and was with Lee's remnant when it surrendered.

Returning home when he was just twenty-one, Governor Samford went bravely to work on a farm to help save the growing crop of the spring of 1865. During the following fall he was married to Miss Drake, and settled on a small farm which he largely tilled with his own hands for several years. Possessed of an unusual intellect, as all who knew him recognized, Governor Samford was not content with turning the glebe, and procuring the elementary books of law, he would study at night after laboring through the day. He was fortunate in the companionship of an intelligent and sympathetic wife, to whom he would from time to time recite, as he would wade through the successive volumes of law.

In 1871 he removed to Opelika, was admitted to practice, and applied himself with energy. His thorough knowledge of the principles of law, resulting from his rigid application from the time of his entrance on its study, was superinduced by the labor which he bestowed on each case. A diligent, attentive, and intelligent lawyer is rarely without clients, and this admits of peculiar application to Governor Samford.

A striking and command physique, a genial manner, a mastery of his cases, and an eloquence which was natural, won him a practice that rapidly extended, not only, but a rank at the bar of which any one might justly feel proud. It is a notable fact that in the long career of the practice of Governor Stamford, he was never caught on any point unawares. He had gone over the entire ground in advance, had consulted the authorities with minute care, and entered the court fully equipped. Never presuming, as some lawyers do, that his opponents would overlook certain points involved in a given case, he strongly fortified each one, especially the weaker, so that he was ready for battle when the case was called.

This habit, well known in connection with the practice of Governor Samford, won for him a widening fame, so that his practice was considerable and prominent throughout East Alabama, and in other parts of the state, and even beyond. A client once defeated in an important criminal case, by the scientific knowledge of Governor Samford, remarked that a man who knew as much as Samford, should not be allowed to practice! Instances occurred when the opposition and even the court itself, was taken by surprise by his exactness of knowledge of the scientific points involved in given cases. Governor Samford had read every available scientific work bearing on the case at issue, and was a match for the most expert witness that could be pitted against him.

While Governor Samford was fearless in the prosecution or defense of any cause, civil or criminal, entrusted to his care, there was always a stately suavity that characterized his bearing, even in the rough and tumble of the courtroom, as his native gentleness of heart forbade the slightest harshness, or any warmth of passion. He was willing to acknowledge a lack of firmness on his part, about which he would speak to friends, but he would at the same time acknowledge that it was due to his indisposition to be unkind to any one.

The creation of the present board of pardon in this state was due to his energy, as he did not believe that so much of that which is sacred should be lodged in the hands of a single man, but that there should be deliberation derived from a number of sources in the settlement of grave questions. No one was more distrustful of his own firmness than was he when confronted by an issue involving much happiness. There was this womanly element in his great nature which would sway him in spite of himself. Whatever may be said of Governor Samford, his most obstinate opponent could never deny the existence of this trait of gentleness and kindness. Yet when confronted by a principle which demanded decision, he could be firm, and was, as was abundantly shown by the exercise of the veto power when it needed to be invoked.

Governor Samford's service to the state was manifold. Beginning as a soldier boy at seventeen, his career was marked throughout by services of a varied nature. While serving as a representative in the lower house, from Lee County, he was the recognized leader of that body. As senator, his merits were recognized by his being chosen the president of that body. As a delegate to the constitutional convention, his services were invaluable. As a representative in congress, he made a reputation for himself and for the state. Honored at last as governor, he brought to the functions of that high office his learning, ability, and experience in public life, all of which were valuable.

Only hints of the force of this profound lawyer, skilled statesman, cultured citizen, eloquent barrister, and Christian governor can be given in a sketch so circumscribed as this, but even such glimpses afford sufficient insight to enable one to judge of his rank of superiority. Always bright and cheerful, his sense and appreciation of humor did not forsake him on his last bed of illness. Yet there was profound devotion to God which he cherished and cultivated to the end. Cut down in the prime of life, Governor Samford died while serving as governor of the state.

W. W. SCREWS

For solid and substantial service and for disinterested devotion to the cause of Democracy, the duration of all which stretches through a period of about a half century, none excels the veteran editor, William Wallace Screws, of Montgomery. From the early dawn of manhood to ripened age, Major Screws has been identified with the fortunes of his native state. It is doubtful that another has impressed the thought of the state so uninterruptedly for so long a time as he. There has never been the slightest waver in his fidelity and downright labor for a long period of years. Certainly he has sufficiently won the approval of the people of the state as to be worthy of a place among the men who have constructed the commonwealth to its present stage of advancement. No flash nor picturesqueness, no sensation nor sudden innovation has at any time attached to that which he has done—it has been service rendered as in a treadmill, patiently, persistently, and perseveringly. He has gone down into the depths with his people, has suffered as they have, and has risen along with them through the varying fortunes which have been theirs in the years of the immediate past.

Major Screws' native region is Barbour County. His academic training and all indeed he ever had, was at Glennville, a village noted in other days for its educational advantages. He entered life early, for he was admitted to the bar at twenty, after having studied in the law office of Watts, Judge & Jackson, at Montgomery. At the end of a two years' practice, he entered the Confederate service, being among the first to enlist. Like many others, Major Screws was not a secessionist, but he was a patriot, and subordinating his personal views to the expressed judgment of the people of Alabama, he shouldered his musket and went with the first troops that were concentrated at Pensacola. He joined in the capture of the navy yard and of Fort Barancas, and later became a lieutenant in Company H, Fifty-ninth Alabama regiment, and served under General Bragg in Tennessee and Kentucky, participating in the battles of Chickamauga and Knoxville.

The last year of the war found Major Screws under Lee in Virginia. During that stressful and distressful period he was an active sharer, and was with the remnant of that brave army that surrendered at Appomattox. It was during his campaigning with the two armies that Major Screws developed his popular ability as a writer. A vigorous and versatile correspondent from the front, he enlivened the columns of the Montgomery Advertiser, then presided over by that brilliant editor, Samuel G. Reid. The keen insight of Major Screws into the situation led him at one time to forecast some of the contemplated movements of Bragg's army, the publication of which led to his arrest by General Bragg, but this was a merely meaningless episode, and only served to develop the fact that the sagacious correspondent had too keen an insight for the comfort of the commanding general.

On his return home in 1865, Major Screws was entirely reliant on his pen for a livelihood, and became connected with The Advertiser as an associate. Great consideration was shown him by the editor, Mr. Reid, who finally put him in possession of the paper. Here has been the orbit of his great service to the state. His tripod was his throne, and though the paper was suppressed for a period of months, under the bayonets of reconstruction, it was not throttled, and its columns radiated with exposures of the corruption of those corrupt days. Under Major Screws, The Advertiser was the vent of heroic expression and the champion of the liberties of the people of Alabama. In those days of darkness and of trial, when Major Screws wrestled with poverty in the maintenance of his journal, the people of Alabama little knew what he was undergoing in their behalf. But in cool heroism he labored on, as though he had the purse of a prince at his command, and unselfishly served the people, undergoing perhaps as much privation as anyone who has ever served the state.

Under conditions like these the unselfishness of Major Screws was put to the test on more than one occasion. At one time during the agitation caused by the Stantons in the notorious struggle to obtain the issue of bonds in behalf of the Alabama and Chattanooga Railroad, the history of which struggle is too long to be gone into here, an agent of the Stantons appeared at Montgomery and proposed to Major Screws to pay him \$51,000 for the use of the Montgomery Advertiser in the promotion of the fraudulent scheme. Major Screws was to remain the editor of the paper, and the sum proposed was merely to purchase the right to use its columns, through

another, in fixing this burden on the people of the state. He was a poor man, grappling with the difficulties incident to the times, but he flatly declined the offer, and bravely continued his opposition to the issue of the bonds.

There was another occasion when he might have succumbed to a proposal as a Democrat, and found some plausible pretext for his action. The marvelous mineral resources of the state were winning national attention, and a segment of the Democracy in congress under the leadership of Hon. Samuel J. Randall, of Pennsylvania, was espousing protection in the interest of the mineral developments of the country. Mr. Randall was the champion of these Democratic protectionists, and it was sought to bring the mineral interests of Alabama into the movement. The bait was a tempting one at a time when capital was in great need for the development of our deposits, and an exponent, such as the Montgomery Advertiser was, would have proved of immense advantage to this wing of the Democratic party. Accordingly, a special agent was commissioned to Montgomery to offer to Major Screws the snug sum of fifty thousand dollars to espouse the cause of that particular wing, and take plausible shelter beneath the plea of the necessary development of the coal and iron of Alabama, but this he promptly declined. These are sufficient to show his unselfishness as well as his devotion.

Perhaps more than any other since the Civil War, Major Screws has been instrumental in shaping and directing the policies of the Democratic party in the state. He was a candidate for office once, when in 1868 he was elected secretary of state, and during the first administration of Mr. Cleveland he was appointed postmaster at Montgomery. These are the only positions he has ever filled. His career is an important component of the forces which have made Alabama great in the galaxy of American states.

Major Screws has grown old in years in the cause of democratic liberty in Alabama, yet in spirit he is as virile and vigorous as he was in the days gone.

HILARY A. HERBERT

When a lad of thirteen, Col. Hilary A. Herbert came with his father's family from Laurensville, South Carolina, to Alabama, and settled at Greenville, Butler County, where the lad grew to distinguished manhood. His advanced studies were prosecuted at the universities of Alabama and Virginia, at both of which schools he established a reputation for aptness and rigid accuracy. Admitted to the bar, Colonel Herbert had scarcely begun his career as a lawyer when the Civil War began. He had leisurely pursued his scholastic course and was about twenty-seven years old when the call to arms came.

Entering the army as a captain, he was attached to the Eighth Alabama Infantry, which regiment was sent to Virginia. He was with Magruder at Yorktown, was in the peninsula campaign, during which time he was promoted to the rank of major, and at Fair Oaks he fell into the hands of the enemy. He was soon exchanged, and on rejoining his command, was made lieutenant colonel. His regiment was first assigned to Longstreet's corps, but later was transferred to that of A. P. Hill.

Colonel Herbert led his regiment into the battles of Fredericksburg, Salem Heights, Antietam, and Gettysburg. In the battle last named the Eighth Alabama was directly opposed by a Federal regiment commanded by Colonel Maginess, who, in after years, sat side by side with Colonel Herbert in congress.

The retirement of Colonel Herbert from the army was due to a serious wound received in the Wilderness. The wound was inflicted on the left arm, a portion of the bone of which was carried away, and that practically nerveless limb still hangs at his side as a memorial of his gallant services. On receiving his wound, he was borne from the field in a critical condition.

Up to that time, though commanding the regiment for a long period, Herbert was only a lieutenant colonel, the colonel having been long disabled and unfit for duty, was not with the regiment, though his name still appeared on the roster as the commander of the regiment. Personally disabled as were both the colonel and the lieutenant colonel, they stood in

the way of the promotion of those who were still in active service on the field. In recognition of this condition, Colonel Herbert wrote at once to the brigade commander, expressing the wish to be retired. Major I. P. Emerich, who was now in command, with great magnanimity, protested against such action, insisting that Herbert had won distinction as a leader of his troops, and insisted that fairness demanded that he be promoted before he be suffered to retire. Major Emerich was joined by other officers of the command in the protest, which resulted in the retirement of Colonel Herbert with the full rank of colonel. The action was alike creditable to Colonel Herbert and Major Emerich. The latter still lives an honored citizen of Mobile.

After the capitulation of the Confederate armies, Colonel Herbert located at Greenville in the resumption of the law practice, where he was easily at the head of the local profession. A wider sphere opened to him in 1872, in Montgomery, whence he removed and entered into copartnership with Mr. Virgil Murphy, and later was associated with Messrs. Clopton and Chambers, with whom he was engaged till 1877, when he was elected to congress, his intention being to gratify an ambition by remaining in his seat but one session of two years.

But an event occurred which changed the current of Colonel Herbert's career. Samuel J. Randall, of Pennsylvania, had become speaker of the house, and there appeared on the scene Col. Tom Scott, of the same state, with a colossal scheme to procure a subsidy of \$40,000,000 with which to build the Texas Pacific Railroad with branches extending to the most important southern points. It was a gigantic venture and wore a rosy front for the South, which region was seeking to get again afoot. On the delegation from the South, pressure was brought, because it was so plausibly promising and it was sought to be made appear that it was an undertaking which the South could not lightly esteem. The enginery of the scheme was far reaching in its operation, for the state legislatures were urged to take such action as would force the co-operation of their congressional delegations in its success. The Alabama legislature instructed its senators to vote for it, and requested its representatives to do so.

Knowing the source and purpose of the mammoth scheme, Colonel Herbert declined to support it. Every possible pressure was brought to bear, but

Herbert was immovable. His maiden speech in congress was in opposition to Scott's plan. His argument changed the current of his life. The speech was printed and sent throughout his district, and though he protested against his renomination, he was returned to congress. Colonel Scott made another desperate effort to force the co-operation of Colonel Herbert, even employing learned and local counsel in Montgomery to induce the legislature to give imperative instruction to the state delegation to support the measure, and while this learned attorney alluded before the legislature to Colonel Herbert as misrepresenting the interests of the state, the assembly declined to instruct the members as desired, and the whole scheme was killed. Colonel Herbert now came to be recognized as one of the safest custodians of the interests of the state. While not a demonstrative gentleman, his merits came to be recognized in congress, as was shown by his appointment on the ways and means committee on which committee were such men as Reed, McKinley, and Morrison. His district kept him in congress as long as he would serve.

In 1885 he was appointed chairman of the committee on naval affairs at the request of President Cleveland. In 1893 Mr. Cleveland appointed him Secretary of the Navy. So popular was Colonel Herbert in Congress, that Republicans vied with Democrats in demonstrations of gratification at his promotion to the presidential cabinet. Just after his appointment to this honored post, he entered the hall of congress and was moving quietly toward the Democratic cloak room. Mr. Outhwaite, of Ohio, was speaking as Colonel Herbert was moving along the outer aisle, when a member spied him and broke forth with "Herbert! Herbert!" He paused, when Mr. Outhwaite generously said, "I will yield five minutes of my time to the gentleman from Alabama." There was no escape, and Colonel Herbert had to speak. He pronounced with deep emotion his high appreciation of the honor and tribute, and it is said that this was the first instance where he was unable to restrain his emotions in public. He was wholly unable to disguise his profound emotions at a demonstration so great.

To Colonel Herbert the entire country is indebted for the efficiency of its national navy. Behind the guns of Dewey, at Manila, and those of Schley at Santiago, was the efficiency of Hilary A. Herbert. Though advanced in age, he is still prosecuting his practice in the national capital.

WILLIS BREWER

Prominent among Alabamians who have aided in building into greatness our commonwealth is the Honorable Willis Brewer, of Lowndes County. Along different channels he has wrought for many years. Planter, journalist, lawyer, author, and statesman, Colonel Brewer has been no inconspicuous contributor to the growth of the state. A native of Sumter County, Alabama, with his education restricted to academic training, he has turned to most valuable account his gifts and acquirements, and by the self-cultivation of the one, and by means of close and studious application of the other, he has been an active participant in the affairs of the state for many years.

When a mere lad of sixteen he, in connection with the late Judge William R. DeLoach, of Sumter County, began the publication of a paper at Milton, Florida, where they were, when the war began, in 1861. Both enlisted in the Confederate army, but the health of Mr. Brewer became broken, and he was assigned to post duty during much of the war, but served for a period on the staff of General Wirt Adams in the Mississippi campaign.

His fondness for journalism led him to resume the editorial pen just after the close of the war, when he published at Camden, Alabama, the Wilcox Times. It was at this time, when Mr. Brewer was only twenty-two years old, that Governor Patton appointed him on his staff with the rank of colonel, by which title he has since been known.

In 1868 Colonel Brewer removed to Hayneville, and founded the Hayneville Examiner. The times and the environments served to evoke from the young editor the best that was in him, and his paper became one of the most powerful engines in the state in the exposure of the corruption of reconstruction. The slogan resounding from the Hayneville Examiner, "the people against the fools and thieves in power," caught, in its aptness, the ear of the state, and became a popular legend throughout the reconstruction era.

In 1876 to 1880 Colonel Brewer served the state as auditor. During 1880 he was chosen for the legislature and served during the remarkable period of eighteen years, twelve of which as senator and six as representative. At the

end of that period he was chosen for congress, where he served for four years. Twenty-six years of public service, years of diligent activity, entitles him to the gratitude of the people of a great state.

Valuable as his service was in every position occupied by Colonel Brewer, his most useful service was rendered while he was state auditor. His career in that capacity began with the administration of Governor Houston, which was one of retrenchment and reform. The pivot on which the economic administration of Governor Houston turned was the office of the auditor, over which presided Colonel Brewer. Here he discovered the leakage of the resources of the state, and it was Colonel Brewer who not only discovered this vent but sealed it, and gave backbone to the economy of the administration. To illustrate, Colonel Brewer found that the tax collector of Mobile County was allowed a credit of sixty-two thousand dollars for the lands bought by the state in 1874-75, and yet it was shown that Mobile was sold every year, while in the County of Dallas, not including the town lots, ninety-five thousand acres were sold in 1875.

Conditions like these had prostrated the state financially, and the eight per cent "horse shoe" money of the state was being hawked in the market at fifty and sixty cents on the dollar. Within two years after Colonel Brewer became state auditor, the eight per cent bonds of the state were funded at six per cent. He never suffered a tax collector to settle with a subordinate, but always with himself.

Another illustration of his share in the financial rehabilitation of the state is afforded by the fact that Colonel Brewer originated the state law of sale of property for taxes, which law he worked through the legislature during the session of 1878-9. He is the author of the law relative to descent and distribution by means of which parents inherit from their children when they die intestate, without wife or children. For seventy years the state had made no provision for parents, and no matter how old or infirm, they could not inherit, and the property fell to the brothers and sisters of the intestate.

From the dry, dull details of rigid business and the exacting irksomeness of burdensome labor, Colonel Brewer could turn with his facile pen to the production of the rarest English and the highest expression of thought. His passion for literature, for he is a most versatile student, has resulted in a

style peculiarly his own—crisp, terse, luminous, condensed, cast in a classic mold. His *History of Alabama*, published in 1872, is an invaluable contribution to the literature of the state. As a stylist he is rigid in exactness, while preserving a singular flavor which is most agreeable to the learned reader. His “*Children of Issachar*,” a novel, deals with Ku Klux times. “*The Secret of Mankind*” is a metaphysical production which has won such praise as to cause it to be compared to the works of Tacitus and Swedenborg. Though published as far back as 1895, this work is securing a revived popularity, and is now being translated into the German. The last literary production of Colonel Brewer, “*Egypt and Israel*,” is a scholarly production of philology, and shows a remarkable knowledge of the language of the ancient Egyptians and Hebrews.

At this writing Colonel Brewer is still among us. His poise is still as erect as when a lad, and his speech as clear, though he has passed his sixty-seventh milestone. In commenting on an allusion made to him in the *Mobile Register* in September, 1907, which journal spoke of him as “the last of the southern colonels,” the *Montgomery Journal* said of Colonel Brewer: “No man in the state has a more distinguished personality, a personality more distinctly southern, and none whose brain and intellect, culture and learning so forcibly remind of the Old South, as does the *Register*’s Hayneville friend.”

In quiet leisure Colonel Brewer is spending his closing days at “The Cedars,” his country mansion, a few miles distant from Montgomery.

JOSEPH F. JOHNSTON

Alabama was favored by the double administration of Joseph Forney Johnston, who took with him into the office of chief executive the qualities of a successful man of business and a varied experience of years. When a boy, Governor Johnston removed from his native state, North Carolina, and, his father settling at Talladega, the son was placed at school, where he was when hostilities were begun between the states in 1861. Scarcely eighteen years old, he was among the first in the state to enlist in the Confederate service, and became a private in the Eighteenth Alabama Regiment. It is a matter of common observation that a good soldier makes a good citizen, which admits of application to Governor Johnston. The record of his soldierly career may be summarized in the facts that the stripling soldier rose from the ranks to a captaincy, served throughout the struggle, and bore from the conflict four scars as the results of wounds in so many battles.

Like thousands of others, the close of the war found him practically penniless in the midst of conditions of desolation occasioned by the long struggle, and in facing the future, as a young man of twenty-three, he selected law as a profession, studying in the office of General W. H. Forney. Admitted to the practice, Mr. Johnston located at Selma, where for eighteen years he devoted himself to law, confining himself, for the most part, to commercial law, which served to imbue him thoroughly with the principles of business. While an active participant in current affairs of a public nature, he was content to render whatever service he might to the common weal, but evinced no desire for official station. In the reconstruction struggles he actively shared, and, while assisting others to the gratification of political ambition, Mr. Johnston was content to adhere strictly to the demands of his profession.

The development of vast mineral deposits in north Alabama induced his removal to Birmingham in 1884, in which growing city he practically abandoned the practice of the law, having been chosen the president of the Alabama National Bank. A still wider sphere was opened to him when he was invited to become the first president of the Sloss Iron & Steel

Company. Voluntarily retiring from the presidency of the bank, he assumed the larger duties of this great organization. This responsible station afforded ample exercise of the qualities of business with which Captain Johnston was equipped, and by the application of these, the company was placed on a solid and paying basis.

After years of service in this capacity, he caused it to become known that he aspired to the governorship of the state. He had never held political office, had never before desired it, hence had never before sought it; but now he did not disguise the fact that he wished to occupy the executive chair in the capitol of Alabama. His characteristic announcement of his candidacy was quite aside of the hackneyed phraseology of the ordinary political seeker. With blunt frankness he declared that he had not been solicited by numerous friends, and was not yearning to become a victim on the altar of political sacrifice in a consuming desire to render a public good, but simply that he had an ambition to become governor, believing that he could serve the state efficiently and with fidelity. Nor did he disguise the fact that he was possessed of this ambition for the distinction which it would afford and the honor it would bring.

Having resolved to enter the race for this high office, he bent his energies to the achievement. Twice he sought the position, and twice failed. In the third contest, however, in 1896, he was overwhelmingly chosen. That much was due to his praiseworthy persistency, his fealty to his party, which was ardently shown in his espousal of the candidacy of his opponents after he had himself failed, and to the fact that greater publicity was given his forces of character, there is no doubt. His unsuccessful efforts had served to display the type of man that he was, and there was a growing recognition of his merits.

On his entrance to the gubernatorial office he began at once to reduce the government to a business basis. He proceeded to lop off, here and there, official branches that bore no fruit and yet were duly fertilized at the public expense; he regulated the system of taxation, so as to equalize it, by requiring taxes to be paid which had hitherto escaped; he instituted the system of the examination of the books and accounts of county officials by expert accountants, and by economy of management caused to accrue to the state treasury a sum exceeding thirty million dollars. He took a direct

personal interest in the public school system of the state, and it was during the administration of Governor Johnston that the question of an improved public road system was inaugurated. By steps like these he came to be recognized as “the business governor.” He was unanimously chosen to succeed himself after the expiration of his first term, and his gubernatorial career closed with the last year of the nineteenth century. In 1909 Governor Johnston and Honorable J. H. Bankhead were chosen by the popular vote of the state to succeed Senators John T. Morgan and E. W. Pettus, and in 1910 took their seats. Senator Johnston displayed the same solid qualities in the National Senate that he had previously shown as governor. His was not a demonstrative career, for he was a man of solid qualities rather than one of shining gifts. There was the utmost popular confidence in his judgment and in the integrity of his character. Steadfast to duty, often when physically unable, for his health had become greatly impaired, he won, as a senator, the thoughtful confidence of the people of Alabama.

An indication of the conscientiousness of his conviction was shown in the fact that in the famous Lorimer case, before the senate of the United States, Senator Johnston, guided by the evidence, declined to be swayed by the popular clamor to vote for the ejection of the Illinois senator. To many this was thought to be hazardous, but he openly declared that rather than do violence to his convictions, he would resign his seat. He therefore voted for the retention of Mr. Lorimer, and refused to be swerved by the outcry of the popular press. Senator Johnston was preparing for a contest to succeed himself when he suddenly died at Washington, in August, 1913.

ROMANCE OF ALABAMA HISTORY

FIRST WHITE INVADER

The morning of May 25, 1539, found the shore of Tampa Bay, Florida, the center of a bright and animating scene. A wealthy Spaniard, chivalrous and dashing, had just before reached the port with a force of six hundred men, twenty officers and twenty-four priests in white canonicals, all bent on an expedition into the far interior. Their quest was the long-imagined El Dorado of the western world, which was a prize glittering before the imagination of the fervid adventurer. Ferdinando DeSoto, who led this daring troop, was not unaccustomed to adventures such as he had in contemplation, for he had been with Pizarro in Peru, where he was rewarded with rich booty, and he pined to invade the southern part of the North American continent, where he hoped to reap richer rewards than were found on the continent to the south. In the exploration on which he was now entering he had been preceded ten years before by Narvaez, who had perished by drowning. Now, with a freshly equipped expedition, DeSoto entered anew on an exploration of these western wilds in search of gold.

Novel spectacle was this on the wild and primitive shore of Florida. Men in brilliant uniforms, and with helmets glittering in the spring sun, gayly caparisoned steeds, a procession of white-robed priests bearing their crucifixes, formed a procession at once novel and imposing. As they filed out and formed for the march, there was ranged in their rear a small herd, each of cattle and of hogs, to be driven on the expedition for supplies of milk and meat. As the expedition advanced inland, there was a strange multiplication both of swine and of cattle.

It was picturesque enough, this cavalcade of horsemen in shining attire, bearing the ensign of Spain, wending its way slowly through the virgin forests of tall pines. Their camp fires of rich, resinous pine knots, in the midst of stately trees, which stood like pillars in a vast cathedral, lent a scene of enlivenment to the forest surroundings. The region was green with long, wild grass and the native peavine, while the blossoms of early spring were in their glory.

Streams deep and crystal abounded, along which grew the rank cane. Herds of deer and droves of wild turkeys came frequently into view as targets for the Spanish marksmen, and the troop reveled in unusual luxury, with venison and turkey meat even in the wild woods of the continent of the West.

From the early stages of the march toward the interior, combats with the Indian tribes began, but the Indian was unequal to the Spaniard because of the better equipment of the latter. The savages were overawed by the splendor of the white soldier, and as much by his horse as by himself, for horses the Indians had never before seen. DeSoto was fortunate in the capture of Jean Ortiz in a contest in the interior of Florida. Ortiz had been one of the band of Narvaez, had been captured by the Indians ten years before, had succeeded in saving his life by wily stratagem, and because of his soldierly qualities had been made a chief of one of the tribes.

Under conditions like these, Jean Ortiz had lived for ten years, making the most of the circumstances, and had long ago given up all hope of leading other than the life of a wild savage. The dominion of his tribe fell within the march of invasion of the Spaniards, and Ortiz led his warriors to battle against them. Sorely beaten in the encounter, many of his warriors having been slain, Ortiz and his troops fled in confusion, hotly pursued by the Spanish horsemen. Ortiz was specially sought to be killed because he was the leader, and as a cavalryman raised his lance to deal a deadly blow, the chief cried out in Spanish, much to the surprise of the pursuer: "Slay me not; I, too, am a Christian!" The half-nude savage was taken to DeSoto, his body smeared with divers paints, his hips swathed in a fawn skin girdle and his head bedecked with a coronet of pretty feathers. He told the story of his capture and wild life to the Spanish commander, and placed himself at his service. Ortiz proved to be a valuable ally to the troop in acquainting DeSoto with the methods of the savages, and in serving frequently as an interpreter.

DeSoto found the aborigines to be far more formidable fighters than he had expected. While their implements of combat were rude, yet when wielded by the Indian, they did deadly execution. The chief weapon of warfare of the Indian was the bow, the character of which made it an object of terror. The bows were made of sun-cured hickory saplings the size of a man's

wrist and eight feet long. Curved and secured by a strip of rawhide, the bow was no mean instrument of peril in the hands of the muscular savage. To the flexibility of the hickory bow and the elasticity of the thong were adjusted the skill and aim of the practiced warrior. The arrows were finished with a view to accuracy of aim, velocity, and deadliness of execution. Tipped with triangular flints with rough edges and pointed sharpness, they were driven with an aim so unerring, and with such force and celerity, that they could be shot through a man or beast at a distance of one hundred yards. With a quiver full of these arrows strapped to his back, the brawny warrior would sally forth, an object of terror.

Fortunately for the Spaniards, they were prepared with armor sufficient to withstand these crude weapons, for each soldier wore a coat of steel, a helmet and breastplate, and carried a shield of metal. Their horses were also protected with coats of steel. With their biscayan lances, broadswords, arquebuses, crossbows, and a small piece of artillery, the Spaniards felt secure against the primitive implements of the savage. Though thus secured against savage attack, DeSoto and his men soon learned that theirs was not a primrose path through the American wilds. The Indian proved to be a terrible antagonist with his foxy stratagem and his primitive method of warfare. These pampered sons of Spain, many of whom had been petted and nourished in mansions and in palaces of luxury, had daily to fight for their lives on the invaded territory of the red man, who would engage the Spaniards at points of the greatest advantage to themselves, and who enjoyed every possible advantage because of their familiarity with the surroundings. But for Ortiz, the expedition might have perished before it had quitted the present territory of Georgia.

The Spaniards never knew when to expect an assault. Often at the most un conjectured time, they would receive a shower of arrows, noiseless in their flight, and coming from unseen sources. Every hour, by day and by night, they were kept in suspense, and even intervals of quietude became ominous of accumulating trouble. Sometimes from the summits of rocky hills in front an attack would be made; sometimes one flank assailed, then both simultaneously; while not infrequently the rear would be attacked by overwhelming numbers of shrieking, yelling demons, whose painted, naked bodies and fierce demonstrations would create pandemonium. There was little in tragic scenes like these to hearten the tender gentry of Spain. By

dint of rare discipline, maneuver, powder and ball, of which the Indians knew nothing, and an intensely common interest of protection which welded the Spaniards together, they invariably prevailed, but never were shrewder, more stubborn or fiercer foes encountered, than these raw savages of the American forest.

Though duly provided with workers in metal with their pots and ladles for the refinement of gold, the troops found no use for them after months of a straggling march through the woods of the South. The alluring vision of the invading Spaniard of the abundance of gold in the retreats of the American wilds, was gradually dispelled and vastly counterbalanced by the hourly peril that menaced. That the spirit of the troops so long survived conditions like these, shows the stern stuff of which the Spanish soldier of that time was made. His love of gold was consuming, while his spirit of adventure was the most audacious. These, combined with the necessary coherence in common defense, made DeSoto's band well nigh invincible.

After a considerable detour of the present state of Georgia, DeSoto reached the region where the city of Rome now is, where he crossed the river, and was the first white man to set foot on the soil of Alabama. Of the subsequent scenes of the expedition we shall have occasion to learn in the chapters that are to follow.

INGRATITUDE AND CRUELTY

Thirteen months of hardship and of Indian warfare had changed the original picnic appearance of the Spanish troop. The uniforms were not now so lustrous, and the young grandees did not disport themselves as they did more than a year before, on the shore of Tampa Bay. The elements had dimmed the luster of their equipments, the hot southern sun had bronzed their complexions, their uniforms looked much the worse for wear, and, while the pots and ladles of the refiners were still unused, there was yet the undaunted flash of hope in the Castilian eye. It was a resolute legion under a resolute leader.

The Coosa was crossed, that stream of crumpled surface which the Indian in his native sense of poetry had called "Rippling Water," which is the meaning of Coosa, and now the cavalcade turned toward the southwest, as one would look from Rome toward Blount Springs and Tuscaloosa. It seems that from the Georgia side the Indians had sent runners to the tribes on the thither side, warning of the advance of the strange cavalcade of invasion, for as DeSoto pursued his way he met one embassy after another, offering every concession in order to placation.

The line of march was through the present counties of Cherokee, Calhoun, Talladega and Coosa. Like Cæsar in Gaul, DeSoto jotted down his observations and impressions, for he was a scholarly warrior, and his records are a matter of permanent value. He was charmed by the primeval beauty of that northeastern region of Alabama. Streams, swift, bright and deep, unalloyed by the soil and sediment of the present time, wound their way among the hills; magnificent timbers stocked the forests; mountains were the more imposing because of their wooded flanks; flowering vines, in gorgeous beauty, climbed to the tops of the tallest trees; festoons of wild grapes were suspended from tree to tree; varied floral coloring decked the region throughout, while meadows of the rarest green were spread like carpets along the valleys, through which ran flashing streams like threads of silver woven into the carpeted verdure.

Here, too, the observant and intelligent Spaniard detected the difference between the Indian tribes that he had encountered on the eastern side of the river, from those on this side. Fertility of soil, picturesqueness of scenery, or the inheritance of forces from a superior ancestry, or all these combined, had placed the Alabama tribes far in advance of their tawny brethren across the stream. Here were found cleared fields, on which was grown corn in abundance, of which there were rude barns full to overflowing. Settlements and towns were laid out with some respect to order, and the huts and wigwams were built with more regard to comfort and of appearance. It was the opinion of DeSoto that the highest civilization possible to the Indian unaided, was here reached.

Environed by conditions like these, the Spanish commander was much affected, favorably concerning the Indian, but unfavorably respecting himself and his men. This advanced condition of the Indian suggested to him a problem which he had not anticipated, for he was now to deal with a class of people not before met, and for which he had not planned. This was accompanied by a suspicion, inseparable from Spanish character, that these manifestations of embassies meant for him a trap, and by this he was controlled ever afterward, much to his disadvantage, as we shall see.

He was now within the dominion of the chief of Coosa, a great monarch in these far interior wilds. His dominion was vast, his people loyal and brave, thrifty and numerous. His capital city was Coosa, and to DeSoto the chief sent an embassy of welcome, which was coldly greeted by the suspicious Spaniard. When DeSoto came near the capital, he was met by the Indian monarch himself, attended by a thousand painted warriors, stalwart, tall, erect, lithe, and dignified of movement. They walked the earth like princes. Around a band about the head of each, were nodding plumes of varicolored feathers. With lofty port and evident pride, they escorted their chief into the presence of the Spanish invader. The chief himself was a fellow of commanding build, and as he sat erect on a rude chair borne on the shoulders of four brawny braves, he was not unconscious of his consequence as a great ruler.

The Spanish were astonished by a scene so splendid in these sylvan retreats. To them it was a spectacle of wonder. About the wide shoulders of the mighty chief was a mantle of martin skins, soft and glossy, which fell in

graceful folds about his huge form, while his head was adorned with a coronal of brilliant plumage. His immense escort of painted attendants lifted their voices in Indian melody, accompanied by piping on their cane flutes.

The two bands of Indians and of Spaniards were brought front to front, each silently scanning the other curiously, each magnificent in its own way. Each was equally a revelation to the other—the plumed and half-naked savages, with faces hideous with divers paints, bearing bows, arrows and wooden clubs, and the steel-clad warriors of ancient Spain with metal armor, and mounted on animals never before seen by the Indians. Through Jean Ortiz, an interpreter, the ceremony was conducted. Speeches were exchanged, after which DeSoto was escorted with much pomp to the quarters prepared for his entertainment.

Haunted by a dark suspicion, DeSoto kept the chief near him and retained him as a sort of hostage near his quarters. While the Indian is revengeful, he is kind even unto death, when a friend. The chief had exhausted his ingenuity in providing entertainment for his distinguished guest, and that guest now requited that kindness by placing the chief under arrest. The man of the woods showed deeply and keenly the humiliation felt, but the supercilious Spaniard cared not for that. The untutored warriors were enraged by the untimely treatment of their chief and gathered in knots and groups about the settlement with a low hum of murmur. Their savage blood waxed hot, and they began to foment mischief. DeSoto cared nothing for savage amenity and hospitality, and was concerned alone for his own safety. Gratitude is not an element in the Spanish character, and DeSoto had not crossed the seas to indulge in diplomatic palaver, but had come in search of the yellow gold.

Stung by revenge, the Indian warriors by thousands slid away to the woods by different ways, to plan for the extinction of the invading host, the intruder, the ingrate. Apprised of their movement, DeSoto summoned his forces and sent them in pursuit, and scattered the warriors before they could assemble, and by concerted action attack him. A large number of them were made prisoners, both of men and women, whom DeSoto handcuffed, put iron collars about their necks and loaded them with chains. All this was done openly in their own capital city. Around his headquarters sat in groups the meek-eyed prisoners, while near the house provided for the

entertainment of the Spaniard sat their revered chief, himself a prisoner. The chief, the wiser of the two, pleaded that, whatever was meted out to him, his people be not thus so cruelly served. In response DeSoto sufficiently relented to release some of the prisoners, while he retained others, and when at last he took his leave he forced them to become burden-bearers of his camp equipage.

Still anxious to afford assurance of his sincerity, the imprisoned chief sought repeatedly to avow it afresh, but it fell on the leaden ears of the heartless Spaniard. Engaging DeSoto in conversation, the chief even went so far as to offer a vast domain of land to the Spaniard for the founding of a Spanish colony, and proposed to allow him to select it himself. At this DeSoto only laughed, and told his entertainer that it was not land that he sought, but gold. Well had DeSoto learned the lesson given by the atrocious Pizarro in Peru, with whom he was, during that notorious invasion far to the south.

DeSoto was in no haste to quit the Coosa capital, and with lavish hand he fed his horses, cows, and hogs on the housed corn and provender of the savages, while his men were refreshed by a long-needed rest. When he at last took his departure, he left with the Indians some of his most undesired cattle and swine, besides a negro slave, who had fallen sick, and was unable to travel. The Indians were delighted to retain the African, as they were greatly impressed by his thick, heavy lips, his black skin, and his woolly hair. Long afterward it was noted that the Indians in that quarter were of a darker hue than were the neighboring tribes, which was attributed to the remote ancestry of this son of Ham. After lingering for a full month in the Indian capital, DeSoto took his leave, but not without crowning his cruelty by taking with him the proud young chief as a prisoner of war. The most that can be said in extenuation of this infamy is that he treated him with kindness. Realizing that it was futile and perhaps perilous to protest, the chief bore the indignity with becoming calmness, showing that of the two men, he was the superior. Though kindly treated, the chief was closely watched and guarded, lest he might escape and produce havoc. Taking up his line of march, DeSoto still moved toward the south.

TUSKALOOSA, CHIEF OF THE MOBILIANS

As had before occurred, couriers preceded DeSoto, warning the Indians of other settlements and tribes of his coming. Numerous Indian towns were passed by the Spaniards as they wended their way, following the wide and well-beaten paths of the Indians as they threaded the primeval forests. The Spaniards were cautious and wary, and kept a sharp outlook for lurking danger. They would invariably pitch their camps at night on the outskirts of an Indian village, and at times, well within its limits. If an attack or misfortune should come, there was an evident advantage of close proximity to supplies. The Spaniard was suspicious, the Indian distrustful.

Much after the fashion of the ancient cities of Europe and of the farther east, some of the larger towns of the Indians were surrounded by massive walls. Timbers hard and heavy, of cured oak and hickory, sometimes sunk deep into the earth and standing upright, at others lying horizontally, but in each instance strong and compact, made the walls most formidable to attack. Along the summits of these ramparts, high and rude, were watch towers or lookouts, warily sentineled. There was evident the sense of geometric order, skilled workmanship, and resistfulness to attack from without, all of which served to heighten the wonder of the Spaniard, if indeed it did not deepen his solicitude.

The Tallapoosa River was reached—a stream flanked by dense woods and penetrating soils of blackness and of a dingy red. DeSoto was greatly impressed by the savage skill shown in the location of a fortified town in a graceful curve of the river. Tallassee, for that was the name of the town, had a double protection in the river which coiled about it, and in the wall which more immediately encircled it. From the nature of the fortifications, the Indians evidently regarded Tallassee one of their strong and strategic points. In the regions adjacent, lining the fertile banks of the river, were fields of corn with heavy ears almost sufficiently ripe for the harvester. This was in 1540, some time after which this beautiful and prosperous Indian region was invaded by tribes of Indians from Mexico, who, with tomahawk and fire, laid waste the country, burning the towns, and reducing to slavery such

of the native tribes as were not slain. In point of Indian relics, no part of the country is rarer and richer than this. Numerous relics have here been found for the enrichment of depositories, and a few years ago a peculiar implement of antiquated warfare was plowed up in this region. The metal implement suits the description of the cannon in use at the time of the DeSoto invasion. It represents the type of ordnance known in those days as the "drag," the heavier pieces of which were suspended by chains, from an axle between two wheels, when movable, or between two fixed objects, when used for stationary service. They were sometimes sufficiently light to be held off from the person, in the palm of the hand, when used for firing. This last description suits that of the implement found in the Tallapoosa region. It may be seen among the interesting collections so industriously made by Dr. Thomas M. Owen, the able and efficient director of the Alabama state department of archives and history, in the capitol at Montgomery. When the railroad was building between West Point and Montgomery, there was dug up in the region of the Tallapoosa River, a necklace of rare beads, such as were worn by chiefs and princesses in the primitive days.

At Tallassee, whither had come the terrible news of the approaching Spaniards, such of the Indians as did not betake themselves to the forts met DeSoto with slight and cool civility. In order to rest his force, the Spaniard halted here for twenty days, during which time men and stock were recuperated and the stores of the commander replenished. It was here that DeSoto was visited by a sprightly young brave of splendid physical mold, gaudily attired, excessively polite, and making much show of primitive diplomacy, who invited the Spaniard to the dominion and capital of Tuskaloosa, a powerful chief, the territory of whom began about thirty miles south of Tallassee and extended westward to the banks of the Tombeckbe.

DeSoto was notified that Tuskaloosa was in person awaiting him near the northern confine of his dominion, and was ready to accord a welcome alike befitting the great monarch, and the brave Spanish commander. To all of this and much more, DeSoto listened with imperturbable mood, meanwhile according due respect to the punctilious young diplomat, who, when he signified his purpose to return, the Spaniard sent a message of grateful

acknowledgment to the chief, not unattended with gifts. With this the incident closed, but it had a bloody sequel.

On quitting Tallassee, and before crossing the river on his southward march, DeSoto released the chief of the Coosa and sent him back to his people a bearer of gifts. The chief had served DeSoto's purpose, and, now that no danger could come of him, he was dismissed. The valuable gifts in part atoned for the perfidy of his retention in captivity.

Up to this time the Spaniards had had much their own way. Everything that disputed their progress had been swept aside as so many cobwebs. With genuine Castilian arrogance, mixed with cruelty, they had marched the land through with the air of masters, but their brightest days were now behind them. The future had in store for them abounding trouble and misfortune, to grapple with which would tax them to the utmost. Gold, the only object of the quest of this adventurous itinerary, had induced these young fellows of Spain to sell their estates and enlist under the standard of DeSoto, had not been found. Not a grain of the precious metal had been discovered, and more, they were not destined to find any. They had been lured by lust for gain far into the wilderness fastnesses of America, had encountered fierce and hostile tribes, were remote from their ships, and their condition was now a precarious one. Brave, daring and well equipped as they were, even these advantages were not without serious limitation, and there was little to save them from utter extinction in these deep forest retreats.

Nor were there lacking omens of disaster which did not escape the acute detection of the wary and wily Spaniard. Beneath the thin sheath of diplomacy and protestations of friendship and of hospitality, there lurked a subtle purpose to decoy these men of Spain to destruction. DeSoto felt this in his bones. That the Coosa chief was sincere there is little doubt, but DeSoto's treatment of him had exposed his apprehension, which, in turn, sharpened the revenge of the Indian. The Spaniard's overwrought precaution hastened to ripeness a conspiracy which else might have been averted.

Coming within easy reach of the place of meeting appointed by the chief, Tuskaloosa, DeSoto dispatched his camp master, Moscoso, in advance with fifteen picked horsemen, clad in imposing attire, ostensibly to negotiate, but

really to impress. Ostensibly Moscoso was to ascertain the wishes of the chief concerning the nature of the formalities at the approaching meeting. Moscoso found the proud monarch of the wilderness seated on two beautiful cushions, placed on a rare and curiously wrought mat. He was stationed on a lofty eminence which commanded, in all directions, a view of imposing natural grandeur. Around him stood, in large numbers, half-naked warriors, with bodies smeared with paint of different colors. Above the chief they held a canopy formed of deerskins, and supported at each end with slanting staves. The canopy was rudely ornamented on the upper side with parallel lines of varied color. While this was used as an improvised protection from the sun, it was really a banner of war. The chief was a fine specimen of the physical man, large, strong, sinewy, erect, and heavy limbed. He looked the savage sovereign to perfection. His manner was consequential, but dignified. Anxious to impress the haughty chief with the importance, and especially with the prowess, of the coming Spaniards, Moscoso and his band pranced their proud steeds before him. With necks arched, eyes dilated and nostrils thin, the horses reared and plunged, while the practiced cavalymen would perform feats of acrobatic horsemanship. With visage unmoved, the chief quietly gazed on without demonstration.

Later, dashed up DeSoto with the entire troop, hoping to produce an impression of awe, if not of terror, but the stolid chief remained as austere as ever. If DeSoto would impress Tuskaloosa with his importance, Tuskaloosa was just as intent on impressing DeSoto with his profound greatness. It was throughout a dramatic game of diplomacy, at which each sought to play with more effect. The reception was short, the speeches brief and cautious. The savage spoke with haughty reserve, as though compelled by courtly form. DeSoto, though speaking briefly, was extravagant in praise of the chief, but especially of himself. He sought to impress the proud Indian with the idea that, while as an Indian he thought him peculiarly great, and in condescending magnanimity he would accord this, still it was an honor not to be lightly esteemed by the chief, that the Spanish commander should make any concession at all. This event occurred just south of Line Creek, in the present county of Montgomery.

The meeting was mutually unsatisfactory. Both chief and commander were doubtful of the accomplished result, and both were consequently stiffened to increased vigilance and resolution. One was suspicious, the other

treacherous. In motive, each was equally hostile. Each felt that he had strained concession, each was bent on final success. That a juncture had been reached that would result in a fair test of ability, each knew, and of the issue, neither doubted. Both would plan and watch. It was a hand-to-hand fight beneath a show of formality. Whatever the conditions, DeSoto was determined to keep the chief near himself. After two days, DeSoto prepared to move. With much show of politeness, he invited the chief to ride with him. The choicest of the horses was selected, a blood red blanket thrown over it, while there was tendered to the chief a crimson cap, and robe of the same color, all of which fascinated Tuskaloosa while it showed a courtesy undreamed of. For the first time, the doughty warrior was lifted astride a charger. The spectacle was grotesque enough—the red robed warrior on the red blanketed steed, with his huge feet, in loose moccasins, hanging low. Out of the camp they rode at the head of the cavalcade, DeSoto and the chief, while thronging thousands gazed with admiring and gaping wonder. It was a ride that preceded a bloody tragedy.

TROUBLE BREWING

Since he had gone so far in unmasking his apprehension there was now left nothing for DeSoto to do but to accept whatever results might come. He could not recede from the position which he had assumed without danger, yet that he could maintain it, remained to be seen. As league on league they rode together, DeSoto and Tuskaloosa, the Spaniard was kind, polite and civil, chatting through an attendant interpreter with the doughty and deluded chief, it gradually dawned on the Indian that he was trapped, but he uttered not a word. The fact that DeSoto's objective point was the capital of the captive chief afforded opportunity for the contrivance of new schemes in the heart of Tuskaloosa.

Still moving in a southerly direction, through the present territory of Montgomery and Lowndes counties, and the lower end of Dallas, the command reached Piasche, a town built within a bend of the Alabama River. Unfortunately for DeSoto, his supply of salt was here exhausted, from the lack of which all suffered—both man and beast. A peculiar malady was the result, from the effects of which a number of the troops died. Others affected by the malady became loathsome. The deficiency of salt was in part overcome by the use of ashes of a certain plant, for information concerning which DeSoto was indebted to the natives.

On leaving Piasche the troops followed the Alabama River, and passed through a portion of the present County of Wilcox. Meanwhile the chief had become sullen and morose, as though cherishing a deeply nourished grudge, but not once did he complain or protest against his imprisonment, and for a time DeSoto flattered himself that the deluded chief was pleased with the distinction of accompanying him on his tour, while the Indian well understood the situation, but was willing to rely on the future for redress.

By one thing was DeSoto puzzled and embarrassed—that of a number of warriors who had followed the troops all the way from Line Creek in order to watch the fate of their chief. They would hang on the rear of the troop, stop when it would, and move when it moved. While not pleased with this,

DeSoto was reluctant to drive them away, as he was under the impression that he had Tuskaloosa thoroughly infatuated with him and he was anxious to retain the supposed hoodwink. The embarrassment was increased when Tuskaloosa, who seemed to detect the deception into which DeSoto had beguiled him, availed himself of the advantage thus afforded, and asked for an occasional interview with his warriors who followed the troop.

To decline the request would be to expose DeSoto's plan concerning Tuskaloosa, while to grant it, was not unattended by danger. However, the privilege was granted, with the result that Tuskaloosa was constantly sending messengers toward his capital with dispatches, of the nature of which DeSoto knew nothing. There was constant disagreement between the Spanish troops and the Indian hangers-on, and danger was constantly imminent. An outbreak finally occurred in which two Spaniards were killed, when DeSoto raved and swore, and more than intimated to Tuskaloosa that he was the occasion of it, and in his warmth of wrath let fall some intimated threats of future purposes which furnished to his shrewd Indian guest what his ultimate determination was. To all of this, Tuskaloosa growled back that he was the keeper of the Spaniards, and the threats he treasured up in his heart.

So grave, at last, became the suspicion of DeSoto that he sent two of his most trusted followers in advance, to the Indian capital, to ascertain, if possible, if there was not a conspiracy hatching against him and his men. Following rapidly, came DeSoto himself with a hundred of his picked men. Following him again, were a hundred foot soldiers in their best trim, while to Moscoso was entrusted the rest with the heavy ordnance to come more leisurely on, but to lose no time. The plan was that by the successive arrival of troops, in detachments, to impress the Indians that his numbers were without limit, as they should arrive in order. At no time, however, did DeSoto leave the chief, but kept him close to his side. The two messengers charged to ascertain the true situation at Maubila, reported to their commander that there was evidently much discontent among the Indians that boded no good.

Early on the morning of October, 18, 1540, DeSoto reached the Indian capital, Maubila. Much as he had before been impressed by the skill and workmanship of the Indians, he was surprised at the scene now presented.

Here indeed was a great Indian city, beautiful for location, and formidable in its fortifications. Situated on a wide grassy plain through which ran the deep rolling Alabama, was the capital of the Mobilian tribe. The city was completely walled about with timbers of immense size, standing perpendicularly, and made deep set in the earth, and the thick coat of plastering made of lime mud, gave it the appearance of a wall of stone. There were two gates in the walls which stood oppositely, and when closed were very strong. Within, there were eighty large edifices, any one of which would accommodate 1,000 men. The grounds were well cared for with their carpet of natural grass. The city viewed from without, looked like one of the ancient cities of Asia with its lookouts of sufficient size to accommodate in each eight men. At regular intervals around the walls, but a few feet above the ground, were portholes for bowmen.

The exact location of Maubila has given rise to much speculation, and not a little discussion. Plausible reasons are assigned by different writers in support of their respective views, but the preponderance of testimony seems to favor the present site of Choctaw Bluff, in Clarke County, as the location. In opposition to this view, however, it has been urged that its distance toward the south is incompatible with the time given for reaching it by the DeSoto band.

The arrival of the troops on horseback, under DeSoto, aroused terror on the part of the Indians, who seemed to regard more the terrible horses than the men themselves. At the head of the imposing troop rode the haughty DeSoto in splendid uniform, his armor glittering and his gay plume gracefully falling back of a wide brim, while beside him was the revered chief, with his robe of red and his crimson cap, now somewhat dimmed by rough exposure. There was a hush of consternation when first the cavalcade rode into full view on the plain. DeSoto had intended by dramatic effect to overawe the Indian spectators, and with this end in view he neglected nothing. The armor of the troops was unusually bright, the men were perfectly erect in their saddles, the horses neighed and pranced, and the whole effect was inspiringly striking.

The cavalcade proceeds to the gate on one side of the city, and proudly enters. With the first sensation of terror gone, the multitude breaks forth into mighty demonstration. Throngs of men give vent to their emotions in

wild whoops and shouts, accompanied by rude music on cane flutes. They leap, they dance, and by every conceivable means manifest their excited joy. On the public square, the dusky maidens gather, and with shrieks and shouts, dance with unabated glee. No demonstration to a returning conqueror could exceed that now accorded to DeSoto and his men, as they proudly ride within the walls of Maubila. Hideous cries from thousands of throats, mingled with the unmusical notes of many reeds, made the scene one of terror.

Silently, but with much ostentation, they ride upon the public square beneath the wide-spreading oaks. At a given signal, all dismount. A canopy underspread with rich matting, had been prepared for DeSoto and the chief. They slowly repair thereto and are seated. With the suddenness of a flash, Tuskaloosa leaps to his feet, his eye glittering with pent-up anger, and in stentorian tones he demands that he receive the honor due him within his own walls, and that he be no longer treated as a common prisoner. DeSoto is taken quite off his guard. He is as silent as the tomb. An awful hush falls suddenly on the scene. Wheeling on his heel, the indignant monarch steps forth and leisurely retires to one of the buildings. DeSoto, usually very resourceful, is now at his wits' end. Hoping to placate the stormy chief, he sends an invitation to join him at breakfast, but the offer is not only sternly declined, but Tuskaloosa notifies the Spaniard that the sooner he betakes himself without his dominions, the better it will be for him. A crisis had come and DeSoto must face it.

BATTLE OF MAUBILA

Signs now grow more ominous and rapidly, and DeSoto begins to fear the worst. This is his greatest dilemma. He would avoid a clash if he could, and fight only if he must. The occasion has become tense, and he thinks and plans fast. The Indians have largely vanished from sight in rather a mysterious way, and those now huddled on the square are in close conference. A Spanish spy whispers to DeSoto that a thousand warriors, well armed, are concentrated in one of the large buildings, while in another is a large supply of Indian munitions of war. The crisis is graver than he had apprehended. The Spaniard dreaded Indian treachery the more because it might exceed that of his own. That which he has just learned is startling, and shows that he has not been mistaken in his suspicions.

Meanwhile DeSoto keeps up negotiations with the chief, but receives only rebuff. Meanwhile, also, he is sending secret orders to his men to be ready at any moment and for any emergency. He now realizes his error in allowing Tuskaloosa to get beyond his grasp. That which he now wishes is to have him once more in his possession, and to this end he is working. His flattery is profuse, his promises to the chief extravagant. His principal hope lies in gaining the possession once more of his person. He plies his ingenuity by cajolery, and by all the arts known to the flatterer, but the foxy Indian had himself recently learned some lessons of Spanish character, and he is as anxious to keep himself beyond the reach of DeSoto, as DeSoto's anxiety is to gain possession of him. In one of the buildings, Tuskaloosa is holding a council with his leading spirits, as message after message comes from DeSoto. The Indian is not so unskilled in the art of deception, that he does not see through the thin guise of the purpose of the Spaniard. "Surely in vain the net is spread in the sight of any bird." While the negotiations are thus pending, while the parleying and dallying are going on, an Indian warrior dashes from the assembled host, and with stentorian voice attended with grim expressions of heated hostility, denounces the Spaniards as robbers, thieves and murderers—denounces DeSoto for holding in captivity the beloved chief, who is as free as the Spaniards, and as good as the Spanish leader himself, meanwhile making as though he would shoot with

an arrow into the Spanish ranks. Truth is hard, and sometimes hurts. DeSoto is inclined to disregard all this. The fact is, there was a mutual and balanced fear between the two parties. Each feared the other; each was equally doubtful of an issue joined.

What might have been the result had not a most untimely occurrence taken place, cannot be imagined, but a Spanish cavalier standing near the warrior who gave vent to the speech just referred to, irritated beyond control, clove him asunder with a heavy sword, and his bowels gushed out in sight of all present. This is the touch of the match to the magazine. Like the muffled roar of a distant storm, the savages quickly gather, and in fury rush on the Spaniards, who stand with entire self-collection as though nothing was occurring. Checked by this marvelous coolness, the Indians hesitate, and with the utmost precision, the Spaniards march outside the walls, excepting fifteen, who alarmed by the outbreak, flee into a room of one of the buildings and close fast the door.

Once beyond the gate, the Spaniards wheel in defiance and show battle. Their eyes flash terror, their attitude is one of ferocity. DeSoto has less than a hundred men, as the infantry has not yet arrived. Soon it appears, however, and gives fresh nerve. Save the unfortunate killing of the warrior, nothing has been yet done to indicate an approaching battle, though the signs thicken fast. The low thud of hurrying feet within the walls, while all else is silent, betokens trouble. The Spaniards have but a minute or so to wait, before indications of hostility are manifest. The camp equipage has been left by the Spaniards on the square, as well as the Indian prisoners, who had been used all the way from Coosa as burden bearers. The baggage is burned and the prisoners are freed. The iron collars are taken from their necks, and the chains from their wrists, and bows and clubs are placed in their hands to avenge themselves of their oppressors. The fifteen who fled into one of the buildings are still cut off, and the situation is ominously acute.

The delay is only temporary, for soon the savages pour through the gateway with demoniacal yelling, while a thousand swift arrows plow the air. Five Spaniards of the little band fall dead, and DeSoto receives a wound. Regardless of the flowing blood, he leads his command to meet the shock of the foe. Surprised at courage so unusual, the savages falter, then rush

back within the gate and make it fast. They now turn to the destruction of the fifteen penned within the room, and seek to force the door, but as each savage shows himself the enclosed men shoot him down. Some of the best of DeSoto's fighters are shut within that room—among them are five of DeSoto's bodyguard, some crossbowmen, two priests, and a friendly Indian. Their doom seems certain, but they are fighting like bayed tigers. Unable to force the door, the Indians climb to the top of the walls, and begin to tear up the roof in order to reach them, but again as an Indian comes within view he is killed. The dead are heaped before the door, they lie in a pile on the roof.

Meanwhile there is no slack in the fighting at the front. The Spanish assault the walls, but are driven back, though in perfect order. Encouraged by this, and believing the battle already won, the Indians again throw open the big gate and rush with fury on the Spaniards. Indians know little of the value of a retreat in order to rally, and are stunned by the steadiness and nerve with which they are met. Now begins the battle in downright earnestness.

DeSoto is at great disadvantage both in numbers and in supplies of munitions. Moscoso lingers with the reserves. He is much in need, should be here, but delays. With strained vision, DeSoto looks for his lieutenant, but he comes not. The fight is now hand to hand. The Indians are perhaps fifty to one against the Spaniards, but order and discipline, powder and ball, crossbow and sword, horse and armor prevail against the odds. DeSoto leads his troops in person. His men are animated by his dauntless presence and the terror of his execution. He fights like a common trooper. The blood still oozes from his wound, but he fights on still. The Spaniards not only hold their own, but force the savages back.

At this juncture Moscoso arrives. The Indians rush again within the walls and make fast the gate. DeSoto now plans for the final onset. His heavy ordnance is to be brought into prompt execution. On the spot he organizes his detachments, and while the arrows are flying, he assigns to each body its task in the closing scene of the drama. Coolness like this is almost superhuman, but DeSoto is not cooler than his men.

The axes begin to ring on the gate. Nerved now to desperation by this, the Indians fight with more ferocity than ever. With resounding blows the axes fall on the doomed gate. From the summit of the walls and from the

portholes the arrows are rained down on the Spaniards, but striking their encased armor glide off. Huge pebbles, the size of a man's fist and larger, fall like hailstones upon their helmets, but to no effect. The gate begins to give way, it reels, it falls with a creaking crash, and the Spaniards sweep within. Indians and Spaniards alike fight like demons. DeSoto still leads, hewing down man after man with his broadsword. His men follow with equal execution.

Torches in hand, the walls are being fired. The thick plastering is knocked off and in many places, the fires begin. Ladders are improvised, the walls are scaled, and near the summit the torch is applied. The fifteen pent-up men are released, jump with exhilaration into the fray, and do deadlier work than the others. The fires begin to climb the walls. They toss high in air their forked tongues. In a swaying column the smoke darkens the heavens.

For nine long hours the battle has raged without cessation, and the end is not yet. Yells, orders, shrieks, the clang of steel, the stroke of axes, the roar and crackle of flames mingle in common confusion. DeSoto rushes on a big warrior, raises his lance to drive it through him and receives a long arrow in his thigh. He cannot stop to extricate it now, and while it is protruding, and is much in his way, he fights on like a demon unchained. Rising in his saddle he sways his sword about his head and yells, "Our Lady and Santiago!" and plunges anew into the storm of battle. Spurring his horse into the thickest of the fight, he lays many a warrior low.

The Indians begin to break away. They rapidly disappear. The fires become intense, unbearable. It is a circle of flame leaping from eighty buildings of dried wood, all at once. The fires rage. The dead braves lie in heaps both within and without the wall. The blood stands in puddles over a wide area. At last there are no Indians to fight. They have fled in confusion to the woods, and DeSoto is master of the situation.

October 18, 1540, remains to this time the date of the bloodiest Indian battle that was ever fought. The sun goes down on a city which in the early hours of the day resounded with the sound of cane lutes, and the voices of many dancers. The mighty buildings which met the astonished gaze of the Spanish conqueror, are now a mass of charred ruins. The autumn grass, green and luxuriant in the morning, is now red with gore. The populous city

of ten hours before is deserted. The great trees, rich in foliage, are now blasted and seared. Where peace and prosperity were, havoc is now enthroned. DeSoto had won; his greatest obstruction is now out of his way, but fresh, and now unconjectured, troubles await him for which he is ill prepared.



AFTERMATH OF THE BATTLE

The morning following the battle of Maubila the autumnal sun broke in radiance over the desolate scene. The high oaken walls were gone, the great buildings had vanished, the ancestral oaks that stood about the grounds now looked like bare sentinels with arms of nakedness—scarred, barkless and leafless, the greenswarded square of the morning before was a sheet of black. When the morning before DeSoto first beheld it, Maubila was a busy hive of humanity, but it was now as silent as the desert. The buzz of conversation was no more, the cane lute was silent, the shout of the warrior had died away, the voices of the Indian maidens were hushed. The warriors were now stiff in death—the maidens had perished. From the smouldering ruins of the burned city, still crept a slow smoke, while around the borders of the horizon it shrouded the fronting woods. Nothing was wanting to complete the scene of desolation, nothing to finish the picture of horror.

About the grounds lay heaps of the dead, many burned to blackness, while around the walls without, bodies were scattered like leaves. The wide paths leading to the city from different directions, were paved with the dead, while along the neighboring streams they lay, still grasping their bows and tomahawks. Wounded unto death, they had dragged their bodies in burning thirst to the streams, had slaked their intense desire for water, and had lain down to die. Squaws and babies were intermingled with brave warriors, while maidens in their tawdry regalia, worn to greet the Spaniard and his men, were stretched in death. The leaves, grass, and low underbrush about the once proud city, were painted in the blood of its brave defenders, now no more.

To DeSoto it was a victory dearly bought. He had won by dint of discipline and of orderly evolution, by means of powder and bullet and encasing armor, but he had paid a heavy toll. It was the beginning of his own end, and that of the expedition which he led. Eighty-two Spaniards of the small band were either dead, or a little later, died of their wounds. Forty-five horses had been killed, and much of the clothing of the men had been consumed in the flames, together with medicines, relics, and much other

valuable property. There was not an unwounded man in the party save among the priests, who did not share in the fight. Some of the men bore as many as eleven wounds, and in not a few instances, the arrows were still buried in the flesh, made difficult of extrication because of the triangular shape of the stones with which the arrows were tipped. Every surgeon was dead excepting one of the staff, and he the least skillful. Following the example of the men under Cortez in Mexico, the Spaniards cut away the fat part of the thighs of the slain Indians, and bound the flesh about their wounds. The camp was removed sufficiently away from the scene to escape the stench of the dead, the Spanish slain were buried, and DeSoto was left to plan for the future. Forgetful of his own wounds, he was intent on the comfort of his men. He would seek to cheer them with visions of fortune yet to be realized, and with promises never to be fulfilled.

In the solitude of thought, DeSoto kept well within himself. He realized the seriousness of the situation, was half inclined to abandon the quest for gold, but his proud spirit revolted against acknowledgement of failure. Yet a serious breach had been made in his ranks, his resources were impaired beyond recuperation, winter was coming on, he knew not the condition of the country ahead, nor did he know what the temper of his troops would be after the reaction from the battle. He talked to no one, for the very excellent reason that he did not know in whom to confide. The Spaniard is wary, suspicious. Every one suspects every other. Daring as DeSoto was, he was not without a modicum of precaution. As he had westward gone, the tribes had increased in intelligence and in formidableness. What lay before him toward the further west, he knew not. He could not sustain another Maubila. After all, would it be wise or not, to seek again the fleet in Tampa Bay? Here was a perplexity with which to wrestle. He must act, and that soon, but how, was the question that harassed his mind.

One ray of hope pierced the gloom of the silent and morose Spaniard—the Indian tribes westward and northward, on learning of the fate of Maubila, sent envoys of peace to DeSoto, attended with assurances of good will and of friendship. Stricken with terror by the feat of the valiant white invader, they were anxious to placate him in advance. Whatever may have been their sentiments before, they were now sycophantic enough. Among the Indian visitors it was said by some that the Chief Tuskaloosa had fled during the battle, but the general opinion was that he had perished. These same Indian

envoys told DeSoto that the great chief had long been planning for the extinction of the Spanish host, and that his plot was deeply laid, which news served to encourage the Spaniard with the belief that he had committed no blunder in overthrowing him. These envoys gave partial nerve to DeSoto in his growing perplexity and despondency.

While the commander sat alone in his tent meditating on what course he should pursue, his men nursed their wounds, and with returning relief, they became the same volatile spirits as before. Up to this time, their confidence in their leader had been supreme. While they did not comprehend his unusual moroseness, and while no one would venture to approach him with any degree of familiarity, they confided in his judgment, and lolled the days away in utter indifference of the future. Sprawled on their rough pallets of leaves and straw, or else stretched on the grass beneath the wide trees, they would while away the time gambling. Their cards had been destroyed by the fire, but they improvised others. They were inveterate gamblers. Throughout the entire march these reckless fellows gambled at every halt. Money, jewelry, horses, clothing, and even Indian mistresses were staked in the games. With nothing now to beguile the tedium of the camp, they whiled away the days in gaming, while the demure commander sat alone in his tent doubtful as to what to do next. Heartened by the reports of the envoys, DeSoto finally almost resolved to push westward, but an unexpected dilemma arose for which he was least prepared. Idleness was demoralizing his men, and an unlooked-for trouble was in store for him, the news of which almost stunned him, when he learned it. Far severer and sorer than any yet encountered, it went to his heart like cold steel, when once it was realized.

MURMURING AND MUTINY

Nearly eight months now lie behind the expedition, and they had been months of almost superhuman endurance. Exposure to rain and cold, groping through tangled swamps, and wading or swimming numerous creeks and rivers, undergoing hunger, fatigue, and sickness, kept in constant anxiety, by day and by night, lest they be attacked by a stealthy foe, climbing high hills and mountains without the semblance of a road, or even a path, fighting frequently without any knowledge of the force opposed, utterly cut off from communication with home, or with the outside world, and utterly without any compensation for all endured—when were the trials of a body of men greater? Their ranks were now thinned, most of their luggage was gone, they were worn out by long marches, many of their comrades were sleeping in graves in a land of wilderness, and yet not a grain of the much-sought gold has been found. Many had staked their fortunes on the quest, and these young, blooded Castilians were now beginning to show signs of hostile restlessness.

DeSoto discovered all this, and he had so often cheered them with dazzling phantoms, while he had only poverty and distress to offer, that he knew not whither to turn in an extremity so dire. A difficulty now faced him that required greater courage than that needed to resist Indian arrows, for his men were quietly fomenting rebellion. They had learned from Indian visitors to the camp, that a fleet of Spanish ships, under Maldonado, was lying off the present location of Pensacola, awaiting the return of DeSoto. This was corroborated by other reports from the coast. This impelled a determination on the part of the men, to break away and seek the shores of the south. DeSoto would himself have turned southward at this juncture, but for his humiliating failure. The vision of his sumptuous home in distant Spain rose often before him, and in his dreams he had pictured a palace rivalling that of royalty, in consequence of his discovery of gold, but he was destined never to see that home again.

The worst at last came. His apprehensions were fully confirmed when he learned that under the leadership of some of his most trusted men, a

conspiracy was hatching to leave him to his fate, and make their way southward, some proposing to sail home, others to join a new expedition to Peru. In order to satisfy himself fully, DeSoto quietly slid about the camp at night, and by a process of eavesdropping gain what he might. Among his men were some who had deserted Pizarro at a juncture, and DeSoto began to prepare for the worst. This was the severest trial of his eventful life. He had no means of knowing who were his friends, or indeed whether he had any. The crisis was extreme.

Turning the matter over in his mind, DeSoto finally resolved on a desperate course. He had been planning to found a Spanish settlement in this particular region, and had gone so far as to send an Indian agent to Ochus, where the plans of colonization were being arranged. Goaded to the extreme of desperation, he proposed to make a bold show of authority and force. It was now just a month since the battle, and all his men had so far recovered from their wounds that they were again able to take up the line of march. Reserving his plan to himself, on the morning of November 18, he suddenly issued an order to get ready to move at once. His men did not know what direction he would go, but to their astonishment, he turned northward. He accompanied his order with a threat to kill any man who undertook to disobey. This was quite unusual, indeed, nothing like it had before occurred, and it took the men quite off their guard. Before the troops could confer or consult, every man was in his saddle and strung out on the line of march. By this means DeSoto surprised the men instead of their surprising him. He was really without authority in a step so arbitrary. The expedition was entirely voluntary, but DeSoto saw that unless he could by a single stroke, shatter the rising revolt, he should be totally undone.

Giving up the idea of a colony, DeSoto moved toward the northwest, beyond the confines of the present County of Clarke, and through the territory of Marengo and Greene, as they now are, and, after five days, reached the Black Warrior River about where the village of Erie now is. Here he encountered resistance. The news of the disaster at Maubila had spread to the remotest settlements, arousing the Indians to vengeance, and at Erie, they appeared 1,500 strong, painted, and bearing clubs and bows. As though nothing was before them, the Spaniards moved steadily on, the Indians falling back, while they filled the air with their arrows. On reaching the river, the Indians in haste filled their waiting canoes and rowed rapidly

across, and such as could not find place in the boats, plunged in and swam the stream. On the opposite side, the Indians met a large reinforcement that had gathered to dispute the passage of the river by DeSoto. The Spaniards began leisurely to fortify, giving but slight heed to the wild demonstrations on the opposite side, which the Indians observing, quietly dispersed and disappeared, save a number who were left to watch the object of the Spaniards.

Detailing a hundred men to cut timbers and construct rafts, DeSoto quietly rested till the arrangements were complete, when he began to cross with his force, giving no attention to the showers of arrows from the foe. Struck by his cool determination, the Indians fled precipitately.

No region before entered, had so impressed DeSoto, as this one. He was charmed by its natural grandeur. The late dry fall had enlivened the autumnal scenery, the grass was still green, which, together with the flaming foliage of the forests, lent magnificence to a wide scene. The soil was of a deep black, and the surface somewhat rolling, the billows of green and the delicious color of the engirdling woods, affording a view lovelier than any he had ever before witnessed. The troop was now passing through the upper part of Greene County, where it borders on Pickens.

Five days more brought the Spaniards to the bank of the Little Tombeckbe. The Spaniards were impressed by the fact that in proportion to the fertility of the country, was a sparseness of population, the explanation being that the Indian detests prairie mud, making his home on the uplands, and descending to the fertile plains only to replenish his store of meat. Again at the Little Tombeckbe, the Indians appeared in hostile array, and DeSoto, eager to avoid battle, sent a friendly Indian across the stream to negotiate terms of peace. Him they slew within sight of the Spaniards, and then strangely fled to the woods, and DeSoto crossed without further interruption. He was now on the eastern border of Mississippi, but the final act of the tragedy was yet to come.

THE CLOSING SCENE

Though we have followed the daring and dashing DeSoto to the western confines of the state, the story would be incomplete without a record of the closing scene of his career. His life was thrilling in incident, even to the end. Entering the territory which long afterward came to be called Mississippi, DeSoto found it the most fertile and prosperous of the regions yet visited. Thriving Indian towns abounded with evidence of the most advanced Indian civilization he had yet met.

Though delayed, winter at last set in with unusual severity, and DeSoto decided to spend the cold season in that quarter. He was eager for the good will of the inhabitants, and sought by every possible means to gain it. Foraging over the country, his men would return with supplies, and always with prisoners. These DeSoto would liberate with much show of kindness, and dismiss them with presents to their chief. This would surprise the prisoners, and more the chiefs themselves. This resulted in bringing to his camp the chief of the Chickasaw tribe, the fiercest and most warlike of all those on the continent, and notably the most advanced. This chief, not to be outdone by the kindness of the Spaniard, brought as a present, one hundred and fifty rabbits, besides four mantles of rich fur. Nor did he cease with a single visit, but came again and again and chatted with DeSoto with unrestrained familiarity around his camp fire. The Indian was studiously diplomatic, and after several visits, disclosed to DeSoto that he had a certain rebellious subject whom he wished the Spaniard to subdue for him. This task, the chief further disclosed, was one attended with such complications as to prevent his action in the matter, and yet if DeSoto would intervene with sternness, the chief would see to it that it would not be forgotten.

DeSoto sent his men against the rebellious subaltern, burned his village and forced him to sue for terms with the chief. On occasion, when the chief would spend a few hours with him, DeSoto would send him home on one of his finest horses, much to the delight of the savage. But a strain came in their relations when after the fight with the insubordinate Indian, those of

the tribe who had accompanied DeSoto's men back to camp were served with savory and toothsome bits of pork. The Indians had never before tasted swine meat, and they were so delighted, that they showed their appreciation by several nightly visits to the pig pens, and by a stealthy appropriation of some of the choicest rooters. DeSoto was willing to divide, but protested against his pig sties becoming the prey of nightly marauders. His men lay in wait for the red rogues, who caught three, two of whom they killed, and in order to advertise a warning to future offenders, cut off the hands of the third at the wrist, and set him free. This was one exception to the rule working both ways. The Spaniards had never scrupled to steal from the Indian, or to take, by force, whatever might please them, but so soon as somebody's else ox was gored, the rule of roguish reciprocity ceased its operation. The standard of the Spaniard was, might makes right. An early spring came with its balminess, its singing birds, and first blossoms, and DeSoto was actuated to move onward, and yet he was reluctant to quit the ease of so many months. He was worn down by the strain to which he had so long been subjected. He sought to rally himself, but his gait had lost much of its elasticity, his eye was not so lustrous, and the stylus of care had marked deep crowfeet on his brow. Whatever there was of nobleness in him, was turned into a sense of sternness. Presuming that he knew the Indian character, he had lost much already, but he proved not to be an apt scholar in Indianology. He had courted the good will of the chief of Chickasaws, and had been requited by a return of civility, but the Spaniard really had a contempt for Indian character, and contempt always clouds justice, and when exercised, leads often to serious error.

Now that he was about to quit his encampment, DeSoto made a peremptory order on the Chickasaw chief for 200 of his ablest men to become his burden bearers. The Chickasaws were the proudest and most arrogant of the Indian tribes, and rather than be humbled, they preferred death. As allies, they were valuable, as foes, formidable.

On the receipt of the order from DeSoto, the gentleness of the lamb was turned into the wrath of the lion, but the Indian chief wisely curbed his spirit, and sent an evasive answer, not without a dignified phase of manliness, and an expression of remindfulness that DeSoto did himself slight credit by failing to understand the stuff, of which himself, the chief, was made. This was not the first time that DeSoto had encountered men in

these western wilds who were wiser than he took himself to be. DeSoto saw too late that he had turned loose a storm which he might not be able to manage. Moscoso was summoned, told to be on his guard, and to get ready for the worst. DeSoto impressed him with the importance of the utmost vigilance, but Moscoso saw nothing in it all, and continued lax.

Though the trees were budding, and the young leaves were peeping from their coverts, there came on one of the last nights in March, one of those cold snaps to which this latitude is subject. A cold wind roared from the north, and furiously souged through the trees. In its suddenness, the Spaniards made unusual preparation for comfort that night, and huddled together on their bunks of straw and dried leaves. The camp was as silent as a cemetery, save the howling of the wind. The fires died down, and the men were fast asleep. Suddenly there came a din of confusion rarely heard, mingled with the howling of the wind. From four different quarters came the sound of the beating of wooden drums, the hoarse notes of sea shells, and the unearthly shrieks of thousands of warriors. When the sleepers awoke, the roofs of dry hay were afire, and the Indians were already in the camp. They had wisely chosen that terrible night for the extinction of the invaders, and on nothing less were they bent. The Spaniards had often had recourse to fire, and the Indians thought they would test its virtue. Fire-tipped arrows, shot into the straw-thatched roofs had fired them, while the dry wattled cane of which the huts were built, lent loud detonations by the explosion of their joints. The fire-tipped arrows, DeSoto later learned, was by the use of a decoction from certain herbs known only to these Indians as a means of occasioning fire.

Springing from his couch, DeSoto was the first to gain his horse, and a cavalier mounted his own at the same moment. With sword and lance, they spurred their horses into the midst of the host of savages, dealing death with every movement. Half-dressed, the other troopers followed in quick succession, and soon the camp was the scene of a hand-to-hand fight. DeSoto had failed to fasten the girth of his saddle sufficiently, and by a sudden turn of his horse in one of his desperate sallies, he was thrown hard to the ground, just as he had laid an Indian low. He was speedily rescued by his men, and securing his girth, he fought as never before. While the fight was at its height, fifty of his men chose the moment as an opportune one to desert, but DeSoto had them brought back and join in the fray. The Indians

were routed, but not till forty Spaniards had been killed. This had the effect of welding the Spaniards afresh, and ended all insubordination.

There was no more sleep in the Spanish camp that night. Moscoso was summoned, roundly abused, and cashiered in the presence of the troops, and Beltecar was appointed in his stead. After burying his dead, DeSoto set out on a renewed march, encountered resistance again at Alilome, where, after another fierce engagement, he routed the enemy, but lost fifteen more men, making in all three hundred and fifteen, of the six hundred, with whom he started, and in May, 1541, reached the Mississippi River, of which he is the reputed discoverer. Here he lingered a year, making an excursion into Arkansas, and on his return, was stricken with swamp fever. His system was ill prepared for this attack, and from the first, he was aware that he must die. He summoned his men about him, restored Moscoso to command, begged his men to be subject to the new commander, and yielded to the last foe—death.

To prevent the possible mutilation of his body, his men hewed out a coffin from the trunk of a huge oak, placed the body within it, sealed it securely and bore it to the middle of the deep Mississippi and lowered it in its current. Thus died this chivalrous son of Spain, and though a monster of cruelty, none in the annals of that ill-fated land was ever braver.

ORIGINAL MOBILE

Following the death of DeSoto, it was one hundred and sixty-two years before another white man was in Alabama. During this century and a half, there was developed such a spirit of exploration as the world had never before known. The new regions of the earth were visited by explorers from a number of European nations, chief among which were Spain, Portugal, France, England, and Holland. The French came to vie with the Spaniards in the comprehensiveness of expedition and exploration, and from Canada, the French found their way to the upper limits of the navigable waters of the Mississippi, and followed it to the gulf.

From their established possessions west of the great river, the French came later to skirt the upper waters of the gulf, and were much impressed by the sinuous character of the long shore front, with its numerous inlets and indentations, its promontories, bays, and rivers. It was by means like these that they first entered Mobile Bay, and finally came to found Mobile. Biloxi had previously been established, and was an important colonial center to the enterprising French of that period. In order to impress the native savage and ward off interference, the French would erect forts of mud, poles, and grass, which, while appearing formidable to the Indians, they were flimsy and frail. The savages themselves relied on their strong-timbered forts for defense, and they had an idea that those of the French were similarly strong.

Attracted by the beautiful sheet of water known to us as Mobile Bay, the French entered it from the gulf through its deep mouth, flanked on the one side by a long tongue of land, and on the other by an island. Once on the bosom of the bay, its shores were explored, and on the present location of Mobile was erected Fort St. Louis, which was intended as a permanent name, but Iberville, the great sea captain of the French, insisted on calling it Mobile, from the name of the tribe of Indians on the boundary of the territory of which the original fort was built. The name is supposed to mean "paddling."

From its inception, Mobile came to be to the French an important center. By nothing was Iberville more impressed than by the magnificent timbers with which the forests were stocked. Nothing was more important at that time than heavy oaken timber for ship building, and to the practical eye of the great navigator, it seemed an excellent place for the erection of a saw mill. Later developments of the geographical advantages of the location, led to its adoption as the headquarters and seat of government for this region of the French possessions. Seaward, it was open to the world as a port of navigation.

It was found that the river, on the west bank of which is the location, was like the base of the letter Y, with its prongs, fifty miles to the north, penetrating regions at great distances in the interior, which regions were already populous with Indians, and of fabulous fertility of soil. While, like the Spaniards, the French dreamed of mines of gold, they were not unmindful of the importance of colonization.

One of the first chief cares of these early colonizers was that of winning to their loyalty the native tribes, as an agency against the English, who were equally desirous of the possession of the fertile region. Bienville, the French governor of Louisiana, was ambitious to extend the dominions of his royal master as far eastward as possible, and vied with the English in seeking the alliance of the native tribes. From no point were these natives so easily reached, as from the fort just erected on the swell of land on the western side of this river pouring into the beautiful bay. Sufficient space was therefore at first cleared, a stockade was built, a few dingy tents were erected about it, while on the premises might have been seen a few specimens of imported swine, chickens, and horses moving domestically about.

There was, however, lacking one element of civilization, concerning which Bienville proceeded to make complaint to the home government at Paris. The improvised homes were minus the presence of the gentler sex. On receipt of this information, the King of France forthwith instructed the bishop of Quebec to send to the Mobile region twenty-three young women of good families, to become the wives of these original founders. In due time these twenty-three blushing maidens reached the fort under the care of four Sisters of Charity. Governor Bienville at once issued a proclamation

announcing their arrival, and very practically proceeded to place a premium on manly worth, by stating that no man would be allowed to claim the heart and hand of these waiting damsels, who did not first prove himself capable of supporting a wife. The result was a rapid improvement of the manhood of the community, eventuating in another fact, namely, that not many moons waned before every one of the Canadian prospectives became a wife.

These were the first marriage rites, under Christian sanction, ever solemnized on the soil of Alabama. This meant homes, and homes meant the beginning of a new order of civilization. This romantic touch to our early civilization in Alabama is worthy of record.

From that primitive beginning in the wild woods of south Alabama, and from conditions as crude and uncanny as those named, our chief port had its beginning little more than two centuries ago. As a common center of importance, it was visited by numerous deputations of Indians, from points near and remote, skimming with their light canoes the deep waters of the Alabama and Tombigbee Rivers. While this was true, trade was established with the Spaniards as far south as Vera Cruz, and from the region of the great lakes of the north, came French traders to Mobile. While the conditions were such as to excite the most optimistic outlook, there were counter conditions of vexation and of perplexity. These early years were full of anxiety and harassment to Bienville. In his efforts to conciliate the native tribes, he encroached on the territory of the active emissaries of the English, as competitors of native alliance, and thus the Indian became a shuttle in the loom of primitive politics between the French and the English. The Indians were incited to lure the French into the interior by false representations, and straightway to massacre them. To question their statements, meant unfriendliness, to trust them, meant death. Abundant trouble was in store for the French governor in the immediate future.

FORT TOMBECKBE

Just above the point where the bridge of the Southern Railway spans the Tombigbee, at Epes station, in Sumter County, may be seen a clump of cedars on a high chalky bluff overlooking the river. This is a historic spot, for here Governor Bienville had built Fort Tombeckbe, as an outpost of civilization. The barest traces of the old fort are left in the slight mounds still to be seen, but it was at one time an important base to Bienville.

By tampering with the savages in the interior of Alabama, English emissaries had occasioned such confusion as to give to Bienville much annoyance. Whatever may be said of the conduct of England in this connection, and it was reprehensible enough, it was at par with that which was done by the French. Both nations took advantage of the untutored savage, and laid under requisition his worst passions, in order each to avenge itself on the other. On the part of England, however, this continued much later, and that nation was responsible for many of the atrocities perpetrated on Americans.

On one occasion, two artful warriors appeared at Mobile with every possible show of interest in the government of Bienville, and with extravagant asseverations of loyalty to his government. Bienville was responsive to demonstrations like this, for nothing he so much desired as the loyalty which these red men professed. These savages advised the French governor that they had carefully accumulated much corn at a given point up the river, and if he desired it, they were in position to sell it cheaply. As provisions were growing scarce at the fort, this was cheering news to Bienville, and he promptly sent five men from the garrison to fetch it. Only one of the five returned, and he with an arm almost cut from his shoulder, the rest of the party having been massacred. Bienville was at once impressed that it was necessary to teach the Indians that he was not to be trifled with, and taking forty men in seven canoes, he ascended the river to the scene of the late massacre. Finding ten empty Indian canoes tied to the bank, he knew that their settlement was not far distant, and from the smoke seen rising above the tree tops, he was able to locate the village. Hiding his

men in the underbrush till night, he crept stealthily to the encampment and opened fire. The Indians were scattered in all directions, and loading his boats with provisions, Bienville leisurely returned to the fort. How many of the Indians were killed in this night attack, was not ascertained, but Bienville suffered the loss of three men. These offensive Indians were of the Alabamas, whom to punish more effectually, Bienville incited against them both the Choctaws and the Chickasaws, promising rewards to those who would kill the greater number. That the Alabamas were effectually punished, abundant proof was afforded by the numerous warriors who sought their way to Mobile to compare the number of scalps which they bore, dangling from their belts. Beads, hatchets, pipes, and ammunition were given the savages in reward for their work of death.

Fort Tombeckbe had been built at the point already designated, which was within the territory of the Choctaws, whose special service Bienville now needed, since the Chickasaws had revolted against him. Meantime they had also become most hostile toward the Choctaws, therefore Bienville concluded that their service could be the more readily enlisted in his proposed expedition against the Chickasaws. In order to subdue the hostile Chickasaws, Bienville proposed a unique expedition which he would head in person. The dominions of the Chickasaws were remote from Mobile, but he would make Fort Tombeckbe the base of his operations, while he would bring them again into subjection.

Accordingly Bienville summoned the garrisons from Natchez and Natchitoches to co-operate with the one at Mobile in the up-country expedition. As it was regarded as a sort of picnic outing, a company of volunteers, composed of citizens and merchants from New Orleans asked to join in the excursion. Everything was gotten in readiness. Thirty rough dugouts, and an equal number of flat boats or barges, were arranged along the shore ready to join in the diversion of subduing the Chickasaws. In due time, Governor Bienville appeared in gay uniform, plumed hat, and bright sword, and headed the expedition which sailed from Mobile on the morning of April 1, 1736. The day might have been taken as indicative of that which was to come, for never was a body of men more fooled than were these.

There were pomp and circumstance on this occasion. Banners, trappings, and bunting were galore. Boats, little and large, were well filled, men,

young and old, business men and merchants, adventurers and gamblers, idlers and jail birds, men of fortune and men of leisure, rough mariners and veteran soldiers, friendly Indians and forty-five negroes, made up the medley of the expedition. The Indians belonged to the general command, while the negroes were a separate command under a free, intelligent mulatto, named Simon. They shove from the shore in the current. Lillied flags wave and flutter in glinting curve, varied colored banners are displayed, and the incongruous expedition starts. Amidst the yells of the hosts, the cannon booming from the fort, the report of which rebounds and re-echoes along the shore, while the gay and hilarious host shouts itself hoarse, the expedition starts. For twenty-three days they pull against the current in their ascent of the Tombigbee. Messengers were dispatched in advance to advise Captain DeLusser, at Fort Tombeckbe, of the coming of the mighty multitude, and to provide against their hunger by cooking several barrels of biscuits. DeLusser cooked for life, by day and by night, but he had only about two-thirds the quantity of biscuits needed for the hungry host on its arrival. No trip could have been more laborious, as the barges had to be dragged against the current by seizing the overhanging branches and vines, when possible, and at other times employing beaked rods by means of which, when grappling with trees or rocks the barges were pulled slowly along. All this was forgotten when the fort was reached, and men could again refresh themselves.

“When the shore is won at last,
Who will think of the billows past?”

Bienville was much disappointed to find that just before his arrival there had been a revolt at the fort, and the conspirators were now in irons awaiting his coming. The plan of the conspirators was to kill DeLusser and the commissariat, and return to the Chickasaws two men who had been delivered from their hands, and who had been previously reduced by the Chickasaws to slavery. By thus conciliating the Chickasaws, the conspirators hoped to have aid given them in reaching Canada, where they would join the British. Bienville made short work of them, for after a brief court martial, they were marched out on the prairie and shot. The most significant event connected with the coming of Bienville was that of the assembling of six hundred Choctaw warriors, who had heard much of Bienville and under their leaders, Mingo and Red Shoes, had now come to

offer their service. To impress them with his importance, Bienville regaled the warriors with a dress parade of his host, only a part of which knew anything about military evolutions, but where the Indians knew nothing of regularity, the purpose was equally served. With great delight the savages witnessed the drill, and announced themselves ready to join Bienville in his campaign against the Chickasaws, fifty miles away. With his body of five hundred and fifty, and the six hundred Choctaws, and the reinforcements under D'Artaquette of three hundred more, which last body was to join him later, Bienville felt confident of success, but he little knew the character of the foe that he was to meet.

CAMPAIGN AGAINST THE CHICKASAWS

Never felt one surer of success than Bienville when he took up afresh his expedition against the Chickasaws. By prearrangement, D'Artaguette was to descend from the Illinois region, and meet him near the stronghold of the Chickasaws and aid him in their subjection. Of ardent temperament, Bienville was easily made overconfident, and yet he had but little on which to rely. Save the veterans of the command, he had little else.

The motley horde that had enlisted under his banner at Mobile, was not worthy of trust in an emergency, nor did he know how far he could depend on his Indian allies, for Red Shoes hated the white man, only he hated the Chickasaws the more. He was going not so much in aid of the French, as he was to punish the Chickasaws. This made his influence a doubtful quality, and that influence was great with the Choctaws. But if Bienville could have the command of D'Artaguette to aid him, which was destined not to be, he could possibly succeed, though the Chickasaws were the fiercest fighters among the tribes, and they had among them English officers, who were training them for the coming attack.

The command was again ready to move, but the keen edge of the novelty and enthusiasm was now blunted, on the part of at least a large contingent of the command, which was going simply because they had to go. The scene was a peculiar one, as the boats were ranged along the bank of the river at Fort Tombeckbe. With refreshing complacency, the French took possession of the boats, Simon and his seventy-five black followers owned their crafts, and the Canadians and Indian allies were left to make their way, as best they could, along the river to the point where all were to unite to go against the Chickasaws.

On May 22, 1736, they reached the region where Cotton Gin Port, Mississippi, now is, where Bienville built a temporary fort which he named Fort Oltibia, and after securing his stores, locking his boats to the trees, and appointing a guard to protect them, he started with twelve days' rations to the Chickasaws' stronghold, still twenty-seven miles in the interior.

It was a rainy season, the prairie mud was deep, the inland streams were up, the country a tangled region of underbrush, the banks of the streams slippery with lime mud, and most of the host already demoralized. They started inland, the men sometimes being forced at times to wade waist deep in crossing the streams, the march was slow and laborious, and the prospect grew dimmer with decreasing enthusiasm, as they proceeded. There was straggling not a little, but from more of this Bienville was saved, by reason of the fact that they were in the enemy's country, and a sense of common interest welded them together. They marched past fortified villages of the Chickasaws, which villages Bienville disregarded, but he found it next to impossible to restrain the Choctaws, in their hatred of the Chickasaws from attacking these. One fortified village, Schouafalay, the Choctaws did attack, much against the judgment of Bienville.

There was partial relief afforded the troops when they emerged from the tangled wilderness and reached the open prairie. Here was an abundance of game, of much of which the troops availed themselves, while they were cheered not a little by the patches of ripe strawberries growing in wildness on the plain, and by the unbroken green of the prairie dashed here and there by patches of beautiful blossoms.

They were now within six miles of the object of attack. Here it was proposed that the commands of Bienville and of D'Artaguet were to unite, but the latter failed to appear. The scouts sent on in advance by Bienville, reported that they could not find D'Artaguet and could learn nothing of his whereabouts. This was a sore disappointment to Bienville, for he had counted much on D'Artaguet and his veterans, but he could not now stop. He still had about one thousand five hundred in his command, and he was confident of success.

Bienville's plan was to pass around Ackia, where the Chickasaws were strongly fortified, and proceed to the town of Natchez, overthrow the Indians there, and by that means inspire the troops, and at the same time demoralize the Chickasaws. In a council of officers now called, he advocated this plan, but the Choctaw leaders would not listen to a proposal like this. They wanted to attack the Chickasaws outright, crush them, and then quietly return. Some of the French officers concurred in the proposed policy of the Choctaws, while not a few coincided with Bienville. The

Choctaws seemed almost uncontrollable in their frantic desire to reach the Chickasaws. To have heard them rave, one would have thought that there was little use of the French in the expedition, at all.

Nothing was now left but to traverse the remaining six miles, and give battle to the waiting Chickasaws. The line of march was again taken up, and another half day brought them within full view of the battlements of the enemy. The conditions were not such as to occasion much inspiration. The fortifications were imposing, and seemed sufficiently strong to resist any force.

On an eminence stood the fort of heavy logs. Around it were palisades with port holes just above the ground, while just within the palisades was a trench, in which the defenders would stand, rest their guns within the port holes, and fire with ease on the plain below without the slightest exposure of their bodies. Outside the palisades were a number of strongly fortified structures or cabins. The fort itself was of triangular shape, with the roof of heavy green logs, overlaid with a thick stratum of dried mud, a double security against fire, should the French undertake the use of combustibles. The imposing fortifications had a disheartening effect even on the officers of the French troops, and much more the men.

A careful inspection was made, and there was nothing left but to plan for the attack. The French were to open the battle, and the Choctaws were left to attack as they might wish. The Indians occupied a camp some distance from the others, and proceeded to paint and to deck themselves for battle. They stood in readiness, as though waiting for the battle to open. All plans were gotten in readiness, and at two o'clock in the afternoon the fight was to begin by regular assault from the outset.

BATTLE OF ACKIA

At two o'clock on the afternoon of May 26, 1736, the battle of Ackia was opened by Chevalier Noyan, who, as his troops advanced within carbine shot of the fort, could easily see English officers within the palisades directing the defense.

The French were moving to the attack in the open, without personal shields, which were too heavy to be brought so great a distance, and they had to resort to portable breastworks made of heavy ropes, closely woven together in strips of about four feet in width and about twenty feet in length. This wide strip of roping had to be borne at either end by strong men, who were of course exposed, while the firing line was somewhat protected. These mantelets, for such the movable fortifications were called, were carried by negroes, whom the French forced into this perilous service. A broadside of musketry was opened on the fort, in response to which the garrison vigorously replied, and among the casualties was that of killing one of the negroes, while another was wounded, whereupon every black man who was supporting the mantelets threw them down and fled the field. Without a waver in their line, the French pressed on to the attack.

The grenadiers led the advance and moved on into the outside village. The battle was now on in earnest, and one of the ablest of the French commanders, Chevalier de Contre Coeur, was killed, together with a number of grenadiers, but the fortified cabins were taken without, as well as some smaller ones, to the latter of which fire was applied. This quick advantage gained, led to an enthusiastic determination to carry the fort by assault. Noyan, at the head of his troops, saw the advantage and was ready to lead the charge. With sword upraised, he commanded the advance, but on looking back he found that all the troops, save a mere handful, had fled back to the fortified cabins, leaving the officers. The enemy taking advantage of this juncture, fired more vigorously still, and another of the brave commanders, Captain DeLusser, the same who commanded at Fort Tombecke, fell. The officers bringing up the rear urged, besought, exhorted the troops who had sought shelter in the cabins to rejoin their officers, but

to no purpose. They were promised the reward of promotion, but that did not avail. Finally the officers sought to appeal to their pride by proposing to take such as would follow and themselves make the assault, to all of which the troops were agreed, but they did not propose to face again the galling fire of the Chickasaws. Suiting the action to the word, the officers proceeded to the assault, for which they paid severely, for every prominent leader was shot down wounded—Noyan, Grondel, Montburn and De Velles. Though bleeding and suffering, Noyan supported himself and, much exposed, held his ground with a remnant of troops. Hoping to elicit those from the cabins, he ordered an aide to request the secreted troops to come to his rescue, as he was wounded. As the officer turned to obey, he was shot dead.

The assault had been carried to within a short distance of the main walls where the officers lay bleeding from their wounds, the foremost of whom was the gallant Grondel. A number of Indian warriors issued from the fort to scalp him, on observing which a sergeant with four men rushed to his rescue, drove the Indians back into the fort, and raised his body to bear it off the field. Just as they started, every rescuer was killed. A stalwart Frenchman named Regnisse, seeing what had happened, dashed toward the body alone, under a galling fire, lifted the wounded man to his back and bore him off, though not without the receipt of another wound by Grondel.

Meanwhile, where were the courageous Choctaws who were so eager for the fray and who were the chief cause of bringing on the fight? While the French were exposed to a raking fire, these six hundred painted warriors remained at a safe distance on the plain, giving frequent vent to shouting and shrieking and yelling, interspersed now and then with dancing, and shooting into the air. This was the utmost of the service rendered by the Choctaw allies.

Though with a courageous few, Noyan had come under the shadow of the walls of the fort, he could do no more unsupported, and so proceeded to return, in order, to the fortified cabins, where he found his men crouching in fear, when he at once notified Bienville of the peril of the situation. He asked for a detachment to bear off the dead and wounded, and notified the governor that without troops to support him, nothing more could be done to capture the fort.

At this juncture, Bienville saw a demonstration made on the part of the savages in the fort, from an un conjectured quarter, to capture the cabins in which were gathered the men and officers, and made haste to send Beauchamp, with eighty men, to head off the movement, rescue the troops and to bring away the wounded and the dead. Beauchamp moved with speed, turned back the movement, and while many of the dead and wounded were recovered, he could not recover all. In this movement Beauchamp lost a number of men. So hot was the firing from the fort, that he was compelled to leave a number to the barbarity of the Chickasaws.

As Beauchamp was retiring in an orderly way, the Choctaws issued from their camp with much impetuosity and fury, as though they had at last resolved to carry everything before them. Fleet of foot, and filling the air with their wild yelling, they dashed toward the fort, but just then a well-directed fire into their ranks, from the Chickasaws, created a speedy rout, and they fled in every direction.

Had Bienville been able to bring his cannon so far into the interior, he would have demolished the fort in short order, but as it was, everything was against him. Instead of his plans being executed as originally formed, they fell to pieces, step by step, and his defeat was the most signal. Thus ended the campaign against the Chickasaws, the fiercest and most warlike of all the tribes. After all the imposing grandeur at the outset of the campaign it ended in a fiasco. The situation was much graver than Bienville seemed to apprehend. He was in the heart of the enemy's country, without substantial support. His Choctaw allies had failed him, and in a grave crisis his own men had forsaken him. Nothing would have been easier than for the Chickasaws to cut him off from his boats, and extinguish the entire command, but, themselves unapprised of the conditions, they kept well within the enclosure of the fort. Other difficulties were in store for the unfortunate Bienville.

AFTER THE BATTLE, WHAT?

The battle of Ackia had lasted three hours, but during that brief time there were some as excellent exhibitions of bravery, as well as sad defections of soldiery, as can well be conceived. However, all the dramatic and tragical scenes were not confined to the battle, as other interesting details are to follow. The day was now closing. For about two hours, the utmost quiet had fallen on the scene. The noisy Choctaws, in a camp adjoining, had become strangely silent. Not a note of activity came from the fort, not a man was to be seen. The horses and cattle of the Chickasaws, grazing on the prairie when the battle began, had fled far across the plain, but now that the day was closing, and the firing had ceased, they came wending their way across the expanse to a small stream that flowed at the base of the hill.

In a group the French officers were standing, discussing the scenes of the recent conflict, and indignant at the conduct of the Indian allies; they turned jocularly to Simon, the negro commander, and chid him on the cowardice of his black crew. Simon was polite and bright, and was much in favor with the officers. While he smiled in return to the jocularities of the officers, he glanced about him, suddenly picked up a long rope, and said: "I'll prove to you that a negro is as brave as anybody, when it is necessary to be," and with this dashed toward the herd of cattle and horses, selected a milk-white mare, hastily made a halter, mounted on her back, and sped the entire circuit of the walls of the fort, perhaps a distance of a quarter of a mile. He was fired on by hundreds of rifles from the fort, but dashed back to the group of officers without having received a scratch, leaped from the back of the mare, gracefully saluted the officers and bowed, while they cheered his exploit. No one doubted the courage of Simon after that feat.

That night the French slept on their arms. Not a note came from the fort. There was funereal silence everywhere. When, however, light broke over the scene on the following morning, a horrible spectacle met the gaze of the French. The Chickasaws had sallied forth during the night and had borne within the fort the dead left on the scene, had quartered them, and had hung from the walls portions of the bodies of the unfortunate slain. This act of

barbarous defiance, added to the sting of defeat, infuriated many of the officers and men, and they demanded to be given another chance at the Chickasaws and they would demolish the fort. Incensed and insulted, they became almost uncontrollable, but Bienville admonished coolness and prudence, for he had had enough, and was now more concerned about how he should get away with his crippled command. As the Choctaw allies had proved an incubus to Bienville from the start, and a source of annoyance and of embarrassment, the governor thought to enlist them in the removal of his stores and of the wounded. To this proposal they at first demurred, then became sullen, and finally refractory, and proposed to abandon the French outright, leave them to their fate, and hunt again their homes to the south.

Bienville was a shrewd diplomat and sagacious, and knew full well that if such an emergency should come, and the Choctaws would reach the boats first, take them and the stores left at Fort Oltibia, float down the river, and leave him and his men to perish in the wilds. In order to avert this calamity he proceeded on a policy of conciliation. It was ascertained that Red Shoes was the instigator of the discontent, who was as merciless as he was shrewdly ambitious of influence and leadership. Bienville dreaded him, and had distrusted him all along, but there was no way of disposing of him, and he had to accompany the command. The governor sent for the chief, who appeared before him accompanied by the despicable Red Shoes. Bienville not only persuaded the chief to remain steadfast, but gained his consent to have his warriors become burden-bearers of the camp equipage. At this agreement between the two leaders, Red Shoes indignantly protested, and in his rage snatched his pistol from his belt and would have shot the chief on the spot, had not Bienville seized his brawny arm and prevented the commission of the deed.

The march back to the boats was tedious and irksome, covering only four miles the first day. Two of the wounded men died on the way and were buried in the woods. The showers under which the march to the fort had prevailed, ceased for a week or more, followed by a season of hot, dry weather, the river at that point had shrunk, and the water was scarcely of sufficient depth to float the craft. As quickly as possible, things were gotten in readiness, the Choctaws were again left to shift for themselves, and Bienville and his command drifted down the river to Fort Tombeckbe. Here he left De Berthel in command, with a year's supply of provisions, a

quantity of merchandise with which to trade with the Indians, the wounded men to be cared for till restored, and Bienville, with spirit much subdued and humiliated over his discomfiture, returned to Mobile.

But what had become of D'Artaguet and his three hundred? His fate was the saddest. In seeking to comply with the request of Bienville to join him in the expedition against the fort, he had fallen in with a body of Chickasaws, who, by superior numbers, had overwhelmed him and captured him and his entire command. Himself and his men were prisoners in the fort during the engagement, and the ammunition used by the Chickasaws was that captured from the ill-fated D'Artaguet. Up to the time of the attack on the fort, D'Artaguet and his men were as well treated as Indians can treat the captured, but on the retirement of Bienville, D'Artaguet and his men were tied to stakes and burned.

For all the disasters attendant on the ill-starred campaign, including that of the fate of D'Artaguet, Bienville was held responsible by the Paris government, with which he lost favor, and the wane of influence and of power followed. Bienville was a victim of conditions over which no mortal could have had control, but it was a juncture of conditions that sometimes comes to the most meritorious of men, into which Bienville was brought, and he had to be sacrificed. While the work that he did laid the foundation of the civilization of three southern commonwealths, he was removed in dishonor, and left the scene of action and sank from view forever.

THE RUSSIAN PRINCESS

About the year 1721, a body of German colonists reached Mobile, and settled in the region adjoining. Among them was a woman of unusual personal beauty and of rare charm of manner. Her dress, and especially her jewels, indicated not only her station, but her wealth. She caused it to be understood that she was the daughter of the Duke of Brunswick Wolfenbuttel and the wife of Alexis Petrowitz, the son of Peter the Great, and accounted for her strange presence in the wilds of south Alabama, as due to the fact that she had been cruelly treated by the heir to the Russian throne; that she had fled the dominion of the great Peter, and for security, had sought the most distant region known to her. She furthermore asserted that the younger Peter had duly advertised the death of his wife, but insisted that the monstrous Muskovite had done this in order to conceal the scandal of her forced flight from his castle, and in order, too, to explain her absence from the court circles of St. Petersburg.

All this she explained to be a mere ruse, and that she was the real princess who had escaped his tyranny, preferring the inhospitable wilderness of a distant continent, to the royal palace with its tyrannous cruelty. The story received general credence, since the splendor of her attire and her familiarity with the inner secrets of the Russian court proved that she was no ordinary personage. Besides all this, there was increased evidence afforded by her conduct. Her beautiful face was saddened by some evident trouble over which she seemed to brood, as with a far-away look she would sit and muse for hours together. How else could all this be explained, save by the story which she related? This is just the evidence one would look for in substantiation of a story of cruelty.

The prepossessing manner of the princess, her immense fortune, and her ability to discuss Russian affairs, served to win not alone the confidence of all, but their sympathy as well. Her wrongs were the burden of her conversation, and her own reported station in life elicited much deference, which was duly and promptly accorded by all alike.

Great as the credence was, as a result of the recital of her wrongs, it received a reinforcement from another source that seemed to place it beyond question. Chevalier d'Aubant, a young French officer, had seen the wife of the Russian prince, and he declared that this was none other than she. He could not be mistaken, for he had seen her at St. Petersburg. This insistence settled the identity of the princess in the estimation of all.

But d'Aubant did not stop at this point of mere recognition. His profound sympathy awoke interest, which brought him frequently within the circle of the charms of the fair Russian, and, in turn, interest deepened into tenderness of affection. To the vivacious Frenchman, the glitter of wealth was far from proving an obstruction to the valiantness with which he assailed the citadel of her heart. At any rate, the chevalier and princess became one, lived in comparative splendor for years, and removed to Paris, where, in sumptuous apartments, they resided till the death of the chevalier.

The deep shadow which had come into the life of the princess, according to her own story, won her hosts of friends whom she was able to retain by reason of her charms. The well-known character of the second Peter, a dissolute, worthless wretch, and the fact that his father had sent him abroad in Europe, to travel with the hope that his ways might be reformed by a wider margin of observation of the affairs of the world, lent increased credence to the pathetic story and elicited fresh installments of interest and sympathy. Chevalier d'Aubant died in the belief that he had married the repudiated wife of the eldest son of Peter the Great of Russia.

But a fatal revelation was inevitable. It is said that while strolling in the Garden of the Tuileries she was one day met by the marshal of Saxe, who recognized her as one of the attendants of the Russian princess, an humble female who greatly resembled her mistress, and by reason of her contact with the most elevated of Russian society, had acquired the manners of the best, and while in the service of the princess had means of access to her wardrobe and purse, and by stealth, had enriched herself and at an un conjectured time fled the palace and escaped to America. The Chevalier d'Aubant, having seen the princess once, was easily deceived by the appearance of this woman, her wealth, and by the reputation of the Russian prince. On her ill-gotten wealth he lived for years, and died in blissful ignorance of her huge pretension.

It is said that the pretender died at last in absolute penury in Paris, leaving an only daughter as the result of the marriage with Chevalier d'Aubant. The story has been related in different forms by different writers, and at one time was quite prevalent as a sensational romance in the literary circles of Europe. The particulars of this rare adventure may be found recorded in much of the literature of that period, some insisting on its accuracy, while others deny it. Duclos, a prolific writer of European romance, furnishes the amplest details of the affair, while such writers as Levesque, in his Russian history; Grimm, in his correspondence, and Voltaire, straightway repudiate the genuineness of the story on the basis of its improbability. The incidents of the time at the Russian court, the career of d'Aubant, and much else afford some reason for believing that there is at bottom, some occasion for a romance so remarkable.

Without here insisting on its genuineness, such is the story, in one of its forms, as it has come to the present. However, this, as well as much else, indicates how much of interesting matter lies in literary mines unworked in connection with our primitive history. The literary spirit of the South has never been properly encouraged by due appreciation, with the consequence of a scant literature. The industrial spirit seized our fathers in other years, and the fabulous fertility of our soils, the cultivation of which beneath fervid skies, in an even climate, has largely materialized our thought, and still does. Who now reads a book? If so, what is the character of the book? We scan the morning daily, or read at sleepy leisure the evening press, skim the magazines, and this usually tells the story. From sire to son this has been the way gone for generations. Permit the bare statement without the moralizing.

EARLIEST AMERICAN SETTLERS

In advance of the territorial construction of Alabama, this region had been sought as a refuge by adherents of the British crown during the stormy days of the Revolution, while others who were loyal Americans, also came to escape the horrors of war in the Carolinas. All these filed through the dense forests which covered the intervening distance at that early day. Across Georgia, the most western of the thirteen colonies, they fled, putting the Chattahoochee between them and the thunder of war, and buried themselves in the obscurity of the Alabama forests. These forests had remained unbroken from the beginning, now pierced here and there by the wide beaten paths of the Indian. Several of these paths became, in subsequent years, highways of primitive commerce, running from terminal points hundreds of miles apart.

The Indian knew nothing of roads and bridges, his nearest approach to the last named of these conveniences being fallen trees across the lesser streams. Nor had he the means of constructing them, as he was dependent on the flint implements which he rudely constructed into hatchets and wedges. By means of these, he would fashion his light canoe from the less heavy woods, like the cedar and birch, which were easily worked while in a green state, but when dry became firm and light and well suited to float the waters of the streams and bays. While in a green state, the trunks of these trees were hollowed out with each end curved up, and the paddles were made from slabs riven from some timbers light and strong. These canoes served to transport them across the streams, and afforded the means of fishing and hunting. When not in use, craft like this was secured to trees by means of muscadine vines. These were the conditions found by the white man when he came to invade the domain of the Indian.

With his improved implements of iron and steel trees were easily felled by the paleface, rafts were built, bridges were constructed, and by degrees, as the population grew, roads were opened. The refugees from the storms of war who came about 1777, followed the Indian trails when they could, but now and then they would have to plunge into the thick forests, pick their

way as best they could through a tangled wilderness, and pursue their course to their destination. By immigrants like these, some of the territory stretching from the western confine of Florida to the Tombigbee, came to be peopled in the first years of the nineteenth century, and for more than two decades before.

Localities in the present territory of the counties of Monroe, Clarke, Baldwin and Washington were occupied as early as 1778. Some of the white men in the lower part of Monroe County married Indian maidens, from which connections came some of the families that subsequently became conspicuous in the early annals of the state. Among such may be named the Weatherfords, Taites, Durants, and Tunstalls. In the bloody scenes which followed in Indian warfare, some of these espoused the cause of one race, and some the other. Not a few of these became wealthy, according to the estimate of the times; some were intelligent and influential, and imparted a wholesome influence to the early society of the state.

Primitive commerce was quickened along the great beaten pathways in consequence of the advent of the whites. These original highways extended from the ports of Mobile and Pensacola long distances into the interior. One of these ran from Pensacola by way of Columbus, Georgia, to Augusta, where was intersected another, which reached to Charleston. Another ran by way of Florence and Huntsville to Nashville, whence it extended as far north as old Vincennes, on the Wabash. Through the ports of Mobile and Pensacola exports were made to distant parts, as primitive craft was always in wait for these commodities at these ports. The commodities were brought from the interior on pack horses, or rather ponies, which commodities consisted of indigo, rawhides, corn, cattle, tallow, tar, pitch, bear's oil, tobacco, squared timber, myrtle wax, cedar posts and slabs, salted wild beef, chestnuts, pecans, shingles, dried salt fish, sassafras, sumach, wild cane, staves, heading hoops, and pelfry.

The introduction of cotton had begun long before the invention of the gin by Eli Whitney, in 1792. The seeds were first picked from the cotton with the fingers, which was improved later by some small machines, the appearance of which was hailed as a great advance on previous methods, and an early chronicler records the fact with much elation, that by means of the method of these small French machines as much as seventy pounds of

cotton were cleared of seed in a day. The commodities already named were transported to the sea on small, scrawny ponies, usually called "Indian ponies," tough, and possessing a power of endurance against hardship and fatigue that was wonderful. The cost of transportation was practically nothing, as these animals were hobbled at noon and at night, and turned out to graze to the full on the rank grass and native peavines, and, when in the region of a low country, on young cane. The weight of a load was usually one hundred and eighty pounds, one-third of which was balanced in bundles or packs on either side, while a third was secured in the center on the back of the animal. Ten of these ponies were assigned to a single "drover," who walked in the rear of the drove and managed all by wild yelling. After one or two trips over the same way, the ponies came to learn where to stop for water and encampment. They often wore bells of different tones, the wild clangor of which bells would fill the surrounding forest for great distances. When loaded, the ponies would fall into line at a given signal of the "drover," each knowing his place in the file, and amble away with ears thrown back, going ordinarily the distance of twenty-five miles each day. Some of the streams were fordable, while others had to be swum by these primitive express trains. Camping places became famous along the different routes, at which points all the droves came to camp.

As commerce thus grew, there came anon highwaymen who would rob the droves of their burdens. One of these robbers became as notorious as Dare Devil Dick in English annals. His name was Hare, and Turk's Cave, in Conecuh County, was the place for the deposit of his booty. With the years, this obstruction was removed. By means of this traffic not a few accumulated considerable fortunes, the traditions of whose wealth still linger in the older regions, with many extravagant stories attending. These stories embodied in a volume would give an idea of the ups and downs of these early times in Alabama.

INDIAN TROUBLES

The Indian viewed with envious eye the pale-faced invader who dared to “squat” on his dominions, for which he had slight use save for that of hunting. The law of the untutored savage is revenge, and to the Indian revenge means murder. The safety of the whites lay in the community of interest and a common bond of protection. In every large settlement or group of settlements there was built a local stockade of protection and defense, while in a given region there was erected a large fort, to be occupied in case of serious danger, or of general attack. Of these there was a large number throughout the territory of Alabama. There was no basis by which the Indian could be judged. He was a stealthy, treacherous fellow, who was constantly lurking about the homes of the first settlers, in order to wreak vengeance on the women and children, to massacre whom the Indian thought would force the retirement of the men.

Among the strange incidents connected with the menacing presence of the Indian during the primitive period of the state’s history, was that of the conduct of the horses and cows when a savage would come within easy distance. Whether grazing or at work, these animals would instinctively lift their heads and raise their tails, while with protruding ears they would indicate the direction of the savage. More than that, they would frequently give demonstration to their excitement by running here and there, and stop only to turn their ears in the direction of the approaching or lurking Indian. They did not see him, but by some other means, perhaps by the keen sense of smell, they could detect the presence of the savage, even while he was some distance away. It was thus that these animals became danger signals which no one dared disregard. Not infrequently a horse would stop while plowing, lift his head, snuff the air, and give other indications of excitement, all of which would put one duly on guard. By this infallible sign, much violence was averted and many lives saved. The ears of the brutes became almost as valuable to these pioneers, as the needle of the compass to the mariner, and certainly the protruding ear was just as unerring as the pointing of the needle.

Another fact which became proverbial among the primitive settlers was, with regard to young children, especially helpless babies, in the presence of excitement and danger. Not infrequently mothers would have but a few minutes in which to flee for safety to the nearest stockade, and often they would snatch their sleeping babes from their cradles, in order to make hasty flight, and the remarkable fact is that the little ones would never cry. In their flight, mothers would sometimes stumble and fall with their babes in their arms, but the little ones would still hold their peace. These facts became proverbial among the pioneers.

The condition to which one may become inured or accustomed, was abundantly illustrated in pioneer life. Occasional danger would have made life well nigh unbearable, but when it was frequent, when one did not know when he was to be pounced upon from some covert, by an Indian, it came to be a matter of constant expectation, and was no more thought of than any other ordinary condition of life. Of course, with danger always impending, men went armed, and the constant expectation of attack reduced the condition to one of the most ordinary. Men generally felt but little concern about themselves, but they were gravely concerned about their dependable families. These hardy men of the frontier usually became indifferent to personal danger, which fact greatly impressed the savage. While he hated the paleface, he dreaded to encounter him. Only under conditions of advantage, or when so penned that there was but slight hope of escape, would the Indian dare to engage in open fight with a white man. The skill of the Indian was limited, while the cool calculation of the white man would enable him the more readily to comprehend a given situation. In a reëncounter the Indian would always act with precipitation, while the white man would act with calculation, even under a stress of exciting conditions. This was often illustrated in the difference of the conduct of the two races.

One chief advantage the Indian enjoyed over the white man—he could easily outrun him. The Indian was trained to fleetness of foot from early childhood. He could run with bent form, faster than could the white in an upright position.

It was almost incredible how rapidly the Indian could penetrate the tangled underbrush in flight, or in seeking the advantage of a foe. Athletic training was common among all the tribes. On just two things the Indian relied, one

of which was his fleetness of foot and the other his ambuscade, unless he was forced into a condition of desperation, when he would become the most terrible of antagonists. While the sinews of the Indian were toughened by his mode of life, his muscles were kept in a perfectly flexible condition. This was in part due to his constant exposure to the open air. He slept and lived in the open. The consequence was that the constitution of the Indian was rarely impaired by disease. Active exercise, in which he every day indulged, the open air, simple food, and sleeping on the hard earth, made him an athlete, and among them there were often prodigies of strength.

The Indian spurned ease, and to him clothing was an encumbrance. It was like a child encased in a shield. On the other hand, the white man coveted ease. In those early days, and even for generations later, the white man would regard a bed uncomfortable unless it was of feathers, and he would never walk when there was a possibility of riding. In physical strength and endurance, therefore, the Indian was the superior, while in coolness and in calculation, and in the rapid husbanding of resource, the white man was at an immense advantage, and this made him the dominant factor.

This last element stood the whites well in hand in their intercourse with the Indians. Treacherous to the utmost, the Indian, in his pretensions of friendship, came to be a study to the frontiersman, and rarely was one thrown off his guard by the pretended warning of an Indian. Oftener than otherwise, given advice of impending danger, by an Indian, was reversed, and savages were often intercepted in fell design by the whites, who came readily to detect the treacherous purpose of the Indian. When suddenly foiled, no people were more easily demoralized than were the Indians. Of these characteristics, as frequently displayed, we shall have occasion to take note in these sketches.

ALEXANDER MCGILLIVRAY

The name of Alexander McGillivray is inseparable from the earliest annals of Alabama history. So notorious was he, that to omit his name from the records of the state, would be to occasion a serious gap. Though a private citizen, McGillivray, in the sway of power, was practically a sovereign. In the constitution of this wonderful man were extraordinary force, comprehensive resourcefulness, unquestioned magnetism, and sinisterness of purpose, rarely equaled. He was born to dominate, and his facility for planning and scheming, as well as for executing, was phenomenal. Nor was the dominion of his influence restricted to Alabama, for it extended into Georgia and Florida, and reached even the seat of the national government, which was at that time, seeking to stand erect in its emergence from infantile conditions.

McGillivray was the Machiavelli of these early times. With a gaze lifted immensely above that of his contemporaries, he planned vast designs, while the order of mind of this remarkable man was such that, in the requisite details of execution, he could fit and adjust conditions with a skill so marvelous, and a precision so exact, as to be able to accomplish all to which he set his hand.

His mind was fertile, his vision comprehensive, his judgment unerring, his skill adroit, his cunning foxy, his facilities without seeming limit, and his absence of principle as void as space. His plans were often a network of tangled schemes, so wrought into each other, that to most men involved in such, there would be no possibility of escape, but under the manipulation of this master of craft and of intrigue, they would be brought to a culmination invested with so much plausibility, as to divest them of any open appearance of wrong. McGillivray was always cool and collected, suave and smiling, and could make so fair a show of sincerity and of innocence, backed by a cogency of assertion, as often to make the false wear the mask of truth.

The times in which McGillivray lived were exceedingly favorable to the cultivation of his character. That which he did would have been unnatural with an ordinary man, but to Alexander McGillivray, and to the period in which he lived, nothing seemed more natural. The times were out of joint, his native gifts were exceptional, the period afforded just the orbit for their exercise, and with audacious effrontery he seized on every chance to execute his fell designs.

The close of the Revolution had left the country in a deplorable condition. The demoralization which inevitably follows in the wake of war, was one of unusual seriousness to the young American nation. Added to that of widespread disaster was the sudden transition from colonial conditions, under the crown, to that of republican independence. History has failed to emphasize the moral and social conditions in the American territory, incident to the Revolution, which conditions imposed a herculean task on our primitive statesmen. At best, the undertaking of a free government, under conditions such as then prevailed, was an experiment on which the hoary nations of Europe looked with doubting interest.

Under the conditions of universal demoralization, the task was assumed of welding into coherency the scattered elements of population, which population viewed freedom more as license than as liberty, and with an interpretation like this, there was a greater tendency toward viciousness and criminality than toward a patriotic interest in the erection of stable government. Then, too, the untutored savage still roved the forests, and his wigwam settlements extended from limit to limit of the territory of the prospective nation. The savage was revengeful, and stood in defiance of the encroachment of the whites on his rightful domain. It was under conditions like these that the unscrupulous McGillivray came on the scene with all his seductive arts.

In point of diplomacy, he was the peer of any man on the continent, while in cunning unscrupulousness he was unapproached by any. To scheme was to him a natural gift; to plot was his delight, and to him intrigue was a mere pastime. His machinations were so adroitly shaped as to enable him to rally to his aid forces the most opposite and contradictory, and yet into each of his wily schemes he could infuse the ardor of enthusiasm. The danger embodied in McGillivray was that he was not only bad, but that he was so

ably and atrociously wicked. In his veins ran the blood of three races—Indian, Scotch, and French. His grandfather, Captain Marchand, was a French officer, his father, a Scotchman, and his mother, one-half Indian. Alexander inherited the strongest traits of these three races. He had the quick but seductive perception of the French, the cool calculation and dogged persistency of the Scotch, and the subtle shrewdness and treachery of the Indian. Possessing these traits to a preëminent degree, they were greatly reinforced by an education derived from the best schools of the time, he having been educated at Charleston, South Carolina. He was Chesterfieldian in conventional politeness, and as smooth as Talleyrand in ambiguity of speech. Apparently the fairest and most loyal of men, he possessed a depth of iniquity inconceivable.

His father, Lachlan McGillivray, had run away from his home in Scotland when a lad of sixteen, and reached Charleston about forty years before the outbreak of the Revolution. Penniless and friendless, he engaged to drive pack-horses, laden with goods, to the Indian settlements on the Chattahoochee. His only compensation for the trip was a large jackknife, which proved the germ of a subsequent fortune. Nothing was more highly prized at that time, than a good jackknife. Lachlan McGillivray exchanged his knife for a number of deer skins, which commanded an exorbitant price in the markets of Charleston. Investment followed investment, which resulted in increasing dividends to the Scotch lad, so that by the time he was fully grown, he owned two plantations on the Savannah River, both of which were stocked with negro slaves. He later came to possess large commercial interests, both in Savannah and Augusta, and having married the half-breed Indian girl, in Alabama, he owned large interests in this state. He had, besides Alexander, three other children. One of these married a French officer, Le Clerc Milfort, who became a brigadier-general in the army of Napoleon, while another became the wife of Benjamin Durant, a wealthy Huguenot merchant, the ancestor of the present Durants in Mobile and Baldwin counties, while another still, married James Bailey, a half-breed, who was subsequently a conspicuous defender of Fort Mims. These names are suggestive of fountain sources of history. This brief introduction prepares us to enter on the remarkable career of Alexander McGillivray.

THE INDIAN “EMPEROR”

Among the other traits of Alexander McGillivray was that of an insufferable vanity. The Indians came to recognize him as their chief, but this he indignantly put aside and named himself “the emperor.” Designing the career of his son to be that of a merchant, Lachlan McGillivray had afforded him every possible educational advantage that the most advanced schools could give, but the young man chafed under the restrictions of commercial life and left his father’s home, which was now in Georgia, and returned to Wetumpka, the scene of his birth and childhood, and allied himself with the Indians of that region. Most opportune was the time to young McGillivray, for the Creeks had become involved in a serious disturbance with the whites of Georgia, and were in search of a competent leader who could cope with the situation.

The American Revolution was now in progress. The British, here and there about the South, were active through the Tories, in inciting to rebellion the ferocious Indians. Every wrong was exaggerated, and many supposed wrongs were created, to engender strife between the whites and the Indians. On reaching Wetumpka, young McGillivray was hailed as their chief and as the man who had come to the kingdom for such a time as this. Fresh from academic honors, the youth was altogether responsive to the flatteries of the Indians. Proclaiming himself the emperor of the Creeks, he donned their garb, and became their idol. He began his operations on a scale so delightful to the Indians, that he won their confidence at once.

His movements attracted the attention of the British authorities at Pensacola, and there was tendered him a colonelcy in their army, without interference with his chiefship in the Indian tribe. He was placed on the payroll of the English army and exchanged his toggery of the Indian chief for the crimson uniform of the British colonel. This was an occasion of fascination to the Indians, who exulted in the promotion of their young chief. McGillivray now had everything his way. He plied his seductive arts, and there was nothing that he desired that was withheld. The Indians doted on him, and the pride of the young man knew no limit. He proved a skillful

leader in battle, courageous and strategic, but his sphere was in the field of diplomacy. He left others to lead in fight, while he solicited the aid of Indians in the service of the king of England. In the ranks of the Tories, none was so efficient as was McGillivray, yet when the war closed disastrously to the crown, and when the British had no further use for him, they abandoned him to his fate, took his commission from him, and cared no more for him.

While the result was disastrous to the British arms, it was exceedingly so to the McGillivrays. The father had been a devoted loyalist throughout, and when peace was declared his property was confiscated, he was left without a penny, and, worse still, the Whigs thirsted for his blood. They sought to find him, and, without a dime in his pocket, he fled the country and returned to Europe, after making many narrow escapes, for had he been captured, he would have paid the penalty of his loyalty to the British crown by dangling from the end of a rope. All that saved Alexander's neck was that he was recognized the chief of the Indian tribes whom the Americans were eager to conciliate. The conditions created by the close of the war afforded to Colonel McGillivray a fresh opportunity for new alliances on a new field.

Impoverished by the calamitous result of the Revolution, Colonel McGillivray was more enraged than dispirited, and in seeking new connections, he turned to the Spanish, who recognized the services of so valuable an ally, and were not slow to use him. In order to facilitate their schemes they gave to McGillivray the commission of colonel in the Spanish army on full pay, and besides, made him commissary commissioner to the Creek Indians, whom to win to the loyalty of Spain there was offered to them open ports on the Gulf coast for the shipment of their peltry.

This latter position gave to McGillivray vast advantage, as his palms itched for Spanish gold, much of which he handled in this new relation. Having the confidential ear of both parties, McGillivray was not slow to replenish his impoverished purse. He was equally the trusted counselor of both, and was not hindered in cross-purposes by any scruple, to make the most of the advantage afforded. He was the prince of plotters, and the impersonation of selfishness. A treaty was entered into at Augusta, Georgia, between the white settlers and the Creeks, respecting the lands, which treaty was repudiated by the Indian tribes, and led to outbreaks of violence on the part

of the savages. This action was inspired by McGillivray, the promotion of whose interest lay in agitation and disturbance. Outbreaks became general, as the result of the instigation of McGillivray, who did nothing openly, but inspired the Spanish to stimulate the animosity of the savages against the white settlers.

Conditions rapidly assumed an aspect of gravity, and outbreaks became so general, that it was necessary for the American government to take the matter seriously in hand, and to seek to placate the Indians. A commission of able men was appointed by congress, under the leadership of General Andrew Pickens, to negotiate with the Indians, with the end in view of adjusting all differences. General Pickens addressed a letter to McGillivray, which communication was a masterpiece of astute diplomacy. While it bristles with threat, it is at the same time pervaded by conditional conciliation; while stout in the assertion of independence, it is yet concessive in tone, and while it promises direful consequences in case the general government declines to recognize the rights of the Indians, it adroitly injects, in a patronizing way, the suggestion that the Americans who had wrested independence from the British crown would be glad to be in position to accord great consideration to the unfortunate Indian.

Able as General Pickens was in the field of statescraft, it was impossible for him so to depress the standard of his character to such a plane as to be able to cope with the villainy of McGillivray. The difficulty lay in the fact that the two men were working from two opposite points. Pickens was seeking reconciliation, while this was precisely what McGillivray did not wish. Pickens was seeking to heal a serious breach, while it was to the interest of McGillivray to keep it as wide open as possible. However, negotiations were arranged for and the congressional commission was to meet, in council, Colonel McGillivray, at Golphinton.

McGILLIVRAY'S CHICANERY

At great sacrifice, and by laborious travel, the commissioners of the government, under General Pickens, made their way to Golphinton, when, lo! McGillivray was not there. Instead, he had sent to represent the Indians, the chiefs of two towns, accompanied by about sixty warriors. As negotiations had been conducted by McGillivray, and as his presence was necessary to consummate the proposed treaty, there was not only disappointment on the part of the commissioners, but great indignation. Even though every chief had been present, the absence of their representative and commissioner would invalidate any agreement, and this McGillivray well knew.

Nonplused by his absence, the commissioners of the government merely stated to those present that which congress desired to accomplish, and withdrew. This gave rise to fresh complications, which now assumed a three-cornered aspect, as the federal commissioners' plans were objected to by the commissioners of Georgia, on the one hand, and by the Indians, on the other. Conditions were growing worse instead of better, much to the delight of Alexander McGillivray, who would produce such a juncture as would eventuate in his final enrichment. Without the knowledge of either of the other parties, he was pulling the wires with the hand of an adept schemer. After all the negotiation, therefore, the whole affair proved a fiasco.

Still, something must be done. Conditions could not remain as they were, and border warfare was continually imminent. The government was prostrated by the Revolution, and a general war with the Indians might invite an interference on the part of both England and Spain. President Washington was much worried and perplexed, and summoned to his aid the ablest counselors. The situation was exceedingly grave, and a single misstep might plunge the country into the most disastrous of wars.

The next step led to the appointment of Dr. James White as the superintendent of the Creek Indians. Dr. White was cool and cautious, a

skilled diplomat, and was familiar with Indian treachery, while he had the advantage of enjoying, to a degree, their confidence. He was not without a sense of self-reliance in the undertaking, and if he could not succeed in the ratification of a treaty, he would so probe into the situation as to glean facts which would enable the government the better to adopt proper policies. He knew McGillivray well, and was not averse to a tilt in diplomacy with this arch plotter and schemer. He at once wrote to McGillivray from Cusseta, setting forth his mission and that which he proposed to accomplish. The reply was one of equivocal phraseology, lengthy, shrewd, evasive. It might mean anything or nothing, and was susceptible to a variety of interpretations. The upshot of the correspondence was a meeting at Cusseta. This time McGillivray was present with a proposal to the national commissioner, which proposal was astounding and startling. Surrounded by a large number of chiefs, McGillivray submitted his unreasonable proposal. This occurred in April, 1787.

The proposal, in brief, was that the general government make large and unreasonable grants, with the alternative of a prompt acceptance, or that of a declaration of war on the first of the following August, just four months hence. McGillivray knew that the proposed conditions would not be acceptable, and he also knew the consequences of a war to the young nation. Matters were not growing better fast. Here was a juncture that called for the skill of the ripest statesmanship. The general government and the state of Georgia were as much out of accord, as were both, with the Indians. It was an opportunity which the keen McGillivray could not suffer to remain unused. It was a matter of bargain and trade with him, and the question uppermost with him was how much he could derive from it.

So astounding was the proposal, that Dr. White found himself a pigmy dealing with a colossus, and he could do nothing more than to report to the President the result of the meeting. All the while, McGillivray was shuffling with the Spanish authorities in such a way as to extort large sums of gold from them, while he was dissembling with the American government for a similar reason, using meanwhile the deluded Indian as an instrument to promote his designs. He would hold the Indian in his grip by an affected solicitude in his behalf, while he would promise certain results to Spain for given sums, and meanwhile agitate Washington with a threat of war. Men and interests, however sacred, were to him as puppets to be employed for

the profoundest selfishness. He would create demonstrations of hostility on the part of the Indians, in order to extort from interested merchants tribute to quell the disturbance. He would threaten Spain with America, and America with Spain, thereby producing alarming conditions in the commercial world, and from nations and merchants alike, he reaped booty.

Exasperated to a pitch almost uncontrollable, Washington at one time thought of a war of extermination, but this would involve the lives and property of the people of the whole South, involve the country seriously with England and Spain, and leave a stain on the American government, and the idea was abandoned. Resourceful as he was, Washington had practically reached the limit of suggestiveness when it occurred to him to appoint a secret agent charged with the mission of inviting a big council of the Indian chiefs to repair on horseback all the way from Alabama and Georgia to New York, then the seat of national government, in order to confer with him in person in the adjustment of all grievances. Colonel Marinus Willett was chosen by the President for this delicate and difficult function.

Taking a ship at New York, Colonel Willett was just fourteen weeks reaching Charleston, from which point he immediately set out along the Indian trails on horseback for the region of the Chattahoochee. He was served by faithful Indian guides, and through many days of hard riding, he proceeded to his destination where he had arranged a meeting with McGillivray and all the great chiefs. Conditions were now favoring McGillivray, for he well knew that he had produced grave concern at the national capital, and was abundantly prepared for the result which he was now nursing. According to prearrangement, Colonel Willett and Colonel McGillivray met at the town of Ocfuske, on the Tallapoosa River. McGillivray found his match in Colonel Willett, who was as skilled in the art of diplomacy as was McGillivray, but without his unscrupulousness.

A NOVEL DEPUTATION

The diplomats met—Willett and McGillivray. Willett was polite, courtly of address, skillful of speech, resourceful, but wary. McGillivray was suave, excessive in politeness, equivocal of speech, deceitful, ostensibly generous, though as treacherous as a serpent. Both were able. Each had had much to do with men and affairs, but the motives of the two were as wide as the poles. In the assembled council, Willett showed that he was at home. Under the guise of excessive politeness, the two played against each other for advantage with the skill of trained fencers. There was a mastery of self-confidence that equally possessed both. Each spoke in a measured, cautious way. With mutual distrustfulness, each vied with the other in courtesy of tone. Objections were met and verbal blows were parried with a degree of politeness that approached the obsequious. It was Greek meeting Greek. The widest discretion was Willett's in arranging for the proposed council in New York, where the Indian chiefs were invited by the "great President" to meet him.

With the mastery of a skilled disputant, Colonel Willett addressed the assembled chiefs, including, of course, Colonel McGillivray. The pith of his speech was that "our great chief, George Washington," had sent him to convey to them a message of cordial affection, and to invite them to his great council house in New York, where he wished to sign with his own hand, along with Colonel McGillivray, a treaty of peace and of alliance. He assured them of the high regard entertained for them by "our great chief," who did not want their lands, but wished to see them happy, contented, and protected. He further assured them that Washington would make a treaty "as strong as the hills and as lasting as the rivers." His tone of address and assurance of sincerity greatly pleased the assembly.

The result of the meeting, which lasted for hours, was that a deputation of chiefs, together with Colonel McGillivray, would accompany Willett on horseback to New York. Arrangements for transporting the baggage on horses were made, and the day appointed for the departure. Accordingly, Colonels Willett and McGillivray, a nephew of Colonel McGillivray, and a

body of Indian chiefs filed out of Little Tallassee, near Wetumpka, on the morning of June 1, 1790, for the distant capital. Along the way the party was reinforced by other chiefs on horseback, who were in wait for the arrival of Willett and McGillivray. At Stone Mountain, Georgia, the two great chiefs of the Cowetas and Cussetas joined the party. Onward the procession moved, exciting much interest, and in certain quarters, not a little sensation. On reaching the home of General Andrew Pickens, on the Seneca River, in South Carolina, they were received with the utmost cordiality by this distinguished gentleman, who arranged for more comfortable means of travel. Here the party fell in with the Tallassee king, Chinnobe, the "great Natchez warrior," and others. Henceforth the Indians rode in wagons, excepting the four who were the bodyguard of Colonel McGillivray, who accompanied him on horseback, while Colonel Willett rode alone in a sulky. At Richmond and at Fredericksburg the party halted to rest, at which places much consideration was shown to Colonel McGillivray. Distinguished honor was shown the entire party at Philadelphia, where they were entertained for three days. Boarding a sloop at Elizabethtown, New Jersey, they were finally landed in New York.

Now began a series of demonstrations that lasted through a number of days. The sachems of Tammany Hall turned out in full regalia, met the deputation at the water's edge in lower New York, which was at that time about all there was of the city, marched up Wall Street, then the principal thoroughfare of the city, past the federal building, where congress was in session, then to the home of the President, with that pomp and ceremony of which Washington was very fond. Each member of the deputation was presented to the President, while the eyes of the enchanted chiefs fairly glittered with delight as they unceremoniously gazed on the scenes about them in the mansion of the President. Washington could not outdo Colonel McGillivray in conventionality in the exchange of greeting. Both were men of splendid physique, McGillivray being just six feet high, with broad shoulders, well proportioned, and as straight as a flagstaff. From the home of the President the procession filed to the office of the secretary of war, thence to the mansion of Governor Clinton, all of which being over, they were marched for entertainment to the principal hostelry of the city, the City Tavern, where a banquet was spread for the unique deputation, when the functions of the first day were closed.

Other notable attentions charmed the visiting chiefs, whose elation over the novel scenes in which they were the principal sharers was equaled alone by the concern of Colonel McGillivray regarding what all this might mean for him. The chiefs of the wilds were easily beguiled by these profuse attentions, but not so the wily McGillivray. With sedulous care he kept the chiefs well under his thumb, lest they might fall into other hands, by means of which they might be alienated from himself.

After some days, negotiations were entered on between McGillivray and the Indian chiefs, on the one hand, and Henry Knox, the chosen representative of the government, on the other. With cautious vigilance on the part of both Knox and McGillivray, each step in the proceeding was taken. Knox knew his man, and McGillivray knew what he wished, and all else was made subservient to that purpose. McGillivray was as free in the ply of his art in the metropolis, as he was beneath the native oaks of his tribe on the distant Coosa. Nothing daunted him, and with dexterity he employed his art as the situation was gone into. A sensational episode occurred in connection with the proceedings. Washington learned that the Spanish of Florida and of Louisiana, having heard of the departure on this mission of McGillivray and his chiefs, had dispatched a secret agent with a bag of Spanish gold, by ship to New York, to bribe the chiefs and prevent a treaty. McGillivray wore their uniform, bore a commission as colonel in their army, and was their agent, but their confidence in him was naught, hence the mission of the agent. This agent was detected on his arrival, and was shadowed by an officer from the moment he touched the soil of the city. The agent was never able to reach the Indians. With consummate skill the contest continued from day to day, McGillivray determined to force the initiative in the offer to be made, before he would agree to commit himself. He was a plausible enigma to the statesmen at New York, whom he forced to show their hands before he would agree to disclose his purposes and wishes.

THE TENSION RELIEVED

While several previous articles have been devoted to the notorious career of Alexander McGillivray, there was a phase of the situation which logically belongs to the interesting proceedings in New York which should not be omitted, and when read in connection with facts already presented, adds increased interest to the narrative.

Keeping his plans well to himself, McGillivray was quietly breeding schemes with which to baffle the able men at the national capital. For days together, the negotiations were kept up, and they were days of serious concern and of lingering suspense to President Washington. The parleying and dallying led to the apprehension that McGillivray would propose terms so startling, as to end the whole affair with a fiasco, and in view of the recent demonstration, reduce the situation to governmental mortification. On the other hand, McGillivray was apprehensive that his intended proposals would be rejected, hence his tactical delay and parley. Knox was patient, McGillivray impatient. At last Knox was able to force from the wily trickster and supple diplomat the condition on which he would be willing to sign the treaty. It proved to be an occasion of as much elation to the one as to the other. McGillivray chuckled over his success, while the government congratulated itself on the settlement of terms so easy.

When, at last, McGillivray stated his terms, they were that fifteen hundred dollars in gold should be paid him outright by the government annually, together with other easy emoluments, yet to be named, and a certain quantity of merchandise, with certain limited sums of money to the Indians each year, for which consideration the vast domains of the Oconees were to be surrendered, while they were to remain under the peaceable protection of the United States, and form no treaties with any others. Yet, on account of that which occasioned this treaty so cheaply, much suspense and terror had been created and much blood spilled, and not a few whites were even then in bondage to the Indians. These slaves were to be liberated, and the two powerful tribes, the Creeks and the Seminoles, were to become subject to

the general government. Paltry as the consideration was, McGillivray got the utmost of his wishes, and crowed over the result.

The infamy of this malicious character grows in depth with the probing. Back of his tampering with different embassies in the past, his Judas-like dealing with different nations at the same time, his instigation of the tribes to outbreak, his dragging these Indian chiefs across the country all the way to New York, lay the sinister and sordid selfishness of this perfidious man, already named, McGillivray provided for himself by being made a brigadier general in the regular American army on full pay, which was at that time twelve hundred dollars, while he was to derive additional remuneration as the government agent to the Indian tribes.

Intoxicated with delight at his success, McGillivray headed the procession homeward bound, after an exchange of congratulations with President Washington, where each vied with the other in stilted conventionality. McGillivray flattered the artless Indians into the belief that he had won for them a victory, and they shared with him in the gusto of his elation. His maneuvers were just such as to produce fresh plans of conspiracy and of intrigue for the future. On his return home, he doffed the uniform of the Spanish colonel, and donned that of the American brigadier, all of which heightened the admiration of the Indians, while it afforded newer opportunity to the general to lay deeper schemes and reap richer rewards. This course was occasioned by the reasons now to be given.

One of our modern investigations would have disclosed the fact that while the treaty was based on the conditions named, there lay beneath it, out of the sight of the general public, a secret treaty between President Washington and General McGillivray, on condition that he would manage the Indians as the President might desire. As a sort of secret agent, and in order to enhance his position in the estimation of the Indians, McGillivray was made a channel for the transmission of certain gifts and privileges, which he was to use to the advantage of the government, for which he cared not a thread, and he would never have become the secret purveyor, without the prospect of personal enrichment. He was to give to the Indians, in his own way, the assurance that their commerce was to find exit through the Gulf and ocean ports, while he was to present to each chief, as from himself, but really from the government, a handsome gold medal, besides a yearly gift of one

hundred dollars in gold. Besides still, the government was in the same secret way to educate annually four of the Indian youth, free of all charge. All this was to be done in such manner, as to have it appear how strong was the hold and influence of McGillivray on the general government, and thus maintain his grip on the Indians. This looks a little nebulous, from the government side, but it is a matter of history, and at the time, was known only to the favored few. History, like the sea, has hidden depths. That which Washington wished, was to keep in subjection the troublesome Indian; that which McGillivray wished was the enhancement of his importance, in order to the gratification of his personal vanity, and in order, too, to a plethoric purse. At any rate, such are the facts. What our modern muckrakers might make of a proceeding like this now, deponent knoweth not. While in the state councils of New York, there was silent and suppressed glee over the result, in the heart of Alexander McGillivray, at the same time, there were fresh schemes being incubated, as in daily meditation he southward rode. Washington thought he had McGillivray bagged, while McGillivray knew he had Washington hoodwinked. Later developments afford fresher revelations of the diabolical character of Alexander McGillivray.

A season of tranquillity ensued which Washington regarded as auspicious, when as a matter of fact it was ominous. McGillivray never intended to execute the terms of the treaty, only in so far as they would conduce to his personal ends, for on his return to the South, he at once entered into secret negotiations with the Spanish. He explained to them that his jaunt to the capital was a mere ruse, in order to gather information, the better to aid the king of Spain, and that he was just now ready to render to Spain the most efficient service. Here, then, was an American general disporting himself in the national uniform, spurs, boots, epaulettes, and all, betraying the government into the hands of a foreign foe. While drawing the pay of a brigadier, he was, as a secret emissary of Spain, the recipient of a sum much larger.

In order, at last, to promote his schemes, he fomented strife and agitation among the chiefs, by instigating them to protest against the terms of the treaty. Meanwhile, he informed the government at New York that he was doing his utmost to enforce the terms, and must have broad discretion and ample time, in order to accomplish the end in view. Between himself and the secretary of war an active correspondence was kept up in which

correspondence the atrocious Alexander McGillivray was more than a match for the cabinet officer of Washington. Thus went events for years together.

THE CURTAIN FALLS

In the records of the race, it would be difficult to find embodied in the life and career of any one, more strange and incongruous elements than those which entered into the history of General Alexander McGillivray. Though unquestionably a man of ability, that ability was turned into the most wicked of channels; highly gifted with the elements of leadership, these were devoted to the single end of the enhancement of his purse; gracious in manner, courteous, and ostensibly obliging to an astonishing degree, yet, at bottom, all this demonstration was only so many decoys to catch the unsuspecting, and even to the suspicious they were oftener than otherwise availing; cool and collected, placid and serene, it was but the charm to wheedle the confidence in order to sinister consummation, and, while emphatic sometimes with a make-believe sincerity, it was only to delude.

McGillivray's only idea of right was that of self-gratification. If to do right at any time was most productive of methods of self-promotion, why he would adopt that course, but only as a means of convenience. Unhampered by a sense of obligation and unchecked by conscientious scruple, his prodigious intellect and fertility of resource made Alexander McGillivray the most dangerous of men. Yet he could descant at length with all the mein of a moral philosopher on duty and obligation, the rights of man, the turpitude of wrong, the cruelty of injustice, the inhumanity of deception, and all else in the catalogue of morality. His familiarity with all these afforded him room for the amplest guilt. Self was his measuring rod, laid with accurate hand on the most contradictory of conditions.

The amplitude of his personal forces enabled McGillivray to do what the fewest can successfully—wind his sinuous course through the most tangled conditions, while dealing with a number of conflicting agencies and causes, and yet equally dupe all, and if apprehended, be able so to summon to his defense a sufficiency of plausibility as actually to invest the whole situation with a sheen of fairness. Contradictory at many points, he could give to all the aspect of consistency.

The only service that Alexander McGillivray rendered was that of preventing a general outbreak of the Indian tribes, which fact was due, not to his horror of blood, so much, as to the fact that using the deluded red man, he was able to hold him up as an object of fear, and thus elicit by agitation and apprehension, that which would conduce to his emolument. He never did right unless it was to his profit, and falsehood was preferable to truth, if it would serve a turn to his personal profit. He derived abundant encouragement from the conditions of his environment, to which his character was exactly adapted. The man and the occasion met in Alexander McGillivray.

As the agent of the government entrusted with the dispensation of the financial and commercial gifts to the Indians, in accordance with the secret treaty with President Washington, no one ever knew how much, or how little, the poor red men ever received. The fact that the arrangement was a secret one, was much to the purpose and pleasure of McGillivray. The government promptly met its obligation, and there is not wanting evidence that there all sense of obligation ended. This notorious man went to his grave invested with the deepest suspicion. Nor was it altogether restricted to suspicion, this outrageous conduct of Alexander McGillivray. Detection was unescapable under certain conditions. Secret agents of a suspicious government, spying out his varied transactions, exposed his atrocity time and again, but in each instance, it was found that he had so successfully woven a network of defense, that to undertake to eliminate him by force, would have been like tearing a new patch from an old garment, according to the sacred parable, the rent of which would have been made the worse thereby.

The government sought by indirection and not always in the most creditable way, to uproot the confidence of the Indians by due exposure, but McGillivray was never found unprovided with means to account for the reasonableness of each separate charge. With the strategy of a Napoleon, this extraordinary man could outgeneral all who were pitted against him. Such was the character, such the career of Alexander McGillivray.

He was now an old man. The stylus of care and of responsibility, assumed in an arena the most atrocious, had drawn deep grooves on his brow. His silver hair and tottering gait admonished him of the brief time that was his,

but so far from relaxing his grip on the things which had actuated him throughout, this condition only served to tighten it. Experience had sharpened his wits, and villainy had made him impregnable in plying his art. His was a master passion that gave fresh desperateness in view of the approaching end. A vast fortune was his, and with the passion of the man who never had a higher dream than that of personal gain, he hugged it with a tenacity common to men under conditions of advancing age, yet knowing meanwhile, that with his end would come that of the use of his immense means.

He lived to see himself repudiated by all alike. He was rejected by the American government, cast out by the Spaniards, and, by degrees, came to be distrusted even by the Indians. All sense of remorse was gone, all the finer emotions which shrink from public exposure of wrong, long ago deadened. Moral obliquity was complete, and hardened iniquity made him insensible to the frown of reproach with which he was everywhere met.

Worn out by the criminality of a long life, McGillivray sought a home, in his last days, at Little River, in the lower part of Monroe County, where he died on February 17, 1793. His remains were taken to Pensacola and interred in the spacious gardens of William Panton, a wealthy Scotch merchant, with whom McGillivray had long been associated in business connections. His very aged father survived him, and was still living at Dummaglass, Scotland, to whom William Panton wrote of the death of his notorious son. Thus passed away the greatest diplomat Alabama ever produced, but he left to posterity nothing worthy of emulation.

LORENZO DOW

So far as can be ascertained, and the fact seems beyond doubt, the first protestant that ever preached in Alabama was the eccentric Methodist minister, Lorenzo Dow. He combined in his character a number of strange elements, some of which were quite strong, and by his stentorian preaching he stirred the people wherever he went. He was unique in his make-up, and no conjecture could be had of what he would ever say or do. Mr. Dow reached the distant frontier settlements of Alabama along the Tombigbee as early as 1793. He was a fearless, stern, plain, and indefatigable preacher of the old-time type, who spurned all danger, and boldly faced the direst of perils on the border, that he might preach the gospel. He had a notable career, though still a young man, before he found his way to the vanguard of western civilization.

Born in Connecticut during the stormy days of the Revolution, Dow became a Christian in his youth, and for some time was perplexed about what church relationship he should form. He finally joined the Methodists, as the zeal of that people was an attraction to his heated temperament. His errant and arbitrary course soon made him an undesirable acquisition to the Methodists, and while not severing his relations with the church, he was disposed to yield to a disposition to become a general evangelist or missionary of the independent type. His health was broken, and he conceived the idea of going as far westward as the advanced line of Caucasian occupation had gone, taking with him on his perilous journey his young wife.

At this time Mr. Dow was about twenty-seven years old. By means of the tedious and uncomfortable methods of travel at that early time, he found his way from New England to the thin line of settlements along the Tombigbee. Here, in company with his wife, Peggy, he preached as a son of thunder, but as though the dangers encountered did not gratify his love of the perilous, he sought his way through the dangerous wilds to the region of Natchez, Mississippi, long before made an important French settlement. To Dow peril was a fascination, and like the Vikings of Saga story, he sought danger

in order to gratify a desire to fight. Not that he was a man of physical violence, but his love of contention and of opposition was without bound. He loved combat for its own sake, and was never so much at peace as when engaged in wordy war. He was of that mold of humanity that immensely preferred disagreement with one than tranquil acquiescence. He rusted when not in use. His blade glimmered only by constant wielding.

From the region of Natchez, he returned at last to the Tombigbee and Tensas settlements, virile, strenuous, impetuous, and fiery. His journal, which seems to have been sacredly kept, discloses many romantic adventures among the wild tribes, many of the leading spirits among whom regarded him with a terror that was awfully sacred, because of his utter lack of fear, his consuming zeal, and his stormy preaching. In advance of the choice of St. Stephens as the territorial capital, he visited the location while only one family was residing there. Impressed by the location which overlooks the river from an elevation, and the country beyond, Dow predicted that it would become a point of great importance. Both in his diary and in the "Vicissitudes" of Peggy Dow, we learn much of the adventures of this anomalous brace of souls. He would sleep in the open air in the resinous regions of South Alabama, where the abounding pine straw could be raked together in a heap for a mattress, and where he could be lulled to slumber by the soothing monotone of the tall pine trees. There is little doubt that the frail system of this wonderful man was prolonged, by being nurtured in the open air, freighted with turpentine, and strengthened by activity.

Mrs. Peggy, on the other hand, judging from the tone of her journal, did not find so much gratification in this rough and tumble method of life, as did her incorrigible liege lord. There is an undisguised reluctance in her words of compliance with conditions from which there was no appeal.

One of the most singular chapters in the life of Lorenzo Dow preceded his invasion of the far Southwest. When seized by a peculiar fancy that he was called to preach to the Roman Catholics of the world, and having learned that Ireland was one of their strongholds, he hied himself thither. To the quaint Irish, he was a wonder. His vociferous preaching and pungent zeal drew large crowds, but at times his path was not strewn with primroses, and the rougher element of the Irish throngs offered battle at times to his

vaunting banters, but nothing was more to the liking of the indomitable Lorenzo. He stood ready to meet any rising emergency even when it was as grave as the attacks of the scraggy sons of the Emerald Isle.

From Ireland he crossed over into Britain, and introduced the camp meeting method of worship, which meetings became popular in England, and later, in the United States. So far as is known Lorenzo Dow was the founder of the camp meeting with its flexibility and abandon of worship. His way in England was clearer than it had been in Ireland. To the staid Briton, he was an object of wonder, and his natural eloquence and eccentricities of speech and of dress, won for him boundless popularity, and the pressing throng heard him with avidity. He found peculiar delight in his assaults on the Jesuits, whom he denounced as conspirators against civil and religious freedom.

Weird, stormy, and extensive as the career of Lorenzo Dow was, he was not an old man when he died, being only fifty-seven. He fought off constitutional weakness and heroically braced himself against the inroad of disease, with the same force with which he did all things else. For years he held the dark monster, death, at bay, and grimly declined to die that he might live and fight, to do which none was fonder than the redoubtable Dow.

As may be easily inferred, Dow was a man of scant learning, so far as pertains to books, but he was a close and apt student of men and of affairs, and from his acquired fund, he preached with great effectiveness, unrestrained by conventionality, and unhindered by prim propriety. He told the truth as he saw it, not in tones of choice diction, but with a quaintness and pluck, and with such projectile force as to stir conviction and arouse action. He chose to be called a Methodist, yet he chafed under the imposed limitations of his church, and defiantly trampled down all restrictions, while he followed the bent of his own sweet will, controlled by none, not even his bosom companion, Peggy, if the indirect suggestions of her journal are to be relied on. He did not seek to found churches, but only desired to preach in his own wild manner. Sometimes he would make appointments a year in advance, at remote points, but would meet them promptly at the hour named.

In point of whimsicalness, Lorenzo Dow has had few peers, for he would veer from the ordinary, for which he had a singular passion, but no one was ever found who could pronounce Lorenzo Dow a fool. He was not without extravagance of speech and of manner, but when challenged, he was gladly able to evince strength equal to the occasion.

His son, Neal Dow, was a brigadier in the Union army, and the author of the “Maine law,” which procured a prohibitory statute for his state.

WEATHERFORD, THE “RED EAGLE”

The most picturesque figure among the Indian leaders of the Alabama tribes, was William Weatherford, called by the Creeks, of whom he was the splendid commander, Lamochattee, or Red Eagle. He was a nephew of Gen. Alexander McGillivray, and had an equal admixture of blood in his veins. Weatherford was reared near Montgomery, at the village of Coosada, just below the junction of the Coosa and the Tallapoosa Rivers, where his father owned a plantation, a large store, and a popular race track. Charles Weatherford, the father, was a white man who had married a half-breed, and became very popular and influential among the Indians, as an agent in important functions, in negotiating with the Spanish and the Americans.

The son, even from boyhood, was a pet among the Indians, by whom he was greatly pampered and flattered, and into the wild pursuits of whom the lad entered with a gusto. With them he hunted and swam, practiced athletics, on foot and on horse, danced with them at their rude frolics, vied with the best in the use of the bow and arrow, the rifle and pistol, in all of which he became an expert, much to the delight of the warriors. He was especially skilled in horsemanship, his taste for which was gratified to the amplest by the fine animals in his father's stables, which animals were kept for racing purposes.

The pronounced force of Weatherford's leadership was early shown, when he would join in the perilous expeditions of his tribe against others in the frequent wars along the Cumberland and the Chattahoochee, and in other regions, as well. Not only for these qualities was the handsome and chivalrous young man idolized, but also for his gifted oratory. He had a voluble tongue, possessed a wonderful power of persuasion, and his knowledge of Indian character enabled him to inflame and sway their volatile passions at will.

At an early age, Weatherford became a dominant figure among the tribes, and soon came to be proclaimed a great leader. He understood perfectly the Indian character, and his power of discernment taught him when to speak,

and when to keep silent. Genius, judgment, oratory, and courage were the ranking qualities of Weatherford's character, which, when taken in connection with his natural gracefulness and agility, made him an object little short of adoration to the untutored tribes. Nor was this yet all, for to these meritorious qualities were added others which while forbidding to sense of refinement, greatly enhanced Weatherford in the estimation of the Indian. He was avaricious, treacherous, blood-thirsty, and a glutton and debauchee of a low cast.

Early in life, he came into possession of a fine plantation, which he every way beautified, while his home was made the abode of the worst vices to which the Indian was addicted, all of which served to elevate him in Indian esteem. His physique afforded him another advantage, for he was tall, symmetrically built, and bore himself with the erectness of a flagstaff, while his large black eyes were flashing, his nose of the Grecian mold, with other features in harmonious blend. Such was the Red Eagle of the Creeks, who was to become their great leader and champion, in the stormy years that were to be. Like Hannibal of old concerning the Romans, Weatherford had early instilled into him a profound antipathy for the whites. His uncle, General McGillivray, to whom the young man was greatly attached, and to whom, too, he was an ideal, had early injected into the heart of the nephew hatred for the white man, and hostility toward him. Weatherford when young would accompany his favorite uncle to Pensacola, and while associating with the Spanish, he would imbibe additional rancor for the Anglo-Saxon. To him, the encroachment of the white population on Alabama soil, meant robbery and ruin to the Indian, and the worst blood of his nature was fired with growing intensity throughout the period during which he was ripening into manhood.

Weatherford was scarcely thirty years old when Tecumseh, the celebrated chief, visited the Muscogeas, in 1812. The popularity and bearing of the young favorite of the Creeks caught the eye of the astute old chief, who took the young man at once into his confidence, opened his plans for the extinction of the white race in Alabama, and flattered him not a little, when he named Weatherford the intrepid leader of the tribes of the south. Tecumseh wished him to plunge into the war of extermination at once, but Weatherford asked for time to consider the assumption of a charge so grave,

and promised to give his final answer on the return of Tecumseh in the near future.

The truth is, that Weatherford had serious misgivings about his relation to the pending troubles, and with all his dash and venom, he was not without judgment and discrimination. While he hated the white man, he knew his courage and force, and besides, he had many relatives and friends who would resist any demonstration of hostility on the part of the Indians. Yet Tecumseh, by fervor of appeal, had fired the Indian heart, and the tribes were seething for the onset. Under these conditions, Weatherford found himself in a dilemma.

Quietly stealing away from his plantation in the neighborhood of Wetumpka, he went down the Alabama River to the region of Little River, in the lower part of Monroe, to confer with his brother, Jack Weatherford, and his half-brother, David Tait. The difficulty of the situation was increased when both advised the younger brother to have nothing to do with the impending troubles, and urged him to return to his home, and with his family, slaves, and stock, to flee to the region in which they resided. These older brothers predicted not only defeat, but disaster to Weatherford, if he should yield to the solicitations of the tribes to become their leader. The brothers pointed out that while much injury might be inflicted on the whites, they would, in the end, crush the Indians; that he would do well not to be drawn into the hostile campaign. The advice was accepted, and William Weatherford retraced his steps to the upper counties, with the intention of adopting the course suggested, but it was too late.

ENFORCED ACQUIESCENCE

The tumult of passion raised by Tecumseh, and the full knowledge of the proposal which he had made to Weatherford, as well as the well-known fact of his kinship with certain influential families in lower Monroe, of their attitude to the Indians, and last of all, the hesitation of Weatherford to assume command, and his strange visit to his brothers—all of these things awoke suspicion and placed the Indians on their guard. Here was a reversal of human sentiment as sudden and as powerful as possible. Weatherford had been idolized till suspicion was aroused, when his presumed treachery was watched with much eagerness. On his return from the visit to his brothers, Weatherford was chagrined, and doubly disappointed, to find that his premises had been invaded, his family, slaves, and stock seized by the Indians, and held under close guard against his return. Not only so, but they laid hold on him also, and notified him that they would kill him and his if he did not join them, and lead them against the whites. It was now death, or submission to their demand, the latter of which was, after all, not difficult for Weatherford, for the denunciation heard by him on every hand, revived the old fire in his heart, and complete as the change was, as a result of his visit to his brothers, he now cordially acquiesced in their demands, and announced himself ready to lead them to the field.

Under these compulsory conditions, Weatherford fed afresh his hatred for the white race, recalling that which his uncle had instilled, and with all his being, he threw himself into the cause of the Indians, and became the most brilliant and the bitterest of Indian leaders. Since there was nothing left but acquiescence with the demands of the Indians, Weatherford gored himself to unquenchable hatred, and boldly took the field at the head of the hilarious and tawny braves. Summoning to his support all the resources for a fierce war, and calling to his aid every available warrior of the tribe, a thousand in number, he was ready for the march to the counties of the south. Already hostilities had broken out in the southern quarter of the state, and the initial victory of the Indians at the battle of Burnt Corn, gave vigor to his spirits, and led him utterly to repudiate the sentiments which he cherished when he left the homes of his brothers, only a few weeks before.

At the head of as ferocious an army as ever trod the soil of any region, Weatherford repaired southward on a mission of utter extermination. Every day of the march sharpened his zest for the fray, as well as that of his fierce followers on the war path. He slid into the south as stealthily as possible, and on reaching the scene of impending hostility, found that the whites had betaken themselves into a strong stockade, which had been built about the residence of one of the settlers named Mims, which name was given to the fort. Together with his picked warriors, he stealthily inspected the fort unobserved, studied its weakness and its strength, and repaired to the deep forest to await the time to attack.

He saw that to undertake to storm the strong barricade meant disaster to his army, and with genuine genius of generalship, he decided to await the favorable moment to strike the fatal blow. He hid his warriors in the deep woods, at a point sufficiently remote from the fort not to be detected, allowed no camp fires to blaze during the night, and no demonstration that would occasion alarm at the fort, while he would daily reconnoitre the situation, and watch how life went inside the stockade.

Within Fort Mims, day after day passed in silence, silence into inactivity, then into indifference, and this in turn, into negligence. The growth of this spirit within the fort was a matter of encouragement to Weatherford on the outside, several miles away, and this, he was persuaded, would continue to grow. When it should have become a spirit of lassitude, toward which it was tending, then would Weatherford strike. Lounging within the walls of the stockade induced exceeding restlessness, and by degrees, the inmates of the fort would sally forth in quest of flowers and wild fruits, while within the enclosure, diversions and games were introduced and gained in favor. In addition still, the great gateway, which at first had been kept closed, was now suffered to remain open, not only during the day, but at night. Heavy rains had washed the sand against the gate, so that if it were desired to close it, it would be with great difficulty. The inmates had grown indifferent to the situation, and really had ceased to believe there was any occasion for apprehension.

Of all this Weatherford, lurking in the neighboring forest, was apprised, and while his warriors chafed yet the more because of the delay, the inmates of the fort grew increasingly indifferent, both which facts were conducive to

the purpose of the wily Weatherford. It was not easy for the wary chief to hold in check his warriors, but he would daily persuade them that the pear was not yet ripe, and that when the set time should come, the victory would be the easier. Weatherford fully understood that when the dogs of war were turned loose, he would have to rely entirely on the force of their frenzy and excitement for success, while he quite understood the collectable qualities of the whites, who, even when surprised, would rally and rerally with a growing coolness in the struggle.

Thus the days became monotonous alike to the inmates of the fort, and the warriors hid away in the woods, but the effect on each was diametrically different. This was just as Weatherford wished it, and while he found it not easy to hold in check his warriors thirsting for blood, he was enabled to do so till the fatal day arrived.

FORT MIMS MASSACRE

The fatal morning of August 30 dawned on Fort Mims. The weather was hot, and slowly from sleep the inmates of the fort awoke. Breakfast over, the day began the usual routine of indifference to conditions, the little children beginning their play about the block houses, men gathering in small groups about the enclosure, chatting, smoking, laughing or playing cards, while later a fiddle was brought into requisition for an old time reel by a body of youngsters, while the elderly women sat in quiet groups sewing, talking, and knitting. The matter of attack, so much feared at first, was now a subject of jocular comment, men joking as to what they would do, should the Indians appear.

Amidst the scene of merriment, a negro appears fresh from the woods, and in excitement, tells of having seen a body of Indians rapidly approaching the fort. Major Beasley, the commander, who is engaged in a game of cards with other officers, orders the black to be strung up and whipped for giving a false alarm. The gate still stands wide open with its obstruction of sand banked against it, and the serenity within the fort remains the same.

Suddenly, the calmness is broken by the firing of muskets without, attended by the hideous yells of savages. They are near the entrance, and sure of making good their way into the fort, they make a demonstration of joy. Consternation seizes the inmates. The rushing tramp of the approaching assailants is now heard, and as a squad rushes to take its place in the gateway, the Indians are in full view, only a few yards away. Before Beasley could rally his men, a few Indians have rushed through the gate. The advance of the Indians is shot down, and the voice of Beasley is heard calling to his men to rally at the gate. They seek to close it, but the Indians are now coming rapidly on, and every one is needed to keep them back. If the narrow passage of the gate limits the entrance of the savages, it also hampers the defense of the garrison. A solid mass of savages, half naked and with the glitter of fury in the eyes of each, jam in closeness to force the passage. The defenders in desperation shoot them down, or stab them, one by one with their bayonets. There is no time for order, and confusion is

complete. At the gate, it is a hand to hand fight, as officers give orders, and the Indians yell like demons, and press with might to force the entrance. Within the fort, women are shrieking, and children crying in wild confusion. Only the advance of the Indians has as yet appeared, the others approaching in order on the run, under the leadership of Weatherford. Piles of dead bodies, Indians and white, already fill the gateway.

Major Beasley stands at the head of his men, faces the savages, and fights like a demon. He cheers his men, while he bravely leads. He is courage to the core, and every man is doing his utmost. Inspired by the pluck of the men, the women rush to the rescue. Beasley falls, shot through his body. Lying prostrate in the passage, his life ebbing rapidly away, as he sinks in death, he appeals to his men. A brave lieutenant takes his place, is soon covered with blood from his own wounds, but fights on, and from sheer loss of strength, reels and falls. Two brave women rush up, drag his body from the pile of dead, bear it back, give him water, and suddenly he rises, staggers to the gate, and renews the fight. After a half hour's fighting, the gate is closed just as Weatherford appears with eight hundred fresh warriors. Excluded from the gate, the Indians under Weatherford, begin to cut down the pickets about the fort, and as holes are made through the pickets, the firing is continued. The advantage is now on the side of the savages. Blow on blow finally brings down a portion of the walls, and like an overflowing flood the yelling demons rush within. Outside, the dry walls and pickets are set on fire by the savages, the roofs are soon aflame, while the work of destruction goes speedily on. On their knees, women plead for life, while they clasp their children close to them, but they are slain and scalped on the spot. Neither age nor sex is spared. Of the five hundred and fifty within the fort, only a few negroes and half breeds are permitted to live.

In a corner of the fort is seen an Indian holding at bay his companions who are seeking to reach a group of half breeds huddled together, a mother and her children. The Indian defender strikes down any who attempt to reach them. The explanation of this strange scene will appear in the next article. Besides these thus rescued, only nine out of the entire number within the fort are spared. Of the thousand savages who assaulted the fort three hundred and fifty were killed.

It has been said that Weatherford sought to restrain his warriors from the wanton bloodshed, but on the contrary, he was in the thick of the fray, dealing the deadliest blows, and by his example, inspiring his men to the utmost destruction. Than Weatherford, the whites never had a more relentless and bloodthirsty foe. His purpose was the extinction of the whites, and in this, his first battle, he would teach them a lesson of savage warfare that would remind them of that against which they had to contend. He was as merciless a demon as was to be found among the men of the forest. In after years, when Weatherford saw that his cause was lost, and when he surrendered to General Jackson, and went to the lower part of Monroe to live, there was an effort made to create the impression of his proposed gentleness at Fort Mims, but it is utterly without foundation.

The horror of the dreadful scene was added to by the devouring flames. The roofs and the walls falling in on the dead, they were scorched or burned in one common heap, and Weatherford, though he afterward became a good citizen in the same region, gloated over the murderous desolation thus wrought. His delight was fiendish, his glut of revenge was ominous. This was Weatherford on August 12, 1812.

The news of the horrible massacre spread dismay everywhere. It sounded the note of extinction of one or the other of the Indian or white races. Dismay gave place to revenge, and everywhere men flew to arms. From that time forth the battle cry of the whites was, "Remember Fort Mims." From the north marched Jackson from Tennessee, and from the west came Claiborne with his Mississippi militia. Weatherford had raised a storm which he would never be able to quell.

INDIAN GRATITUDE

From the general estimate of Indian character, one would be slow to believe the savage capable of gratitude, but even with the Indian, instances of this virtue are not altogether wanting, one among which was displayed at the horrible massacre of Fort Mims. Of the seventeen who escaped death from that tragedy of blood and fire, was a mother and her eight children.

That they should have been found together by a certain Indian warrior, who was enabled to give full expression to his gratitude, was providential. The story is well worthy a place in our annals. Years before this terrible holocaust at Fort Mims, an Indian boy, an outcast and an orphan, in his friendless wandering, found his way to the home of a Scotchman in the wilds of South Alabama, whose name was McGirth, who had married a half-breed. Touched by the condition of the off-cast Indian waif, the good Mrs. McGirth not only fed and clad him, but took him into the home, cared for him, and reared him as her own son. The Indian boy, Sonata, grew to manhood beneath the McGirth roof, and shared in common with the children of the family, the moderate comforts of the frontier home.

After Sonata became a man, he took leave of the home, and joined himself to the Creek tribe of which he was a member. The McGirths lost sight of Sonata, Sonata of his benefactors. Years with their changes came and went, and Sonata was in the upper counties with his people.

When the war began, he was one of the braves who enlisted under Weatherford in the campaign of extermination which led to the slaughter at Fort Mims. He was among the foremost to enter the ill-fated fort, and do deadly execution. In his death-dealing blows, Sonata came suddenly on a woman, somewhat advanced in life, behind whom crouched a number of children. With upraised hands, she pleaded, as did all others, that she and hers might be spared. In the wild tide of death, while the slaughter was at its height, the uplifted hand of Sonata was suddenly stayed. There was something in the voice of the pleading woman that was familiar to the ear of the savage, and his tomahawk was arrested in mid-air. He looked into her

face, and while the woman did not recognize him, he did her, and in the excitement of the carnage that was rampant, he dropped his tomahawk and led the woman and her children to a corner of the fort, and took a position of defense in their behalf. Again and again, efforts were made to reach them, but he stood sentinel over the group, and suffered not a hair of their heads to be touched, claiming that they were his slaves, and must not be disturbed. It was his foster mother, Mrs. McGirth.

It so happened that when the alarm was first given to the settlements to repair to the fort, Mr. McGirth was away from home, in another part of the country on business, for he was a trader, and did not return till after the slaughter at the fort. When the horrors of the massacre were over, Sonata mounted his prisoners on horseback and sped them away to his home far up on the Coosa. He feared that should they remain in the neighborhood of the fort, even in the camp of the Indians, he would be unable to restrain the ferocity of the savages, hence their flight to the upper country. Nor did the grateful protege leave his former foster mother and her group, till he saw them comfortable in his own wigwam beside the Coosa. This done, and he hurried back to rejoin his command. When hostilities in the South partly subsided, Sonata sought again his home to see that Mrs. McGirth was cared for.

The seat of war was transferred from the south to the upper counties, and Weatherford was preparing to encounter General Jackson, who was descending from Tennessee to destroy Weatherford and his command. Sonata had been at home for some time, and when he felt that it was his duty to re-enlist against Jackson, he arranged for the flight of Mrs. McGirth and her children, should he fall in battle.

In the bloody conflict of Cholocco Litabixee, where a thousand painted warriors met Jackson in battle, only two hundred survived. Among the slain was the grateful Sonata, the news of whose death reaching Mrs. McGirth, she hastened with her family to the south. All who had previously known her, thought of her only as dead, among whom was her broken-hearted husband, who had long ago given up his family as among those who had perished at Fort Mims. He had settled at Mobile a sad and broken-hearted man, and sought diversion of his sorrow in business. One day, while he was laboring on the wharf at Mobile, there was suddenly ushered into his

presence his entire group, still unbroken. He stared at them as though they had strayed from the land of the dead. He stood fixed like a statue, with his face as expressionless as the surface of a lake. He was dumb. This was followed by a nervousness that made him shake as with an ague. He stared till he realized the truth of their deliverance, when he burst into uncontrollable weeping, and wept till he no more had power to weep.

The story following his return to Mobile after the massacre was a sad one. He had gone immediately to the scene of the slaughter, hoping to recognize his loved ones and give them decent burial, but flames had disfigured the faces of all, now lying charred and blackened in death, and the utmost he could do, was to aid in the burial of all, presuming that among them somewhere, were his own loved ones.

To the rescued Mrs. McGirth is history largely indebted for a detailed description of the scenes enacted at Fort Mims. Though an uneducated woman, she was endowed with a remarkable fund of common sense, and without extravagance, gave the fullest account of the dreadful slaughter. Her kindness to the poor Indian boy saved her in the direst extremity of her life. "Cast thy bread upon the waters, for thou shalt find it after many days."

THE CANOE FIGHT

The Indian was as thoroughly skilled in the use of the oar on the larger streams and inland bays, as he was with the tomahawk, the scalping knife, and the bow. It is believed that the name of one of the Alabama tribes was derived from their adroit use of the oar. In his Creek Migration Legend, Gatschat suggested that Mobilian means "paddling." Certain it is that the early settlers found the Indian an adept in the use of the skiff or canoe.

The faculty with which the Indian could direct his canoe, and the dexterity with which he could divert it suddenly from a given course, was wonderful. He had studied with the utmost accuracy the force or swiftness of the current of a given stream, and could calculate at a glance any point at which he would arrive on the opposite side, when starting from the side of departure. On the land, the whites were generally at an advantage in a contention with the Indians, but on the water the Indians generally excelled.

The bloody massacre at Fort Mims had created a spirit of recklessness on the part of the whites. The warfare was turned into a species of hunting expeditions, and the regions were scoured as though in search of wild beasts. The massacre had put fire into the bones of the whites, and a prolonged revenge was the result. Thereafter they never waited for an Indian to advance, they simply wished to know where the savages could be found. The Indians made no use of the fertile soils save for hunting, and when the whites sought to till them and turn them to practical use, seeking meanwhile to preserve peaceful relations with the red men, the Indians sought their destruction. The morality of the question of depriving the Indian of his possessions turned on this point, and not on that of deliberate robbery, as is so often contended. The white settlers sought to buy the lands for agricultural purposes, but the Indian wanted the virgin forests to remain untouched that he might hunt. Since the red men had raised the cry of extermination, with Weatherford in the lead, and since they had shown at Fort Mims that nothing short of utter extinction was sought, the whites accepted the issue, and under conditions like these the conflict raged. This

condition converted every white man into a soldier, a patriot, an exterminator.

Among the most daring and intrepid of Indian fighters, in those early days, was Gen. Sam Dale. A giant in size and in strength, as fearless as a lion, and familiar with the stratagem of the Indian, no one did more valiant service in those early days of Indian warfare than he. More than any other white man, the Indians dreaded Dale, whom they called "Big Sam." His known presence on any occasion would produce among the Indians consternation.

While on a scouting expedition along the banks of the Alabama, Dale discovered a canoe descending the stream with eleven stalwart warriors. Seeing that they were making for a dense canebrake, Dale ordered his men to follow him quickly, and seven reached the canebrake just as the savages were about to land. Dale and his men opened fire on them, but overshot them, when two of the Indians sprang into the water. As they rose, Dale killed one, and Smith the other. The remaining nine began to back the boat so as to reach the current, and escape, three using the oars, while the others lay flat on the bottom of the boat. It seems that Weatherford was within hailing distance, for one of the warriors shouted to him to come to their aid. In order to facilitate the movement of the boat, one of the warriors had jumped overboard, and was directing it toward the current, and as he stood breast deep in the water, he shouted to Dale in derision to shoot, meanwhile baring his bosom. Dale fired and crushed his skull. Soon the boat was well in the current, and was moving down stream.

Being on the side of the river opposite that on which his boats were, Dale called across the river to his men to bring the boats. Six sprang into a boat and started toward Dale, but when they got near enough to see that the canoe was filled with savages lying flat, they sped back. Just below was a free negro named Caesar, with a boat and gun, and Dale shouted to him to bring his boat, and when the negro declined, Dale yelled to him that unless he should come at once, he would cross the river and kill him, when Caesar crossed a hundred yards below the canoe of the Indians. Dale and two of his men sprang into it, and Caesar was ordered to head off the boat of the Indians.

So soon as the boats touched, Dale sprang up and placing one of his feet in each boat, the nearest warrior leveled his gun at him, but it flashed. Quickly clubbing it, he dealt a blow at Dale's head, he dodged, and shivered the head of the Indian with his gun. Austill sprang up, but was knocked down by an Indian, who in a moment more would have killed him, but Dale broke his gun across the warrior's head. Austill grasped the barrel, and renewed the onset. Dale being without a gun, Caesar handed to him his gun with a bayonet attached. The boats drifting apart, Dale leaped into the Indian boat alone, while the other bore away. Smith fired and wounded the Indian nearest Dale, who was now standing like a monument in the boat of the Indians, two of whom lay dead at his feet. At his back the wounded savage snapped his gun at Dale several times, while four powerful warriors were in front. Too close to shoot, the foremost one dealt a blow with his gun at Dale, who parried it with his gun, and then drove the bayonet through him. The next made an onset, but was killed by Austill. The third came, but was thrust through with the bayonet. The last was a giant wrestler, well known to Dale, and as he strided over the prostrate bodies of his companions, he yelled: "Big Sam, I am a man—I am coming—come on!"

With this, the big athlete sprang forward, clubbing Dale with his heavy musket. He struck Dale's shoulder with such violence as to dislocate it, when Dale buried the bayonet into his body. It glanced around the ribs and stuck fast into his backbone. Dale held him down while he was struggling to recover, and when Dale jerked it out, he leaped to his feet and with a wild yell sprang furiously at the big white man, but Dale was ready with the bayonet which he drove through his heart. Within ten minutes eleven Indians had been killed, six of whom died by the hands of Dale.

A LEAP FOR LIFE

There is no more ambitious purpose in this series of unpretentious sketches than to present the striking events, or those of more than ordinary humdrum, that dot the rich history of our state. The sketches are mere snatches, severed here and there, from historical connection only in so far as that connection serves to give a proper setting. Though several articles are devoted to the eventful career of Red Eagle, there is no attempt made here or elsewhere in the series to follow his dashing life, as the idol of his dusky hosts, throughout, but as they are presented, proper regard is had for the chronology of events.

The advent of General Jackson on the scene in Alabama, took Weatherford back to the central region of the state to dispute his advancement. Untrained as Weatherford was in the science of war, he knew it instinctively, as does any other natural military man. He had all the elements of a great soldier, else he could not have withstood so long the forces of his formidable adversaries. His territory was exposed from every quarter, and in order to meet the odds coming against him from Mississippi and Tennessee, he had to concentrate his forces, not only, but had to accumulate supplies with which to support his army on the field.

Weatherford was not slow to realize that to fight organized forces under competent and skilled commanders, demanded more than a desultory warfare on his part, hence he set to work for a long and arduous campaign. The success at Fort Mims, where with unusual skill Weatherford directed the campaign, and outgeneraled all the white commanders, made him the one great chief of the Indians. Under similar conditions, this would have been true of any people and of any man. He was still the Red Eagle, but to that was added by his adoring followers the designation of Tustenuggee, or mighty chief. While the vain warrior was inflated by the adulation of his followers, he knew the feebleness of his numbers and the scantiness of his resources. Because of these conditions, and because he was hailed chief, he appreciated what it meant in its application to him in his difficult condition. For the first time, he was to lead his untrained warriors against drilled

troops. It was native valor against courage and skill, native strategy against scientific tactics, the war of the savage against that of the civilized white man.

Within a month, four battles were fought—Tallahatchee, Talladega, Hillabee and Autossee—all fought in November, 1813, one hundred years ago. At Echanachaca, or Holy Ground, were concentrated Weatherford's supplies, and the women and children of his tribe. This point was located on the south bank of the Alabama, between Pintlalla and Big Swamp Creek, in the present region of Lowndes County. To the Indian, the Holy Ground was that which Jerusalem was to the ancient tribes of Israel. In this sylvan retreat, dwelt their chief prophets who had drawn a circle about it, and the deluded savage was persuaded to believe that for a white man to plant his foot on this consecrated ground, would mean instant death.

The Holy Ground was surrounded by a region of loveliness. For seven months in the year the virgin soil of the prairie was carpeted with luxuriant grasses, dashed here and there with patches of pink and crimson bloom, while the wild red strawberry, in occasional beds of native loveliness, lent additional charm. Enclosed by high pickets rudely riven by savage hands, and girdled by the magic circle of the prophets, the Holy Ground was thought to be impregnable. Here Weatherford was attacked by General Claiborne at the head of the Mississippi militia, on December 23, 1813, the day before Christmas eve. To Claiborne's command was attached a body of friendly Choctaw Indians under Pushmataha.

General Claiborne began the attack with a storm. Weatherford led his troops with consummate skill and unquestioned courage, but to little effect. The fact that he, the notorious leader at Fort Mims, was in command, whetted the desire of the Mississippians not alone to defeat him, but to capture him. In spite of the false security promised the Indian by their prophets, and in spite of the valor of their idol chief, they melted rapidly before the deadly aim of the Mississippi backwoodsmen. Seeing that the battle would be against him, Weatherford with skill worthy any great commander, slipped the women and children across the Alabama, while he still fought with ability, and while his men were piled around him in heaps, he fought to the bitter end, and was the last to quit the field. When all hope was gone, he

mounted his noble charger and sped away like an arrow towards the Alabama River.

He was hotly pursued by a detachment of dragoons, who almost surrounded the chieftain before he fled the field. Down the wide path leading toward the river, the hoofs of the horses of the pursued and the pursuers thundered. There was no hope of escape for Weatherford, but to reach the river in advance, and swim across. Hemmed in on every side, he was forced to a summit overlooking the stream at the height of almost one hundred feet of perpendicular bluff. On the precipice the bold leader halted for a moment, like a monument against the distant sky. Splendidly he sat his horse, as his pursuers thundered toward him, and with taunting shouts called to him that he was caught at last. He coolly raised his rifle to his eye, and brought down the foremost horseman, then slowly turning down a deep defile which no one would dare to tread, he slid his horse down the stony surface which broke abruptly off about fifty feet above the river. Putting spurs to the sides of the beautiful animal, it leaped with its brave rider on its back into the seething current below. Just before the water was reached, Weatherford leaped from the horse's back. The horse went down to rise no more, while Weatherford, still holding his rifle aloft, with one hand, swam to the opposite side and thus escaped with deeper vengeance against the white man than ever before. He was yet to lead his troops in other battles, and to fight while there was hope of success.

The world instinctively honors a brave man. This valorous chief had withstood overpowering numbers during the day, had saved his women and children, and now as a December night came down on that sad day of defeat, he stood on the north bank of the Alabama drenched and cold, but nerved by a spirit as heroic as ever had place in the bosom of man. Though an Indian, Weatherford was an ideal hero. Fear he knew not, and while the most daring of fighters, he was never reckless. His power of collection was simply marvelous.

WEATHERFORD'S OVERTHROW

Weatherford met his downfall at the battle of Tohopeka. This was the last battle ever fought by the Indians in Alabama. In a long succession of engagements, Weatherford, though fighting bravely, had incurred defeat. His warriors slain almost to the last man, he would rally another force, inspire his wild troops with fresh hope and new courage; and again offer battle to General Jackson. The limit of his resources was now in the force which he had summoned on the Tallapoosa, where with unusual desperation the Indians had resolved to make the last stand.

Weatherford had selected his own ground for the final contest, and it was well chosen. In a long loop of the river near the further end of the entrance to which was an Indian village called Tohopeka. Across the entrance, or neck, there was erected a bulwark of heavy, seasoned logs, which fortification extended from bank to bank of the stream the distance of about three hundred yards. This defense was about ten feet high, with a double row of portholes from which the Indians could fire simultaneously, as a part would stand upright, and the other would shoot on their knees. Protected by the river on the flanks and in the rear, they were able to concentrate their fire solely to the front. With a deadly aim, and shielded by their breastworks of logs, they felt that they could pick off the assaulting party, one by one, and thus utterly destroy the army of Jackson.

Behind this formidable bulwark were gathered one thousand two hundred Indian warriors from the towns of Oakfuskee, Hillabee, New Yauka and Eufaula. These were desperate men, well armed, and each confident of dealing a final blow to Jackson's army. Weatherford had summoned to the occasion the principal prophets of the nation, who inspired the dusky defenders with the belief that it was impossible for them to fall, because in this present emergency the Great Spirit would give them the victory. The more to inspire the troops, the prophets themselves proposed to share in the battle, and arrayed in their blankets of red, with their heads bearing coronets of varied feathers, while about their shoulders were capes of brilliant plumage of red, black, blue, green and yellow, they joined the Indian ranks.

About their ankles were tiny bells of different tones, the jingle of which they kept up during the battle, while occasionally they would leap, dance, and howl in inspiration of the warriors. Weatherford was too sensible a man to attach any importance to the sacredness of their claims, but he was solicitous to elicit to the utmost the fighting mettle of his men. To the rude and ridiculous incantations of the prophets he would add his matchless eloquence, in bringing his troops to the highest pitch of desperation.

The women and children had been removed from the village of huts and tents, to the rear of the garrison, while back of the village still were tied the canoes of the Indians on the river bank, to be used in the emergency of defeat. But while Jackson appeared at the front, General Coffee with a strong force appeared in the rear of Weatherford, with the river between him and the village of Tohopeka. One of the first cares of Coffee was to send a force to fetch the boats, by means of which he could cross the river and assail the Indians in the rear.

Jackson received a signal from Coffee that the latter was ready for the attack to be made at the front, when about ten o'clock on the morning of March 27, 1814, two field pieces opened on the breastwork of logs. No effect whatever was had on the logworks by the artillery, and Jackson resolved on storming the fortifications. Under a raking fire the troops marched at a double quick, and began pouring over the breastwork, many falling in the assault of approach, and many more on the walls, and within the fort. It became a hand to hand fight for the mastery, and the Indians were beaten back from their works, fighting meanwhile with desperate courage.

During the assault at the front, Coffee crossed his force over in the boats, and added discomfiture to the Indians by firing the village in their rear. Between a cross fire, the Indians fought with more desperation than ever. In the roar of battle could be heard the animating voice of the heroic Weatherford urging his troops to desperation, while in the ranks he fought like a common warrior. When Jackson saw that all hope for the Indians was gone, he sent a messenger with proposals of surrender. This was treated with disdain, and the response was that no quarter was asked, and none would be given. It was then that the American troops began with renewed desperation, and entered on a work of extermination. From behind brush,

stumps, or other obstructions the Indians fought till the approach of night. Many of the warriors sought to escape by jumping into the river, but they were picked off by the riflemen, and the waters of the Tallapoosa were reddened with their blood. A few escaped, but on the field were counted the bodies of five hundred and fifty warriors. It was estimated that not more than twenty-five of the army of Weatherford survived.

Among the striking incidents of the battle was that of a warrior who was shot down in a wounded condition, in the midst of others who were killed, and who saved his life by drawing the bodies of two others across his own, and appeared as though dead, and was counted among the dead when the field was reviewed at the close of the day. When darkness came on, he dragged his bleeding body to the river, and with difficulty swam across. Another, named Manowa, was seriously wounded, but managed to reach the river, in which he sank his body in water four feet deep, and holding it down by means of gripping a root of a tree, he maintained life by poking the joint of a cane above the surface, through which he breathed. Availing himself later of the darkness, he finally escaped. In later years he showed that he was shot almost to pieces, yet with stoical endurance he underwent the tortures of hours under the water, escaped, and survived.

But where was Weatherford? This was the question on every lip. They could not find him among the slain, and it was thought that he was perhaps among those who perished on the river in seeking to escape. But, as usual, he fought to the last, was among the latest to quit the field, when he escaped to the river on his fine charger, concealed himself till darkness came, when he floated on his horse down the river, around the bend past the American camp, and made his way into the hills to the south of the Tallapoosa River. Here he remained for some time, during which General Jackson offered a reward for him, taken dead or alive. The condition of his romantic reappearance will be told in the next article.

WEATHERFORD SURRENDERS

For some time following the battle of Tohopeka, the warriors came in and surrendered to Jackson. None of them seemed to know anything of Weatherford, for he had not shown himself since the fatal contest. Determined not to be forcibly taken, Weatherford resolved on going voluntarily to the camp of Jackson, make a plea for the women and children, and then surrender, to be dealt with as the American commander might desire.

Issuing from his solitary retreat in the hills, he mounted his fine gray, with his rifle well loaded, and turned toward the American camp. On his way, a large deer came within rifle range, which he shot, strapped it behind his saddle, reloaded his rifle, and proceeded to the camp of Jackson. His full purpose was to present himself as a prisoner, and to demand proper treatment, which if denied him, he intended to kill Jackson on the spot, and boldly take the consequences. Reaching the outposts, he politely asked the way to the tent of the commander, when the pickets chided him, without knowing who he was, and gave him no satisfaction. A gray-haired civilian being near, kindly pointed out the tent of General Jackson, who was sitting just within it, talking to some of his officers. As Weatherford rode up, Jackson spied him, but a few yards away, and rising from the camp-chair greeted him with, "Well, Bill Weatherford, we've got you at last!" This was followed by some abusive language to which Weatherford made no reply till he had finished, when he said: "I am not afraid of you, General Jackson. I am a Creek warrior, and fear no man. I am not here to be insulted, and if you undertake that, I shall put a bullet through your heart. You can't awe me, but I wish to say some things, and when I am done, you may do with me what you please, but these things you shall hear. I have come voluntarily to surrender, and you shall not insult me, sir, till I am through speaking." Jackson's eyes were flashing in anger while Weatherford spoke coolly, as he sat on his horse. Meanwhile a large crowd gathered about the scene.

Continuing, Weatherford said: "It is plain that I can no longer fight you. If I could, I would. It is not fear that leads me to surrender, but necessity. My

brave warriors are dead, and their war-whoop is silent. Could I recall them, I should fight you to the last. I come to ask nothing for myself. I am now your prisoner. I am indifferent about what you shall do to me, but am not about the women and children of my dead warriors. These helpless ones are now starving in the woods. Their fields and cribs have been destroyed by your people, and they are wanderers in the woods, without an ear of corn. All that I now ask is that you will send out parties and bring them in and feed them. I know that I am held responsible for the massacre of the women and children at Fort Mims, but I could not stay the fury of my warriors there, though I sought to do so. However, take what view you please of that, I am no longer concerned about myself. I am done fighting, but these helpless women and children in the woods are my chief concern. They never did you any harm, but I did all I could, and only the lack of men prevents me from continuing the struggle. I have done my best. Would have done more if I could. I am now in your hands, and if it is the wish of the white people, you may kill me.”

The crowd, roused by his defiance, rushed about him with cries, “Kill him! Kill him!” While Weatherford bowed his head, with his rifle still in front of him, Jackson strided forward with indignation, and in a stentorian voice commanded silence, and then in severe rebuke said: “Any man who would kill as brave a man as this, would rob the dead.” The crowd was sternly ordered to disperse, and Jackson, subdued by the eloquence of the brave chief, as well as by his courage, invited him into his tent, and extended to him all the civilities due a distinguished guest. The horse was given in charge of an orderly, and the brave men sitting face to face forgot the strife of the past, and were now friends. A prolonged interview followed, in which a treaty was entered into, and the war between the red and white races was over in Alabama. Jackson arranged to provide for the women and children of the Indians, and when all was duly settled, Weatherford kindly presented to General Jackson the buck which he had shot, and they shook hands, when Weatherford mounted his horse and rode away. Jackson and not Weatherford became concerned about the safety of the other, for he knew the temper of the people and the vengeance which they bore toward Weatherford. In truth, Jackson was charmed by the spirit of the chief, and resolved on saving him from the fury of those who had suffered by reason of the Fort Mims massacre.

Weatherford now sought his home at Little River, in Monroe County, where his brothers had kindly divided their effects with him, and established him comfortably on a good plantation stocked with negro slaves. Gen. William Henry Harrison having resigned as major general in the regular army was disbanded, and the troops returned home. him. The war with the Indians being over, the Tennessee troops were mustered out of service, the army was disbanded and the troops returned home.

In the southern part of the state, the Mississippi militia was still held in organization, a large body of which was located at Fort Claiborne, on the Alabama River. This was about one year before the battle of New Orleans was fought. As this does not come within the compass of this narrative, we lose sight of General Jackson here, excepting as he will appear in the succeeding article in a new relation to Weatherford, who did not find his surroundings the most congenial in the outset of his residence at Little River. Of the hazards which menaced him in that quarter we shall see in the article next succeeding this. With the presentation of that article, Weatherford will vanish from the narrative. But that which follows, reflects the spirit which animated both Weatherford and Jackson to the end.

WEATHERFORD'S LAST DAYS

The presence of William Weatherford at Little River, as a permanent citizen, was not appreciated by the residents in that quarter. It was not far from this place that the terrible tragedy of the massacre had occurred only about two years before, and grief over the butchery of loved ones was still keen, and sensitiveness was raw. While with Weatherford, all was over, not so with those whose cherished ones were murdered, and soon rumors became rife that violence would be visited on the head of the ex-chief.

As a means of protection he was advised to repair to Fort Claiborne, some distance up the river, till the fury was passed. Thither he repaired, was kindly received by the commander, and placed in a tent near his own, around which was posted a cordon of soldiers. Still the fury would not down, and rumors were of such a nature of the intention to kill him, as to awaken the gravest apprehension of his safety. He remained here about two weeks, when he was summoned into a quiet conference with the commander, the result of which was that, on the night following, Weatherford was escorted to the outskirts of the camp by a single guard, with a note to the officer of the outpost, Captain Laval. On the receipt of the note, Laval quietly took the arm of Weatherford, and through the pitchy darkness conducted him to a certain tree where a good horse was found hitched, and Weatherford was told to mount it, and flee for his life. He shook hands with Laval, saying, "Good-by, God bless you," and vaulting into the saddle, sped away through the thick gloom like an arrow. Laval stood and listened to the rattling of the horse's feet till the chief was fully a mile or more away.

Weatherford sought the camp of Jackson, on the eve of his return to Tennessee, and Jackson assured him of his protection. To the Hermitage, General Jackson took his erstwhile adversary, cared for him with the utmost hospitality, and when assured that it was entirely safe for Weatherford to return to Little River, sent him thither. The bearing of these heroes toward each other was equally creditable to both.

Weatherford returned to his plantation in the quietest way possible, and throughout his later life was one of the most exemplary citizens of the county. As a neighbor, there was none better. He rapidly won the confidence of the community, then the esteem, and all rancor rapidly subsided.

An incident in his life fully illustrates the spirit of the man. At a private sale held in the county, at which sale every element of society was, two bullies took advantage of an old citizen, named Bradberry, whose son had been a lieutenant in the army, was in the battle of Burnt Corn, and was finally killed in battle. These two bravados having provoked a difficulty with the venerable Bradberry, one of them broke a pitcher over his head, while the other ran up and stabbed him in the back of the neck, and the old man fell dead at his feet. Weatherford witnessed the scene throughout. His Indian nature came to him anew, his blood was on fire, and he found it impossible to restrain himself. He was the more exasperated when the brace of murderers took their stand on the public square, and, defiantly brandishing their revolvers, dared anyone to approach them. A justice of the peace being present, called on the crowd to arrest the perpetrators of the deed, but no one ventured to approach them, for their names had long been a terror in the region. Standing near the magistrate, Weatherford said, "Maybe this is the white man's way of doing things, but if there was a drop of Indian blood in that dead man's veins I should arrest these fellows at the risk of my life." The justice then told him to arrest them. Weatherford quietly drew out his pearl-handle dagger, while he shifted his heavy hickory stick to his left hand, and moved upon the murderer of Mr. Bradberry. The murderer warned him to stand back, but with firm step, Weatherford coolly approached him, commanded him to give up his weapons at once, when the murderer did as he was bidden. Then, clutching the murderer's throat with the grip of a vise, Weatherford called for a rope, and securely tied his hands behind him and turned him over to the officer.

The other continued clamorous, swearing that he would kill any man who sought to arrest him. Without regard to his threats, Weatherford now turned to him. As he came near, the fellow said, "I didn't mean you, Billie Weatherford," to all of which Weatherford paid no attention, and, taking his weapons from him, he clutched him likewise and quietly tied him and gave him over to the officer.

When asked why he dared venture in the way he did, Weatherford gave explanation in a way that is really philosophic. He explained that it is not the noisy man that is to be feared, but the cool man. Then he wished to know which was the noisy and the cool in that transaction. The bravado when confronted by courage, wilts. Weatherford's idea was that the man who is always going to fight will never fight without an advantage. He seeks to impress others with his courage, but not till he gains undue advantage over an adversary will he fight.

This made Weatherford a hero in the section in which he lived. By his conduct as a neighbor and citizen he became increasingly popular, and succeeded in transmuting the bitterness against him into love. For twelve years he lived in the Little River community with increasing popularity. He was a prosperous planter, shared in all that concerned the weal of the community, never flinched in the discharge of duty as a citizen, and when he died, his death was universally regretted. In a fatiguing bear hunt in the swamps along the river, he overtaxed his strength, and died in 1826. Throughout his life he deplored the precipitate tragedy at Fort Mims, and no doubt his subsequent reflection led him to insist that it was not his wish that the women and children should perish. Descendants bearing his name still live in that quarter of the state, esteemed for their worth as quiet and worthy citizens.

AARON BURR IN ALABAMA

Than Aaron Burr there has scarcely been a more striking, not to say a more startling, figure in the public life of America. Reared in the highest circle of society, greatly gifted by nature, enjoying the best possible advantages in education, a brave officer in the Revolution, Vice-President of the United States, and coming within a scratch of being President, and the grandson of the great philosopher, Jonathan Edwards, this favored son of fortune was a fugitive with a reward offered for his apprehension. Sides so varied rarely appear in the life of anyone. Aaron Burr was arrested, brought to trial, and was finally acquitted, and yet such was his private life, and so deep was the suspicion against him, that his former friends forsook him, and on one occasion Henry Clay declined to take his hand, when offered.

The story of Burr is too long to be undertaken here, even in brief outline, though it is thrilling throughout, and to this day his movements remain wrapped in mystery, because Burr in his dying hour disclaimed any purpose of the dismemberment of the Union, which was one of the chief charges urged against him so long as he lived. That he had deep designs, however, is not a question, and with proclamations containing offers of reward for his arrest circulated, and his effort to leave the country, the doubt of his guilt and of his complicity in some nefarious scheme is at once dispelled. He was well on his way to Pensacola in his flight, when he was checked in the Tensas settlement, in this state, which event led to his trial.

The night of February 18, 1807, was one of unusual coldness for this latitude. The surface of the ground was frozen, and nothing was so unusual as for travelers to be abroad on the highways. In the little village of Wakefield, in Washington County, were a few huts of the early settlers of that region. In one of these, at the hour of ten, were two young men greatly absorbed in a game of backgammon. A fire of logs and pine knots burned in the wide fireplace, the village was quiet in slumber, and perhaps the light seen through the chinks of the cabin was the only one visible in the village. These young men engaged in the game, heard the sounds of horses' feet rapidly approaching their cabin. Someone halting in front of the cabin, in

which the young men sat, a voice hailed, and on opening the door, the light revealed two mounted men, one of whom asked where the tavern was, and then how far it was to the home of Colonel Hinson. They were told that the home was seven miles away, the road rough and dark, and that a dangerous stream intervened. As the two travelers sat on their horses with the light of the cabin falling fully on them, one was seen to be much more than an ordinary man because of the character of his language, his striking face, and the evident anxiety expressed in an unusual way, and while he wore a slouched hat and the garb of a common farmer, his exquisite boots and superb horse revealed the discrepancy in the conditions.

Notwithstanding the advice of the young man not to undertake the hazard of finding the home of the Hinsons, on a dark night like that one, the travelers got their information and rode away. The two young men in the cabin were Nicholas Perkins, a lawyer, and Thomas Malone, a clerk in the local court. After the travelers had gone, and the young men were again in the cabin, Perkins expressed the opinion that the man of unusual appearance was Aaron Burr, as it exactly suited the description given in the proclamations, and proposed that they follow him and procure his arrest.

At the suggestion, Malone demurred, saying that it was not particularly their business, the night was severely cold, and it was absurd to be chasing a stranger on a bare suspicion, through the cold darkness and at the risk of their lives. But Perkins was not so easily daunted, and met each objection in a vigorous way. However, Malone could not be enlisted in the effort, and Perkins sallied forth in search of the sheriff, Theodore Brightwell, with whom he was soon on horseback, and they were making their way to Colonel Hinson's. Meanwhile Burr and his companion had reached Hinson's about twelve o'clock. Colonel Hinson was absent, and in response to the hailing at the gate, Mrs. Hinson glanced through the window, saw two men mounted, and went back to bed without responding. The travelers alighted, went into the kitchen, where a fire was still burning, and were warming themselves, when the sheriff, a relative of Mrs. Hinson, walked into the kitchen, having left Perkins on the roadside to await his return, as Perkins deemed it imprudent to show himself after having been talked to in Wakefield. Burr partly concealed his face with his handkerchief, and at first was the only occupant of the kitchen, as his companion had gone with the horses to a stable.

After a few hurried words, the sheriff aroused Mrs. Hinson, a supper was improvised, the strangers began eating, Burr was affable and chatty, was profuse in apology for the unseasonable interruption, and complimentary of the excellent supper. The sheriff had prepared Mrs. Hinson to ascertain, if possible, if either man was Burr, and while the sheriff stood over the fire, with his back to the company, and after Burr had retired to the kitchen, she asked his companion if she did not have the distinction of entertaining Colonel Burr. In much confusion, the companion arose without a word of reply, and joined Burr in the kitchen.

The sheriff rejoined them, engaged in conversation, and soon all were abed. The next morning, Burr expressed his disappointment at not meeting Colonel Hinson, and, strange to say, was soon mounted, together with the sheriff and his companion, the sheriff proposing to show the travelers the way out of the country, and well on toward Pensacola.

Meantime, Perkins was left to his fate in the cold. Finding toward morning that the sheriff apparently did not intend to return, Perkins made his way to Fort Stoddard by a rapid ride to the river, where he obtained a boat, and engaged a negro to row it down the river. The fort was reached about daybreak, Perkins notified Captain Gaines, the commander, of all that had taken place, and at sunrise, a troop were in their saddles, following Gaines and Perkins toward the road leading to Pensacola. About nine o'clock they met the three men on horseback—Burr, his companion, and Sheriff Brightwell. They were in fine spirits, and were chatting in a jocular way, when suddenly they were confronted by a troop of government cavalry. Burr at once recognized Perkins as the young man to whom he had talked the night before in the village of Wakefield. Then came a juncture.

BURR'S ARREST

With the glance of his eagle eye, Burr took in the situation at once, and in a moment was prepared for it. Captain Gaines saluted him, and asked if he had the honor of addressing Colonel Burr. Polite as the salutation was, Burr feigned great indignation in denying the right of a stranger to ask a question so impolite, of a traveler on the highway. Gaines cut short the tactics of the occasion by saying: "I arrest you at the instance of the Federal Government." In a burst of indignation, Burr again demanded to know his right and authority to arrest a traveler going in pursuit of private affairs on the public highway. In a perfectly cool way, Gaines replied that he was an officer of the army in possession of the proclamations of the governor of Mississippi, and of the President of the United States, directing his arrest. Burr reminded Gaines that though he was an officer, he was young and inexperienced, and might not be aware of the responsibility incurred in arresting strangers, to all which Gaines replied that he was willing to assume the responsibility, and would do his duty.

Heated by the obstinate coolness and evident determination of the young officer, Burr began to denounce the proclamation, as expressions of resentment and of malevolence, without justification, and resumed his advice of warning to Gaines of the hazard he was incurring by an undue interference of strangers on a public road. With iron coolness, Gaines ended the colloquy by telling Burr that his mind was made up, and he wished to treat him in a manner becoming his high office as vice president of the United States, all of which would be duly respected so long as Burr conducted himself becomingly, but that he would have to take him a prisoner to Fort Stoddard. Burr sat, and his eyes blazed while he looked at Gaines. Without further ceremony, Gaines moved with an order to his men, and Burr submitted.

The conduct of Sheriff Brightwell was never explained. He had left Perkins the night before on the edge of the road some distance from the Hinson home, did not arrest Burr, and was now on his way with Burr to Carson's Ferry, on the Tombigbee, to enable Burr to get to Mobile and make his way

to Pensacola. Was the sheriff awed by the commanding presence of the distinguished man, unduly persuaded, thrown off of his guard by seductive and misleading logic, or was he influenced by the fact that his kinsman, Colonel Hinson, had some months before met Burr at Natchez, was charmed by him, and had invited him to his home to spend some time, or was there a bribe involved in the transaction?

Burr was taken to Fort Stoddard, where he was intent on making himself most agreeable by his courtly manner and pleasing address, and whiled away the days playing chess with Mrs. Gaines, the wife of the man who arrested him, and the daughter of Judge Harry Toulmin of Mobile. Burr was especially intent on showing every possible kindness to a brother of the commander at the fort, which brother was an invalid. Indeed, he won the hearts of all by his affableness and cheeriness of disposition.

Meanwhile, preparations were on foot to convey the noted prisoner to Richmond, Va., for trial. When the arrangements were completed, Burr was sent by boat up the Alabama River, along the banks of which curious crowds had gathered, to catch a glimpse of the notorious captive, among whom were many women, who when they saw him a helpless prisoner, some of them burst into weeping, and one of them was so fascinated by his manner and conduct, that she afterward named a son for him.

At a point called "The Boat Yard," Burr was consigned to the care of eight selected men, who were to escort him across the country on horseback to Richmond for trial. Two of the guard were of the federal cavalry, all were cool and determined men, and the guard was placed under the command of Nicholas Perkins, the young man who had procured his arrest.

Burr was dressed in the same garb which he wore when arrested, a round-about homespun coat, a pair of copperas trousers, and a sloughed beaver hat, once white, but now very dingy, which drooped at points, and a pair of dainty boots. A gaping crowd was present to see the departure, and as Burr mounted his horse to ride away, he lifted his hat in a manner so graceful as to waken a rousing cheer. He rode the same horse on which he was captured, and his equestrian appearance and qualities were superb. A tent was provided for his comfort, and at night while it was closely guarded, and while the wolves howled in the neighboring woods, he would sleep with all

the comfort that a camp could afford. The party passed up through the counties of Monroe, Butler, Montgomery, thence to the Chattahoochee. The two federal soldiers rode closely beside him, and when entering a swamp, the entire party would gather close about him.

Among the incidents of the journey was that of a tavern-keeper just beyond the Chattahoochee, who on learning that the party, which had stopped at his rural hostelry for the night, had come from the region of the Tensas, quizzed his guests with many questions, and to the embarrassment of all, turned his loquacity toward the rumor that had reached him of the arrest of "that dangerous scoundrel, Aaron Burr," and wished to know if they knew anything of it. All present dropped their heads in confusion, but Burr, who fixed his flashing eyes on the garrulous fellow, and when the innkeeper began his denunciation of Burr, saying what he would like to do for him if he could "lay eyes on him," Burr straightened up with his full of fire eyes and said, "I am Aaron Burr, now what'll you have?" The tavern-keeper vanished in a moment, and his lips were hermetically sealed till the party left, while his attentions were most profuse.

Burr made but one effort to escape. In South Carolina, where lived his son-in-law, Col. Joseph Alston, who was afterward governor of South Carolina, Burr felt that he was somewhat known, and one afternoon late, as the squad approached Chester Courthouse, and was passing the tavern, where a large crowd was gathered, Burr leaped from his horse, and exclaimed, "I am Aaron Burr, gentlemen, under military arrest, and claim the protection of the civil authorities." Perkins and several of the guard dismounted, and ordered him to remount his horse, which he defiantly declined to do, when Perkins threw his arms about him and flung him into his saddle, and the party galloped away. The crowd looked on with wonder, and to them it was only a strange proceeding of a prisoner under guard who was seeking to escape, and the sensation turned out to be merely momentary. A vehicle was bought, Burr was placed in it with a guard, and no further trouble was had to the end of the journey.

A DREAM OF EMPIRE

The fall of Napoleon at Waterloo, created consternation in the ranks of his adherents. In rejoining him after his return from Elba, they had staked all on his attempt to regain the empire. When he fell, his supporters were in a worse plight than was he. A number of the best were shot, among them Marshal Ney, while many others fled penniless to different parts of the earth, among whom was a large and respectable body who came to America. These included Marshal Grouchy, who was charged with being the occasion of the defeat at Waterloo, and others whose names will appear in this narrative. This body of refugees sailed for America, where they hoped to build a miniature empire in a remote quarter of the American continent, with such construction that while they would be able to imitate their life in France, by having their own local laws, they would at the same time bring themselves into practical conformity to the constitution of the United States. We shall see how fully their dream was realized.

Once in America, they elicited the aid and co-operation of a Dr. Brown, of Kentucky, who had spent much time in France, knew the French people, and was endeared to them. Dr. Brown acted as an interagent between the French and the Federal Government in the introduction of the cause of the refugees. That which they sought was the utmost confines of western occupation, for two reasons, one of which was because of the cheapness of the land, and the other was because of its segregation. At that time the Tombigbee was that western boundary. Here was to be established a new France, with its growth of olive trees and grape vines. To the ardent French this was a rosy dream, and on these western borders they saw in vision, mansions and palaces, spacious grounds, and the affluence of gay society to which they were accustomed in their own brilliant capital on the Seine. Dreams like these heartened the host and eclipsed all care and worry, and banished the prick of ills to which they were destined to be subjected. Arriving at Philadelphia, they lingered for many months during the negotiations with the American Government for a domain of land on the distant Tombigbee. They commissioned a French statesman, Nicholas S. Parmentier, as their agent to consummate the plan. There was accordingly

adopted a bill by the American congress in March, 1818, granting to these refugees four townships fronting on the Black Warrior River, in the present County of Marengo. This land was sold at \$2 an acre, payable within fourteen years, provided the olive and the vine were produced. The land was divided by themselves, as a stock company, each one of the three hundred and fourteen families taking quantities of from eighty to four hundred and eighty acres. In contemplation of a town to be built, there was assigned additionally to each head of a family, a lot within the proposed city, and one on the suburbs.

With this arrangement completed, the novel colony was to sail at once and occupy it. Accordingly a schooner, the McDonough, was chartered to convey the company, numbering about one thousand five hundred in all, to Mobile, when they were to make their way up the river to their final destination. With their varied household effects, the vivacious French set sail from Philadelphia in April, 1818, and for more than a month, slowly sailed down the coast of the Atlantic.

During the following May, late one afternoon, Lieutenant Beal, the commander of Fort Bowyer, near Mobile, saw in the distance, a vessel wrestling with a gale which was sweeping that quarter of the sea. Through his glass, the commander could see the direction in which the vessel was bearing, while sorely tossed by the wind, which was blowing at a fearful velocity. The captain of the McDonough had a chart which was out of date, and Beal saw that the vessel was heading rapidly toward danger. He fired a cannon as an alarm gun, hoping thereby to arrest the erroneous course of the vessel. The day was now far advanced, and darkness settled over the face of the sea. Beal took the precaution to erect lights along the shore, and some time after night, he heard the signals of distress from the unfortunate McDonough.

While the wind was still very high and fierce, Beal did not think that the vessel should be left to its fate, and called for those who would volunteer to go with him in as large boat as they had at command, to the rescue of those on the vessel. The McDonough had struck, and was lying in the thick gloom at the mercy of the waves, in the sand into which an obsolete chart had directed the captain. Accompanied by five brave men, Beal plunged into the darkness with the boat, and guided by the dim lights of the vessel, he was

enabled to reach it somewhat after midnight. Everything on board the vessel was in commotion, as every fresh wave threatened to engulf it, but Beal coolly proposed to save, if he could, the women and children, whom he crowded into his boat and set out on his return toward the fort through the dense gloom. After much struggle the boat was safely brought to the fort, and the women and children were saved. Luckily the vessel was later released by the waves from its perilous condition in the sand, and in the early morning was washed into deeper water, and though crippled by the accident, was saved, and in due time pulled into port at Fort Bowyer. There was great glee and sport among the French after it was all over, as they would joke each other with that which happened. They soon forgot the seriousness of the situation to which they were only a few hours before exposed, and gave themselves again to jollity and song.

In expression of their just gratitude to the brave lieutenant who had been the occasion of so much timely aid, they proposed to take him with them to Mobile, and give him a banquet. This was accordingly done, vivacity ran high amidst sparkling wines and merriment unconfined, and the gay throng in the banquet hall little resembled a colony driven by disaster from their native land, and so recently exposed to death.

At Mobile, the McDonough was dismissed, and plans were at once adopted to provide flatboats and barges to convey the company up the winding Tombigbee to their future home among the wilds of Western Alabama. Of their future experiences we shall hear later.

THE TRIP AND SETTLEMENT

It was a gay and mirthful throng that was gathered on board the rough flatboats, at the wharf of Mobile, on the morning of the departure of the French for their settlement far up along the Tombigbee. One would have thought that it was a huge picnic party instead of a people fleeing from oppression, with all the novelties of an untamed region to be grappled with. Distinguished French generals were among them, men who had for years shared in the bloody campaigns of Napoleon. There were also eminent men of science, educators, merchants, and statesmen, with their wives and children. The delicate French women still wearing their Parisian styles, and beautifully dressed children, young men and women, and a few servants constituted the multitude now slowly pulling out from Mobile for a long and torturous trip up the river. More incongruous conditions can scarcely be imagined.

In those primitive days before the use of steam, the barges had to be heavily dragged against the upstream current by the use of long poles planted into the bank of the stream from the stern of the vessel, while at the same time long poles with iron beaks were used from the bow, by being fastened to trees or projecting rocks. The proceeding was torturous enough, but nothing dampened the ardency of these effervescent French, and every incident was turned into a fresh outburst of jollity, and seriousness was tossed to the winds.

At night, they would build their campfires on the bank of the river in the edge of the primitive forests, and after the evening meal, the violin, guitar and the accordion would be brought into requisition to repel dull care, and regale themselves on the tedious passage. The wild flowers were in bloom, and the early fruits were already ripening in the woods, and not infrequently the company would stop at some inviting point and spend a day picking flowers and fruits, romping the woods, and frolicking.

Thus wore away two or three months during which they were making their way from Mobile to the present site of Demopolis. They were not without

competent guides, of course, to direct them to the point of their future homes on the wild prairies, and when the junction of the Tombigbee and the Black Warrior was reached they landed on the white, chalky banks to begin life on the frontier. Along the bank for some distance were strewn their household goods, of every conceivable article—oval-topped trunks with big brass tacks, carpetbags, chests of divers colors and of varied size, bundles carefully wrapped, demijohns, military saddles, swords, epaulettes, sashes, spurs, bandboxes, violins, guitars, and much else that made up the medley of more than three hundred families, who were about to enter on a wilderness life on the prairies of West Alabama.

They had provided themselves with a few tents, which were promptly brought into use, while improvised habitations were at first constructed of the tall canes which grew wild along the river, and of the lithe saplings cut from the clumps of trees which dotted here and there the prairie over. The prairies were now in their floral beauty, while the young, tender cane was just springing, undermatted with luxuriant grass, with here and there a dash of wild strawberries. In dry weather the surface of the land was flinty with abounding fissures, while during the rainy season it was converted into a soft, waxy, black mud. These bright and pretty French women, used to the gilded salons and festive scenes of Paris, found a complete reversal of conditions in this wild and inhospitable region, but their native joviality never forsook them. Novelties and mistakes were turned into laughter, and roughness into cheeriness. They would promptly adjust themselves to conditions, and would meet them with burst after burst of jollity. They shared in the sentiment expressed by the trivial John Gay, who wrote:

“Life is a jest, and all things show it,
I thought so once, and now I know it.”

Donning their dainty garbs, these unconquerable French women did not hesitate to cook, wash, iron, hoe in their gardens and yards, or join their husbands in efforts of a more serious nature, in tillage, and in the erecting of log houses. Their lightness of heart was a cordial in the conditions of actual gloom which sometimes confronted them, but they would never repine, and would decline to take conditions seriously.

The personnel of this novel colony was most interesting. Marshal Grouchy was classed by them with that segment of society called by Mr. Roosevelt "undesirable citizens," because of the affair at Waterloo, and was left behind in Philadelphia, though he was one of the allottees of the land procured, but got another to occupy it for him. The stigma of the defeat of Waterloo was his, and this made him most unpopular. But Count Desnoettes, who was a cavalry general in Napoleon's army, and a great favorite with the Emperor, was of the colony. Napoleon loved Desnoettes because of his fighting qualities, and because of his exceeding attractiveness of person. He accompanied Bonaparte on the memorable retreat from Russia, and when the French officers were gathered at Fontainebleau, on the eve of Napoleon's departure to Elba, and all were weeping, he embraced Desnoettes, saying that he would avail himself of this means of bidding all farewell.

Penier was a distinguished statesman; Colonel Raoul was a distinguished cavalry fighter, who had accompanied Napoleon in his exile to Elba, and afterward led the advance guard on the return of the Emperor to France after escaping from his island imprisonment. Madame Raoul was a handsome Italian woman, a native of Naples. Cluis was one of the aids of Marshal Lefebvre; Chaudoin was a French poet of note; Clausel was a count; L'Allemand was a lieutenant general of artillery under Napoleon; Lackonel was a savant, who was at the head of the department of education, in the empire, during the regime of Napoleon, together with others of equal note.

All of these notables were once residents of Alabama, and encountered the conditions of pioneer life on its western plains. Of some of the ups and downs of this strange colony something will be said in the next article.

LIFE IN THE FRENCH COLONY

One may easily infer from that already said about these peculiar colonists, who settled in the early years of the nineteenth century, at the confluence of the Tombigbee and Black Warrior Rivers, that life under such conditions must have been strikingly novel throughout. It was an attempt to graft an exceptional European civilization, with all its traditional peculiarities of many centuries, into the raw wilderness conditions of western civilization, and to preserve intact, the customs of the gay Gallic capital of Europe, on the prairies of black mud in Alabama. The log huts which lined the streets of primitive Demopolis, were made as nearly palaces as they well could be, and the streets themselves were lighted at night, in imitation of the French capital. It was a play doll performance, as pathetic as it was patriotic and loyal.

The French founded and named Demopolis “the city of the people,” seeking thus to blend a miniature Paris with democratic sentiment. In vain did these people seek to grow the olive and the vine in an unfriendly soil, and the attempt was gradually abandoned, and by every possible makeshift they eked out a bare subsistence. In a fertile soil, vegetables and corn were easily grown, and with these and with such supplies as they could get from the game of the woods, they struggled on against odds. They were not without annoyance from the Indians, and more from the American settlers who were now beginning to come into that quarter of the Alabama territory. These latter would entrench on the lands of the French which gave rise to much friction, and an agent had to go to Washington to sue for protection against such invasions. This occasioned opposition to the “furreners,” as the French came to be popularly called, in the neighboring log cabins of the American squatters.

As an indication of the extremity to which the French were reduced, Colonel Raoul, a large, handsome and dignified cavalry officer in the Napoleonic army, had to establish a ferry on the river to convey travelers from one side to the other, while his beautiful queenly wife sold gingerbread and persimmon beer on the bank, at the ferry. With her delicate

jeweled fingers she would manufacture these crude refreshments, and with much grace serve them to the rude pioneers.

Years afterward, when Raoul had been restored to the confidence of the French government, and was occupying a lucrative position in Paris, after serving for some time in the Mexican army, he was visited by John Hurtel, who was also one of the French colonists, but now a prosperous merchant in Mobile. Intimate and even affectionate as friends, Colonel Raoul gave a dinner to his Mobile friend, and invited to the banquet many of his distinguished Parisian friends. To a group, Raoul was relating his pioneer experiences as a ferryman, which all laughingly doubted, when Raoul called to Hurtel, in another part of the room to join them. He then asked Hurtel what he (Raoul) did at Demopolis. He replied that he kept a ferry. "And what did the madame do?" asked Raoul. "Sold ginger cakes and simmon beer," said Hurtel, all of which was greeted with roars of laughter.

As an expression of devotion to his imperial sovereign, General Desnoettes built a shanty near his log cabin, which shanty he called his "sanctuary." In the center of this humble museum stood a bronze statue of Napoleon, encircled by relics of war captured by Desnoettes—swords, pistols, spears, spurs and saddles—while in graceful folds about the walls hung the captured banners. The customs of the people were often as grotesque as they were pathetic. After days of struggle and labor, the evenings would be spent in music and dancing in the log cabins, or else along the narrow grassy streets of the village would resound, till a late hour of the night, the notes of musical instruments. The great generals of a hundred battles preserved their military dignity and conventionalities while working with might and main in their laboring garbs, with their broad-brimmed hats flapping about their heads. Every stranger would be greeted with the military salute, no matter who he was.

In compliance with the requirements of the territorial laws, every male citizen of a given age, had to meet statedly at some point named by the commanding militia officer, to drill. From this the French were not exempt, and these experts in military science were compelled to join in the ranks of the rough and tumble yeomanry on the muster ground, and go through with the rude evolutions known to them from the days of their cadetship.

These were the days of the country grocery, and of the crossroads grocery, which were inseparable from the muster ground and the rural drill, and their presence meant fisticuff fights, gouged eyes, broken noses, and dislocated teeth. There was not the best feeling toward the “furrener,” at any rate, and there was a disposition in this region especially, to provoke him to difficulty. It is related that on one occasion a bully under the sway of liquor, sought a difficulty with one of the French, which ended in the Frenchman being knocked down and jumped on by the rough militiaman. The poor fellow knew not a word of English, and he cried in his extremity for “enough” the French word “bravo,” which he knew had something to do with fighting. He repeatedly yelled “bravo” with the hope that some one would pull off his assailant, but the assailant interpreted it to mean an expression of defiance, and was brutally pommeling the Gaul. Some of the by-standers properly construed the meaning of the Frenchman, from the tone of his appeal, and pulled the ruffian off.

In the geographical names of that region—Arcola, Agleville (Eagleville), Linden (Hohenlinden), and Marengo, not to mention Demopolis—one finds the evidence of the past occupation of the French. During the first year or two, a number of other French came from France and joined the colony, but the object which they had in view, failing, that of raising grapes and olives, the colony gradually dissipated, the emigrants going in different directions, and in Mobile and New Orleans, as elsewhere, may be found the descendants of some of these original colonists, still bearing the names of their ancestors of almost a century ago. Long after the occupied domain had been abandoned, there could be seen in the waxy mud in the region of Demopolis the imprints of the delicate shoes of those Parisian women.

PRIMITIVE HARDSHIPS

Few are aware of the extremes to which the earliest settlers of Alabama were reduced in their migration from the old colonies to this region, while it was yet a territory. It may be said that the original stock of Alabama settlers was generally of the best type of Anglo-Saxon manhood and womanhood. Inherently, they had no superiors on the continent. They are not to be thought of as adventurers, restlessly migrating to a new region with a dissatisfaction which sought relief in the mere act of moving, for adventurers would never have undergone that which was experienced by these fathers, in pitching their homes in a wilderness infested by savages and wild beasts. The fact that they did that which was done, labels the type of character of these original commonwealth builders.

Back of their migration from Virginia and the Carolinas, from which most of the original settlers of Alabama came, lay a fact which largely influenced their removal. The new republic was still in course of construction. The revolution had left a chaotic condition in the older colonies, and men of sturdiness conceived the idea of going far westward, where they could create new conditions, and build for the future. They were not unprepared for the privation that was to be encountered, nor altogether unapprised of it, but in the face of these suspended difficulties, they were nerved by genuine Caucasian grit. A number of solid and substantial folk would get together and agree to removing to the west, with a common understanding of general sharers in a common interest, thereby procuring a sense of sympathetic protection, traverse the wide distance, occupy a given community in a fresh territory, and rear their fortunes together.

The most ordinary conveniences were scarce, utensils and tools hardly to be had, shoes and clothing scant, methods of conveyance rude, and thus to the utmost extremity were these original founders of Alabama reduced. The dependence for transportation was a few horses and oxen, which were employed in common by a body of hardy colonists. On the horses were placed the women and children, on the oxen the scanty household effects; the stock was grouped in a common herd, cattle, swine and sheep, to be

driven on foot by the men and boys, each of whom was supplied with a gun or an implement, and thus would they begin their march to a region of which they knew nothing, save that it was without population, densely wooded and with no other denizens than those of Indians and of ferocious beasts.

Even where roads and bridges were encountered on the way, they were crude, and west of the confines of Georgia, the wilderness was untraversed save by the wild savage, whose slender paths wound the forests through. So far as these pathways were available, they were used, but oftener than otherwise these plucky pioneersmen would have to hack their way through the forests, opening paths as they slowly went. Regarded from this point of time, there was a ludicrousness in these primitive shifts, but men and women were never more serious than were these old-fashioned mothers and fathers. They were the rough germs from which sprang a civilization unsurpassed in its elements in history. Wives, mothers, and daughters, bare-headed or wearing the old fly bonnet, were mounted on poor horses, with children on their laps, or clinging on from behind, while dangling on either side of the burdened beast were packages which contained the most of that which they possessed in this world. In advance, men with axes would rapidly hew away the underbrush for a bare passage, while the bleating herd would follow, driven mostly by the larger boys. The smaller streams were waded, while in order to cross the larger streams, rafts were constructed, the timbers of which were held together by the native vines, while such of the animals as could swim were forced to do so.

There was a flow of cheer and jocularity which served as a condiment to hard conditions, and when the camp fires were lighted, the stock fed on the native grasses, and supper was eaten, men chatted and smoked, sang and told jokes, while the industrious wives and daughters would ply their knitting needles. By turns the camp was guarded against possible contingencies for the night, and the next morning the same arduous march would be resumed.

The destination finally reached, the struggles against difficulties would begin in earnest. Boundaries of chosen land would be indicated by cutting belts about the trees with a peculiar, personal mark, and then await the future for full legal possession. In the construction of temporary homes,

colonists would vie with each other in the ingenuity displayed. The method most common was to select trees as corners of the dwelling, and then wattle saplings among those intervening from corner to corner, while the roof was made of bark and the skins of wild animals. The cooking was done without, in one or two small utensils. The grounds about were cleared of the underbrush sufficiently to be planted, which was commonly done with wedge-shaped rods being thrust stroke by stroke into the rich soil, the seed dropped, and covered with the foot. As for meat, there was slight difficulty, as deer, turkeys and squirrels were abundant. Shoes and clothing would soon become matters of grave concern, but the deficiency would be met by the appropriation of the hides of animals, from which grotesque garments would be made, while the feet would be wrapped about with strips of just sufficient size to cover them, the fur being turned inward, and held by strings tied about each foot. The fortunate possession of a pair of good shoes was an object of neighborhood envy. Objects so valued and prized as were real shoes, were worn only on special occasions. It was a custom long after the original settlement of Alabama, for many to take their shoes under their arms, in going to church, and just before reaching the place of worship, to put them on. Shoes that creaked were specially prized, as they would attract attention.

Small water mills came to be erected, and it was not unusual for one to take his corn on his back the distance of twenty miles in order to have it ground. This meant an absence from home of three or four days at a time. From the earliest years of the century just gone, these conditions continued in parts of the interior of Alabama till 1815 and even later. The battle of New Orleans meant much for what was then known as the southwest, of which Alabama was a part. Not a few of the future distinguished families in the history of the state, emerged from conditions such as here have been described. From straits of poverty, they came to be among the most wealthy of the state.

LAFAYETTE'S VISIT

In April, 1825, when LaFayette visited Alabama, the state was about six years old. Conditions were still very crude, there being but few roads, and they bad enough in a wet season; but few villages existed; the country was sparsely settled; the Indian was still in the land, but was now subdued and peaceable, and a few boats plied the waters of the rivers. Israel Pickens was then governor, and it was through his patriotic enterprise as a wideawake governor, that LaFayette was induced to turn aside from Augusta, Ga., and make the overland trip to Cahaba, the new capital of Alabama, instead of going to Charleston to take a boat to New Orleans.

LaFayette was now about sixty-eight years old, but he was still vigorous and active, and so far from a tour through a region largely wilderness, deterring him, he was really anxious to take it. As he came westward from Augusta, conditions grew cruder, but every possible provision was made for his comfort. For months together, he had been in the country as its guest, and the character of the receptions varied in every respect save one—the cordiality of the people which was unbounded.

The American congress had extended to him a formal invitation to return to America on a visit, the invitation being impelled by a double motive, that of showing the revolutionists of his own land, to whose vengeance LaFayette had fallen a victim, because of his democratic principles, that America was his loyal friend, and that of enabling a new generation of Americans to express their gratitude to a patriot of France, who had spilt his blood in behalf of the independence that they enjoyed. From the moment that he landed on our soil, throughout, his tour was a triumphal journey, and he was hailed with a universal tumult of honor and praise. He was comparatively a poor man because of principle. Though the possessor of vast estates in France, they were forfeited, or in plainer language, were confiscated by the government of France, because of his republican principles. The American congress voted him \$200,000 in gold, and a township of land. He was deeply moved by the gratitude and love of the young nation, and often in speaking in response to welcomes accorded, his voice would tremble with

emotion. It may be said, in passing, that at the one hundredth anniversary of the battle of Yorktown, in 1881, in which battle LaFayette shared, a representative of his family was present as the guest of the nation.

When LaFayette reached Washington, in 1825, there was accorded him an ovation that was almost overwhelming. From long distances the common people had traveled, some coming on foot, others on horseback, in ox carts, wagons, carriages and every way, men, women and children, to catch a glimpse of the great ally of Washington, and patriot of the revolution, and all about the city on the outside were their braying mules, neighing horses, and lowing oxen in the midst of an unbroken encampment formed by the country folk. In crushing multitudes they thronged about LaFayette, in genuine democratic style, seeking to grasp his hand, a demonstration that was as much enjoyed by LaFayette as by themselves. Henry Clay was then speaker of the house, and his speech of welcome to LaFayette is one of the most splendid bursts of oratory that ever came from his musical lips. The reply of the distinguished Frenchman did him great honor. It is a pity that these great deliverances are buried in old and musty books of which but little is known. Wherever LaFayette appeared in Washington, the unrestrained multitudes would rush frantically toward him as though they would devour him.

From Washington he planned his trip southward and westward, or toward the great Southwest, as Alabama, Mississippi and Louisiana were then called. In making his dates, in advance, he knew practically nothing of the nature of the country, nothing of the difficulty of travel, so that by the time he reached the eastern border of Alabama he was several days behind time. So far from delay cooling the ardor of the people, it had just the opposite effect. The interest deepened, widened and seethed meantime, and his announced coming into a given region absorbed all things else. Even the Indians of Georgia and of Alabama were seized by the contagion of enthusiasm, and while knowing little or nothing of LaFayette or of his career, they learned that he was the friend of Washington, and a great warrior, and so joined with native ardor into the excitement of his reception. A body of painted warriors with varied and gay plumage, and with bodies stained in divers colors, and wearing red and striped blankets, insisted on becoming a part of his escort through Georgia, and cherished the privilege of serving him with the most minute servility. There is a good side to

humanity always, if we only reach it. To the Indians it was a special delight to shoot down an occasional buck on the way, and to present it to the polite Frenchman between whose cultured conventionality and the rude but touchingly sincere kindness of the Indian, there was an amusing difference.

With great effort and sacrifice, Governor Pickens had made every arrangement possible for as august demonstration as the young state could give to the eminent guest of the nation. His plans were perfect in every detail, for he was an executive master, as is shown by the correspondence in the possession of the present writer, between him and the militia commanders, as well as with the civil authorities and prominent citizens. The chief difficulty seems to have been to raise a fund sufficient for a demonstration worthy of the great French patriot, for money was exceedingly scarce in those infant days of struggle, but Pickens was indefatigable, and he had a way of accomplishing whatever he set his hands to. Fortunate for Governor Pickens was the delay of LaFayette, as this enabled him to execute more to his satisfaction the vast and difficult plans relating to the series of receptions along the triumphal march of LaFayette through Alabama. For days together, LaFayette was lost to the public eye as traversing the wilderness he was lost in its depths, making his way as best he could from the Savannah to the Chattahoochee under the protection of the Georgia escort of militia and painted Indian warriors. The correspondence shows that he could not be heard of for days together, but on the banks of the Chattahoochee the provided escort waited, day after day, till he should appear. He at last came within sight and the demonstration began, and novel enough it was. Of this we shall learn more in the article next succeeding.

LAFAYETTE'S RECEPTION

Large barges were in readiness to convey the party across the Chattahoochee to the Alabama side, where was gathered a multitude of distinguished citizens, a troop of Alabama militia under General Taylor, and a body of Indian warriors in their native attire, who seemed more enthusiastic than the others. As the barges glided toward the bank, the Indians raised yell after yell, and rushed to the edge of the water to receive them. They were under the command of Chilly Mackintosh, or Little Prince. So soon as the barges were arranged for landing, the Indians dashed on board, unhitched the horse from the sulky that bore LaFayette, each vying with every other to render the promptest service, and drew the vehicle to the top of the steep bank with every indication of delight.

When all was over, speeches of welcome and the response were in order. Here LaFayette met a former aide of his, who had served him during the Revolution, as a young man, but now somewhat advanced in life—Rev. Isaac Smith, a Methodist missionary to the Indians. LaFayette recognized him, and gave a warm and affectionate greeting. In the exuberance of his zeal, the missionary begged that they bow in prayer. There under the tall trees of the river's bank the party bowed in solemn prayer, LaFayette and the Indians joining, and with uplifted voice, Mr. Smith prayed the blessings of heaven on the great patriot. The Indians intent on showing their interest proposed to have a game of ball for the entertainment of LaFayette, after which Mr. Smith invited him to his humble home, where they recounted to each other the scenes of their lives since they parted at the disorganization of the army, about forty-three years before.

After a season of rest, LaFayette started with the cavalcade along a road which led through an uninhabited region for almost a hundred miles, he riding in a fine carriage drawn by four beautiful grays, and attended by the uniformed state soldiery and the Indians, who proposed to see him safely through their own territory. So complete were the arrangements made by Governor Pickens, that at proper intervals, along the dreary and

monotonous way, there were the amplest provisions for refreshments, of food, shelter, and rest.

At Line Creek, twenty miles from the village of Montgomery, the limit of the territory of the Indians was reached, and here they took formal leave of LaFayette. Their chief, the Little Prince, made a stirring speech to LaFayette in his native tongue, not a word of which did LaFayette understand, and guided solely by the gesticulation and facial expression of the chief, the old patriot replied in English, not a word of which did the Indians comprehend. With much ceremony they shook hands with LaFayette, and quietly turned on their march to their homes in the woods.

At Line Creek, the ranks of the cavalcade were largely reinforced by the addition of a fresh installment of troops and of many distinguished citizens, who had made their way across the country from different directions, in order to share in the demonstration. Once within the confines of civilization the journey to Montgomery and beyond was relieved by the cultivated fields of the white man, now in the bloom of young and promising crops, and the homes of refinement dotting the country over. This was a great relief to LaFayette, who had been buried for almost a week in the depths of an uncultivated wilderness. The improved roads enabled the procession to make greater speed as it moved toward the village of Montgomery.

On a range of hills about two miles from the village, arrangements had been made for the cavalcade to halt for the formal reception to be given by the governor, who had come from Cahaba to meet the distinguished guest at that point. On each side of the road was a large, snowy-white tent, between which, over the road, was an arch of beautiful artistic construction, beneath which stood Governor Pickens and his suite awaiting the arrival of the eminent guest. When the carriage which bore LaFayette halted under the arch, Governor Pickens advanced to greet him, and after a mutual introduction, the governor proceeded to extend the courtesies of the new state, in apt and well-chosen terms, for which he was remarkable, and was followed by the reply of General LaFayette, in phraseology just as happy. This was followed by a sort of improvised reception on the spot, when the distinguished citizens of the state were presented to LaFayette one by one. In the meantime, the ladies who had come to assist in doing honor to the occasion, remained in the tents, and the governor taking the arm of the great

guest, led him into the tents and introduced him to the ladies. This occurred at noon on Sunday, April 3, 1825, and immediately after these initial ceremonies were over, the procession again took up the line of march for the village of Montgomery, LaFayette now being taken in the carriage of Governor Pickens. A band of music attended on the procession, the notes of which were mingled with the acclamation of the multitude, the volume of sound increasing as Montgomery was approached, as fresh accessions were made to the procession. Every object that could create noise and din was brought into use, among which were the detonations of powder, which in the absence of guns was confined in such a way as to cause a loud explosion, and bells of every size were rung, the people seeming determined to make up in noise the deficiency of population, for at that time Montgomery was nothing more than a small town.

Once in the town, the most sumptuous quarters possible were placed at the disposal of LaFayette and his party, and though he was fatigued, the people pressed in to greet him. LaFayette and the governor dined privately together, and in the evening attended together divine service.

Monday brought to LaFayette a busy day. Citizens had come from every quarter of the state to shake his hand, among whom were some old veterans who had served under him in the campaigns of the Revolution. His eye kindled at the sight of a Revolutionary soldier, and his greeting was always one of the most ardent affection. He must need have a brief off-hand chat with every old soldier that came in to see him. A busy day was followed by a ball given in honor of the eminent soldier and patriot. This lasted till 11 o'clock at night, when a procession was formed to escort him to the river landing, where three small steamers were in waiting to take the party down the river to Cahaba—the Henderson, Balize and the Fanny.

The next article will conclude the account of the notable visit of LaFayette to Alabama.

LAFAYETTE'S DEPARTURE

As one now goes up Commerce street, Montgomery, from the railway station, he will find about midway between the station and the Exchange Hotel, on the right side of the street, a bronze tablet in the wall on which is inscribed this valuable bit of historic information: "On this site stood, until December, 1899, the house in which Marquis de LaFayette was given a public reception and ball, April 4, 1825, while on his last tour through the United States. This tablet is placed by the Society of the Sons of the Revolution in the state of Alabama in lasting memory of this illustrious patriot and soldier of the Revolution, the friend of Washington and the youthful champion of liberty. April 4, 1825-April 4, 1905." On the same tablet appears the figure of LaFayette with the accompanying dates of 1776 and 1883, and beneath appear the words, "The Sons of the Revolution." While our people have been generally negligent of the preservation of notable spots, it is an occasion of gratitude to the Sons of the Revolution that they have so thoughtfully saved this site from utter obliteration.

Resuming the narrative where it was left off in the first article, with respect to LaFayette and the large escort that accompanied him on the boats down the river, the flotilla reached the village of Selma the next morning, where a stop was made to enable an eager multitude who had gathered from different and distant directions, to catch a glimpse of the illustrious guest of the nation, and to grasp his hand. The stay was necessarily brief, for the boats must steam rapidly on to Cahaba, where the people of the new capital were eagerly waiting to extend to LaFayette a really great welcome.

The sight of the boats coming down the river was sufficient to raise from the throats of the assembled multitude on the bank of the river, a loud acclamation, attended by the waving of handkerchiefs, hats, umbrellas, and banners, accompanied by the loud booming of guns and the ringing of bells. It was difficult for LaFayette to descend the gangway, so eager were the people to reach him and take his hand. Once on shore, and Mr. Dellet, who was charged with the task of extending the speech of welcome, delivered his speech, which was fitly responded to, when a long procession was

formed, which marched to the courthouse, which was tastefully decorated throughout, and a formal reception was held. This being over, a sumptuous dinner was in readiness, and, after dining, LaFayette was allowed a few hours of respite. After refreshing himself by sleep, he appeared again, and the ingenuity of the people seemed to be exhausted in the methods devised to do him honor.

His stay at Cahaba was the shorter because he was already several days overdue at other points. Plans had been made for a stop of a day at Claiborne, Monroe County, then one of the largest and thriftiest towns in the state, but which is now practically extinct, but the miscalculation in fixing advanced dates forbade a stay of only a few hours in this bustling little river center. An elaborate ball had been prepared for at Claiborne, in honor of the French hero, but he was unable to remain, and after some hours of delay the boats proceeded southward, bearing the LaFayette party, the governor and his staff, and a multitude of attendants on the several steamers.

The next important point to be reached was Mobile. No place in all his travels exceeded in demonstration that accorded by this Alabama metropolis. The wharves were thronged by the eager crowds, watching for the first appearance of the boats descending the river, and their appearance was the signal for the shouts of the multitude, the ringing of church bells, and the booming of big guns. The usual ceremonies were gone through of speeches of reception and the reply, banquets and receptions, into all of which LaFayette entered with the snap and spirit of a boy. He had been much refreshed and invigorated by his trip down the river, and this unusual amount of rest gave him fresh elasticity. He seemed to throw off all reserve, and yielded himself with abandon to the festivities and gaieties of the occasion. He was no more happy than was Governor Pickens, who was intent on the highest possible expression of hospitality to the national guest, and the more so, because he was so insistent on his coming to the young state. To the credit of Governor Pickens, be it said that there was not a jar or jostle in the elaborate plan and arrangement which he had conceived and executed to the letter, from the time LaFayette set foot on the soil of Alabama till he left it forever.

The stay in Mobile was cut somewhat short for the reasons already given, as New Orleans was on the tiptoe of expectation of LaFayette's arrival. Governor Pickens remained with LaFayette till he left the utmost limit of the state. The finest boat that had yet been built for southern waters, the Natchez, was to convey LaFayette to New Orleans. The Natchez was accompanied by other steamers, which bore the large escort, but Governor Pickens and LaFayette sailed out of the port of Mobile to Mobile Point, where Governor Pickens took affectionate leave of his eminent guest. The separation of these two eminent men was most affecting, as they had become mutually much won to each other. It was agreed that they should continue to correspond so long as both continued alive. LaFayette asked that a copy of the paper containing an account of his visit to Alabama be sent him, which explains the following letter:

"My Dear Sir: According to my promise, I directed a paper to meet you at Pittsburg and again enclose you one herein. This contains but a partial account of our doings when you were with us. You will receive a packet which I have caused to be directed to you at Boston, giving an account at each place where you stopped in your journey through this state, believing that it may be satisfactory to you, or to some of your friends, in giving a reference to the incidents occurring here on the gratifying occasion to our citizens of the young state of Alabama.

"I hope you will have reached Boston by the time you wished, in good health and spirits, after a journey unexampled in our own or any other time; a march so extended, so rapid, and at the same time so triumphant has never been the boast of any personage before, and it is truly a source of common congratulation among the friends of republican institutions and of free social order throughout the world.

"I am too sensible of the fatigues of your late journey, of those gratifying attentions by which you will be surrounded when this shall have reached you, to add anything to them by a longer letter without material to make it interesting to you.

“Hereafter when you shall be enjoying the tranquillity of your own domestic circle, I hope to have the pleasure of corresponding with you in conformity with your kind invitation when I parted with you.

“I am, with sentiments of profound respect and esteem, your most obt.,

“ISRAEL PICKENS.

“General LaFayette.”

This is a literal transcription of the first letter addressed by Governor Pickens to General LaFayette.

OLD SCHOOL DAYS

No change that has come to later times has been more radical than that in our schools. The discipline, management, method of instruction and general spirit of the school have all undergone a thorough transformation. In the early days, the old blue-back speller was a sine qua non in the elementary schools. Its columns and battalions of words, ranging from the least spellable words to those that are octosyllabic and even beyond, all of which had to be learned by rote, made many an excellent speller of the English. The modern method of acquiring ability to spell may be superior, but one who ever mastered the old blue-back was never known to be an indifferent speller. Consigned to the limbo of the junk heap, the blue-back may be, but to master it was to become the possessor of most of the words in common use, and more besides.

In former days the location of a country school was selected with reference to the largest possible patronage, while many boys and girls were forced to trudge the distance of several miles each morning to attend, and return the same distance home every afternoon. The buckets with curved wire handles would contain the dinners of the children of a given family. School periods extended from eight in the morning till four in the afternoon, with three brief intervals of recess during the day. For a well-regulated school, the furniture comprised plain, unpainted seats, none too comfortable, and unpainted desks. Where not so well regulated the seats were of split logs, backless, with peg supporters, and no desks, save that of the teacher, which was used at different times by a given class of students in taking writing lessons from the teacher.

This teacher sat on a platform, which was slightly raised, in order to give him complete oversight of each pupil. Within his desk were securely kept the sinews of discipline in the form of a number of well-seasoned hickories, flexible, tough, and just long enough for faithful execution. These were a source of terror to all alike, for under the nature of the discipline there were no immunes in view of certain infractions.

The rules of discipline were generally harsh, hard and drastic, the very essence of the unreasonable. A pupil failing to spell a given number of words, or to give a given number of correct answers, was straightway drubbed. This was done in a most mechanical way, as the machinery of discipline must, of course, run regularly. Nothing was said, but the teacher would administer the flogging, and go straight on with his other work. The fear of punishment, so far from acting as a stimulus, was a barbarous hindrance. Study was not pursued so much as a pleasure, as it was from fear of punishment.

A “big boy,” one past sixteen generally, was given the alternative of a flogging in the presence of the school, or of downright dismissal. No respect was had for the difference between a laborious, earnest student, who might be slow of acquisition, and one who was bright and quick, though the former might be the solidier of the two, and often was. School was taught according to certain arbitrary rules and not according to the principle of common sense. Most schools were therefore regarded by pupils as terrors, and not as places of mental pleasure. A “tight” teacher, as the rigid disciplinarian was called, was much in demand. Many a pedagogue would lose an opportunity to procure a school because he was “loose,” or, as we would say nowadays, because he was reasonable, and not a ringmaster with his whip. No higher commendation was there than that one would flog even the largest boys. In consequence of this condition in the early school, the teacher was held in almost universal awe, with no touch of congeniality with any pupil.

In all recitations save those of reading and spelling, pupils would sit. The spelling classes were somewhat graded, and, in reciting, would stand in a line facing the teacher, who would “give out” the words to be spelled. Each syllable had not only to be spelled and articulated, but in spelling, each preceding syllable was pronounced, even to the close of the word. If, for instance, the word notoriety was given, the pupil would spell n-o, no, t-o, noto, r-i, notori, e, notorie, t-y, te, notoriety. When it would come to spelling long words, they would be rattled off with a volubility that was often amazing. It was interesting to hear words like incombustibility and honorificabilitudinity spelled after this fashion. As with a vocal fusillade, the pupil would clatter off long words, building each up as he would proceed, the teacher would stand with his head slightly careened to hear it

properly done. Whatever other effect such exercise had, it gave clearness of articulation. If a word was misspelled, it was given to the next student with a "Next!" from the teacher, and if successfully spelled by the one next below him, he would "turn down" the one who failed, or, in other words, take his place in the line, sending the one who failed nearer toward the foot of the class. Like trembling culprits the pupils would thus stand throughout the recitation, and everyone who had missed spelling a given number of words, walked mechanically up to the teacher and took his drubbing. Every class of spellers was only a body of culprits on trial.

One of the choice pranks of those early days was that of "turning the teacher out." When a holiday was desired, and had been previously declined, a revolt was almost sure to follow. A secret conclave of "the big boys" was held, a mutiny was hatched, a fearless ringleader was chosen, the plans were laid, and the time of the real issue awaited. On the morning of the desired holiday, the young conspirators would reach the school an hour or two in advance, barricade every door and window so that none could enter, and quietly await the coming of the teacher. He would usually demand that the house be opened, when the leader would inform him that it would be done solely on condition that he would give them a holiday.

The teacher's ingenuity, tact, or physical strength was often sorely taxed by a juncture like this. It was not an easy thing to handle a half dozen or more determined boys just emerging into manhood, and those whose quiet grudge prompted a desire for a tilt, at any rate, and the teacher must either yield and thus lose his grip thereafter, or take the chance of a rough and tumble with the odds against him. The usual method of settlement was to sound a truce, and compromise on some satisfactory basis. One advantage always lay on the side of the teacher—no matter how stern or severe his method of adjustment in quelling the rebellion, he would have the moral reinforcement of the parents, but it was an advantage that might prove more than a forlorn hope, if he should attack a body of muscular country boys.

Happily, those days are gone, with some slight advantages, perhaps, over some of the present methods, but with immensely more disadvantages. At least, the tyranny and brutality of the olden days have given place to common sense.

THE CROSS ROADS GROCERY

Among the defunct institutions of a past era in the state's history, is that of the country grogshop, which was known in those days as "the cross roads grocery," a name derived from the enterprising spirit of the keepers of such places to locate where the roads crossed, in order to catch more "trade." Many of these country saloons became notorious resorts. These places were the rendezvous of the rustics of the hilarious type in those far-off days. These rude trysting places were the weekly scenes of coarse sports, gross hilarity, and of rough-and-tumble fights. Hither the rowdies gathered from a wide region, drank freely, yelled vociferously, and fought not a little. The monthly muster of the militia was usually in connection with one of these rural institutions, and hither would come "the boys" for an all-day frolic. While squirrel guns and old flint and steel rifles were used in the drill, these would never be brought into requisition when the combats would usually ensue. Shooting and stabbing were far less frequent then than now, the test of manhood being in agility, strength, and the projectile force of the fist. There were bullies, not a few, and when one got sufficiently under way to raise a yell like a Comanche Indian, it was regarded as a defiant banter. This species of "sport" would usually come as the last act of the tragedy of the day.

Among the diversions of the day was that of test of marksmanship. The stakes were usually steaks, or, to use the terminology of the time, "a beef quarter." To be able "to hit the bull's-eye," as the center of the target was called, was an ambition worthy of any rustic. A feat so remarkable made one the lion of the day, and his renown was widely discussed during the ensuing week. No greater honor could come to one than to be able to win a quarter, and "the grocery" was alluded to as a place of prominent resort throughout a wide community. There were also "racing days," which was applied to foot races as well as to horse racing. There was a track for each hard by "the grocery," and in the foot races the runners would strip bare to the waist, pull off their shoes, and run the distance of several hundred yards. Brace after brace of runners would test their speed during the day, the defeated contestant having always to "treat the crowd."

This was varied, in turn, by horse racing day. Two parallel tracks were always kept in order by the grocery keeper for this equestrian sport. Scrawny ponies that had plowed during all the week were taken on the track on Saturday, betting was freely indulged in, the owners would be their own jockeys, and amusing were many of the races thus run.

Still another sport, cruel enough in itself, was that of the “gander pulling.” A large gander with greased neck would be suspended to a flexible limb overhanging the road, and one by one the horsemen would ride at full tilt, grasp the neck of the goose, and attempt to wring it off, while his horse was at full speed. With many a piteous honk, the goose would turn its head here and there to avoid being seized, and it was not easy to accomplish the required feat. A given sum of money was the usual reward to the successful contestant. This cruel sport of more than seventy-five years ago was among the first to disappear from the programme of rural diversions. The reader of “Georgia Scenes” has been made familiar with this sport, which at one time was quite popular.

“Muster day,” which came once each month, was usually one of bloody hilarity. The crude evolutions on the field being over, “the boys” would return to the grocery, and, after being bounteously served several times at the bar, they were ready for the fun, which usually began with a wrestling or boxing bout, in which some one who was unsuccessful would change the scene into one of an out-and-out fray. When temper became ascendant, which was not difficult under the condition of free imbibing, one violent blow would invite another, when the crowd would form a ring around the belligerents, and cries of “Stand back!” and “Fair play!” would be heard on all hands. If one interfered in behalf of a kinsman or friend, he was pounced on by another, and not infrequently as many as a dozen men would be embroiled in a fisticuff battle. Nothing was tolerated but the fist. Not even a stick could be used, though when one was down under his antagonist it was accounted lawful to use the teeth, or even to fill the eyes of an opponent with sand, in order to make him squall. When the shriek of defeat was sounded, the successful antagonist was pulled off, and some one treated him on the spot.

It was by this means that bullies were produced in those days. Sometimes a bully would come from some other region where he had swept the field, in

order to test his prowess with a local bully. Bets would be made in advance, and the announcement through the region, a week or so in advance, would serve to draw an unusual crowd to the scene of pugilistic contest. A ring was drawn in the sand, and while the contest would begin in a boxing exercise, there came a time when it grew into a battle royal with the fists. The champions of different neighborhoods each felt that not only was his own reputation at stake, but that of his community. Bulls on the pastures would not fight with greater fierceness than would these rough rowdies. When one or the other would “give up,” then would come a general disagreement among the boozy bettors, and the entire crowd would become involved in a general melee.

Saturday night usually brought fresh accessions from the neighboring population, and frequently the brawls would last throughout the night. Broken fingers, noses, well-chewed ears, and dislocated teeth usually made up the casualties of the day. Bunged and beaten as many were, they would resume their usual labor during the next week, while the scenes of the preceding Saturday would be the subject of general comment, and the end of the following week would find them again at the grocery.

These groceries, so called, prevailed throughout the South till the opening of the Civil War, during which it is presumed that the belligerently disposed got full gratification on fields of a different type. Among the changes wrought in our social life by the war, this was not among the least. Efforts to revive “the grocery” of the “good old times” after the return of the few from the battlefields of the war, proved abortive, and thus vanished this popular institution in the states of the South.

EARLY NAVIGATION

The rude crafts that once floated our magnificent rivers were crude and primitive enough, and were but a slight advance on the dugout or canoes of the red men. The heavy, clumsy flatboat, propelled in part by long oars used by the hand, and in part by long poles let down from the edge of the boat and by the pressure of the body urged slowly along, and by the use of grappling hooks to pull the boat upstream, were in use far into the twenties of the nineteenth century. These boats were of limited surface capacity, difficult of management, and exceedingly slow. An indication of their sluggish movement is afforded by the fact that in 1819, when Honorable Henry Goldthwaite was on his way from Mobile to Montgomery, to make the latter town his home, he was just three months on the voyage up the Alabama River. With slow movement and noiselessly, these heavy craft would be propelled up the river, and on approaching a given point the boatmen would signal their approach by firing a small cannon kept on each barge for that purpose. After the invention of the steam whistle, now so common, by Adrian Stephens, of Plymouth, England, whistles came at once into use on all American waters.

For ages these great streams had been rolling wanton to the sea, and after the occupation of Alabama by the whites, the natural advantages were readily recognized, but as nothing was then known of the steam engine, of course there was nothing left but to employ the most available craft for transportation. For a long period, only the awkward barges and flatboats were used. It may be readily seen how the introduction of steamers on our rivers would facilitate individual and aggregate prosperity, which had been so long retarded by the slow process of navigation already mentioned.

Though Robert Fulton's first grotesque steamer appeared on the waters of the Hudson as early as 1807, and while a steamer had not yet been seen in these parts, enterprising spirits, in anticipation of the coming use of steamboats, organized a company at St. Stephens, the territorial capital, in 1818, which company was duly authorized by the legislature of the Alabama Territory, and bore the name of the St. Stephens Steamboat

Company. This was followed two years later by another, which was incorporated under the name of the Steamboat Company of Alabama, and a year later still came the organization of the Mobile Steamship Company. If it is supposed that the fathers had no enterprise in those early days, this will serve to disabuse the minds of all doubters. They were dealing in steam futures, but they were ready for the coming tide of steam progress. In due course of time, these rival organizations introduced steamers on the rivers of the state, but they were not rapid of locomotion, were at first small, rather elaborate in adornment, and afforded some degree of comfort to a limited number of passengers. These diminutive floaters were gradually displaced by larger vessels, the number multiplied, and by 1845 magnificent packets were lowered from the decks and became "floating palaces" on our waters.

At first, a steamer was propelled by a wheel at each side, but this gradually gave way to a single wheel at the stern. The period of the career of these magnificent steamers was a brief one, lasting not more than fifteen or twenty years before the outburst of the Civil War.

Railways in Alabama were still practically unknown, and steamboat travel was exceedingly popular. On the best and finest steamers the entertainment could scarcely be excelled. The staterooms were often elegant, and always comfortable, and the tables were banquet boards. The best country produce was gathered at the landings, and the table fare was one of the boasts of the steamers. The most sumptuous carpets were on the floors of the passenger saloons, while superb furniture was alike pleasing to the eye and comfortable in practical use. The boats were constructed with three decks, known, respectively, as the lower, the middle or passenger, and the upper or hurricane deck.

During the cotton season, which extended from September to March, or about one-half the year, the boats would descend the rivers loaded each trip with hundreds of bales of cotton, and returning, would be laden with merchandise, while in both directions, there was usually a throng of passengers. On some of the most elegant steamers were calliopes, the music of which would resound at night over many miles of territory pierced by the rivers. Nothing known to entertainment or comfort was omitted on a first-class steamer in the forties and fifties.

Many of the landings on the rivers were located on high bluffs through which a flight of steps would lead from the summit to the water's edge, the length of which flight would sometimes exceed several hundred feet. Alongside the uncovered stairway, was a tram for a wide car, which was nothing more than a platform on wheels, which wheels ran on two beams of wood, the surface of which was sheeted with iron. The car was operated by means of a pulley on the summit, which, in turn, was operated by a mule or horse moving in a circular enclosure. The freight from the steamer was strung along the bank below, to be cared for by the warehouse above. When cotton was to be shipped from the top of the bluff, a number of deck hands would go to the top of the steps, and each bale was slid down the tramway to the boat. The bale would be started endwise and descend with whizzing swiftness, strike the lower deck, be seized by the hands below, and put in place.

Great were the days of the reign of the steamboat! While slow, compared with later methods of travel, steamboat passage was the acme of comfort and enjoyment. The social pleasure afforded was unsurpassed. While it would require several days to go two or three hundred miles by boat, the element of time was not so much a consideration in those leisurely days as it is now, and the regret was often that the time of the passage was not longer. During the busy season the schedule of the boats was most irregular, and not infrequently passengers would wait the arrival of the boat for twenty-four hours, and sometimes even longer.

It was interesting, the contention and competition among the rival boats for freight and passenger traffic. In order to be able to advertise the popularity of a given steamer, the subordinate officers and others of the crew, would solicit passengers at the hotels of the terminal cities, and would not only offer free passage, sometimes, but actually offer a consideration of a small sum of money, in addition, to such as would make choice of that steamer in preference to another.

The war greatly crippled boating on the rivers, and with the rally and rehabilitation of the South from the effects of the war, the railway came on anon, and the steamers largely disappeared from our rivers.

HARRY, THE MARTYR JANITOR

Howard College, then at Marion, was burned on the night of October 15, 1854.

Dr. Henry Talbird was at the time the president of the institution, and his nightly habit was to make a thorough inspection of the grounds and buildings, in order to see that all was well. After making his usual and uniform round on the night just named, he went to bed somewhat after ten o'clock. He had fallen into deep sleep, when he was aroused by the ringing of bells and the loud cry of "Fire! Fire! Fire!" On rushing out, he found the lower floor of the dormitory all ablaze, the fire already having begun its ascent up the stairway.

To this day the origin of the fire is a mystery. It was in the fall of the year, the weather was still warm, and there was no occasion for fire about the building. The basement was one mass of rolling flames when first the building was reached. In a house near by, the janitor, a negro boy of twenty-three, was sleeping, and when he reached the scene, the flames were moving steadily up the stairway. He made a movement as if to plunge into the flames, when he was warned to keep clear. He replied that he must save the boys who were sleeping on the two upper floors, and did plunge through fire and smoke, and disappeared beyond.

Within a short time many of the people of the town had gathered, and the boys began to leap, one after another, to the ground. Ladders were brought into requisition to aid those on the highest floor to escape. Every student was aroused by the heroic colored janitor, and all but one had descended safely to the ground.

The young man who was still missing soon appeared at a window and was saved through the exertions of the late Dr. Noah K. Davis, late professor of philosophy in the University of Virginia, and several others.

About this time the negro boy, burnt almost bare, and raw from his burns, his hair burnt from his head, and his eyebrows and lashes gone, appeared at

one of the highest windows and flung himself to the ground, about sixty feet below.

He rolled over on the grass a dead man.

His body was drawn from under the influence of the intense heat, and every effort was made to restore life, but he had been burned to death, and evidently had thrown himself from the window to prevent his body from being consumed in the burning building.

The terrible fire was now lost sight of in the attention which was bestowed on the faithful negro janitor. He had given his life for others.

The following morning, elaborate preparations were made for the becoming burial of the heroic Harry. Negro slave, as he was, he was honored with a burial from the leading white church of the town.

The building was packed with wealthy planters, merchants, lawyers, and their families to do honor to the hero of the fire.

In the funeral services leading citizens arose, one by one, to pronounce eulogies on the dead slave.

Flowers were in profusion, and the procession to the cemetery was composed of the carriages of the wealthy. Greater distinction could not have been shown the most eminent citizen of the town.

At the grave, every possible consideration was shown, and mournfully the vast crowd turned from the grave of an humble slave. A sum of money was at once raised for the purpose of placing a high marble shaft at his grave, and in the cemetery at Marion it still stands conspicuously, with the inscriptions undimmed by the storms of more than half a century. On the front of the shaft is the inscription: "Harry, servant of H. H. Talbird, D.D., president of Howard College, who lost his life from injuries received while rousing the students at the burning of the college building, on the night of October 15, 1854, aged 23 years." On another side appears the inscription: "A consistent member of the Baptist church, he illustrated the character of a Christian servant, 'faithful unto death.'" On still another side appears the language: "As a grateful tribute to his fidelity, and to commemorate a noble act, this monument has been erected by the students of Howard College and

the Alabama Baptist Convention.” The fourth side of the monument bears this inscription: “He was employed as a waiter in the college, and when alarmed by the flames at midnight, and warned to escape for his life, he replied, ‘I must wake the boys first,’ and thus saved their lives at the cost of his own.”

Here humanity asserted itself to the full. Uninfluenced by any other consideration than that a young man had proved himself a hero in a dire crisis, every worthy man and woman was ready to accord to a dead but heroic slave, the merits of his just deserts.

At this time the country was shaken by the acrimonious discussion of domestic slavery, in which the negro was as extravagantly exploited in the North as he was depreciated in the South; so much so, indeed, that it was deemed unwise in the South to accord him other than ordinary consideration. But in a juncture like this, humanity asserted itself, and to the faithful negro janitor every possible honor was shown. For when an ignorant slave boy became a rare hero, and voluntarily gave his life for others, all else, for the time, was forgotten at the bar of tested humanity.

The name of Harry was heralded through the press of the country, and on the floor of the Baptist State Convention of Alabama wealthy slave owners eulogized him a hero, and freely opened their purses to give expression to their appreciation of his chivalrous conduct in saving the lives of so many.

“World-wide apart, and yet akin,
As shown that the human heart
Beats on forever as of old.”

A MEMORABLE FREEZE

The year 1849 is signalized as the most remarkable in the history of the state. The winter was ushered in by mildness, there was but little harsh weather during the entire season, and the winter was early merged into the mildness of spring. Vegetable life began to appear in the greenswards, the blossoms came in profusion, birds were singing and nesting, vegetables grew to early perfection, and the good housewives were careful to stow away the winter apparel with safeguards against moths and other destructive insects.

Planters were awake to turning the advanced season to practical account, the fields were plowed and planted, and the young crops began growing rapidly under the genial and fervid skies. The crops were much advanced because of these favorable conditions, and the fruit was rapidly increasing in size. Every indication pointed to a prosperous year, and the flash of confidence was in the eye of every planter. Cool snaps would now and then come, but they were not of such character as to occasion concern, and the young crops were growing rapidly apace. Corn had been planted early, and excellent stands were everywhere to be seen. The peculiar season excited much wonder, and was the occasion of not a little comment. There was a rush and bustle of life everywhere. Cotton was early planted, was chopped out, and was rapidly growing off.

The burst of summertime had practically come by the middle of April, the gardens were yielding abundantly of vegetables, and cold weather came to be regarded as a memory. The oldest declared that they had never before witnessed a year like that, and the indications were that the harvest would come at least a month in advance of any previous year. Early fruits began to ripen, and progressive housewives were vying with each other in the production of early fruits and vegetables, and especially in the quantity of eggs gathered.

Near the latter part of April of that year a sudden change came. The atmosphere became rapidly chilly, but as snaps had come at different times,

this occasioned no serious alarm.

But the weather continued to become more icy, and there was a rapid shift of apparel. The sudden change culminated in one of the fiercest freezes that had occurred within a number of years. The corn was waist high, and the cotton fully twelve inches in height, and perfectly clear of grass. The morning following the severe freeze revealed a wide waste of desolation. Wilt and blight and death were everywhere. The deepest green was turned into sallow, and cheerlessness everywhere reigned. Not a glimpse of green was to be seen. Gardens, fields and pastures equally shared in the general desolation. Not a note of a bird could be heard, many of the songsters were found dead, and nature seemed to put on the weeds of mourning.

The enthusiasm of the planting public was turned into consternation. There was everywhere dismay. The season was well advanced, seed was scarce and difficult to be had, and the sudden check was a shock. The difficulty was that few knew what to do in the presence of a phenomenon so remarkable. But there was no halt on the part of the progressive planters. They resumed their activity and fell to the work of planting anew. The soil was in excellent condition, economy was had in the use of seed, and soon another crop was planted. The weather rapidly changed to warmth again, showers followed, and the seasons thenceforth were ideal. Every condition favored germination and growth, cultivation was rapid, and within a few weeks the fields were again radiant in vernal freshness. The leaves came again slowly on the trees, though many of the trees died. Fruit utterly failed, and not a few of the fruit trees were killed.

As with compensating balance, a long summer ensued, followed by a late fall, the crops grew rapidly to perfection, every condition favored their tillage and final harvesting, the whole resulting in one of the most bounteous crops produced up to that time in the state.

Hickorynuts, walnuts, acorns, and swampmast generally were abundant to the salvation of the small game of the woods, and to the supplementary aid of the raisers of hogs, and no inconvenience was experienced save that everything was backward.

The opening of the cotton market was delayed for a month or six weeks, but the price was good, and the year 1849 recovered from its disaster, and

proved to be one of the most prosperous that had ever been experienced. Merchants who were accustomed to go north for their stocks were somewhat delayed, but so were the seasons, and conditions were amply equalized by the close of the year, and events took their usual and uniform round.

To be sure, scientific wiseacres here and there declared that the seasons were changing, just as is always true when phenomena come, but practical men went on their way, farmers becoming more economic and careful, but as '49 receded, it became a year much talked of during the then existing generation, and in time became a tradition as a remarkable exception among the years.

Remarkable meteorological phenomena have come in all periods of history, and while they have furnished supposed data to a certain class of scientists, so-called, with which they have woven theories not a few, the temperature of the different zones has continued as of old, and while fatuous theories have gone to the winds, the seasons have kept on their wonted rounds as of old.

The modification of temperature may come as a result of certain conditions like that of the denudation of our forests and others, yet there is scarcely any prospect that any material change will come, for so long as the gulf stream pursues its way, climates are not liable to undergo any decided change.

TWO SLAVE MISSIONARIES

Amidst the shadings and shinings of slavery were two instances in Alabama history that are worthy of record. During the regime of slavery, provision was made in the churches of the whites for the accommodation of the slaves, in the larger churches by spacious galleries, and in the smaller ones, by rear seats. The latter custom prevailed, for the most part, in the rural churches.

Among the different denominations, the Baptists and Methodists were foremost in the provision of the means of the evangelization of the slaves. These two denominations made each year appointments of white missionaries to the blacks on the plantations, and on the services held under such conditions, both the whites and blacks would attend. Provision was made for membership of the slaves in the churches of the whites, where they enjoyed the same privileges in common, being received into membership in the same way, baptized, as were the others, and sharing in the communion alike. When the slaves were freed, they were encouraged to found their own churches and other institutions, the friendly whites aiding them in every way possible.

So far back as 1828, before the agitation of the slavery question began in earnest, in the press, the schools, and in the congress of the United States, much attention was given to the christianization of the slaves. This spirit was somewhat later checked by the establishment of the underground railroad, and by other methods clandestinely employed by the abolitionists to liberate the southern slaves. These secret methods called into exercise counter means as those of circumvention. Among these last mentioned was that of the legal imposition of a penalty on anyone who would teach a slave to read or to write, which law was generally enacted in the slave states, and the other was that of the fugitive slave law, which was enacted September 18, 1850.

Between the legislative bodies and the Christian denominations there was no apparent conflict, and yet those interested in the evangelization of the

slaves recognized the necessity of intelligence in order to appreciate the gospel. The practical result was that the legislature would enact its laws and the churches would pursue their own courses in their own ways. In the Alabama Baptist Association a step was taken, in 1828, that reveals one of the bright sides of slavery. At that time the Alabama association embraced a number of counties in the heart of the "black belt," where were many of the largest slave owners of the state.

Within the territory of that association was a remarkable negro named Caesar, who belonged to John R. Blackwell. This slave showed not only remarkable ability as a preacher, but possessed a rare character which was highly esteemed by the whites. The missionary to the slaves at that time was Rev. James McLemore, on whom Caesar won rapidly, and he often took the slave preacher with him on his tours, and not infrequently had him to preach in his stead. Mr. McLemore called the attention of the association to the worth of this man, and proposed that he be bought from his master, given his freedom, and be employed as a missionary to the slaves on the plantations. This was accordingly done, through a committee of the body, and the sum of \$625 was paid for Caesar out of the treasury of the association, and the remainder of the life of Caesar was given exclusively to preaching as a free man. Exceedingly black as Caesar was, he was gladly listened to by white auditors, as he would go here and there about the country on his missionary tours.

In another instance, the Alabama state convention sought to purchase a gifted slave for the same purpose. There belonged to John Phillips, of Cotton Valley, Macon County, a slave whose name was Dock, a large, muscular and valuable man, who was a blacksmith on his master's plantation. He and his master had been reared together, and were much devoted to each other. In his younger days, Dock had been taught to read and to write by his young master, who came at last to inherit him from his father's estate. Mr. Phillips continued to teach Dock, who became a preacher of note among his people, and who was widely esteemed by the whites because of his Christian worth, wise influence on the slaves, and because, too, of his gift as a preacher. He attracted the attention of some of the prominent members of the convention, and the proposal was made to purchase his freedom, and to send him forth as a missionary among the blacks. An influential committee was appointed, one of which number was

the late Dr. Samuel Henderson, and in due time, the committee visited the master with the view of negotiating the purchase.

When the matter was submitted to the master he replied that he did not wish to prevent the greatest good being done among the slaves, and admitted that Dock was a tower of strength with his people, but added that he regarded Dock indispensable to his plantation, because he was his chief “driver,” and his only reliable blacksmith. After much discussion, the master consented to leave the matter for settlement to Dock himself. Accordingly he and the committee of distinguished preachers repaired to the blacksmith shop, called Dock out, who was wearing his long leather apron, and had his sleeves rolled to his shoulders, while his face was begrimed with smoke and soot. Mr. Phillips remained silent, and allowed the preachers and Dock to negotiate concerning his purchase and consequent freedom.

Dock listened in silence while they proceeded to show him the advantages which would accrue to him, in consequence of his freedom and the exercise of his gifts as a preacher. When the committee had ended, Dock asked his friend and master what he had to say to a proposal so novel, and the master told him that it was left to him to decide. The blacksmith then said: “Marse John, we were raised together, and have always been like brothers. You give me all the freedom I want. You let me have a horse to ride when I want it, and there has never been a word between us. No greater kindness could I have, if I were free, but if you want to sell me, I will go, not because I want to, but because you want to get rid of me. Of course, I belong to you, and if you leave it to me, I’m going to stay with you till one or the other of us dies.” “That settles it, gentlemen,” said the master, and turning to Dock, he said, “You may go back to your work.” Dock lived many years, was a slave preacher of power, but was never free. There is much of the inner history of the South of which the world knows nothing.

THE CAMP MEETING

For the camp meeting, so long a popular institution in the South, we are indebted to the people called Methodists. The originator of the camp meeting seems to have been Lorenzo Dow, who adopted this as a popular method of reaching the people of England in the earliest years of the nineteenth century. It was so successful that the early Methodists adopted it with much advantage in the new and growing states of America. Others partly adopted this method, but none could ever equal the success of the Methodists in its conduct. It remained a popular institution till the beginning of the Civil War.

Unique in many respects, the camp meeting rapidly won in popular favor. Though religious, the camp meeting had the inviting side of an outing and the dash of the picnic together, with the abandon attendant on a season of religious worship in the woods. Its lack of restraint of formality and conventionality, such as pertained to church worship, gave it a peculiar tang of popularity. In the camp meeting there was a oneness of spirit, with the total obliteration of favoritism where people could worship without the fear of trenching on the rules of stilted propriety, and without having to conform to style or aught else, but common sense propriety. The preacher could preach as long as he might wish, and the people could sing and shout without limit. The fresh, open air, the tented grounds, social contact, and freedom of worship were the chief elements of an old-time camp meeting. Certain points throughout the South became famous as camp grounds, and remained so for full fifty years or more. That the camp meeting was an occasion of vast good, no one familiar with it would deny. To old and young alike it was always one of the prospective focal points of genuine enjoyment. There was the zest of novelty of living apart a week or ten days from the noisy world, in the midst of the most congenial association. The approach of the season for the camp meeting spurred the farmer to the time of "laying by" his crop, and excited the diligence of the good housewife in hoarding eggs, butter and honey and of fattening the turkeys and chickens, all for "the coming camp meeting." Nor did the idea of denominationalism ever enter the minds of the people. While it was a Methodist institution,

those of other denominations shared with equal interest in its promotion and success. The recreation afforded was of the most wholesome type physically, mentally, socially, and spiritually.

A level tract of land in close proximity to a large spring of water was usually selected, cleared of its undergrowth and fallen timbers, in the midst of a populous region, and with surroundings of abundance in order to provide against any emergency respecting man or beast. The grounds were generally laid out in regular order after the fashion of a camp, and any who might wish to do so were invited to pitch their tents, and share in the general enjoyment of the occasion. The only restriction imposed were those of good order and the observance of decent propriety about one's tent. Disorder of no kind was tolerated, and if discovered, was promptly removed. There were no rigid rules, the law being that of common sense based on decency and propriety.

The camp meeting was held at an annually stated time, and by the Christian community was looked forward to with a sense of delight that must have been akin to that of the ancient Israelites in their annual pilgrimages to Jerusalem. For at least a week in advance of the beginning of the meeting, there were those who were active in getting the grounds into condition for the coming event, while those who were to tent on the grounds were engaged in storing supplies and arranging for the comfort of the occupants of the tents and cottages erected about the grounds. The tents were thickly sown down with oat or wheat straw, and partitioned with curtains, in accommodation to the different sexes.

The chief building on the grounds was the place of worship, or the tabernacle. This was usually a pavilion with permanent roof and seats and deeply overstrewn with straw. Sometimes it was an immense tent which was erected each year. The worship began with a sunrise prayer meeting, to which the audience was summoned, as it was to all occasions of worship, by the blowing of a large cow horn. Four services a day were held, one at sunrise, another at midday, a third in the afternoon, and another at night. No limitation of time was imposed on the services. They were as liable to last four or five hours, as one. The matter was settled by the interest, and not by the watch. Often after midnight the services were still in progress.

Near the center of the grounds was what was called the fire-stand, which was a small platform four or five feet square, covered deeply in sand, on which a fire was kept blazing by means of light-wood during the entire night. This platform was supported by four strong supports, and the resinous flame would irradiate all the grounds and surrounding forest. About the camp, were the stalls for the stock, and the braying mules and neighing horses served to remind one of the domestic conditions of the camp.

These occasions were gala ones to the young folk who were seen perched in buggies about the grounds discussing themes that “dissolve in air away,” while more serious subjects were being conned under the roof of the tabernacle. No class more gladly hailed the camp meeting than the old-time, thrifty slave, who appeared on the scene with crude articles for sale. The old black mammy was present with her coil of flaring bandana about her head, and wearing her snowy apron, while she sold her long ginger cakes, while the old uncle dispensed from an earthen jug good “simmon beer,” or corn beer, while others were venders of watermelons and sugar cane.

Other organizations more formal and formidable have come to take the place of the old time camp meeting, but it is doubtful that they accomplish the same beneficent results. The camp meeting was a social cement which blended most beautifully with that which was spiritual in a wide region, and in its discontinuance there is occasioned a gap which nothing has come to fill.

THE STOLEN SLAVE

Rev. Dr. I. T. Tichenor, who was for many years pastor of the First Baptist Church of Montgomery, later the president of the Polytechnic Institute at Auburn, and still later corresponding secretary of the Home Mission of the Southern Baptist Convention, relates the following story of cruelty as connected with his pastorate at Montgomery. It was the habit of Dr. Tichenor to preach to the slaves of Montgomery, every Sunday afternoon, during his long pastorate in that city.

Among the many hundred slaves who came to the service was a large, muscular, yellow man, well advanced in years, whose infirmity was supported by a large hickory stick, the peculiar thump of which always signalized the coming of this old man into the church. The pastor was sympathetically attracted to the old man because of his devotion, marked silence, and physical infirmity. This particular slave rarely smiled, and when the pastor would call on him to pray, which he sometimes did, Jesse Goldthwaite, the crippled slave, would respond with a fervency rarely heard.

When the emancipation of the slaves came as a result of the close of the war, there was much jubilation, but it seemed not to affect Jesse Goldthwaite. Conscious that his end was near, freedom could be of but slight benefit to him. The distinguished white pastor noticed that the old man was not the least cheerful, in the midst of the wild demonstrations of racial joy, and the shadow of the sorrow under which the aged slave lived never disappeared. After the slaves had been free for some time, Jesse came one day during the week into the study of Dr. Tichenor, and addressing him as "master," as he was in the habit of doing, wished to know if he would be good enough to write some letters for him.

Dr. Tichenor assured him that it would be a pleasure to serve him. With difficulty the old ex-slave took a seat that was offered him, and leaning on his big stick began by saying that when he was stolen from his home in Maryland, his father, mother, three brothers and a sister were then living in

a thrifty village in that state, the name of which village was given. But this was just fifty-two years before. Jesse indulged the hope that some of them still lived, though he had not heard from them since he was kidnaped at the age of eighteen.

Never having heard his story, Dr. Tichenor encouraged him to give it. Jesse's father and his family were free. The family lived on the outskirts of a Maryland village where the father owned a good home and a small farm. Having occasion to send Jesse on an errand to the shores of the Chesapeake, the stalwart youth of eighteen, muscular, large, active and bright, was seized by some slave traders, and forcibly taken on board a small vessel and carried to Richmond, where in the slave market he was sold on the block. He protested that he was free, and was forcibly brought hither, but no attention was given to his defense. From Virginia he was brought to Montgomery, and bought by the Goldthwaites, in which family he had been for more than fifty years. On being sold at Montgomery he again protested, but was answered by the statement that he had been bought in good faith, and the fault was not that of his present owners. This, he said, destroyed all hope, and he knew that he was doomed to a life of slavery, from which condition there was no possible appeal. This made him desperate, and he resolved on a course of perpetual rebellion. His mistress sympathized with him in his condition, after she learned his story, and sought to show him every possible kindness, but his refractory disposition brought him under the stern discipline of his master, who sought to subdue him at any cost. While he was forced to succumb, he was not reconciled to his fate, and resisted in every way possible. He was notorious as a thief, liar, and profane swearer, and in his desperation he resolved to drown his troubles in drunkenness. Exposure on cold nights, while drunk, induced the rheumatism and impaired his sight almost to blindness.

The years wore wearily on, and when he was brought under the influence of the preaching of Dr. Tichenor, Jesse became a Christian, and thenceforth he sought to lead a subdued and submissive life, but his frame was now a wreck. Advancing age had bent his form, and it was with difficulty that he could see. While submissive, Jesse was never cheerful, but lived under the burden of a wrong enforced, from which there was no possible deliverance. Now, at the age of seventy-two, he came to Dr. Tichenor to request that he write to Maryland, and if possible, to learn whether any of his relatives,

who never knew of his fate, were still surviving. Letters were written, one to the postmaster of the village, and to others known personally to Dr. Tichenor, at Baltimore, and elsewhere.

For several weeks the old man would trudge with difficulty to the pastor's study to learn of the result of the letters, but no favorable answer came. In order to cheer the old man, and to prolong hope, Dr. Tichenor would write to yet others, but nothing could be learned of the whereabouts of any of those sought by Jesse Goldthwaite. The aged ex-slave would leave the presence of the pastor with a heavy groan each time, and express the hope that when he should come the next time he might be able to learn of his loved ones of the long ago. Finally the old man ceased to come. It was thought that continued discouragement had checked his visits, but when Dr. Tichenor sought to learn of the strange absence of Jesse, he ascertained that he had been dead for weeks. In a negro cabin he had died in Montgomery, and had been quietly buried by his own people in the pauper graveyard.

In the annals of the horrors of slavery no story can perhaps excel that of the doom of Jesse Goldthwaite. Born a free man, and stolen in the prime of his robust youthhood, manacled and sold into slavery, he lived more than a half century in this condition, and when he died, he was buried in a grave of poverty.

HAL'S LAKE

In the fork of the Alabama and Tombigbee Rivers, about fifty miles above Mobile, is said to be a lake, beautiful and clear, which is called Hal's Lake. The name is derived from an incident that occurred in the days of slavery. A runaway slave from a Mississippi plantation found refuge and secretion in this dismal resort, and hither he lured other slaves, all of whom lived in the region of the lake for an unknown time.

Having run away from a plantation in Mississippi, Hal, a stalwart slave, made his way across the Tombigbee, and on reaching the swamp of big cane, tangled underbrush and large trees, he found his way into it with great difficulty, where he discovered that the bears of the swamp had regular paths, the tall canes on the sides of which being worn smooth by their fur. For a day or two the runaway subsisted on the wild fruits of the swamp, but on exploring further toward the north, he found that there were plantations on the opposite side of the Alabama River, and by means of the use of a piece of wood to support him in swimming across, he made his way, a hungry man, to a plantation at night, where he told his story and procured food.

Hal soon became an expert forager, as was indicated by the loss of an occasional pig, lamb, goat, or turkey from the plantation. Not content with his own freedom, he determined to bring his family to this swampy retreat. Making his way back to his distant home, he succeeded at night in mounting his family on two or three choice horses, and being familiar with the country in that region, he chose to travel during the first night along plantation paths, and the next morning after leaving the home, he and his were fully thirty miles away. The horses were turned loose, and the remainder of the journey was pursued at night, while the fleeing slaves would sleep during the day. When the Tombigbee was reached, he succeeded in conveying his family over by lashing some logs together. After a perilous passage, they finally reached the swamp, and set about providing a temporary home on the lake, by constructing a booth of canes and saplings, covering it with bark.

In his trips to the neighboring plantations across the river for necessities, Hal induced other slaves to join him in his safe retreat. After a time, he had a colony in a quarter where white men had never gone, and on the shores of the lake chickens crew, turkeys gobbled, with the mingled notes of the squealing of pigs and the bleating of goats.

Hal was the sovereign of the tiny commonwealth, and in due course of time he found it unnecessary himself to go on foraging expeditions, and would send others. Still the population of the colony grew, as an occasional runaway slave would be induced to join it. In those days of “underground railroads,” the continued absence of a slave from a plantation would be taken to mean that he had fled by some of the numerous means of escape, and after a period, search for the missing would be given up. Not only was there a mysterious disappearance of slaves, but that of pigs, chickens, sheep and other domestic animals, as well. The secret of this slave haunt was well preserved, and the news of its security became an inducement to a large number of slaves, some from a considerable distance, to join Hal’s colony beside the lake.

Not only was Hal autocratic in his immured fastness between the rivers and in the jungle of cane, but he became tyrannical, which in turn, provoked revolt. A burly slave refused to obey his dictation, and Hal straightway expelled him from the colony, and exiled him. Bent on revenge, the exile made his way back to his master, surrendered and told the story fatal to Hal’s colony. The mysteries of several years were thus cleared up to planters along the rivers. The exile became the guide to the retreat where was ensconced the slave colony, and with packs of dogs and guns, the stronghold was surrounded and the slaves captured. But slight resistance to the dogs was offered, and the submissive black men and their families were conveyed across the river, the ownership of each ascertained, and each was sent, under guard, to his owner. As for Hal and his family, the sheriff notified the owner on the distant Mississippi plantation of their capture, and he came, in due time, proved his chattels, and they were taken back to their original home.

How long they might have remained in this secure retreat, but for the intolerance of the original leader, it is impossible to say. Hal was not unlike many another with advantages vastly above his—power made him top-

heavy, and soft seductions were turned into tyranny, all of which reminds us of the comment of Artemus Ward on the conduct of the Puritans of New England. Artemus said: "They came to this country to worship God according to their own consciences, and to keep other people from worshipin' Him accordin' to their'n."

The capture of Hal and of his party led to the discovery of this phenomenal body of clear water in that interior retreat not only, but to the discovery of bears, which fact made it the hunting ground for big game for many years. It is said that much big game is still to be found in that region between the two great rivers.

How much of truth there is in the details of this story which comes to us from the old slave days, none can tell, but it reveals to us one of the features of slave life. That the story has its foundation in fact, there seems to be no doubt, and it still lingers as a tradition in that quarter of the state.

Transcriber's Note:

Text on [page 530](#) is misprinted in the original. This error is presented in this version as it is in the original.

Gen. William Henry Harrison having resigned as major general in the regular army was disbanded, and the troops returned home. him.

*** END OF THE PROJECT GUTENBERG EBOOK MAKERS AND
ROMANCE OF ALABAMA HISTORY ***

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